

SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM (SNAP) POLICY MANUAL



[Vol 69 January 2026](#)

South Carolina Department of Social Services

SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM
(SNAP)

POLICY MANUAL

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South Carolina Department of Social Services

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(SNAP)**

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Chapter 1 General Information

1.1 GENERAL PURPOSE

The Supplemental Nutrition Assistance Program (SNAP) is designed to promote the general welfare and to safeguard the health and well-being of the Nation's population by raising the levels of nutrition among low-income households.

SNAP permits low-income households to obtain a more nutritious diet, through normal channels of trade, by increasing food purchasing power for all eligible households who apply for participation. It includes as a purpose to assist low-income adults in obtaining employment and increasing their earnings. Such employment and earnings, along with program benefits, permits low-income households to obtain a more nutritious diet through normal channels of trade by increasing food purchasing power for all eligible households who apply for participation.

1.2 OPERATION OF SNAP

SNAP is operated under the provisions in the Food and Nutrition Act of 2008 (as amended). The eligibility of the Act is further developed in **Title 7, Code of Federal Regulations**, Parts 210 through 299. SNAP is administered by the Food and Nutrition Service (FNS) under the United States Department of Agriculture (USDA). The Secretary of Agriculture establishes uniform national standards of eligibility for participation. The address for the USDA, FNS Regional Office for Alabama, Florida, Georgia, Kentucky, Mississippi, North Carolina, South Carolina, and Tennessee is:

Southeast Regional Office
U.S. Department of Agriculture, Food and Nutrition Service
61 Forsyth Street S.W., Room 8T36
Atlanta, GA 30303-3427.

The South Carolina Department of Social Services (SCDSS) is responsible for the administration of SNAP within the State of South Carolina, including, but not limited to:

- (1) Certification of applicant households;

- (2) Issuance, control, and accountability of SNAP benefits;
- (3) Developing and maintaining complaint procedures;
- (4) Developing, conducting, and evaluating training;
- (5) Conducting performance reporting reviews;
- (6) Keeping records necessary to determine whether the program is being conducted in compliance with these regulations; and
- (7) Submitting accurate and timely financial and program reports.

The Agency must ensure that policy is applied fairly, equitably and consistently throughout the State.

The Agency has the authority in determining the amount of, and settling, adjusting, compromising or denying all or part of any claim which results from fraudulent or non-fraudulent over-issuances to participating households.

1.3 GENERAL TERMS AND CONDITIONS

General terms and condition of SNAP are:

(1) SNAP benefits do not count as income to reduce benefits

The SNAP benefit allotment provided to any eligible household will not be considered income or resources for any purpose under any Federal, State, or local laws including, but not limited to, laws on taxation, welfare, and public assistance programs.

(2) No sales taxes on SNAP purchases

No local sales taxes or other taxes or fees, including but not limited to excise taxes, can be collected within the State on purchases made with SNAP benefits. Where the total value of eligible foods being bought by the recipient is larger than the amount of SNAP benefits being presented by the recipient, only the portion of the sale made in exchange for SNAP benefits must be exempt from taxation. Although a SNAP recipient may use a combination of cash and SNAP benefits in making a food purchase, only the dollar amount represented by SNAP benefits needs to be exempt from taxation.

(3) Disclosure

Use or disclosure of information obtained from SNAP applicant or recipient households will be restricted to:

- A. Persons directly connected with the administration or enforcement of the provisions of the Food and Nutrition Act of 2008 (as amended), or regulations, other Federal assistance programs, federally-assisted State programs providing assistance on a means-tested basis

- to low income individuals, or general assistance programs which are subject to the joint application processing requirements;
- B. Persons directly connected with the administration or enforcement of the programs which are required to participate in the State Income and Eligibility Verification System/State Verification and Exchange System (IEVS/SVES) to the extent the SNAP information is useful in establishing or verifying eligibility or benefit amounts under those programs;
 - C. Persons directly connected with the verification of immigration status of non-citizens applying for SNAP benefits, through the Systematic Alien Verification for Entitlements (SAVE) Program to the extent the information is necessary to identify the individual for verification purposes;
 - D. Persons directly connected with the administration of the Child Support Program under part D, title IV of the Social Security Act in order to assist in the administration of that program, and employees of the Secretary of Health and Human Services as necessary to assist in establishing or verifying eligibility or benefits under titles II and XVI of the Social Security Act;
 - E. Employees of the Comptroller General's Office of the United States for audit examination authorized by any other provision of law;
 - F. Local, State, or Federal law enforcement officials, upon their written request, for the purpose of investigating an alleged violation of the Food and Nutrition Act of 2008 (as amended) or regulation. The written request must include the identity of the individual requesting the information and his authority to do so, violation being investigated, and the identity of the person on whom the information is requested; and
 - G. Local, State or Federal law enforcement officers, acting in official capacity, upon written request, for the purpose of obtaining the address, Social Security Number, and, if available, photograph of any household member, if the member is fleeing to avoid prosecution or custody for a crime, or an attempt to commit a crime, that would be classified as a felony, or is violating a condition of probation or parole imposed under a Federal or State law.

NOTE: The Agency will not require a household to present photographic identification as a condition of eligibility and must accept any document that reasonably establishes the applicant's identity.

The Agency will also provide information regarding a household member, upon the written request of a law enforcement officer acting in his or her official capacity, where such member has information necessary for the apprehension or investigation of another member who is fleeing to avoid prosecution or custody for a felony, or has violated a condition of probation or parole. The Agency will disclose only such information as is necessary to comply with a specific written request of a law enforcement agency authorized by this paragraph.

- H. Local educational agencies administering the National School Lunch Program established under the Richard B. Russell National School Lunch Act or the School Breakfast Program established under the Child Nutrition Act of 1966, for the purpose of directly certifying the eligibility of school-aged children for receipt of free meals under the School Lunch and

School Breakfast programs based on their receipt of Supplemental Nutrition Assistance Program benefits.

Agency recipients of information released under this section must adequately protect the information against unauthorized disclosure to persons or for purposes not specified in this section. In addition, information received through the IEVS must be protected from unauthorized disclosure as required by regulations established by the information provider.

If there is a written request by a responsible member of the household or the currently authorized representative, to review material and information contained in its case file, the material and information contained in the case file will be made available for inspection during normal business hours. However, the Agency may withhold confidential information, such as the names of individuals who have disclosed information about the household without the household's knowledge, or the nature or status of pending criminal prosecution.

(4) Information available to the public

Federal regulations, Federal procedures embodied in FNS notices and policy memos, State Plans of Operation, and corrective action plans will be available upon request for examination by members of the public during office hours at the Economic Services (ES) Policy Unit at SCDSS State Office, as well as at USDA FNS regional and national offices.

The SNAP Policy Manual will be available for examination upon request at each local county DSS as well as at the ES Policy Unit at SCDSS State Office and FNS Regional offices. The SNAP Policy Manual may also be accessed online.

(5) Records and reports

SCDSS will keep such records and submit such reports and other information as required by USDA FNS.

(6) Retention of records

SCDSS will retain all SNAP records in an orderly fashion. For audit and review purposes, all information used to determine eligibility will be retained for a period of 3 years from the current certification period (four (4) years from the current date). The Agency will retain fiscal records and accountable documents for 3 years from the date of fiscal or administrative closure. Fiscal closure means that obligations for or against the Federal government have been liquidated. Administrative closure means that SCDSS has determined and documented that no further action to liquidate the obligation is appropriate. Fiscal records and accountable documents include, but are not limited to, claims and documentation of lost benefits.

1.4 INFORMATIONAL ACTIVITIES

Program Informational Activities are those activities that convey information about SNAP, including household rights and responsibilities, through means such as publications, telephone hotlines, and face-to-face contacts. SCDSS will comply with the following minimum information requirements for applicants and recipients.

(1) Nutrition information

USDA FNS must encourage SCDSS to develop Nutrition Education Plans to inform applicant and participant households about the importance of a nutritious diet and the relationship between diet and health.

SCDSS will encourage program participants to participate in the Expanded Food and Nutrition Education Program (EFNEP) and, wherever practicable, allow EFNEP personnel to come into local county SNAP offices to distribute informational materials and speak with SNAP recipients.

(2) Rights and responsibilities

SCDSS will inform participant and applicant households of their SNAP rights and responsibilities.

All SNAP informational material will be available in languages other than English as required and will include a statement that SNAP is available to all without regard to race, color, sex, age, disability, religious creed, national origin or political belief.

The ES Worker must provide an overview of Civil Rights to applicants and recipients during the interview process. DSS Brochure 2416, Know Your Civil Rights, must be provided to clients upon request. This brochure should also be made available in the lobby of each local county office.

1.5 SNAP NONDISCRIMINATION COMPLIANCE

The Agency will not discriminate against any applicant or participant in any aspect of SNAP administration, including, but not limited to, the certification of households, the issuance of SNAP benefits, the conduct of fair hearings, or the conduct of any other SNAP service for reasons of age, race, color, sex, disability, religious creed, national origin, or political beliefs.

Individuals who believe that they have been subject to discrimination as specified in the paragraph above may file a written or oral complaint.

The ES worker may assist the individual in completing a **DSS Form 2601, Civil Rights Discrimination Complaint Form**. If a complainant makes allegations verbally and is unable or is reluctant to put the allegations in writing, the Agency employee to whom the allegations are made will document the complaint in writing, (i.e. send a detailed email to the Office of Civil Rights).

Every effort must be made by the individual accepting the complaint to have the complainant provide the information specified on the DSS Form 2601.

The **DSS Form 2601, Civil Rights Discrimination Complaint Form** will be forwarded to the Agency's Division of Individual and Provider Rights (DIPR), Office of Civil Rights for investigation. DIPR will send the individual a letter to acknowledge receipt. The letter will also include the plan of action or, if necessary, a request for additional information.

Each local county office must display the **DSS Poster 2660, Do You Need an Interpreter or Other Reasonable Accommodations**, the **DSS Poster 2661, Interpretation Service Available**, and the **USDA FNS Form AD 475B, And Justice for All**. To ensure that all SNAP applicants or recipients have access to nondiscrimination statutes and policies, complaint procedures and the rights of participants, the information must be provided within 10 days of the date of a request.

1.6 COMPLAINT PROCEDURE

The Agency, both State Office and local offices, will maintain a system for handling program complaints filed by participants, potential participants, or other concerned individuals or groups. This will not include complaints alleging discrimination on the basis of race, sex, age, religious creed, national origin, political beliefs or disability; such complaints will be handled in accordance with [Section 1.5 SNAP Nondiscrimination Compliance](#).

Complaints regarding such areas as processing standards and service to participants and potential participants will be handled under this complaint procedure. This procedure will not include complaints that can be pursued through a fair hearing ([Section 18.1 Fair Hearing Definition](#)).

The Agency will follow up on complaints, resolve complaints and take corrective action where warranted, and respond to the complainant on the Agency's disposition of the complaint.

The Agency will make information on the complaint system and how to file a complaint available to participants, potential participants and other interested persons. The Agency may make the information available through written materials, posters at certification offices or other appropriate means.

The Agency will maintain records of complaints received and their disposition, and will review records at least annually to assess whether patterns of problems may be present in local offices or throughout the State.

The results of this review will be provided to the State SNAP Management Evaluation (ME) Review Coordinator ([Chapter 26 Management Evaluation \(ME\) Reviews](#)) and State Corrective Action Coordinator for appropriate action, and for inclusion, if appropriate, in the State Corrective Action Plan (CAP) ([Chapter 28 Corrective Action](#)). This information will include the

identification, if any, of potential or actual patterns of deficiencies in local offices or throughout the State, and any identification of causes of these problems. USDA FNS will monitor the Agency's compliance with these requirements.

1.7 CONFLICTS OF INTEREST

As Economic Services (ES) workers, it is important to be aware of situations in which a conflict of interest exists.

Economic Services workers should not take action on any case involving a person related to him/her or any case where a conflict of interest exists. This includes the worker's own case and the cases of relatives, friends, co-workers, known associates and people in which the worker has a conflict of interest. If the Economic Services worker discovers a case while in South Carolina Office Scanning Application (SCOSA) or interview rotation that falls under this rule, the worker must notify his/her supervisor of the potential conflict of interest so that the appropriate action can be taken. To clarify, an Economic Services worker cannot take the following actions (please note that this list is not all inclusive):

- Accessing the case for any reason including to review it;
- Updating the address;
- Carcing the case to anyone;
- Making any change that affects the eligibility determination;
- Making case notes; and
- Making collateral contacts.

An Economic Services worker is a worker in one of the following positions:

- Administrative
- Case management
- Certification/Eligibility
- Employment & Training (E&T)
- Workforce Consultant
- Any other personnel who has access to any Economic Services system, database or web platform used in the determination of eligibility for public assistance programs.

Chapter 2 Household Concept

2.1 GENERAL HOUSEHOLD DEFINITIONS

A SNAP household is composed of one of the following individuals or groups of individuals, unless otherwise specified in [Section 2.2 Special Household Requirements](#):

- (1) An individual living alone;
- (2) An individual or group of individuals living with others, but customarily purchasing food and preparing meals for home consumption separate and apart from others; or
- (3) A group of individuals who live together and customarily purchase food and prepare meals together for home consumption.

Evaluate everyone living together to decide who **must** be included in the SNAP household.

The households which are specified below in Section 2.2(1) Special Household Requirements (required household combinations) must be considered as living together when utilizing the same power source and residing at the same address (regardless if there are multiple dwellings on the property).

2.2 SPECIAL HOUSEHOLD REQUIREMENTS

Special household requirements for SNAP are:

(1) Required household combinations

The following individuals who live with others must be considered as customarily purchasing food and preparing meals with the others, even if they do not do so, and therefore must be included in the same household, unless otherwise specified:

- (A) A person living with his/her spouse (including common-law and same sex);

NOTE: Common-law spouses must be part of the same household for SNAP eligibility purposes if the common-law marriage requirements were met prior to July 24, 2019. As of July 24, 2019, common-law marriages are not recognized in South Carolina due to the SC Supreme Court ruling to abolish any future common-law marriages in SC.

NOTE: Same sex spouses must be part of the same household for SNAP eligibility purposes due to the US Supreme Court ruling in June 2015, which legalized same sex marriages in all 50 states.

- (B) A person under 22 years of age who is living with his or her natural or adoptive parent(s) or step-parent(s); and
- (C) A child (other than a foster child) under 18 years of age who lives with and is under the parental control of a household member other than his or her parent.

NOTE: A child must be considered to be under parental control if he or she is financially or otherwise dependent on an adult member of the household. Likewise, an individual who is 18 years of age or under and is under parental control of an adult relative who is receiving Temporary Assistance for Needy Families (TANF) benefits for the individual must be included in the same SNAP household with the adult relative.

(2) Elderly and disabled persons

Notwithstanding the provisions of [Section 2.1, General Household Definition](#), an otherwise eligible member of a household who is elderly (60 years of age or older) and is unable to purchase and prepare meals because he or she suffers from a disability considered permanent under the Social Security Act (See [Section 5.1 Verification Prior to Certification, \(5\) \(II\) Disability](#)) or a non-disease-related, severe, permanent disability (See [SNAP Tool Kit 1: Permanent Disability Established by the Social Security Act](#)) may be considered, together with his or her spouse (if living there), a separate household from the others with whom the individual lives. Separate household status under this provision must not be granted when the income of the others with whom the elderly disabled individual resides (excluding the income of the elderly and disabled individual and his or her spouse) exceeds 165 percent of the poverty level. The elderly and disabled individual (or his/her authorized representative [Section 3.6 Authorized Representatives](#)), will be responsible for obtaining the cooperation of the individuals with whom he/she resides in providing the necessary income information about the others to the Agency for purposes of this section.

The gross income from members of the household that the elderly and disabled person lives with must not exceed 165 percent of the poverty level for the appropriate household size prior to determining eligibility for separate household under this provision.

Household size	Gross monthly income (165 percent of poverty)
1	\$2152
2	\$2909
3	\$3665
4	\$ 4421
5	\$ 5177

6	\$ 5934
7	\$ 6690
8	\$ 7446
Each additional member	+ \$757

(3) Boarders

Residents of a commercial boarding house, regardless of the number of residents, are not eligible to participate in SNAP. A commercial boarding house is an establishment, licensed or unlicensed, that offers meals and lodging for compensation with the intent of making a profit.

All other individuals or groups of individuals paying a reasonable amount for meals or meals and lodging must be considered boarders and are not eligible to participate in SNAP independently of the household providing the board. Such boarders may participate, along with a spouse or children living with them, as members of the household providing the boarder services, only at the request of the household providing the boarder services. An individual paying less than a reasonable amount for board must not be considered a boarder but must be considered, along with a spouse or children living with him or her, as a member of the household providing the board.

- (A) For individuals whose board arrangement is for more than two meals per day, “reasonable compensation” must be an amount that equals or exceeds the SNAP allotment for the appropriate size of the boarder household.
- (B) For individuals whose board arrangement is for two meals or less per day, “reasonable compensation” must be an amount that equals or exceeds two-thirds of the maximum SNAP allotment for the appropriate size of the boarder household.

Boarders must **not** be considered to be residents of an institution as outlined in [Section 2.3 Ineligible Household Members \(11\)](#).

(4) Foster care individuals

Individuals (regardless of age) placed in the home of relatives or other individuals or families by the Agency’s foster care program must be considered to be boarders. They cannot participate in SNAP independently of the household providing the foster care services. Such foster care individuals may participate, along with a spouse or children living with them, as members of the household providing the foster care services, only at the request of the household providing the foster care. (See [Section 11.5 \(N\) Unearned Income \(Foster Care Payments\)](#)).

(5) Roomers

Individuals to whom a household furnishes lodging (but not meals) for compensation may participate as separate households. Persons described in [2.2 Special Household Requirements: \(1\) Required household combinations](#) must not be considered roomers.

(6) Live-in attendants

A live-in attendant may participate as a separate household. Persons described in [2.2 Special Household Requirements: \(1\) Required household combinations](#) must not be considered live-in attendants.

(7) Temporary absence

A person who is temporarily absent from the SNAP household, that has been certified to receive SNAP benefits, will be considered as living with the household. A person's absence is temporary if **all** of the following are true:

- the person's location is known;
- the person was included in the certified SNAP case before the absence;
- there is a definite plan for return; **and**
- the person is expected to return before the next SNAP certification period begins (36-month, 24-month, interim contact, annual, six-month or tri-annual).

EXCEPTION: If the person leaves the SNAP household near the end of the certification period, "the absence is temporary" if the return date is expected to occur within 30 days of the new certification period.

Example: Certification period is January – June. The person temporarily leaves the home in June but is expected to return by July 31. Include the person in the SNAP household because the absence is temporary.

NOTE: This policy does not apply to applicant households. At application, unless separate residency has been established at different addresses, the households which are specified in [Section 2.2 \(1\) Special Household Requirements \(Required household combinations\)](#) must be considered as living together.

(8) Joint physical custody

If a child(ren) under joint physical custody spends an equal amount of time in each household, include the child(ren) in the household that applies first. If both households apply for or are receiving SNAP benefits, they both have to agree on which household to include the child(ren). The child(ren) is/are not to be included in either household until both custodians agree on which household to include the child(ren).

When the child(ren) began to reside in the second home, that household may apply for benefits or report a change that the child(ren) currently resides in the household to have the child(ren) added.

2.3 INELIGIBLE HOUSEHOLD MEMBERS

The following persons are not eligible to participate as separate households or as a member of any household:

- (1) Ineligible non-citizens as specified in [Section 7.3 Citizenship and Non-Citizen Status](#)
- (2) Ineligible students as specified in [Section 7.4 Students](#);
- (3) Individuals disqualified for noncompliance with the work requirements of [Section 8.1 Work Requirements](#);
- (4) Ineligible ABAWDs (Able-Bodied Adults without Dependents) due to time limit as specified in [Section 8.16 Countable Months](#).
- (5) Individuals disqualified for failure to provide an SSN as specified in [Section 7.2 Social Security Numbers \(SSNs\)](#);
- (6) Individuals disqualified for an intentional program violation (IPV) as specified in [Chapter 20 Disqualification for Intentional Program Violation \(IPV\)](#);
- (7) Individuals who are ineligible because of a drug-related felony conviction. A drug-related felony conviction is a conviction of any offense which is classified as a felony and which has as an element of the possession, use or distribution of a controlled substance. Ineligibility under this provision is limited to convictions based on behavior which occurred after August 22, 1996. A guilty plea is the legal equivalent of a conviction after trial. Therefore, any individual who pleads guilty to a felony drug charge is ineligible to be included in the SNAP budget.

NOTE: An individual may be disqualified from participation in SNAP only for a conviction of a drug-related felony which he/she committed after August 22, 1996. The issue is the date of the offense not the date of the conviction.

EXCEPTION: Clients who provide verification of an expungement or a pardon of a felony drug conviction may be eligible to participate in SNAP.

- (8) Individuals who are fleeing to avoid prosecution or custody for a crime, or an attempt to commit a crime, or who are violating a condition of probation or parole. (See [Section 7.5 Fleeing Felons and Probation/Parole Violators](#))
- (9) Individuals who are disqualified due to failure without good cause to cooperate with TANF work requirement in [Section 14.8 \(1\)\(D\) Treatment of TANF Sanctions in SNAP](#).
- (10) Individuals convicted of certain crimes and who are out of compliance with the terms of their sentence and ineligible according to [Section 14.12 Disqualification For Certain Convicted Felons](#).
- (11) Residents of an institution, with **some exceptions (see below)**. Individuals must be considered residents of an institution when the institution provides them with the majority of their meals (over 50 percent of three meals daily) as part of the institution's normal services.

Exceptions to this requirement include only the individuals listed below who can participate in SNAP and must be treated as separate households from the others

with whom they reside, and are subject to the mandatory household combination requirements of [2.2 Special Household Requirements: \(1\) required household combinations](#), unless otherwise stated below:

- (A) Individuals who are residents of federally subsidized housing for the elderly;
- (B) Individuals who are narcotic addicts or alcoholics and reside at a facility or treatment center for the purpose of regular participation in a drug or alcohol treatment and rehabilitation program. This includes the children but not the spouses of such persons who live with them at the treatment center or facility (See section [14.3 Residents of Drug Addiction or Alcoholic \(DAA\) Treatment and Rehabilitation Programs](#));
- (C) Individuals who are disabled or blind and are residents of group living arrangements (See section [14.4 Residents of a Group Living Arrangement \(GLA\)](#));
- (D) Individual women or women with their children who are temporarily residing in a shelter for battered women and children (See section [14.5 Shelter for Battered Women and Children](#); and
- (E) Individuals who are residents of public or private nonprofit shelters for homeless persons (See section [14.6 Homeless SNAP Households](#)).

2.4 STRIKERS

Households with a striking member are not eligible to participate in SNAP, unless the household was eligible for benefits the day before the strike and is otherwise eligible at the time of application.

A striker must be anyone involved in a strike or concerted stoppage of work by employees (including a stoppage by reason of the expiration of a collective-bargaining agreement) and any concerted slowdown or other concerted interruption of operations by employees.

Any employee affected by a lockout, however, must not be deemed to be a striker. Further, an individual who goes on strike but is exempt from work registration under [Section 8.2 Exemptions from Work Requirements](#) the day before the strike, other than those exempt solely on the grounds that they are employed, must not be deemed to be a striker. Also, persons such as truck drivers who cannot do their jobs because the strike has left them with nothing to deliver, and employees who are not part of the bargaining unit and do not want to cross the picket line for fear of personal injury or death, must not be deemed to be strikers.

Pre-strike eligibility must be determined by considering the day prior to the strike as the day of application and assuming the strike did not occur. Eligibility at the time of application must be determined by comparing the striking member's income before the strike to the striker's current income and adding the higher of the two to the current income of non-striking members during the month of application. If the household is eligible, the higher income figure must also be used in determining the household's benefits.

Chapter 3 Filing an Application

3.1 OPERATION OF SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM (SNAP) OFFICES

The Agency must establish procedures for the operation of SNAP local county offices that best serve households in the State, including households with special needs, such as, but not limited to:

- (1) Households with elderly or disabled members,
- (2) Households in rural areas with low-income members,
- (3) Homeless individuals,
- (4) Households with adult members who are not proficient in English, and
- (5) Households with earned income (working households).

The Agency must provide timely, accurate, and fair service to applicants for, and participants in, SNAP. The Agency cannot, as a condition of eligibility, impose additional application or application processing requirements and must base SNAP eligibility solely on the criteria contained in this policy manual. The Agency must inform persons who wish to apply for SNAP benefits about the application process and their rights and responsibilities.

3.2 SNAP APPLICATION PROCESS

The application process includes filing and completing an application form, being interviewed, and having certain information verified. The Agency must act promptly on all applications and provide SNAP benefits retroactive to the month of application to those households that have completed the application process and have been determined eligible. The Agency must meet application processing timelines and must make expedited service available to households in immediate need.

3.3 SNAP APPLICATION FORM

The application form for SNAP benefits is the DSS Form 3800, Temporary Assistance for Needy Families (TANF) Application Supplemental Nutrition Assistance Program (SNAP) Application Refugee Cash Assistance (RCA) Application. The application form may be a paper document, on-line document or a recorded conversation.

(1) Content

This form contains:

- A place on the first page of the application where the applicant can write his/her name, address, and signature.
- Notification of the household's right to immediately file the application as long as it contains the applicant's name and address and the signature of a responsible household member or the household's authorized representative;
- The option of answering only those questions relevant to the program or programs for which they are applying;
- A statement that the information provided by the applicant in connection with the application for SNAP benefits will be subject to verification by Federal, State and local officials to determine if such information is factual;
- A statement that if any information is incorrect, SNAP benefits may be denied to the applicant; and that the applicant may be subject to criminal prosecution for knowingly providing incorrect information;
- A description of the civil and criminal provisions and penalties for violations of the Food and Nutrition Act of 2008 (as amended);
- A statement to be signed by one adult household member which certifies, under penalty of perjury, the truth of the information contained in the application, including the information concerning citizenship and non-citizens status of the members applying for benefits;
- A description of the expedited service rules (See [Section 6.5 \(1\) Entitlement to Expedited Service](#));
- Notification that benefits are provided from the date of application; and
- The following nondiscrimination statement on the application itself even if the Agency uses a joint application form:
 - In accordance with federal civil rights laws and U.S. Department of Agriculture (USDA) civil rights regulations and policies, this institution is prohibited from discriminating on the basis of race, color, national origin, sex (including gender identity and sexual orientation), religious creed, disability, age, political beliefs, or reprisal or retaliation for prior civil rights activity.
 - Program information may be made available in languages other than English. Persons with disabilities who require alternative means of communication to obtain program information (e.g., Braille, large print, audiotape, American Sign Language), should contact the agency (state or local) where they applied for

benefits. Individuals who are deaf, hard of hearing or have speech disabilities may contact USDA through the Federal Relay Service at (800) 877-8339.

- To file a program discrimination complaint, a Complainant should complete a Form AD-3027, USDA Program Discrimination Complaint Form which can be obtained online at: <https://www.usda.gov/sites/default/files/documents/ad-3027.pdf>, from any USDA office, by calling (833) 620-1071, or by writing a letter addressed to USDA. The letter must contain the complainant's name, address, telephone number, and a written description of the alleged discriminatory action in sufficient detail to inform the Assistant Secretary for Civil Rights (ASCR) about the nature and date of an alleged civil rights violation. The completed AD-3027 form or letter must be submitted to:

1. mail:

Food and Nutrition Service, USDA
1320 Braddock Place, Room 334
Alexandria, VA 22314; **or**

2. fax:

(833) 256-1665 or (202) 690-7442; **or**

3. email:

FNCSIVILRIGHTSCOMPLAINTS@usda.gov

SNAP applicants can also use the federal SNAP application used by all Social Security Administration offices. This form can be processed by county offices to determine SNAP eligibility.

Information regarding application forms for the South Carolina Combined Application Project (SCCAP) and the Elderly Simplified Application Project (ESAP) is in [Chapter 19 Federal Demonstration Projects](#).

(2) Required notifications

A. United States Citizenship and Immigration Services (USCIS)

The Agency must notify all applicants on the application form that the non-citizen status of applicant household members may be subject to verification by the United States Citizenship and Immigration Services (USCIS), through the submission of information from the application to USCIS, and that the submitted information received from USCIS may affect the household's eligibility and level of benefits.

B. Income and Eligibility Verification System (IEVS)

The Agency must notify all applicants for SNAP benefits at the time of application and at each recertification through a written statement on, or provided with, the application form that information available through IEVS will be requested, used and may be verified through collateral contact when discrepancies are found by the Agency, and that such information may affect the

household's eligibility and level of benefits. [Section 5.2 Sources of Verification \(2\) Collateral Contacts](#) provides policy for the use of collateral contacts.

C. Jointly processed cases

The Agency will notify applicants that they may file a joint application for more than one program or they may file a separate application for SNAP benefits independent of their application for benefits from any other program. All SNAP applications, regardless of whether they are joint applications or separate applications, must be processed for SNAP purposes in accordance with SNAP procedural, timeliness, notice, and fair hearing requirements.

No household will have its SNAP benefits denied solely on the basis that its application to participate in another program has been denied or its benefits under another program have been terminated without a separate determination that the household failed to satisfy a SNAP eligibility requirement.

Households that file a joint application for SNAP and another program and are denied benefits for the other program will not be required to resubmit the joint application or to file another application for SNAP benefits but will have its SNAP eligibility determined based on the joint application in accordance with SNAP processing timeframes from the date the joint application was initially accepted by the Agency.

D. Privacy Act statement

The Agency must notify all households applying and being recertified for SNAP benefits of the following:

- 1) The collection of information, including the Social Security Number (SSN) of each household member, is authorized under the Food and Nutrition Act of 2008, as amended. The information will be used to determine whether the household is eligible or continues to be eligible to participate in SNAP. The Agency will verify this information through computer matching programs. This information will also be used to monitor compliance with program regulations and for program management.
- 2) This information may be disclosed to other Federal and State agencies for official examination and to law enforcement officials for the purpose of apprehending persons fleeing to avoid the law.
- 3) If a SNAP claim for over-issuance arises against the household, the information on the application, including all SSNs, may be referred to Federal and State agencies, as well as private claims collection agencies, for claims collection action.
- 4) Providing the requested information, including the SSN of each household member, is voluntary. However, failure to provide an SSN will result in the denial of SNAP benefits to each individual failing to provide an SSN. Any SSN provided will be used and disclosed in the same manner as SSNs of eligible household members.

3.4 FILING AN APPLICATION FOR SNAP

(1) Household's right to file

Households must file SNAP applications by submitting the forms to the SNAP office either:

- A. in person,
- B. through an authorized representative,
- C. by fax or other electronic transmission,
- D. by mail,
- E. by completing an on-line electronic application; or
- F. by completing a telephonic application.

Applications signed through the use of electronic signature techniques or applications containing a handwritten signature and then transmitted by fax or other electronic transmission are acceptable. Any responsible household member may file the application for the household.

The Agency must document the date the application is received and register the application in the SC Worker Input Network and Support (SCWINS) System. The date of application is the date the application is actually received, or the next business day if it is submitted outside normal business hours. For telephonic applications, the date of application is the date on which the household member provides verbal assent. The length of time the Agency has to deliver benefits is calculated from the date the application is filed in the SNAP office designated by the Agency to accept the household's application.

Each household has the right to file an application form on the same day it contacts the SNAP office during office hours. The household will be advised that it does not have to be interviewed before filing the application and may file an incomplete application form as long as the form contains the applicant's name and address and is signed by a responsible member of the household or the household's authorized representative. Regardless of the type of application system used, the Agency must provide a means for all applicants applying through any mechanism to immediately begin the application process by filing an application with only the name, address and signature.

(2) Contacting the SNAP office

The Agency will encourage households to file an application form the same day the household or its representative contacts the SNAP office in person or by telephone and expresses interest in obtaining SNAP assistance or expresses concerns which indicate food insecurity.

If the Agency attempts to discourage households from applying for cash assistance, it will make clear that the disadvantages and requirements of applying for cash assistance do not apply to SNAP benefits. In addition, it will encourage applicants to continue with their application for SNAP benefits.

The Agency will inform households that receiving SNAP benefits will have no bearing on any other program's time limits that may apply to the household.

If a household contacting the Agency by telephone does not wish to come to the office to file the application that same day and instead prefers receiving an application through the mail, the Agency will mail an application form to the household on the same day the telephone request is received. An application will also be mailed on the same day a written request for food assistance is received.

Households may contact a SNAP office other than the one located in the county in which they reside.

Applications can be registered by any county office regardless of the applicant's county of residence. When an application is received in a county other than the county in which the applicant resides, either in person, through the mail, by fax, or online, the receiving office will accept the application, scan and assign it. The applicant will be told benefits and processing standards will begin that day.

A copy of the completed application form must be provided to the household, if requested.

(3) Applications filed through Outreach Partners

Applications may be filed through Outreach Partners. Outreach Partners' staff assist low-income households with the SNAP application filing. In addition to providing application forms to households, applications may be completed by the households by telephone with the Outreach Partners.

If completed by telephone, Outreach Partners:

- Complete application questions verbally with the applicants.
- Records the applicants' agreements to complete the applications by telephone via the applicants' verbal statements that the information is accurate under penalty of perjury.
 - The recording is kept on-file for 4 years and is available to DSS, upon request.
 - The telephonic signature option is only allowed for applications submitted through Outreach Partners.

Note: The Outreach Partner must be approved to accept telephonic signatures.

- Transmits the applications to DSS via fax or electronically.
- Sends a hard copy of the completed application forms to the households with instructions to report any inaccuracies within 10 days.

(4) Availability of the SNAP application form

The Agency will make application forms for SNAP benefits readily accessible to potentially eligible households. The Agency will also provide an application form to anyone who requests the form and

will provide a means for applicants to immediately begin the application process with only the name, address and signature.

(5) Paper forms

The Agency must make paper application forms readily accessible and available even if the Agency also accepts application forms through other means.

(6) Notice of right to file

The Agency will post DSS Poster 2452, SNAP: Your Rights, in the SNAP certification offices which explain the application processing standards and the right to file an application on the day of initial contact.

(7) Notice of Required Verification

The Agency will provide each household at the time of application for certification and recertification with a notice that informs the household of the verification requirements the household must meet as part of the application process. The notice will also inform the household of the Agency's responsibility to assist the household in obtaining required verification provided the household is cooperating with the Agency as specified below in Section 3.5.

(8) Withdrawing application

The household may voluntarily withdraw its application at any time prior to the determination of eligibility. The Agency will document in the case file the reason for withdrawal, if any was stated by the household, and that contact was made with the household to confirm the withdrawal. The household will be advised of its right to reapply at any time subsequent to a withdrawal.

3.5 HOUSEHOLD COOPERATION IN FILING AN APPLICATION FOR SNAP

To determine eligibility, the SNAP application form must be completed and signed, the household or its authorized representative must be interviewed, and certain information on the application must be verified. If the household refuses to cooperate with the Agency in completing this process, the application will be denied at the time of refusal. For a determination of refusal to be made, the household must be able to cooperate, but clearly demonstrate that it will not take actions that it can take and that are required to complete the application process.

NOTE: To be denied for refusal to cooperate, a household must refuse to be interviewed not merely failing to appear for the interview. If there is any question as to whether the household has merely failed to cooperate, as opposed to refused to cooperate, the household will not be denied, and the Agency will provide assistance required by [Section 3.4 \(7\) Filing An Application for SNAP \(Notice of Required Verification\)](#).

The household will also be determined ineligible if it refuses to cooperate in any subsequent review of its eligibility, including reviews generated by reported changes and applications for recertification. Once denied or terminated for refusal to cooperate, the household may reapply but will not be determined eligible until it cooperates with the Agency.

The Agency will not determine the household to be ineligible when a person outside of the household fails to cooperate with a request for verification. The Agency will not consider individuals identified as non-household members under [Section 2.2 \(2\) Special Household Requirements \(Elderly and disabled persons\)](#) as individuals outside the household.

3.6 AUTHORIZED REPRESENTATIVES

Representatives may be authorized to act on behalf of a household in the application process, in obtaining SNAP benefits, and in using SNAP benefits. The form used to designate an Authorized Representative (AR) is the DSS Form 1632 (Authorized Representative Designation). Designation may also be accomplished by completing the Authorized Representative section on the, DSS Form 3800, Temporary Assistance for Needy Families (TANF) Application Supplemental Nutrition Assistance Program (SNAP) Application Refugee Cash Assistance (RCA) Application.

(1) Application processing and reporting

The Agency will inform applicants and prospective applicants who indicate they may have difficulty completing the application process, that a non-household member may be designated as the authorized representative for application processing purposes. The authorized representative designated for application processing purposes may also carry out household responsibilities during the certification period, such as reporting changes in the household's income or other household circumstances in accordance with [Section 15.3 Simplified Reporting Households](#).

Except for those situations in which a drug and alcohol treatment center (See [Section 14.3 Residents of Drug Addiction or Alcoholic \(DAA\) Treatment and Rehabilitation Programs](#)) or other group living arrangement [See [Section 14.4 Residents of a Group Living Arrangement \(GLA\)](#)] acts as the authorized representative, the Agency must inform the household that the household will be held liable for any over-issuance that results from erroneous information given by the authorized representative.

A non-household member may be designated as an authorized representative for the application process provided that the person is an adult who is sufficiently aware of relevant household circumstances and the authorized representative designation has been made in writing by the Primary Informant (PI), the spouse, or another responsible member of the household.

[Section 3.6 Authorized Representatives \(4\) Restrictions on designations of authorized representatives](#) contains further restrictions on who can be designated an authorized representative.

NOTE: In the instance of a limited English proficiency (LEP) household or special needs (e.g. deafness), the authorized representative may not be used in lieu of a qualified interpreter. See [Section 3.7 Limited English Proficient \(LEP\) or Special Needs Households](#).

Residents of Drug Addiction or Alcoholic (DAA) treatment centers must apply and be certified through the use of authorized representatives in accordance with [Section 14.3 Residents of Drug Addiction or Alcoholic \(DAA\) Treatment and Rehabilitation Programs](#). Residents of Group Living Arrangements (GLAs) have the option to apply and be certified through the use of authorized representatives in accordance with [Section 14.4 Residents of a Group Living Arrangement \(GLA\)](#).

(2) Obtaining SNAP benefits

An authorized representative may be designated to obtain benefits. Even if the household is able to obtain benefits, it should be encouraged to name an authorized representative for obtaining benefits in case of illness or other circumstances which might result in an inability to obtain benefits. The name of the authorized representative must be recorded in the household's case file. The authorized representative for obtaining benefits may or may not be the same individual designated as an authorized representative for the application process or for meeting reporting requirements during the certification period.

(3) Using SNAP benefits

A household may allow any household member or authorized representative to use its SNAP benefits to purchase food or meals for the household.

DAAAs and GLAs which act as authorized representatives for residents of the facilities must use SNAP benefits for food prepared and served to those residents participating in SNAP (except when residents leave the facility) in accordance with [Section 14.3 Residents of Drug Addiction or Alcoholic \(DAA\) Treatment and Rehabilitation Programs](#) and [Section 14.4 Residents of a Group Living Arrangement \(GLA\)](#).

(4) Restrictions on designations of authorized representatives

The Agency must restrict the use of authorized representatives for purposes of application processing and obtaining SNAP benefits as follows:

- (A) Agency employees who are involved in the certification or issuance processes and retailers who are authorized to accept SNAP benefits may not act as authorized representatives without the specific written approval of the respective County Director for the county in which the household resides and only if that County Director determines that no one else is available to serve as an authorized representative.

- (B) An individual disqualified for an Intentional Program Violation (IPV) cannot act as an authorized representative during the disqualification period, unless the Agency has determined that no one else is available to serve as an authorized representative. The Agency must separately determine whether the individual is needed to apply on behalf of the household, or to obtain benefits on behalf of the household.
- (C) If the Agency has determined that an authorized representative has knowingly provided false information about household circumstances or has made improper use of SNAP benefits, it may disqualify that person from being an authorized representative for up to one year.

The Agency must send written notification to the affected household(s) and the authorized representative 30 days prior to the date of disqualification. The notification must specify the reason for the proposed action and the household's right to request a fair hearing.

This provision is not applicable in the case of DAAs and those GLAs which act as authorized representatives for their residents.

However, DAAs and the heads of GLAs that act as authorized representatives for their residents, and which intentionally misrepresent households' circumstances, may be prosecuted under applicable Federal and State statutes for their acts.

- (D) Homeless meal providers may not act as authorized representatives for homeless SNAP recipients.

In order to prevent abuse of the program, the Agency may set a limit on the number of households an authorized representative may represent. In the event a single authorized representative has access to a large number of households' benefits, the Agency will exercise caution to assure that each household has freely requested the assistance of the authorized representative, the household's circumstances are correctly represented, the household is receiving the correct amount of benefits and that the authorized representative is properly using the benefits.

3.7 LIMITED ENGLISH PROFICIENT (LEP) OR SPECIAL NEED HOUSEHOLDS

For a SNAP applicant who may not speak English well or who is deaf, hard of hearing, or visually impaired, a DSS Form 2664, Accommodation Assessment, must be completed at the initial interview/contact with the household. A DSS Form 2664 is not required for other household members unless another member sometimes communicates with the Agency. For additional information, please refer to the Individual & Provider Rights Division's Civil Rights Tool Kit.

If the assessment determines that accommodations such as an interpreter and translated materials are needed, the accommodations must be provided at no cost to the household. The designation and use of an authorized representative will not be considered an accommodation.

If a SNAP household member does not speak English or is limited English proficient (LEP), the Agency is responsible for obtaining a qualified interpreter. Family members, friends, or the authorized representative should not be used as interpreters. Each local county office has an appointed individual designated to serve as the Client Special Services Coordinator (CSSC). The CSSC is knowledgeable of procedures to secure interpreter services and other services to assist LEP or special needs individuals. Division of Individual and Providers Rights (DIPR) may be contacted if further assistance is needed.

The CHIP System has an “Interpreter needed for” field on Screen INRD. If an interpreter or translated materials are needed, a two-letter code must be entered in this field. Valid codes are:

- AR – Arabic
- CH – Chinese
- OT – Other
- RU – Russian
- SL – Sign Language
- SP – Spanish
- UK – Ukrainian
- VN – Vietnamese

3.8 INTERVIEWS

Except for households certified for longer than 12 months, households must have a face-to-face or telephone interview with an ES Worker at initial certification and a face-to-face or telephone interview at least once every 12 months thereafter.

The Agency may not require households to report for an in-office interview during their certification period, though they may request households to do so. For example, the Agency may not require households to report for an in-office interview during their certification periods simply to review their case files, or for any other reason.

Interviews may be conducted by phone, at the SNAP office or other mutually acceptable location, excluding the household’s residence.

If a household in which all adult members are elderly or disabled with no earned income is certified for 24 months, a face-to-face interview is not required during the certification period. The

household must have a face-to-face or telephone interview at recertification. (See [Section 15.3 Simplified Reporting Households](#)).

The individual interviewed may be the applicant/Primary Informant (PI), spouse, any other responsible member of the household, or an authorized representative. The applicant may bring any person he or she chooses to the interview.

The interviewer must not simply review the information that appears on the application but must explore and resolve with the household unclear and incomplete information.

The household must be advised:

- of their rights and responsibilities during the interview, including the appropriate application processing standard and the households' responsibility to report changes;
- that time limits and other requirements that apply to the receipt of TANF benefits do not apply to the receipt of SNAP benefits; and
- households which cease receiving TANF benefits because they have reached a time limit, have begun working, or for other reasons, may still qualify for SNAP benefits.

The interview must be conducted as an official and confidential discussion of household circumstances. The Agency must protect the applicant's right to privacy during the interview. Facilities must be adequate to preserve the privacy and confidentiality of the interview.

The Agency must schedule an interview for all applicant households who are not interviewed on the day they submit their applications. To the extent practicable, the Agency must schedule the interview to accommodate the needs of groups with special circumstances, including working households. The Agency must schedule all interviews as promptly as possible to ensure eligible households receive an opportunity to participate within 30 days after the application is filed.

NOTE: Under waiver authority, South Carolina may conduct all interviews by telephone.

Procedure:

All initial applications, reapplications, and annual recertifications must be registered in SCWINS. A date set ten days from the application file date (four days for expedited application) will be automatically entered on CHIP INRD screen in the INTERVIEW DATE field. When the interview is conducted, the ES Worker should acknowledge the completion of the interview by coding CHIP INRD screen with a "Y" in the interview completed field and ensure that the INTERVIEW DATE field reflects the actual date that the interview was completed.

If the interview is not completed within the applicable timeframe (ten days for non-expedited or four days for expedited applications) or if the interview is not acknowledged with a "Y" in the INTERVIEW COMPLETED field on INRD within the applicable timeframe, a Notice of Missed Interview (NOMI) will be sent to the household.

For households that have failed to keep their scheduled interview appointment, the Agency must notify the household that it missed the interview and that the household is responsible for rescheduling the missed interview. **If the household contacts the Agency within the 30-day processing period, the Agency must schedule a second interview.**

DSS must inform each applicant of the opportunity for a face-to-face interview at the time of application and recertification and grant a face-to-face interview to any household that requests one at any time, even if DSS has elected to provide telephone interviews.

Households interviewed by any means other than the face-to-face interview are not exempt from verification requirements. However, DSS may use special procedures to permit the household to provide verification and thus obtain its benefits in a timely manner, such as substituting a collateral contact in cases where documentary verification would normally be provided. (See [Section 5.2 Sources of Verification](#))

The use of non-face-to-face interviews may not affect the length of a household's certification period.

DSS must provide LEP households with bilingual personnel during the interview as required under [Section 3.7 Limited English Proficient \(LEP\) or Special Needs Households](#).

3.9 HOUSEHOLD COOPERATION WITH SNAP QUALITY CONTROL (QC) REVIEWER

The household will be determined ineligible if it refuses to cooperate in any subsequent review of its eligibility as a part of a SNAP QC review. If a household is terminated for refusal to cooperate with a quality control reviewer, the household may reapply, but will not be determined eligible until it cooperates with the QC reviewer. If a household terminated for refusal to cooperate with a State QC reviewer reapplies after 125 days from the end of the annual review period, the household will not be determined ineligible for its refusal to cooperate with a State QC reviewer during the completed review period, but must provide verification in accordance with [5.1 \(13\) Verification Prior to Certification \(Refusal to cooperate with QC\)](#).

If a household terminated for refusal to cooperate with a Federal QC reviewer reapplies after nine months from the end of the annual review period, the household will not be determined ineligible for its refusal to cooperate with a Federal QC reviewer during the completed review period, but must provide verification in accordance with [5.1 \(13\) Verification Prior to Certification \(Refusal to cooperate with QC\)](#).

In the event that one or more household members no longer resides with a household terminated for refusal to cooperate, the penalty for refusal to cooperate will attach to the household of the person(s) who refused to cooperate. If the Agency is unable to determine which household member(s) refused to cooperate, the Agency will determine the household to which the penalty will apply.

3.10 VOTER REGISTRATION REQUIREMENTS

The National Voter Registration Act (NVRA) requires that voter registration services be provided to all SNAP applicants and recipients at application, recertification, and when a change of address is reported.

These services include:

- Distributing voter registration forms;
- Providing assistance in completing voter registration forms;
- Accepting completed voter registration application forms and sending them to the county board of voter registration and elections; and/or
- Providing State of South Carolina Voter Registration By Mail Applications to clients who specifically request a mail-in application.

NOTE: These applications are not DSS forms; therefore, they must be downloaded from the South Carolina Election Commission's Website at <http://www.scvotes.org>

Local county DSS offices will send any paper registration forms received weekly (or as scheduled) to the local Election Commission.

When providing voter registration services, the Agency must not:

- Seek to influence an individual's political preference or party registration;
- Express or display any political or party allegiance;
- Discourage the individual in any manner from registering to vote; or
- Indicate or imply that registration or non-registration will influence the availability or amount of Agency assistance or SNAP benefits.

PROCEDURE:

At initial application and recertification (annual), the interviewer should ask the client if he/she is registered to vote and record the answer in the appropriate field on the documentation tool. If the client is not registered to vote, the following should occur:

1. The interviewer should ask the client if he/she wants to register to vote.
2. If the PI indicates that he/she does not wish to register, CHIP ADDR screen should be coded "D" (declined to register) in the PI Voter Status field.
3. If the PI indicates that he/she does wish to register, the interviewer will inform the client that:
 - An Agency-based Application for Voter Registration (Form 210) will be mailed to the client; **or**

- If the client does not want to use the Form 210 to register to vote, the worker can mail the client a South Carolina Voter Registration – Mail Application (which can be located at the website <http://www.SCvotes.org> since this is not a DSS form).
- 4. CHIP ADDR screen should be coded “A” (registering) in the PI Voter Status field. If the client indicates that he/she wishes to register to vote through DSS, the worker will mail the client the Agency-based Application for Voter Registration (Form 210) for completion.
- 5. CHIP ADDR screen should be coded “C” (registration by mail given) in the PI Voter Status field if the client indicates that he/she wishes to complete the mail in registration form to register to vote. The worker must mail the South Carolina Voter Registration application (which can be located at the website <http://www.SCvotes.org>) to the client for completion.

3.11 ATTESTATION REQUIREMENT

The Agency will require the individual applying for SNAP benefits to attest to whether the individual or any other member of the household has been convicted of a crime as an adult as described in [Section 14.12 Disqualification For Certain Convicted Felons](#) *and* whether the convicted member is complying with the terms of the sentence. The Agency will document this attestation in the case file.

Application processing will not be delayed beyond required processing timeframes *solely* because the Agency has not obtained verification of an attestation. The Agency will continue to process the application while awaiting verification. If the Agency is required to act on the case without being able to verify an attestation in order to meet the time standards in [Section 6.1 Normal Processing Standards](#) or [Section 6.6 Processing Standards for Expedited Service](#) the Agency will process the application without consideration of the individual's felony and compliance status.

The client’s attestation will be used as verification to disqualify the household member. Only those attestations that are questionable, as described in [Section 5.5 Responsibility for Obtaining Verification](#), will be verified.

Chapter 4 Categorically Eligible Households

For purposes of this chapter, the Agency will be referred to as SCDSS to avoid confusion with Social Security Administration (SSA), the agency responsible for administering Supplemental Security Income (SSI)

4.1 CATEGORICALLY ELIGIBLE HOUSEHOLDS

The following households are categorically eligible for SNAP:

- (A) Any household in which all members receive or are authorized to receive cash through the TANF Program.
- (B) Any household in which all members receive or are authorized to receive SSI benefits.

NOTE: *Residents of public institutions who apply jointly for SSI and SNAP benefits prior to their release from the institution are not categorically eligible upon a finding by SSA of potential SSI eligibility prior to such release. SCDSS must consider the individuals categorically eligible at such time as SSA makes a final SSI eligibility and the institution has released the individual.*

- (C) Any household in which all members receive or are authorized to receive TANF and/or SSI benefits.
- (D) Categorical eligibility is expanded to include all households in which any member receives, or is authorized to receive, benefits from Family Independence Information and Referral Services. Family Independence Information and Referral Services are provided to households whose income falls at or below 130% of the Federal Poverty Level (FPL). Expanded categorical eligible households through Family Independence Information and Referral Services will have the household's resources excluded when determining eligibility for SNAP benefits. These households must meet the non-financial eligibility criteria but are not subject to gross or net income limits. Categorical eligibility for these households does not continue if gross income, upon verification, is above the identified FPL.

For purposes of this section, “authorized to receive” means that an individual has been determined eligible for benefits and has been notified of this determination, even if the benefits have been authorized but not received, authorized but not accessed, suspended or recouped, or not paid because they are less than a minimum amount.

Categorical eligibility cannot be extended to any household that is not eligible to participate in SNAP because the entire household is institutionalized or is disqualified for any reason from receiving SNAP benefits.

4.2 HOUSEHOLDS PROHIBITED FROM BEING CONSIDERED CATEGORICALLY ELIGIBLE

Under no circumstances will any household be considered categorically eligible if:

- (A) Any member of that household is disqualified for an intentional SNAP violation in accordance with [Chapter 20 Disqualification for Intentional Program Violation \(IPV\)](#);
- (B) The primary informant is disqualified for failure to comply with the work requirements in accordance with [Section 8.1 Work Requirements](#).
- (C) Any member of that household is ineligible in [Section 2.3 Ineligible Household Members \(7\)](#) by virtue of a conviction for a drug-related felony, in [Section 7.5 Fleeing Felons and Probation/Parole Violators](#), for being a fleeing felon or a probation or parole violator, or in [Section 14.12 Disqualification for Certain Convicted Felons](#) for having a conviction of certain crimes and not being in compliance with the sentence.

These households are subject to all SNAP eligibility and benefits provisions and cannot be reinstated in SNAP on the basis of categorical eligibility provisions.

EXCEPTION: Expanded categorical eligibility through Family Independence Information and Referral Services are available to all eligible households, including those that contain an ineligible or disqualified member. Households that contain a member who is sanctioned continue to be eligible to receive Family Independence Information and Referral Services so resources are excluded and not deemed. The sanctioned SNAP member’s income continues to be deemed.

4.3 INDIVIDUALS PROHIBITED FROM BEING CONSIDERED CATEGORICALLY ELIGIBLE

No person will be included as a member in any household which is otherwise categorically eligible if that person is:

- (A) An ineligible non-citizen as defined in [Section 7.3 Citizenship and Non-citizen Status](#);
- (B) Ineligible under the student provisions [in Section 7.4 Students](#);

- (C) Disqualified for failure to provide or apply for an SSN as defined [Section 7.2 Social Security Numbers \(SSNs\)](#);
- (D) Institutionalized in a nonexempt facility;
- (E) Ineligible because of failure to comply with a work requirement of [Section 8.1 Work Requirements](#).

***NOTE:** For the purposes of work registration, the exemptions in [Section 8.2 Exemptions from Work Requirements](#) will be applied to individuals in categorically eligible households. Any such individual who is not exempt from work registration is subject to the other work requirements in [Section 8.1 Work Requirements](#).*

- (F) Disqualified for intentional program violation, as required by Chapter 20 Disqualification for Intentional Program Violation (IPV);
- (G) Refusing to cooperate in providing information to the Agency that is necessary for making a determination of its eligibility or for completing any subsequent review of its eligibility; or
- (H) The household is ineligible under the striker provisions of [Section 2.4 Strikers](#).

These individuals are subject to all SNAP eligibility and benefits provisions and cannot be reinstated in SNAP on the basis of categorical eligibility provisions.

4.4 DETERMINING CATEGORICALLY ELIGIBLE HOUSEHOLDS

Individuals authorized to receive TANF or SSI benefits but who have not yet received payment are considered recipients of benefits from those programs. In addition, individuals are considered recipients of TANF or SSI if their TANF or SSI benefits are suspended or recouped. Individuals entitled to TANF or SSI benefits but who are not paid such benefits because the grant is less than a minimum benefit are also considered recipients. SCDSS will not consider as recipients those individuals not receiving TANF or SSI benefits who are entitled to Medicaid only.

Eligibility for expanded categorical eligibility through Family Independence Information and Referral Services will be determined prior to SNAP eligibility determination. The applicant's statement of gross income is accepted to initially establish eligibility for Family Independence Information and Referral Services. Signature of the SNAP applicant who makes initial application in person, including those who are also applying for TANF, will be obtained on the DSS Form 3800, acknowledging notification of eligibility for Family Independence Information and Referral Services. Family Independence Information and Referral Services brochures will be available to these households. Economic Services workers will discuss Family Independence Information and Referral Services with applicants whose SNAP application is received through the mail, facsimile, or through the internet. Family Independence Information and Referral Services brochures will be mailed to the household upon request.

In determining whether a household is categorically eligible, SCDSS will verify that each member receives TANF or SSI benefits and that it includes no individuals who have been disqualified as provided in [Section 4.2 Households Prohibited from Being Considered Categorically Eligible](#) or [Section 4.3 Individuals Prohibited from Being Considered Categorically Eligible](#).

SCDSS will also verify household composition if it is questionable, in accordance with [Chapter 5, Supplemental Nutrition Assistance Program: Verification](#), in order to determine that the household meets the definition of a household in [Section 2.1 General Household Definitions](#).

In order to determine if a household will be eligible due to its status as a recipient TANF or SSI household, SCDSS may temporarily postpone, within the 30-day processing standard, SNAP eligibility determination if the household is not entitled to expedited service and appears to be categorically eligible. However, SCDSS will postpone denying a potentially categorically eligible household until the 30th day in case the household is determined eligible to receive TANF or SSI benefits.

SCDSS will ensure that the denied application of a potentially categorically eligible household is easily retrievable. For a household filing a joint application for SNAP and TANF or SSI benefits (or has a TANF or SSI application pending) and is denied SNAP benefits but is later determined eligible to receive such benefits and is otherwise categorically eligible, SCDSS will provide SNAP benefits using the original application and any other pertinent information occurring subsequent to that application. Benefits will be paid from the beginning of the period for which TANF or SSI benefits are paid or the original SNAP application date, whichever is later.

Exception: Residents of public institutions may apply jointly for SSI and SNAP benefits prior to their release from a public institution.

In situations where the SCDSS must update and reevaluate the original application of a denied case, SCDSS will not re-interview the household, but will use any available information to update the application.

SCDSS will then contact the household by phone or mail to explain and confirm changes made and to determine if other changes in household circumstances have occurred.

If any information obtained from the household differs from that which SCDSS obtained from available information or the household provided additional changes in information, SCDSS will arrange for the household or its authorized representative to initial all changes, re-sign and date the updated application and provide necessary verification.

SCDSS will not require households which file a joint TANF or SSI and SNAP application, and whose TANF or SSI applications are denied, to file new SNAP applications. Rather, SCDSS must determine or continue their SNAP eligibility on the basis of the original applications filed jointly.

In addition, SCDSS must use any other documented information obtained subsequent to the application which may have been used in the TANF or SSI determination and which is relevant to SNAP eligibility or level of benefits.

4.5 TEMPORARY ASSISTANCE FOR NEEDY FAMILIES (TANF) APPLICANT HOUSEHOLDS

SCDSS must notify households applying for TANF of their right to apply for SNAP benefits at the same time and must allow them to apply at the same time they apply for TANF benefits. SCDSS must also notify such households that time limits or other requirements that apply to the receipt of TANF benefits do not apply to the receipt of SNAP benefits, and that households which cease receiving TANF benefits because they have reached a time limit, have begun working, or for other reasons, may still qualify for SNAP benefits.

If SCDSS attempts to discourage households from applying for TANF, it will make clear that the disadvantages and requirements of applying for TANF do not apply to SNAP and will encourage applicants to continue with their application for SNAP. SCDSS will inform households that receiving SNAP benefits will have no bearing on any other program's time limits that may apply to the household.

SCDSS will process the applications of applicant TANF households in accordance with the requirements of SNAP and must base their eligibility solely on SNAP eligibility criteria unless the household is categorically eligible, as provided in [Section 4.1 Categorically Eligible Households](#).

SCDSS will base the benefit levels of all households solely on SNAP criteria.

SCDSS must certify jointly processed and categorically eligible households in accordance with SNAP procedural, timeliness, and notice requirements, including the 7-day expedited service provisions of [Section 6.5 \(1\) Entitlement to Expedited Service](#) and normal 30-day application processing standards of [Section 6.1 Normal Processing Standards](#).

To file a joint TANF/SNAP application, the household would use the:

- (1) DSS Form 3800, Temporary Assistance for Needy Families (TANF) Application Supplemental Nutrition Assistance Program (SNAP) Application Refugee Cash Assistance (RCA) Application
- (2) DSS Form 3800 A, Your Rights and Responsibilities;

SCDSS will conduct a single interview at initial application, whenever possible, for both TANF and SNAP purposes. [Section 3.8 Interviews](#).

For households applying for both TANF and SNAP, SCDSS must follow the verification procedures described in [Chapter 5, Supplemental Nutrition Assistance Program: Verification](#) for those factors of eligibility which are needed solely for purposes of determining the household's eligibility for SNAP.

For those factors of eligibility which are needed to determine both TANF eligibility and SNAP eligibility, SCDSS will use the TANF verification rules. However, if the household has provided SCDSS sufficient verification to meet the verification requirements of [Chapter 5, Supplemental Nutrition Assistance Program: Verification](#), but has failed to provide sufficient verification to meet the TANF verification rules, SCDSS cannot use such failure as a basis for denying the household's SNAP application or failing to comply with SNAP processing requirements of [Section 6.1 Normal Processing Standards](#). Under these circumstances, SCDSS must process the household's SNAP application and determine eligibility based on its compliance with the requirements of [Chapter 5, Supplemental Nutrition Assistance Program: Verification](#).

SCDSS will not require a household which files a joint TANF/SNAP application, and whose TANF application is denied, to file a new SNAP application. Rather, SCDSS must determine or continue their SNAP eligibility on the basis of the original application filed jointly for TANF and SNAP purposes.

In addition, SCDSS must use any other documented information obtained subsequent to the application which may have been used in the TANF determination and which is relevant to SNAP eligibility or level of benefits.

4.6 APPLICANT SUPPLEMENTAL SECURITY INCOME (SSI) HOUSEHOLDS

For purposes of this policy, SSI is defined as Federal SSI payments made under title XVI of the Social Security Act, federally administered optional supplementary payments under section 1616 of that Act, or federally administered mandatory supplementary payments made under section 212(a) of Pub. L. 93–66.

Households applying simultaneously for SSI and SNAP benefits will be subject to SNAP eligibility criteria, and benefit levels will be based solely on SNAP eligibility criteria until the household is considered categorically eligible.

Whenever a member of a household consisting only of SSI applicants or recipients transacts business at an SSA office, the SSA will inform the household of its right to apply for SNAP benefits at the SSA office without going to the appropriate SCDSS office and its right to apply at a SCDSS office if it chooses to do so.

SSA will accept and complete SNAP applications received at the SSA Office from SSI households and forward them, within one working day after receipt of a signed application, to a designated

SCDSS office. The SSA will use either the national SNAP application form for joint processing or the Agency's SNAP application.

SCDSS will make an eligibility determination and issue SNAP benefits to eligible SSI households within 30 days following the date the application was received by the SSA. Applications will be considered filed for normal processing purposes when the signed application is received by SSA. The expedited processing time standards will begin on the date SCDSS receives a SNAP application. SNAP applications and supporting documentation sent to an incorrect local SCDSS office will be sent to the correct office within one working day of their receipt in accordance with [Section 3.4 Filing an Application for SNAP, \(2\) Contacting the SNAP Office](#).

SCDSS will make an eligibility determination and issue SNAP benefits to a resident of a public institution who applies jointly for SSI and SNAP benefits within 30 days following the date of the applicant's release from the institution.

Expedited processing time standards for an applicant who has applied for SNAP benefits and SSI prior to release will also begin on the date of the applicant's release from the institution in accordance with [Section 6.6 Processing Standards for Expedited Service](#).

SSA will notify SCDSS of the date of release of the applicant from the institution. If, for any reason, SCDSS is not notified on a timely basis of the applicant's release date, the Agency will restore benefits, in accordance with [Chapter 21 Restoration of Lost Benefits](#), to such applicant back to the date of release.

If applying at the SSA office, households in which all members are applying for or participating in SSI will not be required to see a SCDSS ES worker, or otherwise be subjected to an additional interview at SCDSS. The SNAP application will be processed by SCDSS who will not contact the household further in order to obtain information for certification for SNAP benefits unless:

- the application is improperly completed;
- mandatory verification required by [Section 5.1 Verification Prior to Certification](#) is missing; or,
- SCDSS determines that certain information on the application is questionable.

In no event would the applicant be required to appear at the SCDSS office to finalize the eligibility determination.

4.7 ELIGIBILITY FACTORS FOR CATEGORICALLY ELIGIBLE HOUSEHOLDS

The eligibility factors which are deemed for SNAP eligibility without the verification required in [Chapter 5, Supplemental Nutrition Assistance Program: Verification](#) because of TANF/SSI status are:

- Resources;
- Gross and net income limits;
- Social Security Number (SSN) information;
- Sponsored non-citizen information; and
- Residency.

However, SCDSS must collect and verify factors relating to benefit determination that are not collected and verified by the other program if these factors are required to be verified under [Chapter 5, Supplemental Nutrition Assistance Program: Verification](#). If any of the following factors are questionable, the Agency must verify, in accordance with [Chapter 5, Supplemental Nutrition Assistance Program: Verification](#), that the household which is considered categorically eligible:

- (A) Contains only members that are TANF or SSI recipients;
- (B) Meets the household definition in [Section 2.1 General Household Definitions](#);
- (C) Includes all persons who purchase and prepare food together in one SNAP household regardless of whether or not they are separate units for TANF or SSI purposes; and
- (D) Includes no persons who have been disqualified as provided for in [Section 4.2 Households Prohibited from Being Considered Categorically Eligible](#).

EXCEPTION: Expanded categorical eligibility through Family Independence Information and Referral Services are available to all households, including those that contain an ineligible or disqualified member. Households that contain a member who is sanctioned continue to be eligible to receive Family Independence Information and Referral Services so resources are excluded and not deemed. The sanctioned SNAP member's income continues to be deemed.

Categorical eligibility will be assumed at recertification in the absence of a timely TANF or SSI redetermination.

4.8 DEEMED ELIGIBILITY FACTORS FOR CATEGORICALLY ELIGIBLE HOUSEHOLDS

When determining eligibility for a categorically eligible household, all SNAP requirements apply except the following:

- Resources;
- Gross and net income limits;
- Social Security Number (SSN) information;
- Sponsored non-citizen information;
- Residency; and
- Zero benefit households. All eligible households of one or two persons must be provided the minimum benefit, as required by [Section 13.6 Calculating Net Income and Benefit Levels](#).

Expanded categorical eligible households through Family Independence Information and Referral Services will have the household's resources excluded when determining eligibility for SNAP benefits. These households must meet the non-financial eligibility criteria but are not subject to gross or net income limits. Categorical eligibility for these households does not continue if gross income, upon verification, is above the identified FPL.

4.9 SOUTH CAROLINA COMBINED APPLICATION PROJECT (SCCAP)

SCDSS operates the South Carolina Combined Application Project for one-person SNAP households determined categorically eligible due to their receipt of SSI benefits. The policy and procedures for this project are defined in [Chapter 19 Federal Demonstration Projects](#).

Chapter 5 Verification

5.1 VERIFICATION PRIOR TO CERTIFICATION

Verification is the use of documentation or a contact with a third party to confirm the accuracy of statements or information. The Agency must give households at least 10 days to provide required verification.

The Agency will verify the following information prior to certification for households initially applying:

(1) Identity

The identity of the person making application will be verified. Where an authorized representative applies on behalf of a household ([Section 3.6 Authorized Representatives](#)), the identity of both the authorized representative and the primary informant will be verified. Identity may be verified through readily available documentary evidence, or if this is unavailable, through a collateral contact. Examples of readily available documentary evidence include, but are not limited to, an IEVS hit or documentation already on file. Examples of acceptable documentary evidence which the applicant may provide include, but are not limited to, a driver's license, a work or school ID, an ID for health benefits or for another assistance or social services program, a voter registration card, wage stubs, or a birth certificate. Any documents which reasonably establish the applicant's identity must be accepted, and no requirement for a specific type of document will be imposed.

(2) Residency

The residency requirements of [Section 7.1 Residency](#) will be verified except in unusual cases (such as homeless households or migrant farmworker households) where verification of residency cannot reasonably be accomplished. Verification of residency should be accomplished to the extent possible in conjunction with the verification of other information such as, but not limited to, rent and mortgage payments, utility expenses, and identity. If verification cannot be accomplished in conjunction with the verification of other information, then the Agency will use a collateral contact or other readily available documentary evidence.

Documents used to verify other factors of eligibility should normally suffice to verify residency as well.

Any documents or collateral contact ([Section 5.2 Sources of Verification, \(2\) Collateral Contacts](#)) which reasonably establishes the applicant's residency must be accepted and no requirement for a specific type of verification will be imposed. No durational residency requirement will be established.

(3) Social Security Numbers

The Agency will verify the Social Security Number(s) (SSNs) reported by the household by submitting them to the Social Security Administration (SSA) for verification according to automated enumeration procedures established by SSA. See [Section 7.2 Social Security Numbers \(SSNs\)](#). The Agency will not delay the certification for or issuance of benefits to an otherwise eligible household solely to verify the SSN of a household member. Once an SSN has been verified, the Agency will make a permanent annotation to its file to prevent the unnecessary re-verification of the SSN in the future. The Agency will accept as verified an SSN which has been verified by another program participating in the IEVS.

If an individual is unable to provide an SSN or does not have an SSN, the Agency will require the individual to submit Form SS-5, Application for a Social Security Number, to the SSA in accordance with procedures in [Section 7.2 Social Security Numbers \(SSNs\)](#). A completed SSA Form 2853 will be considered proof of application for an SSN for a newborn infant.

(4) Household composition

The Agency will verify factors affecting the composition of a household, if questionable. Individuals who claim to be a separate household from those with whom they reside will be responsible for proving that they are a separate household to the satisfaction of the Agency.

Individuals who claim to be a separate household from those with whom they reside based on the age and disability factors (See [Section 2.2 \(2\) Special Household Requirements \(Elderly and disabled persons\)](#)) for determining separateness will be responsible for proving a claim of separateness (at the Agency's request) in accordance with the disability provisions below.

(5) Disability

I. The Agency will verify disability as follows:

DISABILITY DESCRIPTION	VERIFICATION SOURCES
A. For individuals to be considered disabled who: • receive Supplemental Security Income (SSI) benefits under title XVI of the Social Security Act or disability or blindness payments under titles I, II, X, XIV, or XVI of the Social Security Act; • receive federally or State-administered supplemental benefits under section 1616(a) of the Social Security Act provided that the eligibility to receive the benefits is based upon the disability or blindness criteria used under title XVI of the Social Security Act;	The Economic Services worker may use SDX; or The household may provide proof that the disabled individual is receiving benefits under titles I, II, X, XIV or XVI of the Social Security Act.

• receive federally or State-administered supplemental benefits under section 212(a) of Pub. L. 93–66;	
B. For an individual to be considered disabled who • is a veteran with a service-connected or non-service-connected disability rated by the Veterans Administration (VA) as total or paid as total by the VA under title 38 of the United States Code; • is a surviving spouse or surviving child of a veteran and considered by the VA to be entitled to compensation for a service-connected death or pension benefits for a non-service-connected death under title 38 of the United States Code <u>and</u> has a disability considered permanent under section 221(i) of the Social Security Act. “Entitled” as used in this definition refers to those veterans' surviving spouses and surviving children who are receiving the compensation or pension benefits stated or have been approved for such payments, but are not yet receiving them;	The household must present a statement from the Veterans Administration (VA) which clearly indicates that the disabled Veteran is receiving VA disability benefits for a service-connected or non-service-connected disability and that the disability is rated as total or paid at the <u>total</u> rate by VA. In addition to having a disability considered permanent by SSA, the household must provide a statement from the VA which indicates the surviving spouse or surviving child of a veteran is receiving the veteran’s pension or death benefit.
C. For an individual to be considered disabled who: • is a veteran considered by the VA to be in need of regular aid and attendance or permanently housebound under title 38 of the United States Code; or • is a surviving spouse of a veteran and considered by the VA to be in need of regular aid and attendance or permanently housebound or a surviving child of a veteran and considered by the VA to be permanently incapable of self-support under title 38 of the United States Code;	Proof by the household that the veteran, surviving spouse or surviving child of the veteran is receiving regular aid and attendance benefits through the VA is sufficient verification of disability. <i>NOTE: Individuals under age 60 and meet this criteria, should be coded as “Y” in SPCAT field on CHIP SSDO screen in order to identify that the household is considered a special category, unless the income is coded on CHIP UNIN screen to identify receipt of disability income.</i>
D. For an individual to be considered disabled who: • receives disability retirement benefits from a governmental agency because of a disability considered permanent under section 221(i) of the Social Security Act;	The Economic Services worker may use BENDEX, the Social Security Administration’s (SSA) award letter or another governmental agency award letter. <i>NOTE: Individuals under age 60 and meet this criteria, should be coded as “Y” in SPCAT field on CHIP SSDO screen in order to identify that the</i>

	<i>household is considered a special category, unless the income is coded on CHIP UNIN screen to identify receipt of disability income.</i>
E. For individuals to be considered disabled who receives an annuity payment under: • section 2(a)(1)(iv) of the Railroad Retirement Act of 1974 and is determined to be eligible to receive Medicare by the Railroad Retirement Board; <u>or</u> • section 2(a)(1)(v) of the Railroad Retirement Act of 1974 and is determined to be disabled based upon the criteria used under title XVI of the Social Security Act.	The household will provide proof that the individual receives a Railroad Retirement disability annuity from the Railroad Retirement Board and has been determined to qualify for Medicare.
F. For an individual to be considered disabled who: • is a recipient of interim assistance benefits pending the receipt of Supplemental Security Income (SSI) <u>or</u> a recipient of disability related medical assistance under title XIX of the Social Security Act; or disability-based State general assistance benefits. The Agency shall verify that the eligibility to receive these benefits is based upon disability or blindness criteria which are at least as stringent as those used under title XVI of the Social Security Act.	The household will provide proof that the individual receives interim assistance benefits pending the receipt of Supplemental Security Income (SSI) or disability-related medical assistance under title XIX (Medicaid) of the SSA. <i>NOTE: Individuals under age 60 and meet this criteria, should be coded as "Y" in SPAT field on CHIP SSDO screen in order to identify that the household is considered a special category, unless the income is coded on CHIP UNIN screen to identify receipt of disability income.</i>

II. Disability Determination for Elderly and Disabled Persons

For disability determinations which must be made relevant to the provisions of [2.2 \(2\) Special Household Requirements \(Elderly and disabled persons\)](#), the Agency will use the SSA's most current list of disabilities as the initial step for verifying if an individual has a disability considered permanent under the Social Security Act (See [SNAP Tool Kit 1: Permanent Disability Established by the Social Security Act](#)). However, only those individuals who suffer from one of the disabilities mentioned in the SSA list who are unable to purchase and prepare meals because of such disability will be considered disabled for the purpose of this provision.

If it is obvious to the ES worker that the individual is unable to purchase and prepare meals because he/she suffers from a severe physical or mental disability, the individual will be considered disabled for the purpose of the provision even if the disability is not specifically mentioned on the SSA list.

If the disability is not obvious to the ES worker, he/she will verify the disability by requiring a statement from a physician or licensed or certified psychologist certifying that the individual (in the physician's/psychologist's opinion) is unable to purchase and prepare meals because he/she suffers from one of the non-obvious disabilities mentioned in the SSA list or is unable to purchase meals

because he/she suffers from some other severe, permanent physical or mental disease or non-disease related disability.

The elderly and disabled individual (or his/her authorized representative) will be responsible for obtaining the cooperation of the individuals with whom he/she resides in providing the necessary income information about the others to the Agency for purposes of this provision.

(6) Non-citizen eligibility

The Agency must verify the eligible immigration status of applicant non-citizens. Households are required to submit USCIS documentation for each non-citizen applying for SNAP benefits as a condition of eligibility. The Agency is then required to verify the validity of these documents through the Systematic Alien Verification for Entitlements (SAVE) program.

NOTE: SAVE electronically verifies immigration status using a process that can take up to the three steps: Initial verification, Additional Verification and Third Step Verification. For more details, please refer to the SAVE User Reference Guide which can be found at <https://save.uscis.gov/web/media/resourcesContents/SAVEProgramGuide.pdf>.

If a non-citizen does not wish the Agency to contact USCIS to verify his or her immigration status, the Agency must give the household the option of withdrawing its application or participating without that member.

For acceptable sources of verification that may be used along with SAVE, see [**SNAP Tool Kit 2: Acceptable Verification of U.S. Citizenship and Non-Citizen Eligibility**](#). For a description of citizens and noncitizens who may be eligible to participate in SNAP, see [**Section 7.3 Citizenship and Non-citizen Status**](#). The SSA Quarters of Coverage History System (QCHS) is available for purposes of verifying whether a lawful permanent resident has earned or can receive credit for a total of 40 qualifying quarters. However, the QCHS may not show all qualifying quarters. For instance, SSA records do not show current year earnings and in some cases the last year's earnings, depending on the time of request. Also, in some cases, an applicant may have work from uncovered employment that is not documented by SSA but is countable toward the 40 quarters test. In both these cases, the individual, rather than SSA, would need to provide the evidence needed to verify the quarters.

The Agency must accept participation in another program as acceptable verification if verification of citizenship or non-citizen national status was obtained for that program.

A non-citizen is ineligible until acceptable documentation is provided unless:

- The Agency has submitted a copy of a document provided by the household to USCIS for verification. Pending such verification, the Agency cannot delay, deny, reduce or terminate the individual's eligibility for benefits on the basis of the individual's immigration status; or

- The applicant or the Agency has submitted a request to SSA for information regarding the number of quarters of work that can be credited to the individual, SSA has responded that the individual has fewer than 40 quarters, and the individual provides documentation from SSA that SSA is conducting an investigation to determine if more quarters can be credited. If SSA indicates that the number of qualifying quarters that can be credited is under investigation, the Agency must certify the individual pending the results of the investigation for up to 6 months from the date of the original determination of insufficient quarters; or
- The applicant or the Agency has submitted a request to a Federal agency for verification of information which bears on the individual's eligible non-citizen status. The Agency must certify the individual pending the results of the investigation for up to 6 months from the date of the original request for verification.

The Agency must provide non-citizen applicants with a reasonable opportunity to submit acceptable documentation of their eligible non-citizen status as of the 30th day following the date of application.

A reasonable opportunity must be at least 10 days from the date of the Agency's request for an acceptable document. When the Agency fails to provide a non-citizen applicant with a reasonable opportunity as of the 30th day following the date of application, the Agency must provide the household with benefits no later than 30 days following the date of application, provided the household is otherwise eligible.

Absent verification or third party attestation of U.S. citizenship or non-citizen national status, the member whose citizenship or non-citizen national status is in question is ineligible to participate until the issue is resolved and will have his or her income and resources considered available to any remaining household members as set forth in [Section 14.1 Treatment of Income and Resources of Certain Non-household Members](#).

(7) Gross nonexempt income

Gross nonexempt income will be verified for all households prior to certification. However, where all attempts to verify the income have been unsuccessful because the person or organization providing the income has failed to cooperate with the household and the Agency, and all other sources of verification are unavailable, the ES worker will determine an amount to be used for certification purposes based on the best available information.

(8) Utility expenses

The Agency will verify a household's utility expenses for households that are only allowed to claim actual utility costs (See [Section 12.5 \[4\] Utility Allowances \[Actual Utility Costs\]](#)) and the households wish to claim actual utility expenses. If the household's actual utility expenses cannot be verified before the 30 days allowed to process the application expire, the Agency will determine the household's eligibility and benefit level without providing a deduction for the claimed but unverified expenses.

For households that wish to claim a utility deduction for an unoccupied home, the Agency will verify the household's actual utility expenses because the household can only be allowed a deduction for actual utility costs, not the Mandatory Utility Allowance (MUA) or Basic Utility Allowance (BUA).

(9) Shelter expenses

The Agency will verify a household's shelter expenses, which includes rent, mortgage (first & second mortgage), property tax on the residence, and homeowners' insurance.

Households may receive an expense deduction for an eligible unoccupied home (See [Section 12.4\(3\)\(E\)](#)).

If the expense cannot be verified within 30 days of the date of application, the Agency will determine the household's eligibility and benefit level without providing a deduction of the unverified expense. If the household subsequently provides the missing verification, the Agency will re-determine the household's benefits, and provide increased benefits, if any, in accordance with the timeliness standards in [Chapter 15 Change Reporting Requirements](#) on reported changes. If the expense could not be verified within the 30-day processing standard because the Agency failed to allow the household sufficient time, as defined [Section 6.4 Delays in Processing](#), to verify the expense, the household will be entitled to the restoration of benefits retroactive to the month of application. If the household would be ineligible unless the expense is allowed, the household's application will be handled as provided in [Section 6.4 Delays in Processing](#).

(10) Medical expenses

The amount of any outstanding non-recurring medical expenses (including the amount of reimbursements) deductible under [Section 12.8 Medical Deduction](#) will be verified prior to initial certification, as well as any recurring expenses. When calculating recurring expenses, use the anticipated monthly average. When calculating non-recurring medical expenses, the amount of out-of-pocket medical expenses should be prorated over the certification period. Verification of other factors, such as allowing services provided or the eligibility of the person incurring the cost, will be required if questionable. The household may be eligible for the Standard Medical (SM) deduction or the Excess Medical (EM) deduction. When the household verifies out-of-pocket medical expenses that total more than \$35.00 but do not exceed \$210.00 per month, the SM deduction must be allowed. When the household verifies out-of-pocket medical expenses that total more than \$210.00 per month, the EM deduction must be allowed.

NOTES:

A reimbursement is the amount of medical expenses initially paid on behalf of the patient but is refunded by the health insurance company.

An out-of-pocket medical expense is the amount the household is required to pay. If the household has insurance coverage, this amount will be what the household owes

after the insurance company has paid its portion of the expense.

If the expense cannot be verified within 30 days of the date of application, the Agency will determine the household's eligibility and benefit level without providing a deduction of the unverified expense. If the household subsequently provides the missing verification, the Agency will re-determine the household's benefits, and provide increased benefits, if any, in accordance with the timeliness standards in [Chapter 15 Change Reporting Requirements](#) on reported changes.

NOTE: *Prorate the nonrecurring medical expense amount over the months remaining in the certification period, if the household provides the previously requested verification.*

If the expense could not be verified within the 30-day processing standard because the Agency failed to allow the household sufficient time, as defined [Section 6.4 Delays in Processing](#), to verify the expense, the household will be entitled to the restoration of benefits retroactive to the month of application. If the household would be ineligible unless the expense is allowed, the household's application will be handled as provided in [Section 6.4 Delays in Processing](#).

See [5.7 \(H\) Verification Subsequent to Initial Certification](#) for treatment of ongoing cases.

(11) Legal obligation and actual child support payments

The Agency will obtain verification of the household's legal obligation to pay child support, the amount of the obligation, and the monthly amount of child support the household actually pays.

NOTE: *Documents that are accepted as verification of the household's legal obligation to pay child support are not to be accepted as verification of the household's actual monthly child support payments.*

(12) Able-bodied adults subject to the time limit

For individuals subject to the ABAWD time limit of [Section 8.16 Countable Months](#) who are satisfying the work requirement by working, by combining work and participation in a work program, or by participating in a work program or workfare program, the individuals' work hours will be verified.

For individuals subject to the ABAWD time limit ([Section 8.16 Countable Months](#)), the Agency must verify the number of countable months an ABAWD has used in another State during the current three-year time period, if there is an indication that the individual has participated in that State. The DSS Form 1262, Benefits Inquiry, may be used to obtain verification of whether or not an ABAWD has used countable months in another State.

(13) Students

For individuals who claim to be physically or mentally unfit for purposes of the student exemption contained in [Section 7.4 Students](#) and the unfitness is not evident to the Agency, verification may be required. Appropriate verification may consist of receipt of temporary or permanent disability benefits issued by governmental or private sources, or of a statement from a physician or licensed or certified psychologist.

(14) Refusal to cooperate with QC

The Agency will verify all factors of eligibility for households who have been terminated for refusal to cooperate with a State quality control reviewer and reapply after 95 days from the end of the annual review period. The Agency will verify all factors of eligibility for households who have been terminated for refusal to cooperate with a Federal quality control reviewer and reapply after seven months from the end of the annual review period. [Section 3.9 Household Cooperation With SNAP Quality Control \(QC\) Reviewer](#)

(15) Other factors determined to be questionable

The Agency will verify, prior to certification of the household, all other factors of eligibility which the Agency determines are questionable and affect the household's eligibility and benefit level. Verification cannot be prescribed based on race, religion, ethnic background, or national origin.

5.2 SOURCES OF VERIFICATION

The Agency will use documentary evidence as the primary source of verification for all items except residency and household size. These items may be verified either through readily available documentary evidence or through a collateral contact, without a requirement being imposed that documentary evidence must be the primary source of verification.

(1) Documentary evidence

Documentary evidence consists of a written confirmation of a household's circumstances. Examples of documentary evidence include wage stubs, rent receipts, and utility bills.

Although documentary evidence will be the primary source of verification, acceptable verification will not be limited to any single type of document and may be obtained through the household or other source.

Whenever documentary evidence cannot be obtained or is insufficient to make a firm determination of eligibility or benefit level, the Economic Services worker may require collateral contacts. For example, documentary evidence may be considered insufficient when the household presents pay

stubs which do not represent an accurate picture of the household's income (such as outdated pay stubs) or identification papers that appear to be falsified.

(2) Collateral contacts

A collateral contact is an oral confirmation of a household's circumstances by a person outside of the household. The collateral contact may be made either in person or over the telephone. The Agency may select a collateral contact if the household fails to designate one or designates one which is unacceptable to the Agency.

Examples of acceptable collateral contacts may include employers, landlords, social service agencies, migrant service agencies, and neighbors of the household who can be expected to provide accurate third-party verification.

The Agency, generally, will rely on the household to provide the name of any collateral contact. The household may request assistance in designating a collateral contact. The Agency is not required to use a collateral contact designated by the household if the collateral contact cannot be expected to provide accurate third-party verification. When the collateral contact designated by the household is unacceptable, the Agency will either designate another collateral contact, ask the household to designate another collateral contact or to provide an alternative form of verification. The Agency is responsible for obtaining verification from acceptable collateral contacts.

NOTE: When talking with collateral contacts, the Agency will disclose only the information that is absolutely necessary to get the information being sought. The Agency will avoid disclosing that the household applied for SNAP, nor should the Agency disclose any information supplied by the household or suggest that the household is suspected of any wrong doing.

5.3 DISCREPANCIES IN VERIFICATION

Where unverified information from a source other than the household contradicts statements made by the household, the household will be afforded a reasonable opportunity to resolve the discrepancy prior to a determination of eligibility or benefits. The Agency may verify the information directly and contact the household only if such direct verification efforts are unsuccessful. If the unverified information is received through the IEVS/SVES, the Agency may obtain verification from a third party as specified in [Section 5.6 Income and Eligibility Verification System \(IEVS\)/State Verification and Exchange System \(SVES\)](#).

5.4 VERIFICATION FOR HOMELESS HOUSEHOLDS

Homeless households claiming actual shelter expenses **or** those with extremely low shelter costs may provide verification of their shelter expenses to qualify for the homeless shelter deduction (See [Section 12.1 Income Deductions/General](#)). If a homeless household has difficulty in obtaining traditional types of verification of shelter costs, a client's statement is acceptable verification as a last resort.

5.5 RESPONSIBILITY FOR OBTAINING VERIFICATION

The household has primary responsibility for providing documentary evidence to support statements on the application and to resolve any questionable information. The Agency must assist the household in obtaining this verification provided the household is cooperating with the Agency as specified in [Section 3.5 Household Cooperation in Filing an Application for SNAP](#). Households may supply documentary evidence in person, through the mail, by facsimile or other electronic device, or through an authorized representative. The Agency must not require the household to present verification in person at the SNAP office.

The Agency must accept any reasonable documentary evidence provided by the household and must be primarily concerned with how adequately the verification proves the statements on the application.

However, the Agency has primary responsibility for verifying fleeing felon and parole or probation violator status in accordance with [Section 7.5 Fleeing Felons and Probation/Parole Violators](#).

If a SNAP applicant's attestation regarding disqualified felon status described in [Section 3.11 Attestation Requirement](#) is questionable, the Agency will verify the attestation. Each element of a questionable attestation - that the individual has been convicted of a crime listed in [Section 14.12 Disqualification for Certain Convicted Felons](#), **and** that the individual is not in compliance with the terms of their sentence - will be verified by the Agency. The Agency will determine whether an attestation is questionable based on the standards established in [Section 5.1\(15\) Verification Prior to Certification \(Other factors determined to be questionable\)](#). In conducting verifications of questionable attestations under this paragraph, the Agency will establish reasonable and consistent standards, evaluate each case separately, and document the case file accordingly.

In cases where verification is incomplete, the Agency must provide the household with a statement of required verification, offer to assist the household in obtaining required verification if the household indicates assistance is needed, and allow the household sufficient time to provide the missing verification. Sufficient time will be at least 10 days from the date of the Agency's initial request for the particular verification that was missing.

5.6 INCOME AND ELIGIBILITY VERIFICATION SYSTEM (IEVS)/STATE VERIFICATION AND EXCHANGE SYSTEM (SVES)

The Agency may verify SSI benefits through the State Data Exchange (SDX), and Social Security benefit information through the Beneficiary & Earnings Data Exchange (BENDEX) or through verification provided by the household. The Agency may use SDX and BENDEX data to verify other SNAP eligibility criteria, such as identity, Medicare premium and SCCAP determination.

The household will be given an opportunity to verify the information from another source if the SDX or BENDEX information is contradictory to the information provided by the household or is unavailable. Determination of the household's eligibility and benefit level will not be delayed past the application processing time standards of [Section 6.1 Normal Processing Standards](#) if SDX or BENDEX data is unavailable.

The Agency must obtain information through IEVS and SVES and use it to verify the eligibility and benefit level of applicants and participating households.

IEVS and SVES must be matched at each SNAP application/reapplication, recertification action (36-month, 24-month, annual, interim contact, six-month and tri-annual), as well as when adding new individuals (including a previously sanctioned individual) to a SNAP household. Interfaces and query systems that must be reviewed prior to certification include:

- BENDEX Information
- Child Support Payments
- Lottery or Gambling Winnings ([Section 14.11 Disqualification for Substantial Lottery or Gambling Winnings](#))
- National Disqualification Query (NDQ)/eDisqualified Recipient Subsystem (eDRS) ([Section 20.6 Disqualified Recipient electronic Subsystem \[eDRS\]](#))
- New Hires Inquiry
- Prisoner Match ([Section 15.7, Unclear Information](#))
- S.C. Retirement System Data
- SDX Information
- Special Benefit Data
- SSA Death Match ([Section 15.7, Unclear Information](#))
- State Wage Data
- Unemployment Compensation Benefit (UCB)

The Agency will take action, including proper notices to households, to terminate, deny, or reduce benefits based on information obtained through IEVS which is considered verified upon receipt. This includes verification of SSA and SSI benefit information obtained from SSA; and verification of SC State Retirement income, UCB and TANF obtained from the agencies administering those programs.

If the Agency has information that the IEVS/SVES information about a particular household is questionable, this information will be considered unverified upon receipt. Prior to taking action to terminate, deny, or reduce benefits based on information obtained through IEVS/SVES which is considered unverified upon receipt, the Agency will independently verify the information.

The Agency will obtain independent verification of unverified information obtained from IEVS/SVES by means of contacting the household and/or the appropriate income, resource or benefit source. If the Agency chooses to contact the household, it must do so in writing, informing the household of the information which it has received, and requesting that the household respond within 10 days. If the household fails to respond in a timely manner, the Agency will send it a notice of adverse action as specified in [Chapter 16 Notice of Adverse Action](#). The Agency may contact the appropriate source by the means best suited to the situation. When the household or appropriate source provides the independent verification, the Agency will properly notify the household of the action it intends to take and provide the household with an opportunity to request a fair hearing (See [Chapter 18 Fair Hearings](#)) prior to any adverse action.

(1) New Hires

Once a month, before the last Friday of the month, a file will be created that contains all active SNAP recipients who:

- are age 16 or older, effective the end of the calendar month;
- have a SSN; and
- have a participation code other than “CO” or “OU” on CHIP SEPA screen.

The return file of any “hits” will be loaded into CHIP. The “New Hire” selection is available on the Federal and State Interface menus. The screen will be part of the Comprehensive Interface Menu.

The information received is detailed on the New Hire (NEHI) screen as following:

1. Process Date
2. SSN
3. Source (listed as State or Federal)
4. CHIP Name
5. DOB (as listed on CHIP)
6. Hire Name
7. DOB (as listed with Employer)
8. Address (as listed with Employer)
9. Hire Date
10. Employer Number
11. Employer
12. Address (Employer)
13. Phone Number (Employer)

ES workers should access new hire information for all applications, recertifications (36-month, 24-month, annual, interim contact, six-month and tri-annual), and when an individual is added to the SNAP household. The new hire information **cannot** be considered verified upon receipt.

The ES worker must independently verify any information received through new hire before using it to determine a household's eligibility or benefit amount. If the information obtained from the new hire match was required to be reported at the time of application, recertification (annual, six-month or tri-annual) or when an individual was added to the SNAP household, the income must be added to the SNAP budget allowing for the issuance of a timely notice. If the information was **not** required to be reported, it is considered an interim change, and the information should be filed in SCOSA until the next mandatory action requiring a rebudget of SNAP benefits.

Federal regulations prohibit the use and disclosure of information received through the new hire for purposes directly related to the administration of SNAP. New hire information must be safeguarded and may **not** be released to any agency or individual, including the applicant or recipient.

(2) State Directory of New Hires (SDNH)

On a monthly basis, the State Directory of New Hires (SDNH) will provide information received from the office of Child Support Enforcement at the U. S. Department of Health and Services (DHHS) through Comprehensive Inquiry on IEVS for individuals who have recently become employed and are receiving SNAP.

(3) National Directory of New Hires (NDNH)

On a monthly basis, SNAP recipients are matched with a National Directory of New Hires (NDNH) federal database. The database is administered through the Office of Child Support Enforcement at the U. S. Department of Health and Human Services (DHHS) and matches with employers in other states.

5.7 DOCUMENTATION

SNAP case files must be documented to support eligibility, ineligibility, and benefit level determinations. Documentation will be in sufficient detail to permit a reviewer to determine the reasonableness and accuracy of the determination.

5.8 VERIFICATION SUBSEQUENT TO INITIAL CERTIFICATION

(1) Recertification

At recertification, the Agency will verify the following information:

- (A) Newly obtained social security numbers in accordance with verification procedures outlined in [Section 5.1, Verification Prior to Certification, \(3\) Social Security Numbers](#);
- (B) A change in income if the source has changed (new income) or the amount has changed by more than \$50 (ongoing income).
- (C) Actual rent/mortgage expense that changed by more than \$25.
- (D) Actual utility expenses which have changed by more than \$25.
- (E) Any changes in the legal obligation to pay child support, the obligated amount, and the amount of legally obligated child support a household member pays to a non-household member for households eligible for a child support deduction.
- (F) The work hours of an ABAWD, who is subject to the ABAWD time limit, and who is satisfying the work requirement listed in [Section 8.14 ABAWD Work Requirement](#).
- (G) Other information which has changed. These changes will be subject to the same verification procedures as apply during initial certification in Section 5.1, Verification Prior to Certification.

NOTE: *Unchanged information will not be verified unless the information is incomplete, inaccurate, inconsistent or outdated.*

- (H) Previously unreported non-recurring medical expenses incurred during the certification period and/or total recurring medical expenses which have changed regardless of the amount. When a household reports a change in medical expenses, verification must be obtained in order to determine whether or not the household now qualifies for a medical deduction or if there will be a change in the existing medical deduction (Example: Standard Medical (SM) deduction changes to Excess Medical (EM) deduction).

Six-Month or Tri-annual Recertification

- The intent is not to re-calculate all medical expenses at the six month or tri-annual recertification, however, if a new **recurring** expense is reported and verified and causes an increase; the information must be acted upon as a change.
- For a new **non-recurring** expense, this would be verified and acted upon at the annual recertification.
- A household, not receiving a medical deduction that becomes eligible to receive a medical deduction and reports medical expenses are incurred, must be given the deduction according to the amount verified:
 - ❖ If the amount of medical expenses incurred and verified is \$35.00 or less per month, no medical deduction will be allowed.
 - ❖ If the amount of medical expenses incurred and verified is more than \$35.00 but does not exceed \$210.00 per month, the SM deduction must be allowed. The household should verify a monthly medical expense amount of at least \$35.01 to be eligible to receive the SM deduction.
 - ❖ If the amount of medical expenses incurred and verified exceeds \$210.00 monthly, the EM deduction must be allowed.

Since medical expenses are annualized prospectively, usually there will not be a change made at the six month or tri-annual recertification. Households already receiving the SM deduction will remain eligible for the SM deduction at subsequent recertification if they simply declare that their medical expenses continue to exceed \$35.00 per month.

NOTE: If a household reports new medical expenses or becomes eligible to receive a medical expense deduction but does not provide verification of the expense(s) with the form, the case cannot be registered as incomplete. However, the six-month or tri-annual recertification should be processed without the non-mandatory (optional) verification.

Annual Recertification

- Verify and use only the medical expense incurred during the previous certification period.
- The total of the non-recurring expenses incurred during the previous certification period will be verified and prorated over the new certification period.
- Recurring expenses need to be verified and evaluated to determine if the average monthly amounts have changed.
- A household, not receiving a medical deduction that becomes eligible to receive a medical deduction and reports medical expenses are incurred, must be given the deduction according to the amount verified:
 - ❖ If the amount of medical expenses incurred and verified is \$35.00 or less per month, no medical deduction will be allowed.
 - ❖ If the amount of medical expenses incurred and verified is more than \$35.00 but does not exceed \$210.00 per month, the SM deduction must be allowed. The household should verify a monthly medical expense amount of at least \$35.01 to be eligible to receive the SM deduction.
 - ❖ If the amount of medical expenses incurred and verified exceeds \$210.00 monthly, the EM deduction must be allowed.

A household already receiving the SM deduction will remain eligible for the SM deduction at subsequent recertification if they simply declare that their medical expenses continue to exceed \$35.00 per month. Verification of medical expenses is not required for subsequent recertification, unless the declaration is questionable.

24 Month Recertification

- Medical expenses will be recalculated at the interim contact (12 months) and at the 24-month recertification.
- Recurring expenses should be verified and evaluated to determine if the average monthly amounts have changed.

- Nonrecurring expenses incurred during the previous certification period should be verified and prorated over the new certification period.

SNAP households already receiving the SM deduction will remain eligible for the SM deduction at subsequent recertification if they simply declare that their medical expenses continue to exceed \$35.00 per month. Verification of medical expenses is not required for subsequent recertification, unless the declaration is questionable, or the household has expenses that exceed \$210.00 per month.

(2) Changes

Changes reported during the certification period will be subject to the same verification procedures as apply at initial certification in [Section 5.1, Verification Prior to Certification](#), except that the Agency will not verify changes in income if the source has not changed and if the amount has changed by \$50 or less, unless the information is incomplete, inaccurate, inconsistent or outdated. The Agency will also not verify actual utility expenses which are unchanged or have changed by \$25 or less, unless the information is incomplete, inaccurate, inconsistent or outdated.

If a change in medical expenses is reported, use the following procedures:

- If a new medical expense is non-recurring, verify the expense and inform the client that this expense will be budgeted at the annual recertification and the deduction will be prorated over the next certification period.
- If the new medical expense is a recurring expense, verify the expense and the case should be rebudgeted including the new expense if it will increase the allotment.
- If a change is reported in medical expenses that will decrease the benefit, no action will be taken until the next mandatory rebudget of the case.

Chapter 6 Processing Standards

6.1 NORMAL PROCESSING STANDARDS

The Agency will provide eligible households that complete the initial application process an opportunity to participate as soon as possible, but no later than 30 calendar days following the date the application was filed.

An application is filed the day the SNAP office receives an application containing the applicant's name and address, which is signed by either a responsible member of the household or the household's authorized representative ([Section 3.6 Authorized Representatives](#)). Households entitled to expedited processing are specified in [Section 6.5 \(1\) Entitlement to Expedited Service](#).

For residents of public institutions, (as outlined in [Section 14.7 Prerelease Applicants For SNAP](#)), who apply for SNAP benefits prior to their release from the institution, the Agency will provide an opportunity to participate as soon as possible, but not later than 30 calendar days from the date of release of the applicant from the institution.

6.2 AGGREGATE (COMBINED) ALLOTMENTS

Households which apply for initial month benefits after the 15th of the month, are processed under normal processing timeframes, have completed the application process within 30 days of the date of application, and have been determined eligible to receive benefits for the initial month of application and the next subsequent month, will be issued a combined allotment which includes prorated benefits for the initial month of application **and** benefits for the first full month of participation (subsequent month). The Agency will provide SNAP benefits as two separate allotments, made available at the same time.

6.3 DENYING THE APPLICATION

Households that are found to be ineligible will be sent a notice of denial as soon as possible but not later than 30 calendar days following the date the application was filed. The Agency may not deny a household's application prior to the 30th day after application if the household fails to complete the

interview process. If the household has failed to appear for an interview or has failed to call in for a telephone interview and has made no subsequent contact with the Agency to express interest in pursuing the application, the Agency will send the household a notice of denial on the 30th day following the date of application. The household must file a new application if it wishes to participate in the program.

In cases where the Agency was able to conduct an interview and request all of the necessary verification on the same day the application was filed, and no subsequent requests for verification have been made, the Agency may also deny the application on the 30th day if the Agency provided assistance to the household in obtaining verification as outlined in [5.5 Responsibility For Obtaining Verification](#), but the household failed to provide the required verification.

6.4 DELAYS IN PROCESSING THE APPLICATION

If the Agency does not determine a household's eligibility and provide an opportunity to participate within 30 calendar days following the date the application was filed, the Agency will take the following actions:

(1) Determining cause

The Agency will first determine the cause of the delay using the following criteria:

(A) A delay will be considered the fault of the household if the household has failed to complete the application process even though the Agency has taken all the action it is required to take to assist the household. The Agency must have taken the following actions before a delay can be considered the fault of the household:

- For households that have failed to complete the application form, the Agency must have offered, or attempted to offer, assistance in its completion.
- If one or more members of the household have failed to register for work, as in [Section 8.1 Work Requirements](#), the Agency must have informed the household of the need to register for work, determined if the household members are exempt from work registration, and given the household at least 10 days from the date of notification to register these members.
- In cases where verification is incomplete, the Agency must have provided the household with a statement of required verification and offered to assist the household in obtaining required verification if assistance was requested and allowed the household sufficient time to provide the missing verification. Sufficient time will be at least 10 days from the date of the Agency's initial request for the particular verification that was missing.
- For households that have failed to appear for an interview or have failed to call in for a telephone interview, the Agency must notify the household that it missed the interview and that the household is responsible for rescheduling a missed interview.

If the household contacts the Agency within the 30-day processing period, the Agency must schedule a second interview.

(B) Delays that are the fault of the Agency include, but are not limited to, those cases where the Agency failed to take the actions outlined in (A) above.

(2) Delays caused by the household

If by the 30th day the Agency cannot take action on the application due to the fault of the household, the household will lose its entitlement to benefits from the date of application. However, the Agency will give the household an additional 30 days to take the required action.

The Agency will send the household a notice of denial on the 30th day if the household has not taken the required action. However, if a notice of denial is sent and the household takes the required action within 60 days following the date the application was filed, the Agency will reopen the case without requiring a new application. No further action by the Agency is required after the notice of denial is sent if the household failed to take the required action within 60 days following the date the application was filed.

If the household was at fault for the delay in processing the application in the first 30-day period but is found to be eligible during the second 30-day period, the Agency will provide pro-rated benefits from the date the household took the required action. The household is not entitled to benefits from the date of application when the delay was the fault of the household.

(3) Delays caused by the Agency

Whenever a delay in processing the application in the initial 30-day period is the fault of the Agency, the Agency will take immediate corrective action. If the household is found to be eligible during the second 30-day period, the household will be entitled to benefits retroactive to the date of application. If, however, the household is found to be ineligible, the Agency will deny the application.

(4) Delays beyond 60 days

If the Agency is at fault for not completing the application process by the end of the second 30-day period, the Agency must take corrective action to make an eligibility determination by using the original application and not requiring the household to file a new application.

If the household is at fault for not completing the application process by the end of the second 30-day period, the Agency will require the household to file a new application in order to make an eligibility determination.

6.5 EXPEDITED SERVICE

The Agency must make expedited service available to households in immediate need.

(1) Entitlement to expedited service

The following households are entitled to expedited service:

- (A) Households with less than \$150 in monthly gross income, as computed in [Chapter 13 Determining Household Eligibility and Benefits Levels](#) provided their liquid resources (i.e., cash on hand, checking or savings accounts, savings certificates, and non-recurring lump sum payments such as but not limited to income tax refunds, rebates or credits; retroactive lump sum SSA and SSI or other payments, etc.) do not exceed \$100;
- (B) Migrant or seasonal farmworker households who are destitute as defined in [Section 13.7 Destitute Households](#) provided their liquid resources (i.e., cash on hand, checking or savings accounts, savings certificates, and non-recurring lump sum payments such as but not limited to income tax refunds, rebates or credits; retroactive lump sum SSA and SSI or other payments, etc.) do not exceed \$100;
- (C) Households whose combined monthly gross income and liquid resources are less than the household's monthly rent or mortgage, and utilities. If the applicant household is entitled to the MUA or BUA, use the appropriate standard as the utility expense when determining eligibility for expedited service. If the household is not entitled to either the MUA or the BUA, use actual expenses to make the determination. See [Section 12.5 Utility Allowances](#).

(2) Identifying households needing expedited service

The Agency must prescreen all applications for entitlement to expedited service. The DSS Form 16183, Expedited Screening Tool, is used to assist staff with properly identify households who are potentially eligible for expedited service. The Agency's application procedures will identify households eligible for expedited service at the time the household requests assistance.

6.6 PROCESSING STANDARDS FOR EXPEDITED SERVICE

For households entitled to expedited service, the Agency will post benefits to the household's Electronic Benefits Transfer (EBT) card (See [Section 22.1 Method of Issuance](#)) and make them available to the household not later than the seventh calendar day following the date an application was filed. For a resident of a public institution, (as outlined in [Section 14.7 Prerelease Applicants For SNAP](#)), who applies for benefits prior to his/her release from the institution and who is entitled to expedited service, the date of filing of his/her SNAP application is the date of release of the applicant from the institution.

If a household is entitled to expedited service, the Agency must conduct the interview and complete the application process within the expedited service standards. The first day of this count is the calendar day following application filing date.

NOTE: *If the Agency properly prescreened the household for expedited service resulting in the correct interview notice being sent, then the household must contact the Agency for their interview by the sixth day (or if the sixth day falls on weekend or holiday the household has until the next business day) in order to receive expedited service. Otherwise, the household will lose its entitlement to expedited service, unless the household's failure to call by the 6th day is due to an Agency caused delay. Examples of Agency caused delays include but are not limited to: Agency closure, high call volume in the Intake/Interview Center which prevented households from being able to reach an interviewer, delays in mailing of interview notices, systems failure (e.g. CHIP System or SCOSA, or telephones in the Intake/Interview Center inoperable for an extended period of time).*

Late determinations

If the prescreening required in [Section 6.5 \(1\) Entitlement to Expedited Service](#) fails to identify a household as being entitled to expedited service and the Agency subsequently discovers that the household is entitled to expedited service, the Agency will provide expedited service to the household within the processing standards, except that the expedited processing standard will be calculated from the date the Agency discovers the household is entitled to expedited service.

6.7 VERIFICATION REQUIREMENTS FOR EXPEDITED SERVICE

In order to expedite the certification process, the Agency will use the following verification requirements:

- (A) In all cases, the applicant's identity (i.e., the identity of the person making the application) will be verified through a collateral contact ([Section 5.2 Sources of Verification, \(2\) Collateral Contacts](#)) or readily available documentary evidence as specified in [Section 5.2 Sources of Verification, \(1\) Documentary evidence](#).
- (B) All reasonable efforts will be made to verify within the expedited processing standards, the household's residency in accordance with [Section 5.1 Verification Prior to Certification, \(2\) Residency](#), income (including a statement that the household has no income), liquid resources and all other factors required by [Section 5.1 Verification Prior to Certification](#), through readily available documentary evidence as specified in [Section 5.3 Sources of Verification, \(1\) Documentary evidence](#) or collateral contacts ([Section 5.2 Sources of Verification, \(2\) Collateral Contacts](#)). However, benefits will not be delayed beyond the delivery standards prescribed in [Section 6.6 Processing Standards for Expedited Service](#) solely because these eligibility factors have not been verified.

The Agency may verify factors other than identity, residency, and income provided that verification can be accomplished within expedited processing standards. The Agency should attempt to obtain as much additional verification as possible during the interview, but should not delay the certification of households entitled to expedited service for the full timeframes specified in [Section 6.6 Processing Standards for Expedited Service](#) when the Agency has determined it is unlikely that other verification can be obtained within these timeframes.

Households entitled to expedited service will be asked to furnish a Social Security Number (SSN) for each person applying for SNAP benefits or apply for one for each person applying before the second full month of participation. Those household members who are unable to provide the required SSNs or who do not have one prior to the second full month of participation will be allowed to continue to participate only if they satisfy the good cause requirements with respect to SSNs specified in [Section 7.2 Social Security Numbers \(SSNs\), \(3\) Determining good cause](#).

EXCEPTION: Households with a newborn may have up to 6 months following the month the baby was born to supply an SSN or proof of an application for an SSN for the newborn.

Once an acceptable collateral contact has been designated, the Agency will promptly contact the collateral contact, in accordance with [Section 5.2 \(2\) Collateral contacts](#). Although the household has the primary responsibility for providing other types of verification, the Agency will assist the household in promptly obtaining the necessary verification.

6.8 CERTIFICATION PERIODS FOR EXPEDITED HOUSEHOLDS

Households that are certified on an expedited basis and have provided all necessary verification required in [Section 5.1 Verification Prior to Certification](#) prior to certification will be assigned normal certification periods. If verification was postponed, the Agency may certify these households for the month of application (the month of application and the subsequent month for those households applying after the 15th of the month).

For households applying on or before the 15th of the month, the Agency will assign a one-month certification period with satisfaction of the verification requirements postponed until the second month of participation. The notice of eligibility must explain that the household has to satisfy all verification requirements that were postponed.

For households applying after the 15th of the month, the Agency will assign a two-month certification period or a normal certification period of no more than 12 months. The notice of eligibility must explain that the household is obligated to satisfy the verification requirements that were postponed.

NOTE: Postponed verification must be provided within 30 days for households applying on or before the 15th of the month, and by the end of the second month for households applying after the 15th of the month. The Economic Services worker who processes the expedited application with postponed verification must set multiple alerts on the case. An alert for the date of the case/application was expedited, and another alert for either two (2) days later (for prisoner and/or death matches) or thirty (30) days later (for required verification), depending on what is being requested or the reason the case is being pended. This process is in place to ensure that the case is closed if the postponed verification has not been submitted.

Households which apply for initial benefits, are entitled to expedited service, have completed the application process, and have been determined eligible to receive benefits for the initial month and the next subsequent month, will receive a combined allotment consisting of prorated benefits for the initial month of application and benefits for the first full month of participation within the expedited service timeframe.

For subsequent months, the household must satisfy the verification requirements which were postponed and be certified under normal processing standards. If the household does not satisfy the postponed verification requirements, the Agency does not need to contact the household again before closing the case.

There is no limit to the number of times a household can be certified under expedited procedures, as long as prior to each expedited certification, the household either completes the verification requirements that were postponed at the last expedited certification or was certified under normal processing standards since the last expedited certification. Entitlement to expedited service will not apply at recertification if a household reapplies before the end of its current certification period.

Households not entitled to expedited service will have their applications processed according to section [**6.1 Normal Processing Standards**](#).

Chapter 7 Non-financial Eligibility Factors

7.1 RESIDENCY

A household must live in the State in which it files an application for participation. Counties within the State are considered project areas for SNAP. No individual may participate as a member of more than one household or in more than one project area/county or State, in any month.

EXCEPTION: *Residents of a shelter that serves battered women and their children who are included in households already certified may apply for and, if otherwise eligible, participate as a separate household if the certified household listing them as members also contains the person who abused them. See [Section 14.5 Shelter for Battered Women and Children](#).*

NOTE: *The DSS Form 1262, Benefits Inquiry, may be used to obtain verification of a household's SNAP case status in another State.*

The Agency will not:

- (A) Impose any durational residency requirements as a condition of eligibility;
- (B) Require an otherwise eligible household to reside in a permanent dwelling or have a fixed mailing address as a condition of eligibility; or
- (C) Require intent to reside permanently in the State or project area/county.

Persons in a project area/county or State solely for vacation purposes will not be considered residents.

When a household moves within the State, the Agency will act on changes in household circumstances resulting from the move in accordance with [Chapter 15 Change Reporting Requirements](#). The Agency will ensure that duplicate participation does not occur.

7.2 SOCIAL SECURITY NUMBERS (SSNs)

(1) Requirements for participation

The Agency will require that a household participating or applying for participation in SNAP provide the Agency with the Social Security Number (SSN) of each household member or apply for one before certification (See [Section 5.1 Verification Prior to Certification, \(3\) Social security numbers](#)). If individuals have more than one number, all numbers will be required. The Agency will explain to applicants and participants that refusal or failure without good cause to provide an SSN will result in disqualification of the individual for whom an SSN is not obtained.

(2) Obtaining SSNs for SNAP household members

For those individuals who provide SSNs prior to certification, recertification or at any office contact, the Agency will record the SSN and verify it in accordance with [Section 5.1 Verification Prior to Certification, \(3\) Social security numbers](#).

Individuals must apply at SSA if they do not have an SSN, do not know if they have an SSN, or are unable to find their SSN. The Agency will assist as needed in completing the application for an SSN, Form SS-5. The Agency will inform the household where to apply and what information will be needed. The Agency will advise the household member that proof of application from SSA will be required prior to certification. SSA normally uses the Receipt of Application for a Social Security Number, Form SSA-5028, as evidence that an individual has applied for an SSN. The Agency may use its own documents for this purpose.

If the household is unable to provide proof of application for an SSN for a newborn, the household must provide the SSN or proof of application at its next recertification or within 6 months following the month the baby is born, whichever is later. If the household is unable to provide an SSN or proof of application for an SSN at its next recertification or within 6 months following the baby's birth, the Agency will determine if the good cause provisions are applicable.

(3) Determining good cause

In determining if good cause exists for failure to comply with the requirement to apply for or provide the Agency with an SSN, the Agency will consider information from the household member, SSA and the Agency. Documentary evidence [See [5.2 \(1\) Sources of Verification \(Documentary evidence\)](#)] that the household member has applied for an SSN or made every effort to supply SSA with the necessary information to complete an application for an SSN will be considered good cause for not complying timely with this requirement.

Good cause does not include delays due to illness, lack of transportation or temporary absences, because SSA makes provisions for mail-in applications in lieu of applying in person. If the household member can show good cause why an application for a SSN has not been completed in a timely manner, that person will be allowed to participate for one month in addition to the month of

application. If the household member applying for an SSN has been unable to obtain the documents required by SSA, the Agency should make every effort to assist the individual in obtaining these documents. Good cause for failure to apply must be shown monthly in order for such a household member to continue to participate. Once an application for SSN has been filed, the Agency will permit the member to continue to participate, pending notification of the household member's SSN.

(4) Failure to comply

If the Agency determines that a household member has refused or failed without good cause to provide or apply for a SSN, then that individual will be ineligible to participate in SNAP.

The disqualification applies to the individual for whom the SSN is not provided and not to the entire household.

The earned and/or unearned income (and resources, if applicable) of an individual disqualified from the household for failure to comply with this requirement will be counted as household income and resources to the extent specified in [Section 14.1 Treatment of Income and Resources of Certain Non-household Members \(2\) SSN disqualifications.](#)

(5) Ending disqualification

The household member(s) disqualified may become eligible upon providing the Agency with an SSN.

(6) Use of SSNs

The Agency is authorized to use SSNs in the administration of SNAP. The Agency will also use the SSNs to prevent duplicate participation, to facilitate mass changes (See [Section 15.8 Mass Changes](#)) in Federal benefits and to determine the accuracy and/or reliability of information given by households. In particular, SSNs will be used by the Agency to request and exchange information on individuals through IEVS and SVES. All SSNs obtained will be entered into the Agency's computer system and filed into SCOSA.

7.3 CITIZENSHIP AND NON-CITIZEN STATUS

(1) Household members meeting citizenship or non-citizen status requirements

No person is eligible to participate in SNAP unless that person is:

- a) A U.S. citizen
- b) A U.S. non-citizen national

- c) A member of an Indian tribe as defined in Section 4(e) of the Indian Self-determination and Education Assistance Act which is recognized as eligible for the special programs and services provided by the U.S. to Indians because of their status as Indians
- d) An American Indian born in Canada who possesses at least 50 per centum of blood of the American Indian race to whom the provisions of section 289 of the Immigration and Nationality Act (INA) apply
- e) Lawfully residing in the U.S. and was a member of a Hmong or Highland Laotian tribe at the time that the tribe rendered assistance to U.S. personnel by taking part in a military or rescue operation during the Vietnam era (beginning August 5, 1964 and ending May 7, 1975).
- f) The spouse; or surviving spouse of such Hmong or Highland Laotian who is deceased
- g) An unmarried dependent child of such Hmong or Highland Laotian who is under the age of 18 or if a full-time student under the age of 22
- h) An unmarried child under the age of 18 or if a full-time student under the age of 22 of such a deceased Hmong or Highland Laotian provided the child was dependent upon him or her at the time of his or her death; or
- i) An unmarried disabled child age 18 or older if the child was disabled and dependent on a Hmong or Highland Laotian prior to the child's 18th birthday.

NOTE: *Child means the legally adopted or biological child of the person described in “e” above.*

- j) Individuals who lawfully reside in the U.S. in accordance with section 141 of the Compacts of Free Association between the Government of the United States and the Governments of the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau.
- k) An individual who is both a qualified non-citizen and an eligible non-citizen as defined in the charts below.

A Qualified Non-Citizen is:

1. A non-citizen who is lawfully admitted for permanent residence under the INA; (this category includes —Amerasian immigrants as defined under §584 of the Foreign Operations, Export Financing and Related Programs Appropriations Act of 1988) **(Lawful Permanent Resident [LPR]);**
2. A non-citizen who is granted conditional entry pursuant to section 203(a)(7) of the INA as in effect prior to April 1, 1980 **(Conditional Entrant);**
3. A non-citizen who has been battered or subjected to extreme cruelty in the U.S. by a spouse or a parent or by a member of the spouse or parent’s family residing in the same household as the non-citizen at the time of the abuse, a non-citizen whose child has been battered or subjected to battery or cruelty, or a non-citizen child whose parent has been battered;
4. A non-citizen who is a Cuban or Haitian entrant, as defined in section 501(e) of the Refugee Education Assistance Act of 1980;

5. An Iraqi and Afghan nationals who has been granted Special Immigrant (SIV) status under §101(a)(27) of the INA and who has worked on behalf of the U.S. government in Iraq or Afghanistan. The Department of Defense Appropriations Act of 2010 (DoDAA), Public Law 111-118, §8120 enacted on December 19, 2009, provides that SIVs are eligible for all benefits to the same extent and the same period of time as refugees; or
6. A non-citizen who has been subjected to a severe form of trafficking in persons and who is certified by the Department of Health and Human Services, to the same extent as a non-citizen who is admitted to the United States as a refugee under Section 207 of the INA;
7. A non-citizen who has been subjected to a severe form of trafficking in persons and who is under the age of 18, to the same extent as a non-citizen who is admitted to the United States as a refugee under Section 207 of the INA;
8. The spouse, child, parent or unmarried minor sibling of a non-citizen who is a victim of a severe form of trafficking in persons under 21 years of age, and who has received a derivative T visa, to the same extent as a non-citizen admitted to the United States as a refugee under Section 207 of the INA; or
9. The spouse or child of a non-citizen who is a victim of a severe form of trafficking in persons 21 years of age or older, and who has received a derivative T visa, to the same extent as a non-citizen who is admitted to the United States as a refugee under Section 207 of the INA.

NOTE: These individuals must, however, meet all other SNAP eligibility requirements such as income, residency, etc.

The Economic Services worker must utilize the charts below to verify the immigration status of individuals who are listed in one of the categories in the charts by using the appropriate USCIS form along with SAVE. See [SNAP Tool Kit 2](#) for acceptable forms of verification for each category as well as for additional information.

Qualified Non-citizens, listed in the chart directly below, must be in the qualified status for 5 years in the U.S. before being eligible to receive SNAP benefits.

These non-citizens are not exempt from the five-year U.S. residency requirement and is not eligible until after the 5-year waiting period.

Non-Citizen Category	Description
Lawfully Admitted for Permanent Residence (LPR) age 18 or older	Admitted lawfully for permanent residence under the INA; LPRs are holders of Permanent Resident Cards, which are also informally referred to as “green cards”

The 5-year waiting period begins on the date the non- citizen obtains status as a qualified non-citizen or enters the U.S. in a qualifying status under 8 USC 1613.

The 5 years in qualified status may be either consecutive or nonconsecutive. Temporary absences of less than 6 months from the United States with no intention of abandoning U.S. residency do not terminate or interrupt the individual's period of U.S. residency. If the resident is absent for more than 6 months, the Agency will presume that U.S. residency was interrupted unless the non-citizen presents evidence of his or her intent to resume U.S. residency. In determining whether a non-citizen with an interrupted period of U.S. residency has resided in the United States for 5 years, the Agency will consider all months of residency in the United States, including any months of residency before the interruption.

Qualified Non-citizens in the chart directly below are exempt from the five-year U.S. residency requirement and are eligible immediately without a waiting period.

Non-Citizen Category	Description
Amerasians	Admitted pursuant to section 584 of Public Law 100-202, as amended by Public Law 100-461
Compacts of Free Association (COFA)	Lawfully reside in the U.S. in accordance with section 141 of the Compacts of Free Association between the Government of the United States and the Governments of the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau.
Cuban or Haitian Entrants	Granted entry as defined in section 501(e) of the Refugee Education Assistance Act of 1980

Non-citizens who are not eligible unless status adjust to an LPR, then they are eligible immediately without a waiting period.

Afghans	Granted parole in the Afghanistan Supplemental Appropriations Act, 2022 (Section 2502 of the Act) (Public Law 117-43) under Section 207 of the INA.
Asylees	Granted asylum under §208(b) of the INA
Deportation (or Removal) Withheld	Deportation is withheld under §243(h) of the INA as in effect prior to April 1, 1997 or removal is withheld under §241(b)(3) of the INA

Certain American Indians born abroad	American Indians born in Canada living in the United States (U.S.) under §289 of the Immigration and Nationality Act (INA) or non-citizen members of a federally recognized Indian tribe under §4(e) of the Indian Self-Determination and Education Assistance Act.
Hmong or Highland Laotian tribal members	An individual lawfully residing in the U.S. who was a member of a Hmong or Highland Laotian tribe that rendered assistance to U.S. personnel by taking part in a military or rescue operation during the Vietnam era (Aug. 5, 1964 – May 7, 1975). This category includes the spouse (or un-remarried surviving spouse) or unmarried dependent children of these individuals.
Iraqi and Afghan Special Immigrants (SIV)	Granted special immigrant status under §101(a)(27) of the INA
Refugees	Admitted as a refugee into the U.S. under §207 of the INA
Trafficking Victims and Certain Family Members of Trafficking Victims	Subjected to “severe forms of tracking in persons”. Victims under the Trafficking Victims Protection Act of 2000 and family members granted derivative T nonimmigrant status.
Ukrainians	Granted parole in the Additional Ukraine Supplemental Appropriations Act, 2022 (Section 401 of the Act) (Public Law 117-128) under Section 207 of the INA.

Non-citizens who are not eligible unless status adjust to an LPR and are not eligible until after the 5-year waiting period.

Battered Non-Citizens	Battered or subjected to extreme cruelty in the U.S.; Under certain circumstances, a battered non-citizen’s spouse or child, non-citizen parent of a battered child or a non-citizen child of a battered parent with a petition pending.
Conditional Entrants	Granted conditional entry under §203(a)(7) of the INA as in effect before 04/01/1980
Parolees	Paroled into the U.S. under §212(d)(5) of the INA for a period of at least 1 year.

Individuals have “adjusted status to LPR” when they have received an approval notice and Permanent Resident Card (Green Card) from USCIS. Individuals are not considered an LPR if they have applied to adjust status and have not yet received a decision.

Non-citizens listed below who are in any SNAP-eligible Category are eligible to receive SNAP benefits and are not subject to the requirement to be in a qualified status for 5 years in the U.S.

SNAP-eligible Categories are Lawful Permanent Resident (LPR), Cuban and Haitian entrant (CHE), or Compacts of Free Association (COFA) citizen.

These non-citizens are exempt from the five-year U.S. residency and are eligible immediately without a waiting period.

Blind or Disabled	Qualified non-citizens receiving benefits or assistance for blindness or disability as specified in <u>Section 5.1 Verification Prior to Certification, (5)(I) Disability</u>
Children	Under 18 years of age and who lawfully resides in the U.S. as a qualified non-citizen
Elderly	Lawfully residing in the U.S. on August 22, 1996 as a qualified non-citizen and was born on or before August 22, 1931
Lawfully Admitted for Permanent Residence (LPR) age 18 or older with 40 Qualifying Work Quarters	Admitted lawfully for permanent residence under the INA for non-citizens age 18 and older who have 40 qualifying work quarters (including work quarters from a parent(s) and/or spouse). For more details, refer to <u>SNAP Tool Kit 2</u> .
Military Connection	A non-citizen with one of the following military connections: a) Veteran who was honorably discharged for reasons other than non-citizen status, who fulfills the minimum active-duty service requirements of 38 U.S.C. 5303A(d), including an individual who died in active military, naval or air service b) An individual on active duty in the Armed Forces for the U.S, other than for training

	c) The spouse and unmarried dependent children of a person described above in a or b, including the spouse of a deceased veteran, provided the marriage fulfilled the requirements of 38 U.S.C. 1304, and the spouse has not remarried An individual who is lawfully residing in a state and is on active duty in the military (excluding National Guard) or is an honorably discharged veteran whose discharge is not because of immigration status (includes spouse, surviving spouse - if not married, and unmarried dependent children). NOTE: A discharge “Under Honorable Conditions” is not the same as an honorable discharge and does not meet this requirement. An unmarried dependent child is: a child who is under the age of 18 or, if a full-time student, under the age of 22; such unmarried dependent child of a deceased veteran provided such child was dependent upon the veteran at the time of the veteran's death; or an unmarried disabled child age 18 or older if the child was disabled and dependent on the veteran prior to the child's 18th birthday. NOTE: Unmarried dependent child means the legally adopted or biological child of the Veteran.
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These categories do not include individuals who are in a non SNAP- eligible category (i.e. Refugees and Asylees who have not adjusted to LPR status).

Each category of eligible non-citizen status stands alone for purposes of determining eligibility. If eligibility expires under one eligible status, the Agency must determine if eligibility exists under another status.

For acceptable sources of verification for the charts above see [SNAP Tool Kit 2: Acceptable Verification of U.S. Citizenship and Non-Citizen Eligibility](#). See also [Section 5.1 \(6\) Non-Citizen Eligibility](#).

Non-citizens who are no longer eligible to receive SNAP by virtue of the statuses but may be eligible if their status adjust to LPR.

Afghans	Granted parole in the Afghanistan Supplemental Appropriations Act, 2022 (Section 2502 of the Act) (Public Law 117-43) under Section 207 of the INA.
Asylees	Granted asylum under §208(b) of the INA
Deportation (or Removal) Withheld	Deportation is withheld under §243(h) of the INA as in effect prior to April 1, 1997 or removal is withheld under §241(b)(3) of the INA
Parolees	Paroled into the U.S. under §212(d)(5) of the INA for a period of at least 1 year.
Refugees	Admitted as a refugee into the U.S. under §207 of the INA
Ukrainians	Granted parole in the Additional Ukraine Supplemental Appropriations Act, 2022 (Section 401 of the Act) (Public Law 117-128) under Section 207 of the INA.

(2) Reporting illegal non-citizens

Whenever personnel responsible for the certification or recertification of households determine that any member of a household is ineligible to receive SNAP benefits because it is known that the member is present in the U.S. in violation of the Immigration and Nationality Act (INA), the Agency must inform the United States Citizenship and Immigration Services (USCIS). “Knowing” that a person is not lawfully in the US is determined when the finding of unlawful presence is made as a part of a formal determination subject to administrative review and is supported by a determination of the USCIS or the Executive Office of Immigration Review, such as a final Order of Deportation.

When a **household** indicates inability or unwillingness to provide documentation of non-citizen status for any household member, the Agency must classify that member as an ineligible non-citizen. When a **person** indicates inability or unwillingness to provide documentation of non-citizen status, the Agency must classify that person as an ineligible non-citizen. In such cases, the Agency must not continue its efforts to obtain that documentation.

(3) Households containing sponsored non-citizens members

A sponsored non-citizen is a non-citizen for whom a person (the sponsor) has executed an Affidavit of Support Under Section 213A of the INA (USCIS Form I-864) on behalf of the non-citizen or Contract Between Sponsor and Household Member (USCIS I-864A).

Deeming of sponsor's income and resources

Only in the event a sponsored non-citizen is an eligible non-citizen in accordance with [Section 7.3 Citizenship and Non-Citizen Status, \(1\) Household members meeting citizenship or non-citizen status requirements](#) will the Agency consider available to the household the income and resources of the sponsor and spouse. For purposes of determining the eligibility and benefit level of a household of which an eligible sponsored non-citizen is a member, the Agency must deem the income and resources of sponsor and the sponsor's spouse, if he or she has executed USCIS Form I-864 or I-864A, as the unearned income and resources of the sponsored non-citizen.

The Agency must deem the sponsor's income and resources until the non-citizen gains U. S. citizenship, has worked or can receive credit for 40 qualifying quarters of work (including work quarters from a parent(s) and/or spouse) or the sponsor dies.

The monthly income of the sponsor and sponsor's spouse (if he or she has executed USCIS Form I-864 or I-864A) deemed as that of the eligible sponsored non-citizen must be the total monthly earned and unearned income, as defined in [Section 11.3 Earned Income](#), [Section 11.4 Self-Employment Income](#), and [Section 11.5 Unearned Income](#) with the exclusions provided in [Section 11.6 Income Exclusions](#) of the sponsor and sponsor's spouse at the time the household containing the sponsored non-citizen member applies or is renewed for participation, reduced by:

- (A) A 20 % earned income amount for that portion of the income determined as earned income of the sponsor and the sponsor's spouse; **and**
- (B) An amount equal to the Program's monthly gross income eligibility limit for a household equal in size to the sponsor, the sponsor's spouse, and any other person who is claimed or could be claimed by the sponsor or the sponsor's spouse as a dependent for Federal income tax purposes.

If the non-citizen has already reported gross income information on his or her sponsor in compliance with the sponsored non-citizen rules of another Agency administered assistance program, the Agency may use that income amount for SNAP deeming purposes. However, the Agency must limit allowable reductions to the total gross income of the sponsor and the sponsor's spouse prior to attributing an income amount to the non-citizen to amounts specified in A and B above.

The Agency must consider as income to the non-citizen any money the sponsor or the sponsor's spouse pays to the eligible sponsored non-citizen, but only to the extent that the money exceeds the amount deemed to the eligible sponsored non-citizen as determined above. The Agency must deem, where applicable, as available to the eligible sponsored non-citizen the total amount of the resources of the sponsor and sponsor's spouse, reduced by \$1,500.

If a sponsored non-citizen can demonstrate to the Agency's satisfaction that his or her sponsor is the sponsor of other non-citizens, the Agency must divide the income and resources, where applicable,

deemed under the provisions of this sections by the number of such sponsored non-citizens. The Agency must use the same procedure to determine the amount of deemed income and resources to exclude in the case of a sponsored non-citizen or a citizen child of a sponsored non-citizen who is exempt from deeming in [F](#) & [G](#) below.

Deeming of a sponsor's income and resources does not apply to:

- (A) A non-citizen who is a member of his or her sponsor's SNAP household;
- (B) A non-citizen who is sponsored by an organization or group as opposed to an individual;
- (C) A non-citizen who is not required to have a sponsor under the Immigration and Nationality Act (INA), such as a refugee, a parolee, an asylee, or a Cuban or Haitian entrant;
- (D) An indigent non-citizen that the Agency has determined is unable to obtain food and shelter taking into account non-citizen's own income plus any cash, food, housing, or other assistance provided by other individuals, including the sponsor(s). Prior to determining whether a non-citizen is indigent, the Agency must explain the purpose of the determination to the non-citizen and/or household representative and provide the non-citizen and/or household representative the opportunity to refuse the determination.

If the household refuses the determination, the Agency will not complete the determination and will deem the sponsor's income and resources to the non-citizen's household. The Agency must inform the sponsored non-citizen of the consequences of refusing this determination.

NOTE: For purposes of this paragraph, the phrase "is unable to obtain food and shelter" means that the sum of the eligible sponsored non-citizen's household's own income, the cash contributions of the sponsor and others, and the value of any in-kind assistance the sponsor and others provide, does not exceed 130 percent of the poverty income guideline for the household's size.

The Agency must determine the amount of income and other assistance provided in the month of application. If the non-citizen is indigent, the only amount that the Agency must deem to such a non-citizen will be the amount actually provided for a period beginning on the date of such determination and ending 12 months after such date. Each indigence determination is renewable for additional 12-month periods;

NOTE: The Agency must notify the Office of the Attorney General of each such determination, including the names of the sponsor and the sponsored non-citizen involved. Information about the sponsored non-citizen is not shared with the Attorney General or the sponsor without the sponsored non-citizen's consent. The Agency must inform the sponsored non-citizen of the consequences of failure to provide such consent. If the sponsored non-citizen fails to provide consent, he or she will be ineligible, and the Agency will determine the eligibility and benefit level of the remaining household members.

- (E) A battered non-citizen spouse, non-citizen parent of a battered child or child of a battered non-citizen, for 12 months after the Agency determines that the battering is substantially

connected to the need for benefits, and the battered individual does not live with the batterer. After 12 months, the Agency must not deem the batterer's income and resources if the battery is recognized by a court or the USCIS and has a substantial connection to the need for benefits, and the non-citizen does not live with the batterer.

(F) A sponsored non-citizen child under 18 years of age of a sponsored non-citizen.

(G) A citizen child under age 18 of a sponsored non-citizen.

Eligible sponsored non-citizen's responsibilities

During the period the non-citizen is subject to deeming, the eligible sponsored non-citizen is responsible for obtaining the cooperation of the sponsor and for providing the Agency at the time of application and at the time of recertification with the information and documentation necessary to calculate deemed income and resources. The eligible sponsored non-citizen is responsible for providing the names and other identifying factors of other non-citizens for whom the non-citizen's sponsor has signed an affidavit of support. The Agency must attribute the entire amount of income and resources to the applicant eligible sponsored non-citizen until he or she provides the information.

The eligible sponsored non-citizen is also responsible for reporting the required information about the sponsor and sponsor's spouse should the non-citizen obtain a different sponsor during the certification period and for reporting a change in income should the sponsor or the sponsor's spouse change or lose employment or die during the certification period.

The Agency must handle such changes in accordance with the timeliness standards described in [Chapter 15 Change Reporting Requirements](#).

Awaiting verification

Until the non-citizen provides information or verification required to calculate deemed income and resources, the sponsored non-citizen is ineligible. The Agency must determine the eligibility of any remaining household members. The Agency must consider available to the remaining household members the income and resources of the ineligible non-citizen (excluding the deemed income and resources of the non-citizen's sponsor and sponsor's spouse) in determining the eligibility and benefit level of the remaining household members in accordance with [Section 14.2 Treatment of Income and Resources of Other Non-household Members](#). If the sponsored non-citizen refuses to cooperate in providing information or verification, other adult members of the non-citizen's household are responsible for providing the information or verification required in accordance with the provisions of [Section 3.5 Household Cooperation in Filing an Application for SNAP](#). If the Agency subsequently receives information or verification, it must act on the information as a reported change in household membership in accordance with the timeliness standards in [Chapter 15 Change Reporting Requirements](#). If the same sponsor is responsible for the entire household,

the entire household is ineligible until such time as the household provides the needed sponsor information or verification. The Agency must assist non-citizens in obtaining verification in accordance with the provisions of [Section 5.5 Responsibility for Obtaining Verification](#).

7.4 STUDENTS

(1) Applicability

An individual who is enrolled at least half-time (as defined by the institution) in an institution of higher education will be ineligible to participate in SNAP unless the individual qualifies for one of the exemptions contained in [Section 7.4 Students, \(2\) Student Exemptions](#).

NOTE: *If the student has a meal plan that covers over 50% of his/her meals daily, the student is not entitled to participate in SNAP. See [Section 2.3 Ineligible Household Member \(11\) \(Residents of an Institution\)](#).*

An individual is considered to be enrolled in an institution of higher education if the individual is:

- (A) Enrolled in a business, technical, trade, or vocational school, that normally requires a high school diploma or equivalency certificate for enrollment in the curriculum; **or**
- (B) If the individual is enrolled in a regular curriculum at a college or university that offers degree programs, regardless of whether a high school diploma is required. This includes online or web-based learning.

Hints for Determining if someone is subject to Student Eligibility Criteria:

When it is reported that a household member between 18-49 is a student:

1. First determine and **verify** if the individual meets the definition of student as defined above in Section 7.4 (1). If he/she does not meet the definition of a student, then student exemptions are not an issue.
2. If the individual meets the SNAP definition of student, then he/she must meet one of the student exemptions in Section 7.4 (2) below in order to be included in the budget. These must be verified.

EXCEPTION: *There is no need to request verification if the individual meets an obvious student exemption.*

(2) Student Exemptions

To be eligible for the program, a student as defined in [Section 7.4 Students, \(1\) Applicability](#) must meet at least one of the following student eligibility exemption criteria.

- (A) Be age 17 or younger or age 50 or older;
- (B) Be physically or mentally unfit for work;

This exemption does not have to be verified if the unfitness is obvious to the Economic Services worker. If it is not obvious to the Economic Services worker, it must be verified, unless the client receives government disability benefits such as VA, state retirement disability, social security disability, SSI, etc.

- (C) Be receiving Temporary Assistance for Needy Families under Title IV of the Social Security Act;
- (D) Be enrolled as a result of participation in the Job Opportunities and Basic Skills program under Title IV of the Social Security Act or its successor program;
- (E) Be employed for an average of 20 hours per week and be paid for such employment or, if self-employed, be employed for an average of 20 hours per week and receiving earnings, after allowable expenses, at least equal to the Federal minimum wage multiplied by 20 hours per week.
- (F) Be participating in a State or federally financed work study program during the regular school year. To qualify under this provision, the student must be approved for work study at the time of application for SNAP benefits, the work study must be approved for the school term, and the student must anticipate actually working during that time. The exemption will begin with the month in which the school term begins or the month work study is approved, whichever is later.

Once begun, the exemption will continue until the end of the month in which the school term ends, or it becomes known that the student has refused an assignment. The exemption will not continue between terms when there is a break of a full month or longer unless the student is participating in work study during the break.

- (G) Be participating in an on-the-job training program. A person is considered to be participating in an on-the-job training program only during the period of time the person is being trained by the employer;
- (H) Be responsible for the care of a dependent household member under the age of 6;
- (I) Be responsible for the care of a dependent household member who has reached the age of 6 but is under age 12 when the Agency has determined that adequate child care is not available to enable the student to attend class and comply with the work requirements of [Section 7.4 Students, \(2\) Student exemptions, \(E\) or \(F\)](#);
- (J) Be a single parent enrolled in an institution of higher education on a full-time basis (as determined by the institution) and be responsible for the care of a dependent child under age 12. This provision applies in those situations where only one natural,

adoptive or step-parent (regardless of marital status) is in the same SNAP household as the child. If no natural, adoptive or step-parent is in the same SNAP household as the child, another full-time student in the same SNAP household as the child may qualify for eligible student status under this provision if he or she has parental control over the child and is not living with his or her spouse.

- (K) Be assigned to or placed in an institution of higher education through or in compliance with the requirements of one of the programs identified below. Self-initiated placements during the period of time the person is enrolled in one of these employment and training programs will be considered to be in compliance with the requirements of the employment and training program in which the person is enrolled provided that the program has a component for enrollment in an institution of higher education and that program accepts the placement. Persons who voluntarily participate in one of these employment and training programs and are placed in an institution of higher education through or in compliance with the requirements of the program will also qualify for the exemption. The programs are:

- Programs under Title I of the Workforce Innovation and Opportunity Act (WIOA) previously the Job Training Partnership Act of 1974 (29 U.S.C. 1501, et seq.);
- State SNAP Employment and Training Programs that meet one of the following:
 - a. The course or program of study is part of a program of career and technical education as defined in section 3 of the Carl D. Perkins Career and Technical Education Act of 2006; or
 - b. The course or program of study is a remedial, basic adult education, literacy, or English as a second language course.
- A program under section 236 of the Trade Act of 1974 (19 U.S.C. 2296); or
- An employment and training program for low-income households that is operated by a State or local government where one or more of the components of such program is at least equivalent to an acceptable SNAP employment and training program component.

See [Section 9.4, SNAP Employment and Training \(E&T\) Program Components](#) for acceptable employment and training program components.

(3) Enrollment status

The enrollment status of a student will begin on the first day of the school term of the institution of higher education. Such enrollment will be deemed to continue through normal periods of class attendance, vacation and recess, unless the student graduates, is suspended or expelled, drops out, or does not intend to register for the next normal school term (excluding summer school).

(4) Income and resources

The income and resources, where applicable, of an ineligible student will not be considered. See [Section 14.2 Treatment of Income and Resources of Other Non-household Members](#).

7.5 FLEEING FELONS AND PROBATION/PAROLE VIOLATORS

Fleeing felon and probation/parole violators are individuals who are fleeing to avoid prosecution or custody for a crime, or an attempt to commit a crime, that would be classified as a felony (in the state of New Jersey, a high misdemeanor) **or** who are violating a condition of probation or parole under a Federal or State law **and** will not be considered eligible household members. The income and resources of the ineligible member will be handled in accordance with [14.1\(1\) Treatment of Income and Resources of Certain Non-Household Members](#).

(1) Fleeing felon

An individual is a fleeing felon **if**:

- a) a law enforcement officer (Federal, State or local) acting in his or her official capacity presents an outstanding felony arrest warrant to obtain the location of and other information about the individual named in the warrant. The felony arrest warrant must contain one of the following National Crime Information Center Uniform Offense Codes:
 - Escape (4901);
 - Flight to Avoid (prosecution, confinement, etc.) (4902); or
 - Flight-Escape (4999).
- b) on an application or recertification or during an interview, a written or verbal response to the question “Are you or anyone in your household a fleeing felon or probation/parole violator” is “yes”, the Agency will document a verbal response in SCOSA Folder Notes and will contact the state National Crime Information Center (NCIC) at (803) 734-9301 to obtain the jurisdiction in which the individual in question is a fleeing felon in order to secure a felony arrest warrant for both verbal and written responses.

(2) Probation and parole violator

In order for an individual to be considered a probation or parole violator, an impartial party, as designated by the agency, must determine that the individual violated a condition of his or her probation or parole.

If a written or verbal response to the question “Are you or anyone in your household a fleeing felon or probation/parole violator” is “yes”, the Agency will document a verbal response in SCOSA Folder Notes and will contact the state National Crime Information Center (NCIC) at (803) 734-

9301 to verify that the individual in question is a probation or parole violator for both verbal and written responses.

(3) Application processing

The Agency will continue to process the application while awaiting verification of fleeing felon or probation or parole violator status. If the Agency is required to act on the case without being able to determine fleeing felon or probation or parole violator status in order to meet the time standards in [Section 6.1 Normal Processing Standards](#) or [Section 6.6 Processing Standards for Expedited Service](#), the Agency will process the application without consideration of the individual's fleeing felon or probation or parole violator status.

NOTE: When a household member is verified as being a fleeing felon or probation or parole violator during the certification period, the Agency must take action on the change whether the change causes an increase or decrease in the SNAP allotment. See [Section 15.4 Interim Changes for Simplified Reporting Households](#).

Chapter 8 Work Provisions and Able-Bodied Adult Without Dependents (ABAWD)

8.1 WORK REQUIREMENTS

As a condition of eligibility for SNAP benefits, each household member not exempt under [8.2 Exemptions from Work Requirements](#) must comply with the following SNAP work requirements:

- (A) Register for work or be registered by the Agency at the time of application and every 12 months after initial registration. The household member required to register need not complete the registration form. By signing the application or recertification form, the Primary Informant (PI) will be considered to have registered all household members required to be registered. This registration is completed when the registration is recorded on the CHIP Employment Programs (EMPR) screen. Work Registration (WR) is an eligibility requirement for all SNAP household members who are not exempt from the federally regulated work requirements.
- (B) Provide the Agency with sufficient information regarding employment status or availability for work;
- (C) Report to an employer to whom referred by the Agency if the potential employment meets the suitability requirements described in [Section 8.9 Suitable Employment](#);
- (D) Accept a bona fide offer of suitable employment, as defined in [Section 8.9 Suitable Employment](#), at a site or plant not subject to a strike or lockout, at a wage equal to the higher of the Federal or State minimum wage or 80 percent of the wage that would have governed had the minimum hourly rate under section 6(a) (1) of the Fair Labor Standards Act been applicable to the offer of employment.
- (E) Do not voluntarily and without good cause quit a job of 30 or more hours a week or reduce work effort to less than 30 hours a week, in accordance with [Section 8.11 Voluntary Quit and Reduction of Work Effort](#).

Strikers whose households are eligible under the criteria in [Section 2.4 Strikers](#) are subject to SNAP work requirements unless they are exempt under [Section 8.2 Exemptions from Work Requirements](#) at the time of application.

Household members who are applying for SSI and for SNAP simultaneously under [Section 4.6 Applicant Supplemental Security Income \(SSI\) Households](#) will have SNAP work requirements waived until they are determined eligible for SSI and become exempt from SNAP work requirements, or until they are determined ineligible for SSI, at which time their exemptions from SNAP work requirements will be reevaluated.

NOTE: *ABAWDs are subject to both the work registration and the ABAWD work requirement/time limit.*

8.2 EXEMPTIONS FROM WORK REQUIREMENTS

The Economic Services worker will determine which household members are exempt from the work registration requirement at the time of:

1. Initial certification
2. Recertification (annual, six-month and tri-annual)
3. When adding a new individual (including a previously sanctioned individual) to the SNAP household

Persons who fall into the following categories are exempt from SNAP work requirements and should be coded on **CHIP EMPR screen** as indicated below:

(A) Age limits:

- A person younger than 18 years of age and not head of household (**CE**); or
- A person 60 years of age or older (**AS**); or
- A person age 16 or 17 who is head of a household **and**
 - is attending school on at least half-time basis (**SH**); or
 - is enrolled in an employment training program on at least half-time basis (**SH**)

NOTE: *If the person turns 16 (and is the head of household) or 18 (is not head of household) during a certification period, the Agency must register the person as part of the next scheduled recertification process, unless the person qualifies for another exemption.*

(B) Caretakers:

A parent or other household member responsible for the care of a dependent child under 6 (**PC**)* or an incapacitated person (**RH**)*.

***In a household with more than one caretaker, in which there is one child under the age of 6 or one incapacitated person in the household, only one caretaker may qualify for this exemption, depending on which caretaker has primary responsibility for the care. However, in a household with more than one caretaker, in which there is more**

than one child under the age of 6 or more than one incapacitated person in the household, it is possible that both caretakers may qualify for this exemption, depending on which caretaker has primary responsibility for the care.

NOTE: If the child has his or her 6th birthday during a certification period, the Agency must work register the individual responsible for the care of the child as part of the next scheduled recertification process, unless the individual qualifies for another exemption.

(C) Drug Addiction and Alcohol Treatment and Rehabilitation Program Participants:

A regular participant, as defined by the program, in a drug addiction or alcohol treatment and rehabilitation program conducted by a private, nonprofit organization or institution, or a publicly operated community mental health center, under part B of title XIX of the Public Health Service Act. Under part B of title XIX of the Public Health Service Act is defined as meeting the criteria which would make it eligible to receive funds, even if it does not actually receive funding under part B of title XIX **(AD)**.

(D) Employed:

An employed or self-employed person working a minimum of 30 hours weekly or earning weekly wages at least equal to the Federal minimum wage multiplied by 30 hours. This includes migrant and seasonal farmworkers under contract or similar agreement with an employer or crew chief to begin employment within 30 days (although this will not prevent individuals from seeking additional services from the State employment services agency) **(EM)**.

(E) TANF Recipients:

Temporary Assistance for Needy Families (TANF) recipients who are subject to and complying with TANF work activity requirements **(WP)**.

(F) Incapacitated:

Recipients of SSI and persons who are physically or mentally incapable of engaging in gainful employment. If a claim of permanent or temporary disability is questionable, verification must be provided **(IN)**. See [Section 8.1 Work Requirements](#)

(G) Students:

A student, age 18 and older, enrolled at least half-time **(SP)** (as defined by the school, program, or institution) in any recognized:

- School* (Secondary or Adult Education);

- Training program (including federally recognized training programs through the Office of Refugee Resettlement (ORR); or
- Institution of higher education**

A student will remain exempt during normal periods of class attendance, vacation, and recess. If the student graduates, enrolls less than half-time, is suspended or expelled, drops out, or does not intend to register for the next normal school term (excluding summer), the Agency must work register the individual, unless the individual qualifies for another exemption.

*A home-schooled high school student, who is at least 18 years of age or older, will qualify for this exemption if the state's secondary education officials recognize the home school as an acceptable secondary education provider.

**Students enrolled at least half-time in an institution of higher education must meet the student eligibility requirements listed in [Section 7.4 Students](#).

(H) Unemployment Compensation

A person receiving unemployment compensation. A person who has applied for, but is not yet receiving, unemployment compensation is also exempt if that person is complying with work requirements that are part of the unemployment compensation application process **(UI)**.

If the exemption claimed is questionable, the Agency is responsible for verifying the exemption with the appropriate office of the Department of Employment and Workforce (DEW).

Persons losing exemption status due to any changes in circumstances that are subject to the reporting requirements of [Chapter 15 Change Reporting Requirements](#) must register for employment when the change is reported. The Agency must annotate the change to the member's exemption status on the most recent application/annual recertification /six-month recertification form. Those persons who lose their exemption due to a change in circumstances that is not subject to the reporting requirements of [Chapter 15 Change Reporting Requirements](#) must register for employment at their household's next recertification.

Persons subject to simplified reporting requirements as specified in [15.3 Simplified Reporting Households](#) who lose their exemption due to a change in circumstances that is not required to be reported, must be work registered at the household's next recertification.

8.3 THE AGENCY'S RESPONSIBILITIES FOR WORK REGISTRATION

The Agency must register for work each household member not exempted by the provisions of [Section 8.2 Exemptions from Work Requirements](#). Household members are considered to have registered when the application or annual recertification form is signed and filed as well as the registration is recorded on the CHIP EMPR screen as noted above in Section 8.1.

NOTE: The Economic Services worker is responsible for determining the exemption status of each household member. If a determination is made to exempt a household member from the work requirements, verification is only required if the information provided is inconsistent with the information already available, is questionable, or is specifically required (such as Drug Addiction and Alcohol Treatment and Rehabilitation Program Participant, Employed, Incapacitated/Disability, Students, etc.)

During the certification process, the Agency must provide a written notice and oral explanation to the household of all applicable work requirements for all members of the household and identify which household member is subject to which work requirement. These work requirements include the general work requirement in [Section 8.2 Exemptions From Work Requirements](#), and the ABAWD work requirement in [Section 8.14 ABAWD Work Requirement](#). The notice also includes information pertaining to the voluntary SNAP E&T program. This written notice and oral explanation must also be provided to the household when a previously exempt household member or new household member (including a previously sanctioned individual) becomes subject to these work requirements and at recertification.

The consolidated written notice must include all pertinent information related to each of the applicable work requirements, including: An explanation of each applicable work requirement; which individuals are subject to which work requirement; exemptions from each applicable work requirement; an explanation of the process to request an exemption (including contact information to request an exemption); the rights and responsibilities of each applicable work requirement; what is required to maintain eligibility under each applicable work requirement; pertinent dates by which an individual must take any actions to remain in compliance with each applicable work requirement; the consequences for failure to comply with each applicable work requirement; an explanation of the process for requesting good cause (including examples of good cause circumstances and contact information to initiate a good cause request); and any other information the State agency believes would assist the household members with compliance.

8.4 SNAP E & T PROGRAM REFERRALS

The eligibility and case management staff will notify SNAP clients of the opportunity to participate in SNAP E&T. Refer to [Section 9.1, The SNAP Employment and Training Program \(SNAP E&T\)](#) for the referral process, components, etc.

SNAP recipients who volunteer for participation with the SNAP E&T will be referred to the program.

Participation in SNAP E&T is voluntary. Volunteers are not subject to sanctions for noncompliance; however, continuous refusal to participate in an assigned component may result in termination of services made available by the provider.

8.5 FAILURE TO COMPLY WITH SNAP WORK REQUIREMENTS

Each SNAP household member will be either an exempt **or** nonexempt individual from SNAP work requirements. This determination will be made based on the criteria listed in sections 8.1 and 8.2 above.

(1) Ineligibility for failure to comply

A nonexempt individual who refuses or fails without good cause, as defined in [Section 8.10 Good Cause for Failure to Comply with SNAP Work Requirements](#), to comply with the SNAP work requirements listed in [Section 8.1 Work Requirements](#) is ineligible to participate in SNAP, and will be considered an ineligible household member as listed in [Section 2.3 Ineligible Household Members](#).

As soon as the Agency learns of the individual's noncompliance it must determine whether good cause for the noncompliance exists, as discussed in [Section 8.10 Good Cause for Failure to Comply with SNAP Work Requirements](#). Within 10 days of establishing that the noncompliance was without good cause, the Agency must provide the individual with a notice of adverse action. The notice of adverse action must meet the timeliness and adequacy requirements [Chapter 16 Notice of Adverse Action](#).

The notice of adverse action must contain the particular act of noncompliance committed and the proposed period of disqualification. The notice must also specify that the individual may, if appropriate, reapply at the end of the disqualification period. Information must be included on or with the notice describing the action that can be taken to avoid the disqualification before the disqualification period begins. The disqualification period must begin with the first month following the expiration of the 10-day adverse notice period, unless a fair hearing is requested. If the individual complies before the end of the advance notice period, the Agency will cancel the adverse action.

(2) Failure to comply with a work requirement under TANF or UCB

An individual exempt from SNAP work requirements because he or she is subject to work requirements under TANF or Unemployment Compensation Benefits (UCB) who fails to comply with a TANF or unemployment compensation work requirement will be treated as though he or she

failed to comply with the SNAP work requirement. See [Section 8.2 Exemptions from Work Requirements \(E\)](#) and [\(H\)](#)

When a household reports the loss or denial of TANF or unemployment compensation benefits, or if the Agency otherwise learns of a loss or denial, the Agency must determine whether the loss or denial resulted when a household member refused or failed without good cause to comply with a TANF or unemployment compensation work requirement.

If the Agency determines that the loss or denial of benefits resulted from an individual's refusal or failure without good cause to comply with an unemployment compensation work requirement, the individual must be disqualified in accordance with the applicable provisions of [Section 8.6 Disqualification Periods for Failure to Comply with SNAP Work Requirements](#).

If the Agency determines that the loss or denial of benefits resulted from an individual's refusal or failure without good cause to comply with a TANF work requirement, the individual must be disqualified. A SNAP recipient who fails to comply with TANF work requirements must comply with TANF work requirements or become exempt from TANF to become eligible for SNAP (See [Section 14.8 Treatment of TANF Sanctions in SNAP](#)).

However, if the non-complying individual meets one of the work registration exemptions provided in [Section 8.2 Exemptions from Work Requirements](#) (other than exemptions [\(E\)](#) or [\(H\)](#)), the individual will not be disqualified.

If the Agency determination of noncompliance with TANF or UCB work requirement leads to a denial or termination of the individual's or household's SNAP benefits, the individual or household has a right to appeal the decision in accordance with the provisions of section [8.7 Fair Hearings for Failure to Comply with SNAP Work Requirements](#).

8.6 DISQUALIFICATION PERIODS FOR FAILURE TO COMPLY WITH SNAP WORK REQUIREMENTS

The Agency has determined that the following disqualification periods will be imposed:

- (A) For the first occurrence of noncompliance, the individual will be disqualified for:
 - One Month; **and until**
 - The date the individual agrees to comply,
- (B) For the second occurrence, the individual will be disqualified for:
 - Three Months; **and until**
 - The date the individual agrees to comply,
- (C) For the third or subsequent occurrence, the individual will be disqualified for:
 - Six Months; **and until**
 - The date the individual agrees to comply.

NOTE: Comply means to satisfy work registration. This means the household has initiated work registration with the Agency by either requesting to be added back to the budget or filing an application if the case is closed or recertification is due.

The disqualification penalty follows the disqualified individual if he/she joins a new household.

Record retention

The Agency must retain case records concerning the frequency of noncompliance with SNAP work requirements and the resulting disqualification actions imposed. These records must be available for inspection and audit at any reasonable time to ensure conformance with the minimum mandatory disqualification periods instituted.

8.7 FAIR HEARINGS FOR FAILURE TO COMPLY WITH SNAP WORK REQUIREMENTS

Each individual has the right to request a fair hearing, in accordance with [Chapter 18 Fair Hearings](#), to appeal a denial, reduction, or termination of benefits due to a determination of nonexempt status, or an Agency determination of failure to comply with SNAP work requirements.

Individuals or SNAP households may appeal Agency actions such as exemption status, the type of requirement imposed, or an Agency refusal to make a finding of good cause if the individual believes that a finding of failure to comply has resulted from improper decisions on these matters. The results of the fair hearing are binding on the Agency.

8.8 ENDING DISQUALIFICATIONS FOR FAILURE TO COMPLY WITH SNAP WORK REQUIREMENTS

At the end of the applicable mandatory disqualification period for noncompliance with SNAP work requirements, participation may resume if the disqualified individual applies again and is determined by the Agency to be in compliance with work requirements. A disqualified individual may be permitted to resume participation during the disqualification period (if otherwise eligible) by becoming exempt from work requirements.

8.9 SUITABLE EMPLOYMENT

Employment will be considered suitable **unless**:

- (A) The wage offered is less than the highest of the applicable Federal minimum wage or the applicable State minimum wage;

- (B) The employment offered is on a piece-rate basis and the average hourly yield the employee can reasonably be expected to earn is less than the applicable hourly wages specified under (A) above;
- (C) The household member, as a condition of employment or continuing employment, is required to join, resign from, or refrain from joining any legitimate labor organization.
- (D) The work offered is at a site subject to a strike or lockout at the time of the offer unless the strike has been enjoined under section 208 of the Labor-Management Relations Act (29 U.S.C. 78) (commonly known as the Taft-Hartley Act), or unless an injunction has been issued under section 10 of the Railway Labor Act (45 U.S.C. 160); or

In addition, employment will be considered suitable **unless** the household member involved can demonstrate or the Agency otherwise becomes aware that:

- (E) The degree of risk to health and safety is unreasonable;
- (F) The member is physically or mentally unfit to perform the employment, as documented by medical evidence or by reliable information from other sources;
- (G) The employment offered within the first 30 days of registration is not in the member's major field of experience;
- (H) The distance from the member's home to the place of employment is unreasonable considering the expected wage and the time and cost of commuting. Employment will not be considered suitable if daily commuting time exceeds 2 hours per day, not including the transporting of a child to and from a child care facility. Nor will employment be considered suitable if the distance to the place of employment prohibits walking and neither public nor private transportation is available to transport the member to the jobsite; or
- (I) The working hours or nature of the employment interferes with the member's religious observances, convictions, or beliefs.

8.10 GOOD CAUSE FOR FAILURE TO COMPLY WITH SNAP WORK REQUIREMENTS

The Agency is responsible for determining good cause when a SNAP recipient fails or refuses to comply with SNAP work requirements. The Agency must take into account the facts and circumstances, including information submitted by the employer and by the household member involved, in determining whether or not good cause exists.

Good cause includes circumstances beyond the member's control, such as, but not limited to, illness, illness of another household member requiring the presence of the member, a household emergency, the unavailability of transportation, or the lack of adequate child care for children who have reached age six but are under age 12.

Good cause for leaving employment includes the good cause provisions found below and resigning from a job that is unsuitable as specified in [Section 8.9 Suitable Employment](#). Good cause for leaving employment also includes:

- (A) Discrimination by an employer based on age, race, sex, color, disability, religious beliefs, national origin or political beliefs;
- (B) Work demands or conditions that render continued employment unreasonable, such as working without being paid on schedule;
- (C) Acceptance of employment by the individual, or enrollment by the individual in any recognized school, training program or institution of higher education on at least a half time basis, that requires the individual to leave employment;
- (D) Acceptance by any other household member of employment or enrollment at least half-time in any recognized school, training program or institution of higher education in another county or similar political subdivision that requires the household to move and thereby requires the individual to leave employment;
- (E) Resignations by persons under the age of 60 which are recognized by the employer as retirement;
- (F) Employment that becomes unsuitable, as specified [Section 8.9 Suitable Employment](#), after the acceptance of such employment;
- (G) Acceptance of a bona fide offer of employment of more than 30 hours a week or in which the weekly earnings are equivalent to the Federal minimum wage multiplied by 30 hours that, because of circumstances beyond the individual's control, subsequently either does not materialize or results in employment of less than 30 hours a week or weekly earnings of less than the Federal minimum wage multiplied by 30 hours; and
- (H) Leaving a job in connection with patterns of employment in which workers frequently move from one employer to another such as migrant farm labor or construction work. There may be some circumstances where households will apply for SNAP benefits between jobs particularly in cases where work may not yet be available at the new job site. Even though employment at the new site has not actually begun, the quitting of the previous employment must be considered as with good cause if it is part of the pattern of that type of employment.

Verification

To the extent that the information given by the household is questionable, as defined in [5.1 Verification Prior to Certification \(12\) Other factors determined to be questionable](#), the Agency must request verification of the household's statements of good cause. The primary responsibility for providing verification, as provided in [Section 5.5 Responsibility for Obtaining Verification](#), rests with the household.

8.11 VOLUNTARY QUIT AND REDUCTION OF WORK EFFORT

The Agency may need to establish if a voluntary quit without good cause or a reduction in work effort without good cause has occurred for an applicant or participating SNAP household. This determination must be made for any household member who is subject to SNAP work requirements (See [Section 8.1 Work Requirements](#)), **and** does not meet at least one of the exemptions from SNAP work requirements, (See [Section 8.2 Exemptions from Work Requirements](#)).

(1) Individual ineligibility

An individual is ineligible to participate in SNAP if 60 days before applying for SNAP benefits or at any time thereafter, the individual:

- (A) Voluntarily and without good cause quits a job of 30 hours a week or more; or
- (B) Reduces his or her work effort voluntarily and without good cause and, after the reduction, is working less than 30 hours per week.

(2) Voluntary quit provision

The voluntary quit provision applies if the employment involved 30 hours or more per week or provided weekly earnings at least equivalent to the Federal minimum wage multiplied by 30 hours; the quit occurred within a period of 60 days prior to the date of application or anytime thereafter; and the quit was without good cause.

- Changes in employment status that result from terminating a self-employment enterprise or resigning from a job at the demand of the employer will not be considered a voluntary quit for purposes of this section.
- An employee of the Federal Government, or of a State or local government who participates in a strike against such government and is dismissed from his or her job because of participation in the strike, will be considered to have voluntarily quit his or her job without good cause.
- If an individual quits a job, secures new employment at comparable wages or hours and is then laid off or, through no fault of his own, loses the new job, the individual must not be disqualified for the earlier quit.

(3) Reduction of work effort provision

The reduction of work effort provision applies if, before the reduction, the individual was employed 30 hours or more per week; the reduction occurred within a period of 60 days prior to the date of application or anytime thereafter; and the reduction was voluntary and without good cause. If the individual reduces his or her work hours to less than 30 a week, but continues to earn weekly wages that exceed the Federal minimum wage multiplied by 30 hours, the individual remains exempt from SNAP work requirements, in accordance with [Section 8.2 Exemptions from Work Requirements \(D\)](#), and the reduction in work effort provision does not apply.

Minor variations in the number of hours worked or in the weekly minimum wage equivalent wages are inevitable and must be taken into consideration when assessing a recipient's compliance with SNAP work rules.

(4) Determining whether a voluntary quit or reduction of work effort occurred

When a household files an application for participation, or when a participating household reports the loss of a source of income or a reduction in household earnings, the Agency must determine whether any household member voluntarily quit his or her job or reduced his or her work effort. Benefits must not be delayed beyond the normal processing times specified in [Chapter 6 Supplemental Nutrition Assistance Program \(SNAP\): Processing Standards](#) pending the outcome of this determination.

In the case of an applicant household, the Agency must determine if any household member subject to SNAP work requirements voluntarily quit his or her job or reduced his or her work effort within 60 days prior to the date of application. If the Agency is notified that a household has lost a source of income or experienced a reduction in income after the date of application but before the household is certified, the Agency must determine whether a voluntary quit or reduction in work effort occurred.

Upon determining that an individual voluntarily quit employment or reduced work effort, the Agency must determine if the voluntary quit or reduction of work effort was with good cause as defined in [Section 8.10 Good Cause for Failure to Comply with SNAP Work Requirements](#).

In the case of an individual who is a member of an applicant household, if the voluntary quit or reduction in work effort was without good cause, the individual will be determined ineligible to participate and will be disqualified according to [Section 8.6 Disqualification Periods for Failure to Comply with SNAP Work Requirements](#). The ineligible individual must be considered an ineligible household member (See [Section 2.3 Ineligible Household Members](#)). The disqualification is effective upon the determination of eligibility for the remaining household members.

NOTE: When imposing a voluntary quit or a reduction in work disqualification for a one-person household, the case must be denied. When imposing a voluntary quit or a reduction in work disqualification for a household with multiple members, the non-compliant individual is disqualified. The non-compliant individual must be sanctioned for the appropriate time frame beginning with the date of application.

When denying an application for voluntarily quit or reduced work effort, the Agency must provide the applicant household with a notice of denial ([Section 6.3 Denying the Application](#)). The notice must inform the household of the proposed period of disqualification, its right to reapply at the end of the disqualification period, and of its right to a fair hearing. The household's disqualification is effective upon the issuance of the notice of denial.

In the case of an individual who is a member of a participating household, if the Agency determines that the individual voluntarily quit his or her job or reduced his or her work effort without good cause while participating in SNAP or discovers that the individual voluntarily quit his or her job or reduced his or her work effort without good cause 60 days prior to the date of application for SNAP benefits or between application and certification, the Agency must provide the individual with a notice of adverse action within 10 days after the determination of a quit or reduction in work effort ([Section 16.1 Use of Notice](#)).

The notification must contain the particular act of noncompliance committed, the proposed period of ineligibility, the actions that may be taken to avoid the disqualification, and it must specify that the individual, if otherwise eligible, may resume participation at the end of the disqualification period if the Agency determines the individual to be in compliance with SNAP work requirements. The individual will be disqualified according to [Section 8.6 Disqualification Periods for Failure to Comply with SNAP Work Requirements](#). The ineligible individual must be considered an ineligible household member (See [Section 2.3 Ineligible Household Members](#)). The disqualification period will begin the first month following the expiration of the 10-day adverse action notice period, unless the individual requests a fair hearing and is entitled to continued benefits. Generally, the sanction should be imposed the month following the month the voluntary quit occurred and is verified.

If a voluntary quit or reduction in work effort occurs in the last month of a certification period, or is determined in the last 30 days of the certification period, the individual must be denied recertification for a period equal to the appropriate mandatory disqualification period, beginning with the day after the last certification period ends and continuing for the length of the disqualification, regardless of whether the individual reapplies for SNAP benefits.

(5) Right to a fair hearing

Each individual has a right to a fair hearing to appeal a reduction, denial or termination of benefits due to a determination that the individual voluntarily quit his or her job or reduced his or her work effort without good cause. If the participating individual's benefits are continued pending a fair hearing and the Agency determination is upheld, the disqualification period must begin the first of the month after the hearing decision is rendered.

(6) Ending a voluntary quit or a reduction in work disqualification

Following the end of the mandatory disqualification period for voluntarily quitting a job or reducing work effort without good cause, an individual may begin participation in SNAP if the household contacts the Agency by either requesting for an individual to be added to the SNAP budget or filing an application if the case is closed or recertification is due **and** is determined eligible by the Agency.

Eligibility may be reestablished during a disqualification and the individual, if otherwise eligible, may be permitted to resume participation if the individual becomes exempt from SNAP work requirements under [Section 8.2 Exemptions from Work Requirements](#).

(7) Application in the final month of disqualification

If an application for participation in SNAP is filed in the final month of the mandatory disqualification period, the Agency must use the same application for the denial of benefits in the remaining month of disqualification and certification for any subsequent month(s) if all other eligibility criteria are met.

8.12 DEFINITION OF ABAWD

ABAWDs are SNAP household members who are:

- Able-bodied adults,
- At least 18 years of age but under 65, and
- Without dependents under 14 years of age in the household.

8.13 ABAWD DETERMINATION

The Agency is responsible for identifying and screening existing and potential ABAWD households at Initial Application, Six Month Recertification, Tri-annual Recertification (4 month), Annual Recertification (12 Month) and when the household reports a change that causes a household member to be subject to and/or exempt from the ABAWD time limit.

- An existing ABAWD household includes an individual who is clearly an ABAWD at the time of certification.
- A potential ABAWD household member includes an individual who can be reasonably anticipated to become an ABAWD at some point within the certification period.

After the identification of an existing or potential ABAWD, the household must be informed both verbally and in writing of the time limit ([Section 8.16 Countable Months](#)), exceptions criteria ([Section 8.15 Exceptions to ABAWD Work Requirement](#)) and how to fulfill the work requirement ([Section 8.14 ABAWD Work Requirement](#)).

An ABAWD is not eligible to participate in SNAP as a member of any SNAP household if the ABAWD received SNAP benefits for three countable months during the current 36-month time period, unless the ABAWD regains eligibility ([Section 8.19 Regaining Eligibility](#)).

(1) Screening

The Agency must screen individuals for all exceptions from the time limit listed in [Section 8.15 Exceptions to ABAWD Work Requirement](#) at certification and recertification. The Agency must not assign countable months unless it has screened the individual and determined that no exception applies. When an individual qualifies for more than one exception, the Agency must apply the exception that will be in effect the longest. Changes in exception status during the certification period may occur due to:

- a. **Loss of an exception.** If during the certification period an individual has a change in circumstances that results in the loss of an exception from the time limit, the Agency cannot begin assigning countable months until it screens the individual to determine whether any other exception applies.
- b. **Newly meeting an exception.** If during the certification period an individual subject to the time limit has a change in circumstance that results in the individual now meeting an exception, the Agency must act promptly to apply the exception and cannot assign a countable month once the Agency receives information that is not questionable. If the Agency determines the information is questionable, the Agency must act promptly to verify the information in accordance with the subsection below. Once verified, the Agency must apply the exception and cannot assign countable months.

(2) Verification of exceptions

If the Agency determines an individual's exception status in Section 8.15 (see below) is questionable, the Agency must first attempt to verify exception status using information available to the Agency, such as information from other public assistance programs through data sharing, before requiring individuals provide documentary evidence or other sources of verification.

8.14 ABAWD WORK REQUIREMENT

An ABAWD will fulfill the ABAWD work requirement (also known as the ABAWD Participation Requirement (APR) in South Carolina) by:

1. Working 20 hours a week or averaging 80 hours monthly.

Working means:

- Work in exchange for money (no minimum wage requirement);
Working in exchange for money is earned income, which includes all money received through self-employment, or wages, salary, tips or commissions as an employee;
- Work in exchange for goods or services (“In-Kind” work); or

Working in exchange for goods or services is considered “in-kind” work. In-kind work occurs when compensation is in a form other than money or wages.

- Unpaid work (volunteer work at an established volunteer site).
Any work performed **without** compensation such as goods, services, and monetary payment. Volunteer sites **must** have:
 - ❖ Policies and procedures for volunteers, defined by the organization;
 - ❖ A timesheet or a mechanism for tracking hours, as defined by the organization; and
 - ❖ A screening process, as defined by the organization.

NOTE: Court ordered community service may count as a volunteer placement if the volunteer site meets the criteria for an established volunteer program as listed above.

- Any combination of working as outlined above.
2. Participating in and complying with the requirements of a work program for 20 hours a week.
 3. Any combination of working and participating in a work program for a total of 20 hours per week, average 80 hours monthly.
 4. Participating in and complying with a workfare program.

An ABAWD, who does not comply with the work requirement, is not eligible to receive SNAP benefits for more than three countable months during the current three-year time period, unless meeting an exception to the ABAWD work requirement or is otherwise exempt. However, an ABAWD may regain eligibility during this time period ([Section 8.19 Regaining Eligibility](#)).

8.15 EXCEPTIONS TO ABAWD WORK REQUIREMENT

An individual who meets any of the following exceptions is not an ABAWD and therefore is not subject to the three-month time limit.

The time limit does not apply to an individual if he or she is:

- 1) Under age 18, or age 65 or older;
- 2) Determined by the Agency to be medically certified as physically or mentally unfit for employment. An individual is medically certified as physically or mentally unfit for employment if he or she:
 - a. Is receiving temporary or permanent disability benefits issued by governmental or private sources;

NOTE: The Agency must accept receipt of Veterans disability benefits, regardless of the individual's disability percentage rating, for the purpose of an exception to the ABAWD work requirement.

- b. Is obviously mentally or physically unfit for employment as determined by the State agency; or
 - c. If the unfitness is not obvious, provides a statement from a physician, physician's assistant, nurse, nurse practitioner, designated representative of the physician's office, a licensed or certified psychologist, a social worker, or any other medical personnel the Agency determines appropriate, that he or she is physically or mentally unfit for employment.
- 3) A parent (natural, adoptive, or step) or other household member with the responsibility of caring for a dependent child(ren) in the household under 14 years of age, even if the household member who is under 14 is not eligible for SNAP benefits. The phrase "even if the household member who is under 14 is not eligible for SNAP" refers to minors who would be members of the SNAP household but who are ineligible to participate in SNAP (i.e. an ineligible non-citizen; disqualified for failure to provide an SSN; or other circumstance as described in **2.3 Ineligible Household Members**).

In a household with more than one parent or other household member with the responsibility of caring for a dependent child, in which there is one child under the age of 14 in the household, only one household member may qualify for this exception, depending on which household member has primary responsibility for the care. However, in a household with more than one parent or other household member with the responsibility of caring for a dependent child, in which there is more than one child under the age of 14 in the household, it is possible that more than one household member may qualify for this exception, depending on which household member has primary responsibility for the care.

NOTES:

The term "household" refers to individuals included in the same SNAP household as defined in Section 2.1 General Household Definitions and not just residing in the same physical structure.

In situations where households are claiming separate household, only the adult(s) who is in the SNAP households with a member(s) under age 14 and who has primary responsibility for the care of the child(ren) will meet an exception to ABAWD work requirement.

- 4) Pregnant;
- 5) An Indian, Urban Indian, or California Indian (See Glossary for definitions); **or**
- 6) Exempt from SNAP work requirements (**Section 8.2 Exemptions from Work Requirements**) for a reason other than being 60 years of age or older.

8.16 COUNTABLE MONTHS

ABAWD eligibility for SNAP is time limited to any three months in a 36-month period in which the ABAWD is subject to, but not complying with, the ABAWD work requirement, or is otherwise exempt.

A countable month is any month in which an ABAWD received SNAP benefits for the full benefit month while **not**:

- a. Exempt from the three-month time limit ([8.15 Exceptions to ABAWD Work Requirement](#));
- b. Fulfilling ABAWD work requirement ([8.14 ABAWD Work Requirement](#));
- c. Covered by a waiver of the ABAWD time limit; **or**
- d. Meeting an 8% exemption ([8.22 ABAWD Discretionary Exemptions](#))

A month in which the ABAWD is exempt for part of the month **or** in which the benefit amount is prorated is **not** a countable month. An ABAWD's countable months must be tracked in order to correctly determine his or her continued eligibility for SNAP ([Section 8.18 Tracking The 36-Month Period](#)).

The three countable months do not have to be used consecutively.

Countable months must be tracked over the 36-month period, even if there are breaks in an ABAWD's participation. When an individual has used his or her three countable months and is not meeting the ABAWD work requirement, he or she is not eligible for SNAP benefits, unless also meeting an exception to the ABAWD work requirement ([Section 8.15 Exceptions to ABAWD Work Requirement](#)) "or" regaining eligibility ([Section 8.19 Regaining Eligibility](#)).

***NOTE:** An ABAWD's number of countable months used in another State must be verified prior to certification, if there is an indication that the individual participated in another State. The worker may accept a written or verbal confirmation from another State of the number of countable months an ABAWD has used in that State. The worker must adhere to normal processing standards. (See Section 6.1 Normal Processing Standards)*

8.17 ABAWD REPORTING REQUIREMENTS

ABAWD households must adhere to simplified reporting requirements.

(1) REPORTABLE CHANGE:

Households must report when the ABAWD household member's work hours fall below 20 per week, 80 hours averaged monthly. This change is required to be reported by the 10th day of the month following the month of the change. An ABAWD who loses his or her exemption

due to a “reportable change” will began to accrue countable months in the month following the month of the change.

(2) NON-REPORTABLE CHANGE:

- a. **Reported:** If the household voluntarily reports a “non-reportable change” in the household’s circumstances during the certification period, which reveals that a SNAP household member is an ABAWD, this change must be treated as “verified upon receipt” and the ABAWD’s countable months must begin accruing the month following the month that the change was reported, unless the ABAWD also meets the work requirement or is otherwise exempt. See [Section 8.13](#)
- b. **Not Reported:** If the household does not report a “non-reportable change” which occurs during the certification period that would have caused a household member to be subject to the ABAWD time limit, the Agency cannot retrospectively apply the change and no claim can be established. When the Agency becomes aware of the change during certification process, the Agency will begin tracking the three countable months effective the month following the month of the change, unless the ABAWD met the ABAWD work requirement or was otherwise exempt during the previous certification period. See [Section 8.13](#)

8.18 TRACKING THE 36-MONTH PERIOD

An ABAWD’s 36-month period is being tracked with a “Fixed Clock.” All ABAWDs are being tracked during the same time period. The current 36-month period started on April 1, 2025 and will end on March 31, 2028. The 36-month clock will be reset when the three-year period expires.

(1) A Fixed Clock:

- Has a definite start and stop date
- Starts on a given date and runs continuously for three years

(2) Tracking ABAWD Time-Limited Months:

The Agency will track each ABAWD’s participation. The tracking system will measure:

- (a) The three countable months of SNAP participation;
- (b) The 36-month time period; and
- (c) The additional three months of eligibility (regaining eligibility).

The documentation of the 36-month period tracking requirements will be displayed on CHIP ATLT (ABAWD Time-Limit Tracking) screen.

8.19 REGAINING ELIGIBILITY

An ABAWD who has used his or her three countable months may regain eligibility to participate in SNAP at any time in one of three ways:

- 1) By fulfilling the ABAWD work requirement [\(8.14 ABAWD Work Requirement\)](#) for 80 hours during a “30 consecutive day period”.
 - a) An ABAWD who is fulfilling a work requirement at application, or when a request to add an individual (including a previously sanctioned individual) to the SNAP household, will regain eligibility after verification that the individual has met or will meet the work requirement for 30 consecutive days.
 - b) An ABAWD who is not fulfilling the work requirement at application, or when a request to add an individual (including a previously sanctioned individual) to the SNAP household, may regain eligibility by verifying that the individual met the work requirement for 30 consecutive days prior to application, or when a request to add an individual to the SNAP household.
- 2) By meeting an exception to the ABAWD work requirement or is otherwise exempt.

Once an ABAWD verifies that he/she is meeting an exception or is otherwise exempt from the ABAWD work requirement, he/she may begin receiving SNAP benefits, if otherwise eligible. Benefits will be calculated from the date of application for applicant households or effective the month following the month the request is made to add an individual to the SNAP budget for participating households.

- 3) When the 3-year period expires.

At the expiration of the time period, the time tracking clock will start over. Benefits will be calculated from the date of application for applicant households or effective the month following the month the request is made to add an individual to the SNAP budget for participating households.

NOTE: *The client must reapply or ask to be added to the household’s SNAP budget.*

There is no limit on how many times an ABAWD may regain eligibility and subsequently maintain eligibility by meeting the work requirement. Once the ABAWD is proven to be eligible to participate in SNAP, benefits will be prorated from the date of application for applicant households or effective the month following the month the request is made to add an individual to the SNAP budget for participating households.

For individuals regaining eligibility by participating in a workfare program, and the workfare obligation is based on estimated monthly allotment prorated back to the date of application, then the allotment issued must be prorated back to this date.

8.20 ADDITIONAL THREE-MONTH ELIGIBILITY

SNAP regulations provide that in limited circumstances, ABAWDs can gain an additional 3 months of eligibility. This provision applies **only** to ABAWDs who regained eligibility by meeting the ABAWD work requirement ([8.14 ABAWD Work Requirement](#)) **and** who are no longer fulfilling the work requirement. If the ABAWD was working, the three consecutive months must start when the Agency is notified that the ABAWD is no longer in compliance with ABAWD work requirement. If the ABAWD was participating in a work program or workfare program, the three consecutive months must start when the Agency determines that the ABAWD is no longer in compliance with ABAWD work requirement.

The additional three months will be tracked at the first full month of benefits after the application month for applicant households, or effective the month following the month the request is made to add an individual to the SNAP budget for participating households.

ABAWDs may only take advantage of this additional three-month eligibility provision once in a 3-year period.

NOTE: *The additional three countable months must be used consecutively.*

8.21 GOOD CAUSE FOR NOT MEETING ABAWD WORK REQUIREMENT

An ABAWD may claim “good cause” for not meeting the work requirement. The Agency will then determine good cause for not meeting the work requirement. If an ABAWD would have fulfilled the work requirement as defined in [Section 8.14 ABAWD Work Requirement](#) but missed some hours for good cause, the ABAWD will be considered to have fulfilled the work requirement if the absence from work, the work program, or the workfare program is temporary.

Good cause will include circumstances beyond the ABAWD’s control such as, (but not limited to) illness, illness of another household member requiring the presence of the member, a household emergency, or the unavailability of transportation.

8.22 ABAWD DISCRETIONARY EXEMPTIONS

The discretionary exemptions are allotted each year based on 8% of the Agency’s caseload that is ineligible for SNAP benefits because of the ABAWD Time Limit.

These exemptions allow the Agency to extend SNAP eligibility to ABAWDs who would otherwise be ineligible because of the 3 in 36-month time limit. Each discretionary exemption extends eligibility to one ABAWD for one month.

The rules and guidelines on how these exemptions should be used are determined by Economic Services Policy.

(1) How the discretionary exemptions will be used

The discretionary exemptions can be used under the following circumstances:

- When the only or last child in the household turns 18 and the household is between certification periods, the child and all household members would be exempt from meeting the APR for up to 1 month within each 36-month period.
- When an Agency error causes an ABAWD to have months of non-compliance with federal work requirements, the ABAWD may be placed under the discretionary exemption so that he/she is not held responsible for an error made by someone else. This exemption can be used up to three months per ABAWD, within each 36-month period.

NOTE: *The eligibility staff cannot use the discretionary exemptions without prior authorization from the State Office Designee.*

(2) Tracking the use of the discretionary exemptions

The exemptions are required to be tracked. Usage of the discretionary exemptions will be tracked by the State Office Designee.

(3) Use of more exemptions than allotted

If the discretionary ABAWD exemptions are issued in excess of the annual allocation, including those carried over, FNS considers the benefits issued as unauthorized allotments. In instances where exemptions have been issued in excess of the allotted amount, FNS will allow the deduction of the overused exemptions from the subsequent year's allotment. If enough discretionary exemptions are not earned during the subsequent year to cover the overuse, FNS will bill the Agency for the unauthorized benefits it provided.

8.23 BENEFITS RECEIVED ERRONEOUSLY BY AN ABAWD

If an ABAWD receives SNAP benefits erroneously, the Agency will consider the benefits to have been received for purposes of the ABAWD time limit unless or until the individual pays it back in full.

Chapter 9 SNAP Employment and Training (E &T) Program

9.1 THE SNAP EMPLOYMENT AND TRAINING (E&T) PROGRAM

The Agency provides an opportunity for all recipients of SNAP to participate in South Carolina's SNAP Employment and Training Program (E&T). No population will be mandatory for participation. The purpose of the SNAP E&T program is to assist SNAP recipients by improving their ability to obtain regular employment and reduce their dependency on public assistance. The eligibility workers will provide SNAP E&T resource information and referral services to all households, at application, recertification, and when an individual meeting the definition of an ABAWD is added to a SNAP household. The eligibility worker will discuss and record the work registration status ([Section 8.3 The Agency's Responsibilities for Work Registration](#)) of each household member and will advise the household of work registration requirements and penalties. The eligibility worker will use the SNAP E&T brochure (DSS Brochure 2444, SNAP Employment & Training Program) and will mail a consolidated notice to provide an explanation of the opportunities available to the household through the state's SNAP E&T Program. Eligibility workers are responsible for screening and referring SNAP recipients to the SNAP E&T program.

Individuals volunteering for SNAP E&T will be given the opportunity to seek employment services and opportunities offered through the following components:

- Work Readiness Training
- Basic Education
- Job Retention Services
- Vocational Training
- Work Experience
- Workfare

Case Management is mandatory for all SNAP E&T program participants. Each participant will be assigned to an SNAP E&T Coordinator or a partner agency for case management services. The SNAP E&T Coordinator will document and track all case management activity. Partner agencies will also provide and document case management for SNAP clients. If a participant is an ABAWD,

the case management participation hours are countable hours towards the client's ABAWD work requirements.

Assignment of participants to components are based on individualized assessments, the development of an individualized employability plan and the availability of specific services in a particular geographic area. The employability plan outlines the specific sequence of component activities to which a participant may be assigned. Initial assignments may be any one or a combination of available components.

9.2 REFERRALS TO THE SNAP EMPLOYMENT AND TRAINING (E&T) PROGRAM

During the interview at application or recertification, eligibility workers will discuss and record the work registration status [\(Section 8.3 The Agency's Responsibilities for Work Registration\)](#) of each household member and will advise the household of work registration requirements and penalties.

DSS SNAP eligibility workers are responsible for all actions related to determining SNAP eligibility including: intake, certification and recertification. Upon the approval of an initial SNAP application or annual recertification, DSS SNAP eligibility workers will notify SNAP clients through the Notice of Consolidated Work Requirements about the availability of the SNAP E&T Program.

All SNAP E&T Program participants will be provided an orientation that will introduce them to their rights and responsibilities, as well as the services offered through the program. The orientation serves as a starting point for the initial assessment.

Since no population is mandatory for SNAP E&T, resource and referral services will be directed toward encouraging applicants/recipients to take advantage of SNAP E&T options on a voluntary basis. If any member(s) of the household wants to volunteer for SNAP E&T program, the eligibility worker will refer them through the South Carolina Comprehensive Employment Training System (SCCETS) or submit an individual referral form (DSS Form 1234, Client Referral/Communication Form) to SNAP2WORK@dss.sc.gov for each member wanting to participant.

9.3 JOB DUTIES OF THE SNAP EMPLOYMENT AND TRAINING (E&T) COORDINATOR

The job duties of the SNAP E&T Coordinator include the following:

- (A) Develop and implement an employment and placement strategy for SNAP E&T participants for their assigned county(ies);

- (B) Coordinate with Work Force Development staff and employers to develop part-time and full-time employment for their clients;
- (C) Coordinate with Work Force Development staff, employers and local training providers to develop needed training opportunities for in-demand jobs;
- (D) Establish and maintain partnerships with the community, business, education, faith organizations and other leaders to facilitate communication, coordination and collaborative efforts;
- (E) Track, collect, compile, analyze, interpret and incorporate findings of local economic and labor market information in efforts to identify jobs in demand, occupational requirements, hiring trends and employment opportunities for their clients.
- (F) Assist Third Party Reimbursement Program (TPRP) providers (SNAP2WORK) with case management, support services, technical assistance and tracking of SNAP client participation.
- (G) Provide case management which includes assessment, planning, coordination, monitoring SNAP E&T activities, follow-up, and evaluation of options and resources to meet a participant's employment and training needs.

9.4 SNAP EMPLOYMENT AND TRAINING (E&T) PROGRAM COMPONENTS

The following outlines information for the specific components offered in the SNAP E&T Program:

1. Vocational Training

This component provides vocational training or equivalent knowledge and skills required in a specific occupational area. DSS has entered into agreements with technical colleges, community-based organizations and for-profit agencies serving the state to provide a variety of services including assessment, case management, and employment-focused vocational training opportunities to SNAP E&T Program participants. The focus of the Vocational Training component will be the “Quick Jobs” program and other similar certificate and non-certificate programs which allow participants to quickly obtain skills matching the needs of local businesses and industries. Quick Jobs and other certificate programs have been developed for fields where job growth is expected and in consultation with local employers. The Quick Jobs program offers training and certifications with most courses lasting three months or less, but all courses last less than one year. Examples of Quick Jobs certificate and non-certificate programs include welding, manufacturing, information technology, healthcare, customer relations, veterinary assistant, and basic construction skills.

Scholarships are available through the SNAP E&T Pathways Scholarship Program (PSP) for vocational training. PSP is an employment and training program that provides scholarships to SNAP recipients throughout the state for short term training and certification programs (less than one year). This scholarship covers tuition and books. Scholarships are not guaranteed. SNAP recipients must apply and be approved by SNAP E&T program area at the state office as long as funds are available.

2. SNAP E&T On-the-Job Training

On-the-Job Training (OJT) is a SNAP E&T vocational component that will allow SNAP E&T program participants (also referred to as employees/trainees) to acquire the training for occupations that have limited or no formal classroom training requirements or in which “hands-on” training is necessary to learn the job. OJT is a full-time training activity in the public or private sector that is given to a paid employee engaged in productive work and provides knowledge and skills essential to the adequate performance of the job.

Employers Eligible to Participate in SNAP E&T OJT

Private employers, public employers, public agencies and private or non-profit companies or corporations are eligible to participate as an employer/trainer in the SNAP Employment and Training OJT.

Employers NOT Eligible to Participate in SNAP E&T OJT

Employers may not participate in the SNAP E&T OJT program if the employer:

1. is in violation of federal, state or local labor laws;
2. is involved in a strike, lockout, or other unusual labor condition;
3. is a member of or employs a member of the employee/trainee’s immediate family;

SNAP E&T OJT Placement Standards:

OJT Supervision: OJT participants must be regularly supervised by the participating employer (or responsible party at the employer’s designation). Supervision is defined by the employer and should be consistent with regular supervision practices as established by the employer.

Compensation to OJT Employee/Trainee: OJT employees/trainees will be compensated by the participating employer at the same rate of pay, benefits, and periodic increases as other employees performing the same job function. Compensation to the employee/trainee will be at least \$12.00 per hour. Wages are income paid by an employer to an employee for work the employee performs for reimbursement under the OJT placement period and wages may not include tips, commissions, or overtime. The employer shall provide the employee/trainee with Unemployment Insurance (UI) coverage and any other benefits required by law. The OJT employee/trainee will receive benefits at the same level and extent provided to other persons similarly employed by the employer.

Compensation to the Participating Employer: In return for providing intensive supervision and training for the employee/trainee, the employer will receive compensation to subsidize the additional costs associated with training a new employee. This compensation to employers is provided as a reimbursement of wages to offset the costs of providing training. The employer agrees to provide instruction, equipment, and materials and the SNAP E&T OJT Program agrees to provide a reimbursement of 50% of the gross wages during the established contracted training period. Any overtime work or overtime training that an employee/trainee engages in during the established OJT contract period will not be reimbursed. The employer will be responsible for the remaining 50% of the employee/trainee's wages for the duration of the OJT contract period. All reimbursements made to the employer must be supported by business receipts, time and payroll records, and other records normally retained by an employer. Reimbursement invoices and timesheets must be signed by both the employer and the employee/trainee. Copies of payroll records or paystubs including demographic indicators (i.e. name, last four of social security number, etc.), total number of hours worked during that pay period, and hourly wage) must be attached to the DSS Form 5003, On-the-Job Training Invoice & Attendance/Performance Record, for employer reimbursements.

Working Hours:

All SNAP E&T OJT agreements are written for full-time work and full-time training, with full-time defined as 30 to 40 hours per week. The full-time work can be performed on any day of the week.

OJT Placement Duration

The OJT agreement may last up to six months depending on the training needs and as agreed upon on the DSS Form 5001, On-the-Job Training Employer Agreement. The OJT placement period is limited to the time required for an individual to become proficient in the occupation for which they are being trained, based on the employee/trainee's previous skillsets and current labor market information for the local area of the OJT placement. The specific length of the OJT placement period will be identified on the DSS Form 5001, On-the-Job Training Employer Agreement, as agreed upon by the employer and DSS prior to beginning of participation.

SNAP E&T OJT Effective Date

The employee/trainee cannot start work or training until all parties have signed the DSS Form 5001, On-the-Job Training Employer Agreement and DSS Form 5002, On-the-Job Training Participant Agreement. The effective date of these agreements will be the future hire date for the employee/trainee. (If necessary, final approval of these agreements can be expedited.)

Working Conditions

Individuals trained under OJT are employees and are entitled to the same working conditions, benefits, and rights as similarly employed workers.

Injuries on the Job

If an employee/trainee becomes injured during the OJT placement period, all federal and state health and safety standards will apply.

Job Retention

The employer is expected to retain the employee/trainee, unsubsidized, at the agreed-upon wages after the successful completion of the OJT placement period.

Limitations

The OJT assignment may not result in: (a) the displacement of employees already working for the employer; (b) be used to fill a position for which any other employee is on layoff from the same or any equivalent positions; or (c) where the employer has terminated the employment of any regular employee or otherwise reduced its workforce for the purpose or effect of filling the vacancy with an OJT trainee. The term “displacement” includes alteration of an employed worker’s job resulting in the reduction of skill, content, salary, or promotional opportunity. Similarly, OJT will not be approved in the following situations when:

1. Work/training being performed is related to political, electoral or partisan activities.
2. Work/training being performed involves a commission as the primary source of income, such as real estate sales.
3. Funding for training is available and received from other sources for that employee/trainee.
4. In conflict with a collective bargaining agreement that applies to the specific OJT position or occupation held by the OJT employee/trainee.
5. The OJT employee/trainee will construct, operate, or maintain a facility used for sectarian instruction or as a place of religious worship.
6. The employer’s hiring process procedures will not discriminate against any individual based on race, color, religion, sex, national origin, age, disability, political affiliation or belief.
7. The working conditions will be unsanitary, hazardous or dangerous per Occupational Safety and Health Administration (OSHA) laws.
8. The employer is in violation of federal, state or local labor laws.
9. The employer is involved in a strike, lockout, or other unusual labor condition.
10. The employer is a member of or employs a member of the employee/trainee’s immediate family.

OJT Candidate Qualifications:

At a minimum, OJT candidates must have the availability to follow instructions, locate information, comprehend new skills, and meet the minimum qualifications as required by the employer for the specific position for which the training will be provided.

OJT Candidate Referral:

For a candidate referral to be initiated to an employer for a potential OJT placement, there must be an open position available that will not displace another worker. The E&T Coordinator will refer E&T participants who meet the employer's previously identified specifications. The employer may interview those referred and make a selection for their OJT employee of choice.

3. Education

The Education component is designed to increase employability by providing remedial education as well as post-secondary education leading to a degree or certification. The South Carolina Office of Adult Education has entered into an agreement with DSS to assist SNAP E&T Program participants in the completion of a secondary school education; to become literate and obtain the knowledge and skills necessary for employment and self-sufficiency; and to help adults with limited English proficiency. Local Adult Education offices will provide the following services:

- **Basic Education.** Adult basic education includes instruction for adults with the lowest skills through eighth-grade. Instruction includes reading, writing, mathematics, and life skills.
- **English as a Second Language (ESL).** Instruction includes reading, writing, and speaking English. ESL classes may include life-skills training and language courses to enhance an individual's employability and his or her prospects for job retention or advancement.
- **Family Literacy.** Literacy training that leads to economic self-sufficiency.
- **Workplace Skill Enhancement.** Contextual basic skills instruction as it applies to job-specific training, pre-employment training, or skills upgrading designed to meet the needs of the employer and addresses the competencies necessary for success in the work place (including Work-Keys/WIN certification).
- **General Educational Development (GED).** Instruction designed to prepare students to successfully complete the GED examination, including language arts, writing, mathematics, science, and social studies.
- **High School Diploma.** High school diplomas can be earned free of charge through adult education programs that are operated by school districts in South Carolina.
- **Work Readiness Training.** Online educational services will be available to all SNAP E&T participants. Work Readiness Training includes skill assessment and educational remediation services that prepare individuals for the workforce. Activities may include, but are not limited to:

- Foundational Cognitive skills
- Applied Mathematics skills
- Reading for Information skills
- Locating Information skills
- Critical Thinking skills
- Problem Solving skills
- Non-Cognitive skills (Soft Skills)

These skills are defined as personal characteristics and behavioral skills that enhance an individuals' interactions, job performance, and career prospects such as adaptability, integrity, cooperation, and workplace discipline.

4. Work Experience

The Work Experience component is being offered in order to enhance the employability of SNAP E&T Program participants.

This activity is designed to increase participant job skills by providing actual work experience or training opportunities. Work Experience assignments may not replace the employment of a regularly employed individual, and they must provide the same benefits and working conditions provided to regularly employed individuals performing similar work for equal hours. The sites for Work Experience may be in the private, private non-profit, or public sector.

Work Experience is a household responsibility, meaning that all non-exempt household members can share the hourly obligation over the course of a month. For example, a two-person household receiving \$200.00 in SNAP benefits per month and living in South Carolina where the minimum wage is \$7.25 is limited to a maximum of 27 hours per month ($\$200.00 / \text{by } \$7.25 = 27.58$ or 27 hours). The SNAP E&T program can apportion the hours between household members as it sees fit (1 person 27 hours or each person must participate 13 ½ hours). SNAP E&T will not require participants to work beyond that maximum.

5. Workfare

The Workfare component is being offered in order to enhance the employability of program participants. This activity is designed to increase participant job skills by providing actual work experience or training opportunities. Workfare assignments may not replace the employment of a regularly employed individual, and they must provide the same benefits and working conditions provided to regularly employed individuals performing similar work for equal hours. The sites for Workfare may be at a private or public non-profit agency.

The 20-hour per week participation requirement does not apply to the workfare component of the E&T program. Workfare participation hours are determined by dividing a household's SNAP allotment by the State's minimum wage. This calculation produces the number of work hours required per month.

Workfare is a household responsibility, meaning that all non-exempt household members can share the hourly obligation over the course of a month. For example, a two-person household receiving \$200.00 in SNAP benefits per month and living in South Carolina where the minimum wage is \$7.25 is limited to a maximum of 27 hours per month ($\$200.00 / \text{by } \$7.25 = 27.58$ or 27 hours). The SNAP E&T program can apportion the hours between household members as it sees fit (1 person 27 hours or each person must participate 13 ½ hours). SNAP E&T will not require participants to work beyond that maximum.

6. Job Retention Services

Job Retention Services are a time-limited training and support process that assist SNAP recipients in assessing job needs and provides assistance and resources when they gain employment after participating in another E&T component. SNAP E&T will allow up to 30 days of Job Retention Services per year regardless of number of times a client participates in the Employment and Training program.

Job Retention Services include but are not limited to counseling/case management, support services/transportation, referrals to other services/navigation services, clothing required for employment, equipment or tools required for employment, test fees, licensing and certifications. Additional services may be allowed based on a preapproval by the SNAP E&T program area at the state office.

9.5 REIMBURSEMENT FUNDS FOR EMPLOYMENT AND TRAINING (E&T) PROGRAM PARTICIPANTS

The E&T Coordinator may authorize reimbursement funds to E&T participants.

- (A) The Agency will provide reimbursement funds for participants needing reimbursement for transportation up to \$150.00 monthly during component participation.
- (B) Reimbursement will also be provided for a component-related expense in the amount up to \$150.00 provided the participation occurred in a SNAP E&T component for that month. Personal Protective Equipment, background checks and test fees are an allowable support service for SNAP E&T participants who are enrolled in a qualifying in-person education or vocational training component. Medical tests (ex. Tuberculosis skin test) needed to participate in various vocational training programs will be available based on state funding.
- (C) Job Retention Services will be provided for a maximum period of 30 days per federal fiscal year to individuals who have secured employment after participating in another E&T component and remain eligible for SNAP benefits. Individuals leaving SNAP (who no longer qualify for SNAP benefits) who have secured employment within 30 days of participating in another E&T component can also receive up to 30 days of retention services. The maximum support services allowable for Job Retention Services will be \$150.00 over the 30-day period.

NOTE: *Funds for expenses and reimbursements may be paid directly to the provider or to*

the participant. DSS will provide a 50% state match on transportation one-time component-related expense and retention services.

- (D) Child Care Services are available for participants in the SNAP Employment and Training Program. Participants are eligible to receive up to 52 weeks of child care based on the availability of SC Vouchers. SNAP E&T participants must be participating or scheduled to begin a component for at least 20 hours per week in order to receive a child care voucher. The SNAP E&T Coordinators are responsible for tracking client participation. If a SNAP E&T participant fails to participate in an allowable SNAP E&T component for 90 days or 3 consecutive months, the household is subject to lose their child care voucher. Eligibility is determined by SNAP E&T Program area at the state office. Participants may be required to pay a weekly fee toward the cost of the childcare.
- (E) Rent assistance is available for SNAP Employment & Training Program participants in danger of being evicted while participating in an allowable SNAP E&T component based on the availability of funds. The maximum assistance will be up to \$1,000.00 for this “one time” support service. Additional charges, i.e. late fees and court cost, are not covered in the rent assistance support services payment. Rent assistance must be approved by SNAP E&T Program area at the state office.
- (F) Technology support services are available for clients participating in the SNAP E&T program. Eligible clients must be participating in an online SNAP E&T component. The technology support services can be utilized to pay for up to three months of internet access, assistance with telephone connectivity (pre-paid cell phone minutes) and the purchase of a tablet. The total cost for this one-time technology support service cannot exceed \$225.00. Participants who are receiving technology support services from a SNAP2WORK provider are not eligible. The technology support services will be provided based on the availability of funds.

9.6 RECORD KEEPING FOR THE EMPLOYMENT AND TRAINING (E&T) PROGRAM

The SNAP E&T Program will utilize the South Carolina Comprehensive Employment & Training System (SCCETS) to maintain records and reports for the entire SNAP E&T Program. The SCCETS database will be utilized to facilitate the reporting of component activities, participation hours and other pertinent management data.



Chapter 10 Resource Eligibility Standards

Chapter 10 has been moved to [Appendix 2](#).

Chapter 11 Income

11.1 INCOME ELIGIBILITY STANDARDS

Participation in SNAP will be limited to those households whose incomes are determined to be a substantial limiting factor in permitting them to obtain a more nutritious diet. Households which contain an elderly or disabled member must meet the net income eligibility standards for the SNAP. Households which do not contain an elderly or disabled member must meet both the net income eligibility standards and the gross income eligibility standards for SNAP. Households which are categorically eligible as defined in [Section 4.1 Categorically Eligible Households](#) do not have to meet either the gross or net income eligibility standards. The net and gross income eligibility standards will be based on the Federal income poverty levels established as provided in section 673(2) of the Community Services Block Grant Act (42 U.S.C. 9902(2)).

(1) Gross income eligibility standards

Gross income means a household's total, non-excluded income, before any deductions have been made. The gross income eligibility standards for SNAP will be 130 percent of the Federal income poverty level.

***NOTE:** 130 percent of the annual income poverty guidelines will be divided by 12 to determine the monthly gross income standards, rounding the results upwards as necessary.*

(2) Net income eligibility standards

Net income means gross income minus allowable deductions. The net income eligibility standards for SNAP will be the Federal income poverty level.

***NOTE:** The annual income poverty guidelines will be divided by 12 to determine the monthly net income eligibility standards, rounding the results upward as necessary.*

The income eligibility standards are revised each October 1 to reflect the annual adjustment to the Federal income poverty guidelines. The monthly gross and net income eligibility standards are prescribed in the table below.

Household size	Gross Monthly Income Eligibility Standards (130 percent of poverty level)	Net Monthly Income Eligibility Standards (100 percent of poverty level)
1	\$1696	\$1305
2	\$2292	\$1763
3	\$2888	\$2221
4	\$3483	\$2680
5	\$4079	\$3138
6	\$4675	\$3596
7	\$5271	\$4055
8	\$5867	\$4513
Each additional member	\$596	\$459

11.2 DEFINITION OF INCOME

Household income will mean all income from whatever source excluding only items specified in [Section 11.6 Income Exclusions](#). The income of all household members is counted unless specifically disregarded or excluded.

11.3 EARNED INCOME

Earned income is all money earned by a household member(s) through receipt of wages, salary, tips or commissions as an employee. Income earned directly from one's own business, trade or profession rather than specified as salary or wages from an employer is considered **self-employment income**. For treatment of self-employment income, see [Section 11.4 Self-employment Income](#). Earned income is allowed a 20% deduction as listed in [Section 12.3 Earned Income Deduction](#). Earned income will include:

Earned Income	Description	NOTE/Exception:
(A) Advances	Advanced wages made in exchange for services or labor to be performed. Count if an advance on wages.	<i>Exception: Exclude if an advance on travel (in addition to wages).</i>
(B) Agriculture payments (Agricultural Stabilization and Conservation Service [ASCS] or Commodity Credit Corporation [CCC]) includes acreage reduction and conservation payments.	Payments made by the Department of Agriculture, Farm Service Agency to US agricultural producers participating in Farm Bill programs including commodity, price support, disaster assistance and conservation.	<i>Exception: ASCS payments made as a result of a Presidentially declared disaster or emergency are excluded from income and resources.</i>

	Count total amount. Other ASCS one-time and installment payments made to farmers for crop or other losses are self-employment income (annualize for self-employed household).	
(C) AmeriCorps State, National and NCCC	A 10 month, full-time, team-based residential service program for individuals ages 18-24. NCCC members serve on 10- to 12- member teams that travel to serve in communities all over the U.S. and U.S. territories.	<i>NOTE: Exclude payments or living allowances from AmeriCorps State, National, and AmeriCorps National Civilian Community Corps (NCCC).</i>
(D) Attendant Care Income/Payment	Payment made to an attendant/caregiver for providing care to an elderly or disabled individual	NOTES: - Count as <i>Earned Income</i> if the employee receives a W-2 for wages earned. - Count as <i>Self-employment income</i> if the employee receives a 1099 for wages earned. See Section 11.4 Self-employment Income
(E) Babysitting/Dependent Care Income	Payments received for providing care for or watching over a child Treat as self-employment income. See Section 11.4 Self-employment Income	
(F) Blood or Blood Plasma sale	Treat as self-employment income. See Section 11.4 Self-employment Income .	
(G) Boarder payments	Payment made by a person for receiving regular meals and lodging. Payments from a boarder will be considered self-employment income. See Section 11.4 Self-employment Income.	<i>Exception: Foster care boarders (See Section 11.5 (N) Unearned Income (Foster care payments))</i>
(H) Bonuses	Money or an equivalent given in addition to an employee's usual compensation. Count if received while the individual is employed and it is reasonably anticipated on a recurring basis.	<i>NOTE: Exclude when paid as a nonrecurring lump sum payment.</i>
(I) Cafeteria benefit plans	A reimbursement plan which allows employees to contribute a certain amount of their gross	<i>NOTE: Money withheld from an employee's earnings to pay certain expenses, such as a</i>

	income to a designated account or accounts before taxes are calculated.	<i>vendor payment to a third party when the expenses are incurred, must be counted as earned income. The money is legally obligated and otherwise payable to the employee.</i>
(J) Capital gains	The proceeds from the sale of capital goods or equipment. Income from capital gains will be considered self-employment income. See Section 11.4 Self-employment Income .	
(K) Census Income for temporary employees connected with the 2020 Census	This income is excluded effective September 16, 2019 through October 31, 2020.	
(L) Child Care Development Block Grant (CCDBG) payments (this includes the Child Care Scholarship Program)	The primary source of United States federal funding for child care subsidies for low-income working families and funds to improve child care quality.	<i>NOTE: Payments to an individual providing the child care are counted as self-employment income to that individual. See Section 11.4 Self-employment Income.</i> <i>Exception: Payments provided as vouchers are excluded by federal law to the household containing the child or children.</i>
(M) Children's earnings	Earned income of any member of the household age 17 or younger	<i>Exception: Exclude if a child lives with a natural, adoptive or step-parent or under the parental control of another household member <u>and</u>:</i> • <i>Attends either elementary or secondary school; or classes recognized, operated or supervised by the student's state or local school district to obtain a GED, or</i> • <i>Attends elementary or secondary classes through a home school program recognized or supervised by the student's state or local school district.</i> <i>NOTE: The income is excluded during a temporary interruption in school attendance providing the student intends to return.</i>

		<i>A child who meets the above criteria must have his/her earned income budgeted the month after the child turns 18 years of age.</i> <i>If a child's income cannot be distinguished from that of other household members, the total earnings must be prorated equally between the working members and the child's share excluded.</i>
(N) Compensated Work Therapy (CWT)	A therapeutic program of vocational and rehabilitative services under the Department of Veterans Administration (VA). Unemployed or underemployed veterans are placed in a real work environment and are paid for their work via payments from the VA or through the employer.	
(O) Domestic Volunteer Service Act payments	This income is excluded. Title I payments include, but are not limited to, University Year for Action, Urban Crime Prevention Program, and VISTA. Title II payments include, but are not limited to, Foster Grandparents, National Senior Service Corps, Retired and Senior Volunteer Program (RSVP), and Senior Companion.	<i>Exception to Title I payments: Include payments as earned income if individual was NOT receiving SNAP/TANF benefits prior to beginning volunteer service.</i>
(P) Educational Assistance	Educational assistance which has a work requirement (such as work study, an assistantship or a fellowship with a work requirement) in excess of the amount excluded in Section 11.7 Educational Assistance. Earned income from work study programs that are funded under Section 1087 of the Higher Education Act is excluded.	<i>NOTE: Any educational assistance excluded under South Carolina TANF rules is also excluded for SNAP.</i>
(Q) Employee's share of taxes/FICA paid by employer		
(R) Flexible credits/flexible benefit dollars	A benefit program that offers employees a choice between various benefits including cash, life insurance, health insurance, vacations, retirement plans, and child care.	<i>NOTE: Credits made available to employees for things such as insurance or leave where the employee cannot elect to receive a cash payment in lieu of the</i>

		<i>credits are not counted as income as they are not legally obligated and otherwise payable to the employee as earnings.</i> <i>However, any amount the employer pays over and above the amount of credits must be counted. This amount must be added to the gross taxable income to derive the SNAP gross income.</i>
(S) Food assistance (value of) under National School Lunch Act	Count amount provided to day care providers for children other than their own as self-employment income. See Section 11.4 Self-employment Income .	<i>Exception: Exclude assistance provided to children.</i>
(T) Foster Grandparent Program Payment	These payments are received through the Domestic Volunteer Service Act, Title II. Exclude total amount of living allowance if the program is approved by the Corporation for National and Community Service (CNCS)	<i>Exception: If the program is not approved by CNCS, this income is not excludable and must be counted as earned income.</i>
(U) Garnished income from wages or salaries	Income that is required by court order to be withheld and diverted to a third party as payment on a debt.	
(V) Job Corps	The largest nationwide residential career training program that helps eligible young people ages 16 through 24 complete their high school education, trains them for meaningful careers, and assists them with obtaining employment. Count salary and performance bonuses as earned income for Job Corps participants and former participants who are still receiving Job Corps payments.	<i>Exception: Most Job Corps participants are residents of an ineligible institution, and therefore not eligible for SNAP (See Section 2.3 Ineligible Household Members (11)).</i>
(W) Jury Duty Payments	Compensation received for serving as a juror. If the jury duty payment is dispersed over a time period of several days or weeks in a specific amount, the payment would be treated as earned income.	<i>Exceptions:</i> <i>If the payment does not exceed \$30 in a quarter and cannot be reasonably anticipated, the payment may be excluded in accordance with Section 11.6 Income Exclusions (E) Infrequent of irregular income</i> <i>If the payment is a reimbursement and the</i>

		<i>pay meets the conditions specified in Section 11.5 Unearned Income (CC) Reimbursements, the payment would be excluded.</i>
(X) Military Pay	Money paid to members in the United States Armed Forces. The amount of pay may vary by the member's rank, time in the military, location duty assignment, and by some special skills the member may have. Military pay/Leave and Earnings Statement (LES) is counted as income for the month intended rather than for the month received. Count the following as earned income: • Military housing and subsistence allowances if shown on the individual's wage statement. • Basic Allowance for Housing (BAH) • Basic Allowance for Subsistence (BAS) • Family Subsistence Supplemental Allowance (FSSA) • Leave or separate rations • Regular sea pay (count for enlisted personnel) • Career sea pay (count for enlisted personnel who are in pay grade E4 or above and have served more than three cumulative years of sea duty) • National Guard pay	<i>Exceptions:</i> • <i>Exclude pay received by military personnel as a result of deployment to a combat zone for the duration of the deployment if it was not received immediately prior to serving in the combat zone. Also exclude any of this income the household has access to, for example, through allotments or deposits to joint bank accounts.</i> • <i>Exclude Clothing Maintenance Allowance (CMA) and consider a reimbursement. Deduct CMA from gross earned income.</i> • <i>Exclude any amount by which the basic pay of an individual is reduced for purposes of funding the Veterans' Educational Act of 1984 (GI Bill)</i> <i>NOTE: A member of the military not in the household may have his or her earned income deposited into a jointly owned bank account with a household member. This income must be counted as unearned income for the household.</i>
(Y) Rental Property Income only if a member of the household is actively engaged in the management of the property at least an average of 20 hours a week	Ownership of rental property will be considered a self-employment enterprise according to Section 11.4 Self-employment Income.	

(Z) Repayment – voluntarily or involuntarily returned	Monies withheld from or received from earned income which are voluntarily or involuntarily returned to repay a prior overpayment received from that source. This income is excluded.	
(AA) Retired and Senior Volunteer Programs (RSVP)	These payments are received through the Domestic Volunteer Service Act, Title II. Exclude total amount of living allowance if the program is approved by the Corporation for National and Community Service (CNCS)	<i>Exception: If the program is not approved by CNCS, this income is not excludable and must be counted as earned income.</i>
(BB) Roomer payments	Payments from a roomer will be considered self-employment income according to Section 11.4 Self-employment Income.	
(CC) Self-employment income	The income from a self-employment enterprise will be included according to Section 11.4 Self-employment Income.	
(DD) Senior Companion Programs	These payments are received through the Domestic Volunteer Service Act, Title II. Exclude total amount of living allowance if the program is approved by the Corporation for National and Community Service (CNCS)	<i>Exception: If the program is not approved by CNCS, this income is not excludable and must be counted as earned income.</i>
(EE) Sick pay benefits paid by employer	Count as earned income if the employee will return to work.	<i>Exceptions:</i> - Count as unearned income if the employee will not return to work. - Count as unearned income if sick pay benefits are paid from a source other than the employer. See 11.5 (MM)
(FF) Social Security (SSA/RSDI): employee's share of taxes paid by employer		
(GG) Third party payments/vendor payments	Moneys legally obligated and otherwise payable to the household which are diverted by the provider of the payment to a third party for a household expense.	<i>NOTE: Wages that are garnished or diverted by the employer and paid to a third party for a household expense is an example.</i>

(HH) Training allowances connected with an hourly wage or salary	See (MM) if connected to WIOA program	
(II) Training allowances from vocational and rehabilitative programs	A stipend or other payment received while enrolled in a Vocational Rehabilitation program. Training allowances from vocational and rehabilitative programs recognized by Federal, State, or local governments, such as the work incentive program, to the extent they are not a reimbursement.	<i>NOTE: The type of program in which the individual is participating will determine if the income is counted or not.</i>
(JJ) Vacation pay	A benefit that employers typically give full-time employees that allows the employees to take Paid Time Off (PTO). Count actual/anticipated vacation pay in the month it is to be received.	<i>Exception: Exclude when paid as a nonrecurring lump sum payment after employment ends.</i>
(KK) VISTA (Volunteers in Service to America)	Members serve full-time for a year at nonprofit organizations or local government agencies to build the capacity of these organizations to carry out programs that alleviate poverty.	NOTES: - Exclude payments or living allowance if individual was receiving SNAP/TANF benefits prior to beginning service. - Include payments or living allowance as earned income if individual was NOT receiving SNAP/TANF benefits prior to beginning service.
(LL) Wages and Salaries	A payment made by an employer to an employee.	
(MM) WIOA educational and training programs There are many WIOA programs which include Summer Youth Employment and Training, Youth Build, and weekly stipends paid under the National Community Service Act (NCSA).	Federal programs to prepare youth and unskilled adults for entry into the labor force. Allowances and payments to individuals participating in programs under WIOA are excluded.	<i>Exception: Earnings to individuals who are participating in on-the-job training programs under section 204(b)(1)(C) or section 264(c)(1)(A) of the Workforce Innovation and Opportunity Act (WIOA) will be considered earned income, unless the payee is a dependent (under 19 years of age and is under the parental control of another adult household member), regardless of school attendance and/or enrollment. If the payee is a dependent, OJT payments are excluded.</i>

(NN) Work Training Allowance (WTA)	Training allowance paid to DSS Work Experience or Community Service programs' participants through the TANF Work Program.	
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11.4 SELF-EMPLOYMENT INCOME

Self-employment income is income earned directly from one's own business, trade or profession rather than a specified salary or wages from an employer.

(1) Treatment of self-employment income

Self-employment income must be averaged over the period the income is intended to cover, even if the household receives income from other sources. If the averaged amount does not accurately reflect the household's actual circumstances because the household has experienced a substantial increase or decrease in business, the Agency must calculate the self-employment income on the basis of anticipated, not prior, earnings.

The following describes the treatment of self-employment income:

For self-employment income received from a business enterprise that has been in existence at least a year, average the income over the period the income is intended to cover.

For self-employment income received from a business enterprise that has been in existence less than a year, average the income over the period of time the business has been in operation and project a monthly amount for the certification period.

If there is no change in actual circumstances, use last year's tax return or other source of verification and average over the period the income is intended to cover to determine anticipated amount of income to be counted. On a case-by-case basis, where there are little or no past records to base income for the future, use a best estimate.

If the household has experienced a substantial increase/decrease in business income, calculate the self-employment income on the basis of anticipated earnings. If earnings which reflect the increase/decrease income are available, use these earnings to anticipate income. If earnings which reflect the increase/decrease in business are not available, a best estimate must be used based on the amount of pay and the frequency of pay. Examples of substantial increase/decrease include:

- Changes in the nature of the business
- Termination of or starting a new self-employment enterprise
- Reported increases or decreases in income which were not previously considered.

(2) Determining self-employment income

For the period of time over which self-employment income is determined:

(A) Add all gross self-employment income (either actual or anticipated) and capital gains

The following chart will help determine what must be used as income:

Business Structure	IRS Form
Sole Proprietorship	Schedule C Form 1040, Profit or Loss from Business, Line 3, or subtract Line 2 from Line 1 (if no amount is listed on Line 3). Exception to using Line 3 only: When there is other income on line 6, add this income to the income on Line 3.
Partnership	Form 1065, U.S. Return of Partnership Income, Line 1c (add Line 7 if an amount is listed), • prorate to the number of partners (if the partners share equally in the business) or • prorate using the percentage the client(s) owns in the business, See Schedule K-1 (Form 1065) Part II, Line J
Corporations	Form 1120, U.S. Corporation Income Tax Return, Line 11; or Form 1120-S (see below) and (Schedule K-1(Form 1120-S) Part II, Line G (if applicable to determine the percentage of the business the client owns)
Limited Liability Company (LLC) Owners of an LLC are called members. Members may include individuals, corporations, other LLCs, and foreign entities. Also permitted are “single member” LLCs, those having only one owner.	If the only member of the LLC is an individual , the LLC income is reported on Form 1040, Schedule C (Profit or Loss From Business), Line 3, or subtract Line 2 from Line 1 (if no amount is listed on Line 3). Exception to using Line 3 only: When there is other income on Line 6, add this income to the income on Line 3.

	If using Schedule E (Supplemental Income and Loss), Lines 3 & 4; or Schedule F (Profit or Loss From Farming), Line 9. If the only member of the LLC is a corporation, the LLC income and expenses are reported on the corporation's return, usually Form 1120-S (see below) or Form 1120 (U.S. Corporation Income Tax Return) Line 3 or subtract Line 2 from Line 1 (if no amount is listed on Line 3). Multiple Member LLCs would report income and expenses on a partnership return, Form 1065.
Contracted Employment (Sub-contract) A person contracted to perform work or provide services to an entity as a non-employee. As a result, this individual must pay his/her own Social Security and Medicare taxes.	If no income is listed on Line 3 of Schedule 1 of Form 1040, use the income from Line 3 of Schedule SE.

For self-employed households who own an incorporated business, the worker must determine whether this business is legally incorporated and whether the business is considered an "S Corporation". An "S Corporation" is a small closely held family corporation.

- 1) For legally incorporated businesses that are "S Corporations", the business income will be reported together with the household's other income on Form 1040 and attached schedules. Accordingly, income from the "S Corporation" will be treated as self-employment income and annualized. The business income is computed by using Form 1120-S, U.S. Income Tax Return for an S Corporation, line 1c (add line 5 if an amount is listed) and by using the percentage the client owns in the business, see Schedule K-1 (Form 1120-S) Part II, Line G (if applicable).

- 2) For legally incorporated businesses that are not "S Corporations", income is not treated as self-employment income. If there is a question concerning whether the business is legally incorporated (Inc. will be shown after the name of the business), the worker can inquire on the following website <https://businessfilings.sc.gov/businessfiling>. A household member may be an employee and/or shareholder of a corporation. If a household member is employed by the corporation, that income will be reported as taxable employment income. This pay would be distributed through regular employment stubs and the amount earned for the year can be found on Form W2. The corporation may also distribute dividends to the shareholders. Additional distributions to the household such as checks made out to cash or household expenses from the corporate checking account also count as income. This information should be listed on the household's personal tax return as dividend income, reported on line 3b of Form 1040.

- (B) Deduct 40% of the total income from total income derived in (A) to arrive at the self-employment income. The 40% expense deduction is a mandatory standard deduction given to households who incur allowable self-employment costs. Self-employed households who do not incur any allowable self-employment costs are not eligible to receive the standard deduction.

NOTE: The expense deduction cannot exceed 40% of total self-employment income. Actual costs of doing business are not allowed.

- (C) Divide the remaining amount of self-employment income by the number of months over which the income will be averaged.

This amount is the monthly net self-employment income.

(3) Self-employment costs

To arrive at the net income to be budgeted, the Agency must consider allowable costs of producing the self-employment income by the household. Any household that incurs allowable costs of producing self-employment income are entitled to receive the standard self-employment deduction of 40% of self-employment income.

Actual self-employment costs are not allowed. Allowable costs include, but are not limited to:

- Identifiable costs of labor (e.g. salaries, employer share of Social Security insurance)
- Stock, raw materials, seed, fertilizer and feed for livestock
- Cost of feed for work
- Rent and cost of building maintenance
- Business telephone
- Costs of operating a motor vehicle required in connection with the operation of the business

- Payments on the principal of the purchase price of income-producing real estate and capital assets, equipment, machinery, and other durable goods
- Interest paid to purchase income producing property
- Insurance premiums
- Taxes paid on income producing property
- Internet access fees incurred for businesses selling their goods through the Internet

Costs not allowed include:

- Net losses from previous periods
- Any expenses covered by the earned income deduction in [Section 12.3 Earned Income Deduction](#). This includes federal, state, and local income taxes, money set aside for retirement purposes, and other work related personal expenses (such as transportation to and from work).
- Costs of producing home produce intended for family consumption
- Family living expenses
- Entertainment expenses
- Personal debts
- Depreciation expenses except as allowed in capital gains income
- Any amount that exceeds the payment a household receives from a boarder for lodging and meals

11.5 UNEARNED INCOME

Unearned income is all income that is not earned from one's job or profession **or** money that an individual receives from sources other than employment. Unearned income will include, but not be limited to:

Unearned Income	Description	<i>NOTE/Exception:</i>
(A) Adoption subsidy	Adoption payments that help adoptive families access medical care, counseling or therapy, special equipment, tutoring programs, and other supports that assist them in raising their children who have special needs.	<i>Exception: any portion which covers medical care</i>
(B) Alimony payments	Spousal support that is a legal obligation to financially support a spouse before or after marital separation or divorce. Count as unearned income any alimony payments (court-ordered or voluntary) made directly to the household from non-household members, excluding any fees withheld.	
(C) Annuities	A series of payments made at equal intervals from a form of insurance or investment.	<i>NOTE: Average over the period of time intended to cover.</i>

	An annuity is a contract between an individual and an insurance or investment company.	
(D) Assistance payments from Federal or federally aided public assistance programs	Assistance payments from Federal or federally aided public assistance programs, such as Supplemental Security Income (SSI) or Temporary Assistance for Needy Families (TANF); general assistance programs; or other assistance programs based on need. Such assistance is considered to be unearned income even if provided in the form of a vendor payment (provided to a third party on behalf of the household), unless the vendor payment is specifically exempt from consideration as countable income under the provisions of Section 11.6 Income Exclusions . Assistance payments from programs which require, as a condition of eligibility, the actual performance of work without compensation other than the assistance payments themselves, will be considered unearned income.	<i>NOTE: South Carolina does not have general assistance programs, but an individual may receive this income from another State.</i>
(E) Cash contributions	A monetary gift made to the household by an individual who is a non-household member.	<i>NOTE: If the cash contributions are from a person not included in the SNAP household due to a sanction or disqualification, exclude the contributions due to the sanctioned/disqualified individual's income already being counted in the budget.</i>
(F) Cash donations	A monetary gift made by an organization, a nonprofit organization, charity, or private foundation.	<i>Exception: Exclude if received from one or more private nonprofit charitable organizations, but not to exceed \$300 in a Federal fiscal year quarter.</i> <i>NOTE: Count any amount over the \$300 limit as unearned income.</i>
(G) Child Support income	Child support payments made directly to the household from the absent parent or through the court are counted as unearned income. Any child support arrearages ordered by the court to be paid on a regular basis (arrearage plus current month's obligation) is considered income. Child support paid through the Child Support Services Division (CSSD) is budgeted by means of an automated interface between PACSS and CHIP systems.	<i>Exception: Arrearages ordered by the court to be paid in a lump sum are treated as a resource.</i> <i>Child support payments received by TANF recipients which must be transferred to the agency administering title IV-D of the Social Security Act, as amended, to maintain TANF eligibility is budgeted retrospectively by the PACSS/CHIP interface.</i>
(H) Deferred payment loans for education		This is no longer considered income – Effective April 1, 2012

(I) Direct money payments	Direct money payments from any source which can be construed to be a gain or benefit.	<i>Exception: Exclude payments that are not considered as a gain or benefit to the household.</i>
(J) Disability benefits	Payments made if an employee cannot work due to illness or an accident.	
(K) Dividends	Income above \$400 must be averaged over the period the payments cover and anticipated over the certification period.	<i>NOTE: Up to \$400 annually is excluded under SC TANF Policy.</i>
(L) Dividends from trust funds	Dividends which are, or could be, received by a household from trust funds considered to be excludable resources under Section 10.7 Exclusions from Resources . Dividends which the household has the option of either receiving as income or reinvesting in the trust are to be considered as income in the month they become available to the household unless otherwise exempt under the provisions of Section 11.6 Income Exclusions .	<i>NOTE: All resources are excluded for categorically eligible household.</i>
(M) Educational Assistance	Scholarships, educational grants, deferred payment loans for education, veteran's educational benefits and the like, other than educational assistance with a work requirement, in excess of amounts excluded under Section 11.6 Income Exclusions .	<i>NOTE: Any educational assistance excluded under South Carolina TANF rules is also excluded for SNAP.</i>
(N) Foster care payments (including accelerated board payments or Difficulty of Care Board Rate (DCBR) payments)	Payments made to the foster care provider for the purpose of meeting the needs of the individual in care. Count as unearned income when a foster child or foster adult is included in the SNAP household.	<i>Exception:</i> • <i>Exclude if the foster child or foster adult is not in the budget.</i> • <i>Exclude any one-time allowance available to a foster home at initial placement.</i> • <i>Exclude quarterly clothing allowance for children who are in foster care and residing with a licensed/ approved provider.</i>

(O) Garnished income from unearned income	Income that is required by court order to be withheld and diverted to a third party as payment on a debt.	
(P) Government sponsored programs payments	Payments from Government-sponsored programs	
(Q) Governmental rent, housing subsidies		<i>NOTE: See Section 11.6 (D) Income Exclusions (General Assistance [GA] vendor payments)</i>
(R) Home Energy Assistance Payments	Payments or allowances made to provide energy assistance.	<i>NOTE: Exclude the following:</i> • <i>Any payments or allowances (including utility reimbursements by HUD and the Rural Housing Service) made for the purpose of providing energy assistance under any Federal law other than part A of Title IV of the Social Security Act.</i> • <i>A one-time payment or allowance applied for on an as-needed basis and made under a federal or state law for the costs of weatherization or emergency repair or replacement of heating or cooling devices. A down payment followed by a final payment upon completion of the work will be considered a one-time payment.</i> • <i>Energy assistance payments provided through the Department of Health and Human Services' Low-Income Home Energy Assistance Program and the Community Services Administration's Energy Crisis Assistance and the Crisis Intervention Program.</i> • <i>HUD payments that are paid for utilities.</i>

		• HUD payments for housing that are paid solely to the landlord or mortgagee. HUD payments supplemented with TANF funds are excluded.
(S) Income maintenance insurance (including disability insurance)		
(T) Interest Income	The amount of money paid regularly at a particular rate for the use of money that has been earned during a specific time period.	<i>NOTE: Effective May 1, 2019, interest income of any amount must be verified.</i>
(U) Kinship Care Payments	Payments received in which a relative (other than the child's parent) or non-related adult has assumed full-time care of the child. Count the same as foster care payments for child(ren) who are considered members of the household.	<i>Effective April 30, 2017, SCDSS implemented a Kinship Foster Care Program.</i>
(V) Military allotments	A designated amount of money that is automatically withdrawn from a service member's paycheck and paid to another individual. This process can be voluntarily or involuntarily.	
(W) Monies withdrawn from trust funds	Monies which are withdrawn from trust funds considered to be excludable resources under Section 10.7 Exclusions from Resources . Such trust withdrawals will be considered income in the month received, unless otherwise exempt under the provisions of Section 11.6 Income Exclusions .	<i>NOTE: All resources are excluded for categorically eligible household.</i>
(X) Native American payments for tribes	Exclude up to \$2,000 per year of income received by individual Native Americans that is derived from interests in trust.	<i>Exceptions:</i> • Exclude all tribal dividend money deposited into a child's trust. • Count casino profit payments as unearned income in the month received. Do <u>not</u> apply the \$2000 exclusion.
(Y) Pension	A regular payment made during a person's retirement from an investment fund to which that person or his/her employer has contributed during his/her working life.	

(Z) Recoupment/Repayment from means tested programs	Monies withheld from an assistance payment to repay a prior overpayment received from that source. For TANF, count recoupment/repayment due to Intentional Program Violation (IPV), fraud, or client error. For SSI, count recoupment/repayment due to IPV or fraud.	<i>Exceptions:</i> • <i>For SSI, exclude recoupment/repayment due to client error.</i> • <i>For TANF and SSI, exclude recoupment/repayment due to agency error.</i>
(AA) Recoupment/Repayment from non-means tested source	Monies withheld from any income source other than means-tested to repay a prior overpayment received from that source. Exclude the recoupment/repayment amount. Count the gross amount minus the recoupment/repayment amount.	
(BB) Refugee Cash Assistance (RCA)	Cash assistance provided to refugees who are ineligible for TANF funds or other cash assistance programs.	<i>NOTE: RCA is limited to eight months beginning with the first month of the date of entry in the U.S.</i>
(CC) Reimbursements	The act of compensating an individual for an out-of-pocket expense by giving him/her an amount of money equal to what was spent.	<i>NOTES:</i> • <i>Exclude reimbursements for past or future expenses to the extent they do not exceed actual expenses, and do not represent a gain or benefit to the household.</i> • <i>Reimbursements will not be considered to exceed actual expenses unless the provider or household indicates the amount is excessive.</i> • <i>Reimbursements or flat allowances for job or training related expenses such as travel, per diem or uniforms are not considered a gain/benefit to the household.</i> • <i>No portion of any educational assistance that is provided for normal living expenses</i>

		<i>(room and board) will be considered an excludable reimbursement.</i>
(DD) Rental Property Income	Gross income minus the cost of doing business derived from rental property in which a household member is not actively engaged in the management of the property at least 20 hours a week	<i>NOTE: Use the actual cost of doing business. The 40% cost of doing business applies to earned income only.</i>
(EE) Representative payee funds received for care and maintenance of non-household member	Count portion retained by representative payee for his/her benefit.	<i>Exception: Exclude if diverted to non-household member.</i>
(FF) Representative Payee Payments	Income received by one person (representative payee) for the needs of another person (beneficiary). Count if money is received for a household member or any amount retained by the representative payee for his/her own use.	
(GG) Retirement Benefits	Monthly payments made to an individual who is retired from work.	
(HH) Reverse Mortgage	Income from a loan against the home with no repayment required until the borrower dies or the home is sold.	<i>Exclude if there is a verifiable agreement to repay the loan.</i> <i>Count as unearned income if there is no repayment agreement.</i>
(II) Royalties	Payments made by one party to another that owns a particular asset, for the right to ongoing use of that asset. Income above \$400 must be averaged over the period the payments cover and anticipated over the certification period.	Up to \$400 annually is excluded under SC TANF Policy.
(JJ) Severance pay	An amount paid to an employee upon dismissal or discharge from employment. If more than one payment is made, count as income.	<i>Exception: If payment is made as a non-recurring lump sum, treat as a resource.</i>
(KK) Shared living arrangements		<i>NOTE: Proration of shelter costs for households living in the same residence does not necessarily imply an unearned income contribution if these payments are designated as each household's share of expenses. The Agency must verify that a shared living arrangement exists, rather than a</i>

		<i>landlord/tenant relationship. See Section 12.5 (5) Multiple households/ multiple residences</i>
(LL) Sick pay benefits paid by employer	Salary or wages paid to an employee while on sick leave. Count as unearned income if the employee will not return to work.	<i>Exception: Count as earned income if the employee will return to work.</i>
(MM) Sick pay benefits from source other than employer, such as an insurance company		
(NN) Social Security Administration (SSA) benefits	Monthly payments to retired persons at least age 62, disabled persons, survivors and families of retired or disabled persons. Count the gross amount even if taxes or a Medicare premium is withheld. The Economic Services worker should use BENDEX field “Total Net Amount” to obtain the monthly benefit countable amount. See 11.5 Unearned Income (AA) Recoupment from non-means tested programs The IRS can intercept SSA benefits to collect claims paid for unpaid federal tax bills under the Federal Payment Levy Program. These garnished amounts are included.	<i>Exception: For cases where the Social Security Benefits are paid to a representative payee, count the amount made available to or used on behalf of the household as unearned income. Count any amount retained by the representative payee for his/her own use as income to the representative payee.</i> <i>NOTE: For cases where the Social Security Benefits are paid to a representative payee, the ES Worker should use BENDEX field “Net Monthly Ben Amt (MBC)” to obtain countable income.</i>
(OO) Strike benefits	Payments made by a union to provide subsistence to strikers.	<i>NOTE: See Section 2.4 Strikers</i>
(PP) Supplemental Security Income (SSI) benefits	Monthly payments to low-income persons who are aged, blind, or disabled per Title XVI of the Social Security Act. The Economic Services worker should use SDX field “SSI MO AST AMT” unless there is a recoupment due to IPV or fraud. See 11.5 Unearned Income (Z) Recoupment from means tested programs Exception: When determining SCCAP “Y” eligibility, the Economic Services worker	<i>Exception: Exclude recoupment for overpayments due to agency and client error.</i> <i>Exception: For non-SCCAP cases where the SSI is paid to a representative payee, count the amount made available to or used on behalf of the household as unearned income. Count any amount retained by the representative payee for his/her</i>

	should use the SDX field “GRO” in addition to any other unearned income in a current pay status on SDX, excluding in-kind income/benefits). See Section 19.2 .	<i>own use as income to the representative payee.</i>
(QQ) TANF benefits	Monthly cash benefits provided to needy families based on eligibility standards set by the State. Count TANF supplemental payments for current and subsequent months.	<i>Exception: Exclude TANF retroactive payments. Exclude TANF payments of less than \$10 per month. This is automatically done by the CHIP system.</i>
(RR) Third party payments/vendor payments	Moneys legally obligated and otherwise payable to the household which are diverted by the provider of the payment to a third party for a household expense.	<i>NOTE: Money deducted or diverted from a court-ordered support or alimony payment (or other binding written support or alimony agreement) to a third party for a household's expense is an example.</i> <i>Exceptions:</i> <i>Exclude payments specified by a court order or other legally binding agreement to go directly to a third party rather than the household because they are not otherwise payable to the household.</i> <i>Income diverted to an ex-spouse under the Uniformed Services Former Spouse Protection Act is excluded from the budget of the military retiree.</i> <i>If the ex-spouse is a SNAP recipient, this would be counted as income to the ex-spouse.</i>

		<i>i.e. A military retiree receives \$800 each month and, under the Uniformed Services Former Spouse Protection Act, \$300 is obligated to the retiree's ex-spouse. If both had SNAP cases \$500 should be budgeted in the retiree's case, and \$300 should be budgeted in the ex-spouses case.</i>
(SS) Trade readjustment allowance	A form of income support payments made to individuals who have exhausted unemployment compensation benefits and whose jobs were directly affected by foreign imports as determined by a certification of group coverage issued by the U.S. Department of Labor. Count the same as unemployment compensation benefits.	
(TT) Training allowances	A stipend or other payment made by an employer or from public funds to an employee undergoing training.	<i>Exception: Exclude if training allowance is considered a reimbursement.</i> <i>NOTE: Count as earned income if training allowance is connected with an hourly wage or salary.</i>
(UU) Trust fund	An estate planning tool that allows a person to put aside money and/or other assets that will later be distributed to the beneficiaries named on the trust. Count any money withdrawn by the household from the trust fund or used on behalf of the household as unearned income in the month received. Dividends which the household has the option of either receiving as income or reinvesting in the trust must be counted as	

	income in the month they became available to the household.	
(VV) Unemployment Compensation Benefits (UCB)	Benefits paid to a person whose job has ended due to lay-off, firing without good cause, or quitting with good cause. Unemployment compensation benefits include any amounts deducted to repay claims for Intentional Program Violations (IPV).	<i>NOTE: This includes Pandemic Emergency Unemployment Compensation and/or Pandemic Unemployment Assistance.</i> <i>Exception: Exclude UCB withheld to repay a prior overpayment that is not due to an IPV.</i>
(WW) USDA settlement to African-American Farmers - Pigford v. Glickman	A class action lawsuit against the United States Department of Agriculture (USDA), alleging racial discrimination against African-American farmers in its allocation of farm loans and assistance between 1981 and 1996. Count as lump sum payment.	
(XX) Veterans Administration (VA) benefits	Financial and other forms of assistance to veterans and their dependents.	<i>NOTE: This includes amounts for aid and attendance benefits or housebound allowance.</i>
(YY) Veterans benefits authorized under the Agent Orange Act of 1991	Veterans Administration (VA) payments made to Vietnam Veterans with a specified military related disability.	<i>Exception: Agent Orange payments made by Aetna Life and Casualty.</i>
(ZZ) Veteran's educational benefits not excluded under SC TANF Policy	Veterans educational benefits used for purposes other than tuition and mandatory fees are countable unearned income	<i>NOTE: This includes GI Educational Benefits.</i>
(AAA) Victim's compensation payments	A direct financial reimbursement to a victim for an expense that resulted from a crime, such as medical costs or lost wages. If recurring payments, count as unearned income. Exclude non-recurring lump sum payments.	<i>Exception: If a non-recurring lump sum payment, consider as a resource.</i>
(BBB) Vocational rehabilitation subsistence allowance from Veterans Administration	Subsistence allowance from VA allotted to veterans to assist them financially while attending school or participating in a Non-Paid work experience.	
(CCC) Withdrawals from resources for categorically eligible households.		This is no longer considered income. Effective May 1, 2013, excludable cash resource from Retirement Accounts does <i>not</i> convert to income even if withdrawals are made.

(DDD) Worker's Compensation Benefits	Benefits paid to an employee who is injured on a job covered by the program. Worker's compensation benefits include any amounts deducted to repay claims for intentional program violations.	
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11.6 INCOME EXCLUSIONS

Only the following will be **excluded** from household income and no other income will be excluded:

Excluded Income	Description	<i>NOTE/Exception:</i>
(A) Demonstration project vendor payments	In-kind or vendor payments which would normally be excluded as income but are converted in whole or in part to a direct cash payment under a federally authorized demonstration project or waiver of provisions of Federal law.	
(B) Educational assistance, including grants, scholarships, fellowships, work study, educational loans on which payment is deferred	See Section 11.7 Education Assistance	<i>NOTE: Any educational assistance excluded under South Carolina TANF rules is also excluded for SNAP.</i>
(C) Educational assistance vendor payments	Educational assistance provided to a third party on behalf of the household.	<i>EXCEPTION: Educational assistance provided to a third party on behalf of the household for living expenses will be treated the same as educational assistance payable directly to the household.</i> <i>NOTE: Any educational assistance excluded under South Carolina TANF rules is also excluded for SNAP.</i>
(D) Federal law income exclusions	See Section 11.8 Federal Law Income Exclusions	
(E) General Assistance (GA) vendor payments	GA vendor payments made under a State or local GA program or a comparable basic assistance program are excluded from income except for some vendor payments for housing. A housing vendor payment is counted as income unless the payment is for: 1. Energy assistance as defined in Section 11.5 (R) Home Energy Assistance Payments;	

	2. Housing assistance from a State or local housing authority; 3. Emergency assistance for migrant or seasonal farmworker households while they are in the job stream; 4. Emergency or special payments as defined in Section 11.6 (I)(6); or 5. Assistance provided under a program in a State in which no GA payments may be made directly to the household in the form of cash.	
(F) Housing and Urban Development (HUD) vendor payments	Rent or mortgage payments made to landlords or mortgagees by HUD.	
(G) Infrequent or irregular income	Any income in the certification period which is received too infrequently or irregularly to be reasonably anticipated, but not in excess of \$30 in a quarter.	
(H) In-kind benefits	Benefits for which no monetary payment is made on behalf of the household; or any gain or benefit which is not in the form of money payable directly to the household.	
(I) Loans	Money that is borrowed and is expected to be paid back. All loans, including loans from private individuals, as well as commercial institutions (other than educational loans on which repayment is deferred) are excluded.	<i>NOTE: To be excluded as a loan, there must be some expectation that the money will be paid back (i.e. some type of repayment schedule/ agreement).</i>
(J) Lump Sums	Money received in the form of a non-recurring lump-sum payment, including but not limited to income tax refunds, rebates, or credits; retroactive lump sum Social Security, SSI, Public Assistance, Railroad retirement benefits, or other payments; lump sum insurance settlements; or refunds of security deposits on rental property or utilities. These payments are treated as a resource in the month received.	<i>NOTE: Federal/State income tax refunds are no longer considered a resource effective May 1, 2013. (See Chapter 10)</i>

(K) Public Assistance (PA) vendor payments	PA vendor payments are counted as income unless they are made for: 1. Medical assistance; 2. Child care assistance; 3. Energy assistance as defined in Section 11.5 (R) Home Energy Assistance Payments; 4. Emergency assistance (including, but not limited to housing and transportation payments) for migrant or seasonal farmworker households while they are in the job stream; 5. Housing assistance payments made through a State or local housing authority; 6. Emergency and special assistance. PA provided to a third party on behalf of a household which is not specifically excluded from consideration as income under 1 - 5 above will be considered for exclusion under this provision.	<i>NOTE: To be considered emergency or special assistance and excluded under this provision, the assistance must be provided over and above the normal PA grant or payment, or cannot normally be provided as part of such grant or payment.</i>
(L) Vendor payments	Money payments made on behalf of a household by a person or organization outside of the household directly to either the household's creditors or to a person or organization providing a service to the household; or any gain or benefit which is not in the form of money payable directly to the household.	<i>NOTE: Reimbursements made in the form of vendor payments are excluded on the same basis as reimbursements paid directly to the household in accordance with Section 11.5 (CC) Unearned Income (Reimbursements).</i>
(M) Veterans' educational benefits	See 11.5 (ZZ) Veteran's Educational Benefits not Excluded under SC TANF Policy	<i>NOTE: Veteran's educational benefits used for purposes other than tuition and mandatory fees are countable unearned income.</i>
(N) Uniformed Services Former Spouse Protection Act	An Act that provides certain benefits to former spouses of military members. Income diverted to an ex-spouse under this act is excluded from the budget of the military retiree.	<i>NOTE: Income received by the ex-spouse of a military retiree would be counted as income to the ex-spouse.</i>

11.7 EDUCATIONAL ASSISTANCE

Educational assistance is financial support provided to learn new skills or to pursue an additional degree(s) and/or certification(s).

To be excluded, educational assistance, including grants, scholarships, fellowships, work study, educational loans on which payment is deferred, veterans' educational benefits and the like must be:

(A) Received under Title IV of the Higher Education Act of 1965, as amended, or under Bureau of Indian Affairs student assistance programs.

(B) Awarded to a household member enrolled at a:

(1) Recognized institution of post-secondary education (meaning any public or private educational institution which normally requires a high school diploma or equivalency certificate for enrollment or admits persons who are beyond the age of compulsory school attendance in the State in which the institution is located, provided that the institution is legally authorized or recognized by the State to provide an educational program beyond secondary education in the State or provides a program of training to prepare students for gainful employment, including correspondence schools at that level),

(2) School for the handicapped,

(3) Vocational education program,

(4) Vocational or technical school,

(5) Program that provides for obtaining a secondary school diploma or the equivalent;

(C) Used for or identified (earmarked) by the institution, school, program, or other grantor for the following allowable expenses:

(1) Tuition,

(2) Mandatory school fees, including the rental or purchase of any equipment, material, and supplies related to the pursuit of the course of study involved,

(3) Books,

(4) Supplies,

(5) Transportation,

(6) Miscellaneous personal expenses, other than normal living expenses, of the student incidental to attending a school, institution or program,

(7) Dependent care,

NOTE: Amounts excluded for dependent care costs will not also be excluded under the general exclusion provisions of [Section 12.6 Dependent Care Deduction](#).

(8) Origination fees and insurance premiums on educational loans,

(9) Normal living expenses which are room and board are not excludable.

Exclusions of allowable educational expenses which are earmarked by the institution, program or other grantor must be incurred or anticipated for the period the educational income is intended to cover, regardless of when the educational income is actually received.

If a student uses other income sources to pay for allowable educational expenses in months before the educational income is received, the exclusions to cover the expenses will be allowed when the educational income is received.

When the amounts used for allowable expense are more than amounts earmarked by the institution, school, program or other grantor, an exclusion will be allowed for amounts used over the earmarked amounts.

A student's total educational income exclusions granted under the provisions cannot exceed that student's total educational income.

Educational assistance that would not already be excluded under SNAP may be excluded under South Carolina TANF rules.

11.8 FEDERAL LAW INCOME EXCLUSIONS

The payments/benefits received from the following sources are excluded as income by federal law:

- (A) Agent Orange payments by Aetna Life and Casualty
- (B) Allowances, earnings, or payments to individuals participating in WIOA programs except earnings paid to participants in on-the-job training programs.
- (C) Child Care Development Block Grant (this includes Child Care Scholarship Program)

NOTE: *Payments from this funding to an individual providing the child care are counted as earned income.*

- (D) Crime victim compensation received under the Crime Act of 1984
- (E) Robert T. Stafford Disaster Relief and Emergency Assistance Act
- (F) Disaster relief employment income from National Emergency Grants that are part of the Workforce Innovation and Opportunity Act (WIOA). Verification may be obtained through WIOA at Department of Employment and Workforce (DEW)
- (G) Family Investment Center Program services through the Department of Housing and Urban Development (HUD). These services include, but are not limited to:
 - Child care
 - Employment training and counseling
 - Literacy training
 - Computer skills training
- (H) Filipino Veterans Equity Compensation Fund paid to veterans and the spouses of veterans who served in the military of the commonwealth of the Philippines during World War II.
- (I) Income funded under Older American Act (formerly Green Thumb), including but not limited to AARP, Experience Works, National Council on Aging, and Senior Community Service Employment Programs (SCSEP).
- (J) Indian payments as follows:
 - Income derived from certain sub-marginal land of the United States which is held in trust for certain Indian tribes (Pub. L. 94-114, section 6)
 - Income derived from the disposition of funds to the Grand River Band of Ottawa Indians (Pub. L. 94-540)
 - Payments by the Indians Claims Commission to the Confederated Tribes and Bands of the Yakima Indian Nation or the Apache Tribe of the Mescalero
 - Payments to the Passamaquoddy Tribe and the Penobscot Nation or any of their members received pursuant to the Maine Indian Settlement Act of 1980 (Pub. L. 96-420, section 5)
 - Payments of relocation assistance to members of the Navajo and Hopi Tribes (Pub. L. 93-531)
 - Payments made under the Alaska Native Claims Settlement Act (Pub. L. 92-302, section 21a)

- (K) Medicare approved Prescription Drug Card discount and/or credit
- (L) National Flood Insurance Program (NFIP) payments under the National Flood Insurance Act of 1968, as amended by Pub. L. 109-64, enacted on September 20, 2005.
- (M) Nazi Persecution: payments made to victims of Nazi persecution
- (N) Old Age Assistance Claims Settlement Act payments of \$2,000 or less
- (O) PASS: income of an SSI recipient necessary for fulfillment of a Plan for Achieving Self-Support (PASS) under Title XVI of the Social Security Act. This income may be spent in accordance with an approved PASS or deposited into a PASS savings account for future use.
- (P) Radiation Exposure Compensation Act
- (Q) Uniform Relocation Assistance and Real Property Acquisition Policy Act of 1970 (Public Law 91-646, Section 216)
- (R) Veterans Administration (VA) benefits paid to the children of Vietnam veterans born with spinal bifida and certain other birth defects
- (S) Weekly \$25 supplemental weekly Unemployment Compensation payment authorized by the American Recovery and Reinvestment Act of 2009 (ARRA).
- (T) Earned income Tax credit payments received either as a lump sum or payments under section 3507 of the Internal Revenue Code of 1986 (relating to advance payment of earned income tax credits received as part of the paycheck or as a reduction in taxes that otherwise would have been paid at the end of the year).
- (U) Weekly Federal Pandemic Unemployment Compensation (FPUC) through the Consolidated Appropriations Act, 2021 and the American Rescue Plan Act of 2021 which are payments made to an individual under section 2104 of the Coronavirus Aid, Relief, and Economic Security Act (CARES Act). These payments should not be regarded as income or resources in the initial month of receipt or any of the following 9 months.
- (V) Rebate payments to eligible individuals (including payments for children) through the Consolidated Appropriations Act, 2021 and the American Rescue Plan Act of 2021. These rebates are excluded from consideration as income in the month of receipt and as a resource for 12 months following receipt date.

Chapter 12 Income Deductions

12.1 INCOME DEDUCTIONS/GENERAL

After determining the gross income of each household member, the following deductions, provided the household is eligible for them, may be given:

- (A) A federally mandated standard deduction (See [Section 12.2 Standard Deduction](#));
- (B) 20% earned income deduction (See [Section 12.3 Earned income Deduction](#));
- (C) \$744 Maximum excess shelter deduction (See [Section 12.4 Shelter Deduction](#));

NOTE: Households where all members are homeless may be given a homeless standard shelter deduction up to the maximum of \$198.99, if they incur shelter expenses.

- (D) \$388 Mandatory utility allowance (MUA). See [Section 12.5 Utility Allowances \(2\) Mandatory Utility Allowance \(MUA\)](#);
- (E) \$265 Basic utility allowance (BUA). See [Section 12.5 Utility Allowances \(3\) Basic Utility Allowance \(BUA\)](#);
- (F) \$27 Telephone allowance
- (G) Monthly dependent care expenses. See [Section 12.6 Dependent Care Deduction](#);
- (H) Legally obligated child support deduction. See [Section 12.7 Child Support Deduction](#); and
- (I) Medical deduction in excess of \$35. See [Section 12.8 Medical Deduction](#).

Required verification must be provided before a deduction can be given.

12.2 STANDARD DEDUCTION

According to the federal regulations, each household is allowed a standard deduction that varies according to household size. Total income is reduced by the amount of the standard deduction. The standard deduction by household size is as follows:

- (A) \$209 for household size of 1- 3
- (B) \$223 for household size of 4
- (C) \$261 for household size of 5
- (D) \$299 for household size of 6 or more

12.3 EARNED INCOME DEDUCTION

Twenty percent of gross earned income as defined in [Section 11.3 Earned Income](#) is disregarded for each employed household member. This disregard is intended to cover payroll deductions such as State, and local income taxes, money set aside for retirement purposes, and other work-related personal expenses (such as transportation to and from work). Earnings excluded in [Section 11.6 Income Exclusions](#) will not be included in gross earned income for purposes of computing the earned income deduction.

The earned income deduction is not applied when:

- The Benefit Integrity Claims Specialist calculates an intentional program violation claim (See [Chapter 23 Claims Against Households](#)).
- When determining an overpayment due to the household failing to report earned income in a timely manner.

For self-employment income (See [Section 11.4 Self-employment Income](#)) the cost of doing business should be deducted from the gross income before the 20% deduction is applied. For self-employment income where there is a farm loss:

- (A) Compute the total gross farm self-employment
- (B) Subtract the allowable costs of doing business
- (C) Compute the total gross non-farm self-employment
- (D) Subtract the allowable costs of doing business and any farm losses

Apply the earned income deduction to any net profit. If there is no net profit, there is no earned income deduction. If the household has a farm loss to be offset against earned income that is not from self-employment, the earned income deduction is computed based on this remaining earned income.

12.4 SHELTER DEDUCTION

(1) Excess shelter deduction

Excess shelter deduction is the monthly shelter expenses in excess of 50 percent of the household's income after all other deductions have been allowed (See [Section 12.1 \(C\) Income Deduction/General \(Maximum Excess Shelter Deduction\)](#)). Households containing a member (or members) who are elderly or disabled (See [Section 14.10 Definition of Elderly or Disabled](#)) are entitled to an unlimited excess shelter deduction. All other households are entitled to a limited excess shelter deduction not to exceed the amount noted in [Section 12.1 \(C\) Income Deduction/General \(Maximum Excess Shelter Deduction\)](#).

NOTE: An ineligible noncitizen or SSN disqualified person who is elderly or disabled does not entitle the household to an unlimited shelter deduction.

(2) Billed expenses

Except as provided in Section 12.4 (3) below, a shelter deduction will be allowed only in the month the expense is billed or otherwise becomes due, regardless of when the household intends to pay the expense. Amounts carried forward from past billing periods are not deductible, even if included with the most recent billing and actually paid by the household. When the household occupies a residence that has a monthly rent structure, the monthly amount of rent should be taken into consideration each month when the shelter deduction is determined without regard to when it is actually paid.

(3) Averaging shelter expenses

Households may elect to have an expense that is billed less often than monthly averaged over the interval between scheduled billings, or if there is no scheduled interval, over the period it is intended to cover. A prorated share of the expense would be allowed in each month over which the payment was averaged, even if all of the months are not within the same certification period.

(4) Allowed shelter costs

Only the following expenses are allowable shelter costs:

- (A) Continuing charges for the shelter occupied by the household, including rent, mortgage (first & second mortgage), condo and association fees, or other continuing charges leading to the ownership of the shelter such as loan repayments for the purchase of a mobile home, including interest on such payments.

NOTE: A deduction for a reverse mortgage will only be allowed if the household is billed for the expense.

NOTE: A home equity loan is considered a second mortgage.

- (B) Property taxes, State and local assessments.
- (C) Insurance premiums on the structure itself, but not separate costs for insuring furniture or personal belongings.
- (D) The cost of fuel for heating; cooling (i.e., the operation of air conditioning systems or room air conditioners); electricity or fuel used for purposes other than heating or cooling; water; sewerage; well installation and maintenance; septic tank system installation and maintenance; garbage and trash collection; service fees for one telephone.

NOTE: One-time deposits cannot be included.

- (E) The shelter costs for a home if temporarily not occupied by the household because of employment or training away from home, illness, or abandonment caused by a natural disaster or casualty loss.

For costs of a home vacated by the household to be included in the household's shelter costs, the household must intend to return to the home; the current occupants of the home, if any, must not be claiming the shelter costs for SNAP purposes; and the home must not be leased or rented during the absence of the household.

NOTE: The household can only choose actual utility costs, not the MUA or BUA for an unoccupied home.

- (F) Charges for the repair of the home which was substantially damaged or destroyed due to a natural disaster such as a fire or flood. Shelter costs will not include charges for repair of the home that have been or will be reimbursed by private or public relief agencies, insurance companies, or from any other source.

NOTE: A shelter deduction cannot be allowed for any expense paid in the form of a vendor payment with the exception of those vendor payments which are included as income.

(5) Disallowed shelter costs

The following are not allowed as shelter costs:

- (A) Mortgage payments on which the Farmer's Home Administration (FmHA) has placed a moratorium.

NOTE: After the one- or two-year moratorium has ended, allow the recalculated payment.

- (B) Fees charged for one-time deposits on utilities or penalty fees for late payments.
- (C) Weatherization expenses.
- (D) Regime fees that do not lead to ownership.
- (E) Insurance premiums for separate identifiable costs for belongings.
- (F) Repairs or replacement of appliances, water well, etc., due to wear or mechanical problems.
- (G) Costs relating to housing not actually occupied by the household unless temporarily unoccupied according to [Section 12.4 Shelter Deduction \[Allowed shelter expenses \(E\)\]](#).
- (H) Down payments, closing costs, etc., incidental to purchase of home.
- (I) Site preparation to locate mobile home.
- (J) Any portion of a HUD rental subsidy designated as a recoupment.
- (K) Any portion of a mortgage payment which is intended to cover any past due amounts.
- (L) Any expense paid in the form of an excluded vendor payment.

12.5 UTILITY ALLOWANCES

(1) Utility allowances/General

At initial certification, a household will be assigned one of the following utility allowances based on the household's utility cost:

- (A) Actual verified utility cost, if not entitled to the MUA or BUA
- (B) Mandatory utility allowance (MUA) if entitled
- (C) Basic utility allowance (BUA) if entitled, or
- (D) No utility deduction.

A household's utility allowance may be changed at recertification or when the household moves. A utility allowance may be changed for a household with a 24-month certification period at the 12-month interim contact.

Utility costs include the costs for:

- Cooling
- Heating fuel
- Cooking fuel
- Water/sewerage
- Electricity
- Garbage/trash collection
- State standard for telephone use. Households participating in the Lifeline program are eligible for the state telephone standard.
- Fees charged for installation of utilities.

NOTE: If actual utility costs or the BUA is assigned as the household's utility deduction and verification is not submitted, the deduction cannot be allowed.

(2) Mandatory Utility Allowance (MUA)

To be entitled to the MUA, the following criteria must be met:

- (A) During the year, separately from their rent or mortgage, the households must incur and be billed for, or expect to incur during the next heating or cooling season:
 - Heating cost
 - Cooling cost (air conditioning) or
- (B) The household must have received a Low-Income Home Energy Assistance Program (LIHEAP) payment greater than \$20 within the past 12 months, regardless of whether or

not a heating/cooling cost is incurred. Eligibility for LIHEAP implies out-of-pocket expense.

NOTE: LIHEAP payments in South Carolina are greater than \$20. Therefore, it will only be necessary to establish that the client received LIHEAP within the previous 12 months when establishing eligibility for MUA based on receipt of LIHEAP.

OR

(C) The household must receive energy assistance under state law.

Households that receive a HUD utility payment or an FmHA utility payment are entitled to a utility deduction only if they incur heating or cooling costs that exceed the amount of the utility payment. In this situation, the household must receive the MUA.

The MUA may be given to:

- (A) Households in private rental housing who are billed by their landlords on the basis of individual usage or who are charged a flat rate separately from their rent.
- (B) Households that receive energy assistance (other than LIHEAP) that is excluded as income if the amount of the expense exceeds the amount of the energy assistance.
- (C) Households that receive energy assistance that is counted as income.
- (D) Residents of public housing units which have central utility meters and charge the households only for excess heating or cooling costs.

NOTE: A household that has both an occupied home and an unoccupied home is only entitled to one utility allowance.

The MUA must not be given to the following unless the household receives LIHEAP:

- (A) Households with no utility expenses.
- (B) Households billed for some utilities but not incurring a heating/cooling cost.
- (C) Households whose primary heating/cooling cost is included in the rent or mortgage payment. The household must incur expenses for its primary heating/cooling costs separately and apart from its rent or mortgage to be entitled to the MUA. Utility costs for the operation of a space heater, electric blanket, heat lamp or a cooking stove and the like when used as a supplemental heating source do not qualify a household for the MUA.

(3) Basic Utility Allowance (BUA)

Households billed for some utilities but not incurring a heating or cooling cost may receive the BUA. To be entitled to the BUA, the household must incur and be billed for **at least two** of the following:

- Fuel (for purposes other than heating or cooling)

- Water
- Sewerage
- Electricity (for purposes other than heating or cooling)
- Garbage and/or trash collection
- Well and septic tank installation and maintenance
- Telephone

The BUA must not be given to the following households:

- (A) Households with one or no utility expenses.
- (B) Households whose utility costs are included in the rent payment.

(4) Actual utility costs

Actual utility costs are only allowed for households not entitled to the MUA or BUA. If eligible for actual costs, deductions are allowed for:

- Heating fuel
- Cooking fuel
- Water
- Sewerage
- Electricity
- Garbage and/or trash collection
- Fees charged for utility installation
- State standard for telephone

The Agency must reasonably anticipate that the charges for claimed utilities will continue throughout the certification period.

(5) Multiple households/multiple residences

Multiple households living in the same residence must agree on the type of utility allowance, either MUA, BUA or actual. Entitlement to the MUA is based on either heating or cooling costs, receipt of LIHEAP, or energy assistance under state law.

Entitlement to the BUA is based on non-heating/non-cooling costs. If a household lives with and shares heating or cooling expenses with another individual, another household, or both, the Agency will **not** prorate the MUA or BUA provided to a household that lives and shares heating or cooling expenses with others. The Agency will **not** prorate the MUA or BUA if all the individuals who share utility expenses but are not in the SNAP household are excluded from the household only because they are ineligible. See [Section 11.5 Unearned Income \(KK\) Shared living arrangements](#).

12.6 DEPENDENT CARE DEDUCTION

A dependent care deduction is allowed for payments when necessary for a household member to search for, accept or continue employment, or attend training or pursue education that is preparatory to employment, except as provided in [Section 13.5 \(6\) Disallowed expenses](#).

Costs that may be deducted are limited to the care of an individual for whom the household provides dependent care, including care of a child under the age of 18 or an incapacitated person of any age in need of care. The costs of care provided by a relative may be deducted so long as the relative providing care is not part of the same SNAP household as the child or dependent adult receiving care.

Dependent care expenses must be separately identified, necessary to participate in the care arrangement, and not already paid by another source on behalf of the household. If a household incurs attendant care costs that could qualify under both the medical deduction and dependent care deduction, the costs may be deducted as a medical expense ([See 12.8 Medical Deduction](#)) or a dependent care expense, but not both.

NOTE: To be eligible to receive a dependent care deduction, the household must pay an individual outside of the SNAP household for this service/care and the payment must not be in the form of an in-kind benefit. (See [Section 13.5 \(6\) Disallowed expenses](#))

Allowable dependent care costs include:

- The costs of care given by an individual care provider or care facility;
- Transportation costs to and from the care facility; and
- Activity or other fees associated with the care provided to the dependent that are necessary for the household to participate in the care.

The following chart describes treatment of dependent care expenses associated with educational assistance:

Educational Assistance	Treatment	Deduction
(A) Carl D. Perkins educational assistance	Exclude the amount earmarked or amount verified, whichever is greater. Total exclusions for verified amount cannot be greater than total grant amount.	If household verifies dependent care expense which, with total exclusions, is more than total grant, allow a deduction for the excess on CHIP EXNS screen

(B) Other educational assistance not totally excluded	(i) If earmarked under miscellaneous personal expenses (MPE), exclude earmarked amount or amount verified, whichever is greater. (ii) If earmarked other than under MPE, exclude as a reimbursement. (iii) If there is no earmarking for dependent care (under MPE or otherwise), do not exclude from educational assistance.	(i) If household verifies dependent care expense which, with total exclusions, is more than total grant, allow a deduction for the excess on CHIP EXNS screen (ii) Allow dependent care deduction on CHIP EXNS screen for amounts used over and above the earmarked amount. (iii) Allow dependent care deduction on CHIP EXNS screen.
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If dependent care expenses are earmarked in more than one source of educational assistance, exclude the earmarked amount from each source.

The following chart describes the treatment of child care payments and dependent care expenses not associated with educational assistance:

Type	Treatment
(C) Payments made under the Child Care and Development Block Grant (CCDBG) - This includes Child Care Scholarship Program	Exclude income to the household containing the children, as this is a vendor payment. No deduction allowed. Count payments to the individual providing the child care as earned income. If an individual pays out-of-pocket costs, a deduction may be allowed for this amount.
(D) Attendant care cost	If qualifies under both the dependent care and medical deduction, treat cost as medical expense or a dependent care expense, but not both.
(E) Reimbursed dependent care expenses	If reimbursement exceeds charge, count excess as income. No deduction allowed. If charge exceeds reimbursement, allow deduction for excess amount charged.
(F) Vendor paid dependent care expenses	Exclude as income. No deduction allowed.

12.7 CHILD SUPPORT DEDUCTION

A deduction is allowed for household members who make legally obligated child support payments to or for an individual living outside of the household (non-household member). This deduction will include legally obligated payments made to a third party on behalf of the non-household member (vendor payments). A deduction is allowed when a legally obligated child support payment is made to an individual or agency outside the household even if the child for whom the support is

paid is a household member. A deduction is also allowed for amounts paid toward court ordered child support arrearages. Alimony payments and amounts paid toward court costs will not be included in the child support deduction.

The child support deduction must reflect the amount the household pays or expects to pay during the certification period, not the obligated amount. This amount must not exceed the obligated amount.

The Agency must verify:

- The legal obligation to pay
- The amount of the obligation
- The monthly amount actually paid.

On initial applications and face-to-face/telephone recertification that report this expense, the Agency will verify the previous four weeks of payments. The average of these four weeks, taking into account any anticipated changes will be converted to a monthly amount and used as the household's support deduction. A deduction may also be allowed for amounts paid toward arrearages.

At recertification, any changes in the legal obligation to pay child support, including the obligated amount and the amount of legally obligated child support the household pays, must be verified. If the household fails or refuses to submit this required verification, eligibility and allotment will be determined without the child support deduction.

The Agency must estimate anticipated payments and use this estimate as the household's support deduction on those cases with no child support payment record or less than a four week record. Payments towards arrearages may be used in this estimate.

The Agency will use the previous four week record of payments to develop an average to convert to a monthly amount and use as the household's child support deduction. The Agency must make adjustments for any anticipated changes.

12.8 MEDICAL DEDUCTION

A medical deduction is the portion of out-of-pocket medical expenses in excess of \$35 per month per household, excluding special diets, incurred by at least one eligible household member who is elderly (age 60 or older) or disabled as defined in [Section 5.1 Verification Prior to Certification \(5\)\(I\) Disability](#). The individual must meet the definition of elderly or disabled at the time the expense was originally incurred/billed in order to receive a medical deduction for the out-of-pocket expense.

Effective November 2015, when a household's monthly medical expenses total more than \$35.00 but do not exceed \$210.00, the Standard Medical (SM) deduction of \$175.00 (\$210.00-\$35.00) may be allowed. To be eligible for the SM deduction, a household must incur and verify greater than \$35.00 a month in qualifying medical expenses.

Households that report incurring medical expenses greater than \$210.00 per month will be given the option to verify all of their actual monthly medical expenses in order to receive the Excess Medical (EM) deduction or monthly medical expenses that total more than \$35.00 but do not exceed \$210.00 in order to receive the SM deduction.

An out-of-pocket medical expense can be paid by another household member as long as an eligible member incurred the expense. The eligible member need not be a current household member but must have been a member of the household at the time the expense was incurred.

Credit card charges and loans for out-of-pocket medical expenses are allowed as deductions when the statement is received and the amount of reimbursement is known. The household must be able to verify the portion of the credit card statement or the loan (excluding interest) that is being claimed for the medical deduction.

NOTE: Spouses or other persons receiving benefits as a dependent of the SSI or disability and blindness recipient are not eligible to receive this deduction but persons receiving emergency SSI benefits based on presumptive eligibility are eligible for this deduction.

(1) Non-recurring medical expenses

These medical expenses occur on a one-time basis.

- For households subject to six-month or tri-annual recertification, allowable non-recurring medical expenses may be given, at the individual's option, as a one-time deduction, or the expense can be prorated over a 12-month period.
- For households in which all adult members are elderly or disabled with no earned income, allowable non-recurring medical expenses may be given, at the individual's option, as a one-time deduction, or the expense can be prorated over a 12-month period. At such time that the household is required to complete an interim contact form, a new certification period begins.

(2) Recurring medical expenses

These medical expenses continue to occur over a specific period of time. The deduction can be allowed in the month the expense is billed or otherwise becomes due. Past due medical expenses may be taken into consideration if reported at the appropriate certification/recertification as required. If the expense is billed less often than monthly, the household may elect to have the expense averaged over the certification period. Medical expense deductions would be based upon current verified medical expenses and any anticipated changes that can reasonably be expected to occur during the certification period. If the household reports a medical expense at certification but

cannot verify the expense, the Agency must not give the deduction until the expense and reimbursement are verified.

See [5.1 Verification Prior to Certification \(10\) Medical Expenses](#) for additional information regarding verification of medical at initial certification and [5.7 Verification Subsequent to Initial Certification](#) for additional information regarding verification and treatment of medical at recertification when changes are reported.

Allowable medical costs are:

Allowable Medical Expenses	Notes/Examples
(A) Cost of medical and dental care	Includes psychotherapy and rehabilitation services provided by a licensed practitioner authorized by State law or other qualified health professional including chiropractor and acupuncturist.
(B) Cost of hospitalization or outpatient treatment, nursing care and nursing home care provided by a facility recognized by the State	Includes payments by the household for an individual who was a household member immediately before entering a hospital or nursing home.
(C) Cost of drugs, medical supplies and equipment	Includes prescription drugs when prescribed by a licensed practitioner authorized under State law, other over-the-counter medication when approved by a licensed practitioner or other qualified health professional, approved medical supplies, durable equipment such as wheel chairs, walkers, hospital beds, sick room equipment (including rental) or other prescribed equipment. NOTE: The SNAP medical deduction may not be given for the cost of any Schedule I controlled substances, see website Controlled Substance Schedules (usdoj.gov) , and any expenses associated with its use, even if this cost was incurred while a resident of a state which had provisions to prescribe them.
(D) Premiums for health (medical, dental and vision) and hospitalization and insurance policy	NOTE: The costs of health and accident policies such as those payable in lump sum settlements for death or dismemberment <u>or</u> income maintenance policies such as those that continue mortgage or loan payments while the beneficiary is disabled are not deductible. Exclude the premium portion attributable to nondeductible coverage or to a person not entitled to medical deduction.
(E) Medicare premiums	Premiums related to coverage under Title XVIII of the Social Security Act Monthly Premium for individuals enrolled in the Medicare Drug Program Part D

(F) Cost-sharing or spend down expenses incurred by Medicaid recipients	Mandatory incurred medical expenses required prior to eligibility for certain Medicaid programs.
(G) Dentures, hearing aids and prosthetics	
(H) Cost of eyeglasses or contact lenses	Prescribed by a physician skilled in eye diseases or an optometrist.
(I) Costs associated with <u>any</u> animal specially trained to serve the needs of elderly or disabled program participants are allowable for purposes of the medical deduction when the service animal is prescribed by a licensed practitioner authorized by state.	Includes food, veterinarian bills and other related expenses. NOTE: The individual/client must confirm the need for the service animal. This means that the individual's/client's statement, verbal or written, is acceptable verification to establish that an animal is a service animal and the task(s) the animal has been trained to perform. However, the cost(s) associated with having a service animal must be verified by bills, receipts, etc., in order to receive a medical deduction.
(J) Reasonable cost of transportation and lodging necessary to obtain medical treatment or services	Mileage cost established for state employees (when a State vehicle is not available) is allowed when a client uses a vehicle owned by the SNAP household. Actual cost must be used for all other types of transportation.
(K) Cost of maintaining an attendant, homemaker, home health aide, childcare service or housekeeper necessary due to age, infirmity, or illness	If the household furnishes the majority of attendant's meals, a deduction in an amount equal to the maximum one-person SNAP allotment according to the Thrifty Food Plan (TFP) in effect at certification is allowed. If a household incurs attendant care costs that could qualify under both the medical deduction and dependent care deduction, the costs may be deducted as a medical expense or a dependent care expense, but not both.
(L) Cost of telephonic equipment	Includes monthly telephonic fees for amplifiers and warning signals and cost of typewriter equipment for the deaf or hard of hearing which can be plugged into the telephone system.

Expenses incurred because of special diets are not an allowable medical deduction.

Chapter 13 Determining Household Eligibility and Benefit Levels

13.1 PROSPECTIVE ELIGIBILITY

Prospective eligibility is the use of anticipated and/or actual income and circumstances to determine eligibility for the benefit month. If prospective ineligibility is determined, the case must be closed at the earliest possible effective date.

All SNAP cases are budgeted prospectively. The Agency will use the following budgeting procedures to determine ongoing prospective income:

- (A) To determine representative income, verify all income received in the past 30 days (four (4) current consecutive weeks) prior to the file date. The file date is the date the application (initial or reapplication), recertification or report form is received.
- (B) Determine the number of times this income was received in those four weeks. Use income receipt date (not pay period ending date). To determine countable income, the Agency must use four consecutive weeks of income received in the past 30 days, unless one or more of those pay dates is determined to be not representative.

Representative income is that which is within the range of what would be considered typical or usual for that particular job. Income that is significantly higher or lower due to circumstances that are not typical or usual would not be considered representative. Such a break or difference in income might be due to illness, a death, vacation, emergency or overtime, etc. The Agency must also determine if a week in which no pay is received in the four-week period is representative, considering the nature of the job in making this determination. If the pay for one or more of the four consecutive weeks is not representative, disregard that week(s) income and document the reason it was not considered representative income. See [Section 13.4 Determining Income](#).

Income may include base pay which is representative, and bonus or vacation pay which is non-representative. In this situation, the Agency could separate the base pay from the bonus/vacation pay and consider the base pay as representative income.

- (C) Add the weeks of representative pay.
- (D) Divide the total income in Step (C) above by the number of representative pay dates to obtain the average income per pay dates.
- (E) Multiply the average income per pay date obtained in Step (D) according to the frequency of receipt:
 - Weekly average income x 4.33
 - Bi-weekly average income x 2.16
 - Semi-monthly average income x 2
 - Monthly income (one-month average) x 1
 - If income is received on a daily or sporadic basis, add all income received in the past 30 days (four (4) current consecutive weeks) prior to the file date and divide by 4. Convert average income to a monthly figure by multiplying by 4.33. Weeks in which no income is received may be representative. If necessary, the Agency may obtain eight weeks of income. This should be done in situations where the daily or sporadic income fluctuates significantly. An example of this would be sporadic child support.

If necessary, the Agency may obtain two months or more of wages or other income to determine representative pay necessary to compute monthly income when a household's income fluctuates.

Households who receive income on a recurring monthly or semi-monthly basis will not have their monthly income varied merely because of changes in mailing cycles or pay dates, or because weekends or holidays cause additional payments to be received in a month. For example, many government employees receive income on this schedule.

Income anticipated during the certification period will be counted as income only in the month it is expected to be received, unless the income is averaged. Non-interfaced child support payments must be counted for the month that the income is expected to be received. For example, a household usually receives one child support (non-interfaced child support) payment per month. However, in one month, the household receives two payments, one for the previous month and one for the current month. The payment must be counted for the month that it was expected to be received (month payment is intended for).

Under simplified reporting policy, child support income that is interfaced through the SC Worker Input Network and Support (SCWINS) System must be acted upon only at recertifications or when a change in the household circumstances causes a mandatory rebudget of the case.

The child support income paid through DSS and the Clerk of Court that is interfaced through SCWINS must be budgeted using the income from SCWINS within the budgeting parameters. A

code of “4D CO” must be entered on CHIP UNIN screen for the child support income for SNAP eligibility.

For combination SNAP/TANF cases, the codes on CHIP UNIN screen for the child support income for TANF eligibility should remain as is and the code of “4D CO” must be entered for SNAP eligibility.

IMPORTANT: Court-ordered child support paid directly to the custodial parent or voluntary child support paid directly to the custodial parent is not included in PACSS. Therefore, this income will require additional verification.

13.2 DETERMINING HOUSEHOLD ELIGIBILITY

(1) Month of application

A SNAP household's eligibility will be determined for the month of application by considering the household's circumstances for the entire calendar month of application.

***NOTE:** Applicant households consisting of residents of a public institution who apply jointly for SSI and SNAP prior to release from the public institution will have their eligibility determined for the month in which the applicant household was released from the institution.*

A household's benefit level for the initial months of certification will be based on the day of the month it applies for benefits. The household will receive prorated benefits from the date of application to the end of the month. If the computation results in an allotment of less than \$10, then no issuance will be made for the initial month.

Prorated Benefit can be determined by using the following formula:

$$\frac{[\# \text{ of days in month} + 1 - \text{application date}] \times \text{full benefit}}{\# \text{ of days in month}}$$

***EXCEPTION:** The applicant household consists of residents of a public institution. For households which apply for SSI prior to their release from a public institution, the benefit level for the initial month of certification will be based on the date of the month the household is released from the institution. The household will receive benefits from the date of the household's release from the institution to the end of the month.*

As used in this section, the term “initial month” means the first month for which the household is certified for participation in SNAP following any period during which the household was not certified for participation.

***EXCEPTION:** In the case of migrant and seasonal farmworker households, the term “initial month” means the first month for which the household is certified for participation in SNAP following any period of more than 1 month during which the household was not certified for participation.*

(2) Recertification

Eligibility for recertification will be determined based on circumstances anticipated for the certification period starting the month following the expiration of the current certification period. The level of benefits for recertification will be based on the same anticipated circumstances. If the household submits an application for recertification prior to the end of its certification period and is found eligible for the first month following the end of the certification period, then that month will not be an initial month and benefits will not be prorated.

If a household, other than a migrant or seasonal farmworker household, submits an application after the household's certification period has expired, that application will be considered an initial application and benefits for that month will be prorated. In addition, if the household submits an application for recertification prior to the end of its certification period but is found ineligible for the first month following the end of the certification period, then the first month of any subsequent participation will be considered an initial month.

If a household's failure to timely apply for recertification was due to an error of the Agency and therefore there was a break in participation, the Agency will follow the procedures in [Chapter 17 Recertification of SNAP Households](#).

(3) Anticipated changes

Because of anticipated changes, a household may be eligible for the month of application, but ineligible in the subsequent month. The household will be entitled to benefits for the month of application even if the processing of its application results in the benefits being issued in the subsequent month.

Similarly, a household may be ineligible for the month of application, but eligible in the subsequent month due to anticipated changes in circumstances. Even though ineligible/denied for the month of application, the household does not have to reapply in the subsequent month. The same application will be used for the denial for the month of application and the determination of eligibility for subsequent months.

(4) Changes in allotment levels

As a result of anticipating changes, the household's allotment for the month of application may differ from its allotment in subsequent months.

13.3 DETERMINING RESOURCES

Available resources for households that do not qualify for categorical eligibility defined in [Section 4.1 Temporary Assistance for Needy Families \(TANF\)/ Supplemental Security Income \(SSI\) Categorically Eligible Households](#) at the time the household is interviewed will be used to determine the household's eligibility.

13.4 DETERMINING INCOME

(1) Anticipating income

For the purpose of determining the household's eligibility and level of benefits, the Agency will take into account the income already received by the household during the certification period and any anticipated income the household and the Agency are reasonably certain will be received during the remainder of the certification period.

If the amount of income that will be received, or when it will be received, is uncertain, that portion of the household's income that is uncertain will not be counted by the Agency. For example, a household anticipating income from a new source, such as a new job or recently applied for public assistance may be uncertain as to the timing and amount of the initial payment. These moneys will not be anticipated by the Agency unless there is reasonable certainty concerning the month in which the payment will be received and in what amount. If the exact amount of the income is not known, that portion of it which can be anticipated with reasonable certainty will be considered as income.

In cases where the receipt of income is reasonably certain, but the monthly amount may fluctuate, the household may elect to [average income](#). Households will be advised to report all changes in gross monthly income as required in [Section 15.3 Simplified Reporting Households](#).

Income received during the past 30 days will be used as an indicator of the income that is and will be available to the household during the certification period. However, the Agency will not use past income as an indicator of income anticipated for the certification period if changes in income have occurred or can be anticipated.

If income fluctuates to the extent that a 30-day period alone cannot provide an accurate indication of anticipated income, the Agency and the household may use a longer period of past time if it will provide a more accurate indication of anticipated fluctuations in future income.

Similarly, if the household's income fluctuates seasonally, it may be appropriate to use the most recent season comparable to the certification period, rather than the last 30 days, as one indicator of anticipated income. The Agency will exercise particular caution in using income from a past season as an indicator of income for the certification period. In many cases of seasonally fluctuating income, the income also fluctuates from one season in one year to the same season in the next year.

In no event will the Agency automatically attribute to the household the amounts of any past income. The Agency will not use past income as an indicator of anticipated income when changes in income have occurred or can be anticipated during the certification period.

(2) Income only in month received

Income anticipated during the certification period will be counted as income only in the month it is expected to be received, unless the income is averaged. Whenever a full month's income is anticipated but is received on a weekly or biweekly basis, the Agency will convert the income to a monthly amount by multiplying weekly amounts by 4.33, biweekly amounts by 2.16, or use the exact monthly figure if it can be anticipated for each month of the certification period.

NOTE: Nonrecurring lump-sum payments will be counted as a resource starting in the month received and will not be counted as income as defined in [Section 10.5 Lump Sum Payments as Resources](#).

Wages held at the request of the employee will be considered income to the household in the month the wages would otherwise have been paid by the employer. However, wages held by the employer as a general practice, even if in violation of law, will not be counted as income to the household, unless the household anticipates that it will ask for and receive an advance, or that it will receive income from wages that were previously held by the employer as a general practice and that were, therefore, not previously counted as income by the Agency. Advances on wages will count as income in the month received only if reasonably anticipated as defined in [Section 13.4 Determining Income \(1\) Anticipating income](#).

Households receiving income on a recurring monthly or semimonthly basis will not have their monthly income varied merely because of changes in mailing cycles or pay dates or because weekends or holidays cause additional payments to be received in a month.

(3) Income averaging

To average income, the Agency will use the household's anticipation of monthly income to be received over the certification period. An average must be recalculated at recertification, in accordance with [Chapter 17 Recertification of SNAP Households](#), and in response to changes in income, in accordance [Chapter 15 Change Reporting Requirements](#).

Households which, by contract or self-employment, derive their annual income in a period of time shorter than 1 year will have that income averaged over a 12-month period provided the income from the contract is not received on an hourly or piecework basis. These households may include school employees, sharecroppers, farmers, and other self-employed households. However, these provisions do not apply to migrant or seasonal farmworkers. The procedures for determining self-employed income are described in [Section 11.4 Self-employment Income](#). Contract income which is not the household's annual income and is not paid on an hourly or piecework basis will be prorated over the period the income is intended to cover.

Earned and unearned educational income (See [Section 11.7 Educational Assistance](#)), after allowable exclusions, will be averaged over the period which it is intended to cover. Income will be counted either in the month it is received, or in the month the household anticipates receiving it or receiving the first installment payment, although it is still prorated over the period it is intended to cover.

13.5 DETERMINING DEDUCTIONS

Allowable deductions include only certain dependent care, shelter, child support and medical costs as described in [Chapter 12 Income Deductions](#).

(1) Billed expenses

Except as provided in [Section 13.5 Determining Deductions \(3\) Anticipating expenses](#), a deduction will be allowed only in the month the expense is billed or otherwise becomes due, regardless of when the household intends to pay the expense. For example, rent which is due each month will be included in the household's shelter costs, even if the household has not yet paid the expense. Amounts carried forward from past billing periods are not deductible, even if included with the most recent billing and actually paid by the household. In any event, a particular expense may only be deducted once.

(2) Averaging expenses

Households may elect to have fluctuating expenses averaged. Households may also elect to have expenses which are billed less often than monthly averaged forward over the interval between scheduled billings, or, if there is no scheduled interval, averaged forward over the period the expense is intended to cover.

For example, if a household receives a single bill in February which covers a 3-month supply of fuel oil, the bill may be averaged over February, March, and April. The household may elect to have one-time only expenses averaged over the entire certification period in which they are billed.

(3) Anticipating expenses

The Agency will calculate a household's expenses based on the expenses the household expects to be billed for during the certification period. Anticipation of the expense will be based on the most recent month's bills, unless the household is reasonably certain a change will occur.

- (A) When the household is not assigned the MUA (See [Section 12.5 \(2\) Utility Allowances \(Mandatory Utility Allowance\) \[MUA\]](#)) or the BUA (See [Section 12.5 \(3\) Utility Allowances \(Basic Utility Allowance\) \[BUA\]](#)), the Agency will anticipate changes in actual utility costs during the certification period based on last year's bills from the same period updated by overall price increases; or, if only the most recent bill is available, utility

cost increases or decreases over the months of the certification period may be based on utility company estimates for the type of dwelling and utilities used by the household. The Agency will not average past expenses, such as utility bills for the last several months, as a method of anticipating utility costs for the certification period.

- (B) At certification and recertification, the household will report and verify all medical expenses. The household's monthly medical deduction for the certification period will be based on the information reported and verified by the household, and any anticipated changes in the household's medical expenses that can be reasonably expected to occur during the certification period based on available information about the recipient's medical condition, public or private insurance coverage, and current verified medical expenses. The household will not be required to file reports about its medical expenses during the certification period.

NOTE: If the household voluntarily reports a change in its medical expenses, the Agency will verify the change prior to acting on the change, if the change would increase the household's allotment.

(4) Conversion of deductions

The income conversion procedures in [Section 13.1 Prospective Eligibility \(E\)](#) will also apply to expenses billed on a weekly or biweekly basis.

(5) Energy Assistance Payments

Except for payments made under the Low Income Home Energy Assistance Act of 1981, the Agency will prorate energy assistance payments over the entire heating or cooling season the payment is intended to cover.

(6) Disallowed expenses

Any expense, in whole or part, covered by educational income which has been excluded pursuant to the provisions of [Section 11.7 Educational Assistance](#) will not be deductible. For example, the portion of rent covered by excluded vendor payments will not be calculated as part of the household's shelter cost. In addition, an expense which is covered by an excluded vendor payment that has been converted to a direct cash payment under the approval of a federally authorized demonstration project as specified under [Section 11.6 Income Exclusions](#) will not be deductible. However, that portion of an allowable medical expense which is not reimbursable will be included as part of the household's medical expenses. If the household reports an allowable medical expense at the time of certification but cannot provide verification at that time, and if the amount of the expense cannot be reasonably anticipated based upon available information about the recipient's medical condition and public or private medical insurance coverage, the household will have the non-reimbursable portion of the medical expense considered at the time the amount of the expense or reimbursement is reported and verified (See [Section 12.8 Medical Deduction](#)). A dependent care

expense which is reimbursed or paid for by the Job Opportunities and Basic Skills Training (JOBS) program under title IV-F of the Social Security Act or the Transitional Child Care (TCC) program will not be deductible (See [Section 12.6 Dependent Care Deduction](#)). A utility expense which is reimbursed or paid by an excluded payment, including HUD or FmHA utility reimbursements, will not be deductible (See [Section 12.4 \(5\) Shelter Deduction \[Disallowed Shelter costs\]](#)).

Expenses will only be deductible if the service is provided by someone outside of the household and the household makes a money payment for the service. For example, a dependent care deduction will not be allowed if another household member provides the care, or compensation for the care is provided in the form of an in-kind benefit, such as food.

13.6 CALCULATING NET INCOME AND BENEFIT LEVELS

(1) Net monthly income

To determine a household's net monthly income, the Agency will:

- (A) Add the gross monthly income earned by all household members and the total monthly unearned income of all household members, minus income exclusions, to determine the household's total gross income.
- (B) Multiply the total gross monthly earned income by 80 percent and add that to the total monthly unearned income, minus income exclusions.
- (C) Subtract the standard deduction.
- (D) If the household is entitled to a medical deduction as provided in [Section 12.8 Medical Deduction](#), determine if total medical expenses exceed \$35. If so, subtract that portion which exceeds \$35.
- (E) Subtract allowable monthly dependent care expenses, if any, for each dependent.
- (F) Subtract allowable monthly child support payments in accordance with [Section 12.7 Child Support Deduction](#).
- (G) Subtract the homeless shelter deduction, if any, up to the maximum of \$198.99.
- (H) Total the allowable shelter expenses to determine shelter costs, unless a deduction has been subtracted. Subtract from total shelter costs 50 percent of the household's monthly income after all the above deductions have been subtracted. The remaining amount, if any, is the excess shelter cost. If there is no excess shelter cost, the net monthly income has been determined (If the amount is a negative number, enter zero (0)).
- (I) If there are excess shelter costs, subtract the excess shelter cost, up to the maximum excess shelter amount as noted in [Section 12.1 Income Deductions](#), from the household's monthly income after all other applicable deductions. Households not subject to a capped shelter expense (See [Section 12.4 \(1\) Excess Shelter Deduction](#)) will have the full amount exceeding 50 percent of their net income subtracted. The household's net monthly income has been determined.

In calculating net monthly income, the Agency will not round at any step of the SNAP calculation.

(2) Eligibility

- (A) Households which contain an elderly or disabled member as defined in [Section 14.10 Definition of Elderly or Disabled](#), will have their net income, as calculated in [Section 13.6 Calculating Net Income and Benefit Levels \(1\) Net monthly income](#) (except for households considered destitute in accordance with [Section 13.7 Destitute Households](#)), compared to the monthly income eligibility standards below for the appropriate household size to determine eligibility for the month.
- (B) In addition to meeting the net income eligibility standards, households which do not contain an elderly or disabled member will have their gross income, as calculated in accordance with paragraph [Section 13.6 Calculating Net Income and Benefit Levels \(1\) Net monthly income \(A\)](#), compared to the gross monthly income standards defined below for the appropriate household size to determine eligibility for the month.

Household size	Gross Monthly Income Eligibility Standards (130 percent of poverty level)	Net Monthly Income Eligibility Standards (100 percent of poverty level)
1	\$1696	\$1305
2	\$2292	\$1763
3	\$2888	\$2221
4	\$3483	\$2680
5	\$4079	\$3138
6	\$4675	\$3596
7	\$5271	\$4055
8	\$5867	\$4513
Each additional member	\$596	\$459

- (C) For households considered destitute in accordance with [Section 13.7 Destitute Households](#), the Agency will determine a household's eligibility by computing its gross and net income according to [Section 13.6 Calculating Net income and Benefit Levels \(1\) Net monthly income](#), and comparing, as appropriate, the gross and/or net income to the corresponding income eligibility standard in accordance with [13.6 Calculating Net income and Benefit Levels \(2\) Eligibility](#).
- (D) If a household contains a member who is fifty-nine years old on the date of application, but who will become sixty before the end of the month of application, the Agency will determine the household's eligibility in accordance with [Section 13.6 Calculating Net Income and Benefit Levels \(2\) Eligibility \(A\)](#).

- (E) If a household contains a student whose income is excluded in accordance with [Section 11.3 Earned Income \(M\)](#), the student becomes 18 during the month of application, the Agency will exclude the student's earnings in the month of application and count the student's earnings in the following month.

(3) Benefits

Except as provided in [Section 13.2 Determining Household Eligibility \(1\) Month of application](#), the household's monthly allotment will be equal to the maximum SNAP allotment for the household's size reduced by 30 percent of the household's net monthly income as calculated in [Section 13.6 Calculating Net income and Benefit Levels \(1\) Net monthly income](#). If 30 percent of the household's net income ends in cents, the Agency will round the allotment down to the nearest lower dollar.

If the calculation of benefits for an initial month would yield an allotment of less than \$10 for the household, no benefits will be issued to the household for the initial month.

Except during an initial month, all eligible one-person and two-person households will receive minimum monthly allotments equal to the minimum benefit of \$24.

For an eligible household with three or more members which is entitled to no benefits (except because of the proration requirements and the provision precluding issuances of less than \$10 in an initial month), the Agency will deny the household's application on the grounds that its net income exceeds the level at which benefits are issued.

For those eligible households which are entitled to no benefits in their initial month of application, but are entitled to benefits in subsequent months, the Agency will certify the households beginning with the month of application.

When a household's circumstances change and it becomes entitled to a different income eligibility standard, the Agency will apply the different standard at the next recertification or whenever the Agency changes the household's eligibility, benefit level or certification period, whichever occurs first.

(4) Thrifty Food Plan (TFP) and Maximum SNAP Allotments

Maximum SNAP allotments will be based on the TFP as defined in **Section §271.2 of the Code of Federal Regulations**. The TFP amounts and maximum allotments are adjusted annually and will be prescribed in a table posted on the FNS web site, at www.fns.usda.gov/snap.

Household size	Gross Monthly Income Eligibility Standards (130 percent of poverty level)	Net Monthly Income Eligibility Standards (100 percent of poverty level)	Maximum allotment amounts
1	\$1696	\$1305	\$298
2	\$2292	\$1763	\$546
3	\$2888	\$2221	\$785
4	\$3483	\$2680	\$994
5	\$4079	\$3138	1183
6	\$4675	\$3596	\$1421
7	\$5271	\$4055	1571
8	\$5867	\$4513	\$1789
Each additional member	\$596	\$459	\$218

13.7 DESTITUTE HOUSEHOLDS

Migrant or seasonal farmworker households may have little or no income at the time of application and may be in need of immediate food assistance, even though they receive income at some other time during the month of application.

The following procedures will be used to determine when migrant or seasonal farmworker households in these circumstances may be considered destitute and, therefore, entitled to expedited service and special income calculation procedures. Households other than migrant or seasonal farmworker households will not be classified as destitute.

Migrant or seasonal farmworker households whose only income for the month of application was received prior to the date of application, and was from a terminated source, will be considered destitute households and will be provided expedited service.

- (A) If income is received on a monthly or more frequent basis, it will be considered as coming from a terminated source if it will not be received again from the same source during the balance of the month of application or during the following month.
- (B) If income is normally received less often than monthly, the non-receipt of income from the same source in the balance of the month of application or in the following month is inappropriate to determine whether or not the income is terminated. For example, if income is received on a quarterly basis (e.g., on January 1, April 1, July 1, and October 1), and the household applies in mid-January, the income should not be considered as coming from a terminated source merely because no further payments will be received in the balance of January or in February. The test for whether or not this household's income is terminated is whether the income is

anticipated to be received in April. Therefore, for households that normally receive income less often than monthly, the income will be considered as coming from a terminated source if it will not be received in the month in which the next payment would normally be received.

Migrant or seasonal farmworker households whose only income for the month of application is from a new source will be considered destitute and will be provided expedited service if income of more than \$25 from the new source will not be received by the 10th calendar day after the date of application.

- (A) Income which is normally received on a monthly or more frequent basis will be considered to be from a new source of income of more than \$25 has not been received from that source within 30 days prior to the date the application was filed.
- (B) If income is normally received less often than monthly, it will be considered to be from a new source of income of more than \$25 was not received within the last normal interval between payments. For example, if a household applies in early January and is expecting to be paid every three months, starting in late January, the income will be considered to be from a new source if no income of more than \$25 was received from the source during October or since that time.

Migrant or seasonal farmworker households may receive both income from a terminated source prior to the date of application, and income from a new source after the date of application, and still be considered destitute if they receive no other income in the month of application and income of more than \$25 from the new source will not be received by the 10th day after the date of application.

Destitute households will have their eligibility and level of benefits calculated for the month of application by considering only income which is received between the first of the month and the date of application. Any income from a new source that is anticipated after the day of application will be disregarded.

Some employers provide travel advances to cover the travel costs of new employees who must journey to the location of their new employment. To the extent that these payments are excluded as reimbursements, receipt of travel advances will not affect the determination of when a household is destitute. However, if the travel advance is by written contract an advance of wages that will be subtracted from wages later earned by the employee, rather than a reimbursement, the wage advance will count as income. In addition, the receipt of a wage advance for travel costs of a new employee will not affect the determination of whether subsequent payments from the employer are from a new source of income, nor whether a household will be considered destitute. For example, if a household applies on May 10, has received a \$50 advance for travel from its new employer on May 1 which by written contract is an advance on wages, but will not receive any other wages from the employer until May 30, the household will be considered destitute. The May 30 payment will be disregarded, but the wage advance received prior to the date of application will be counted as income.

A migrant or seasonal farmworker household member who changes jobs but continues to work for the same employer will be considered as still receiving income from the same source. A migrant farmworker's source of income will be considered to be the grower for whom the migrant is working at a particular point in time, and not the crew chief. A migrant who travels with the same crew chief but moves from one grower to another will be considered to have moved from a terminated income source to a new source.

The above procedures in this section will apply at initial application and at recertification, but only for the first month of each certification period. At recertification, income from a new source will be disregarded in the first month of the new certification period if income of more than \$25 will not be received from this new source by the 10th calendar day after the date of the household's normal issuance cycle.

13.8 CERTIFICATION PERIODS

The Agency must certify each eligible household for a definite period of time. The Agency must assign the longest certification period possible based on the predictability of the household's circumstances. The first month of the certification period will be the first month for which the household is eligible to participate. Upon the expiration of the certification period, further entitlement to SNAP benefits cannot be established without application by the household.

(1) Certification period length

Households should be assigned certification periods consistent with the following:

- (A) 6 months, unless the household's circumstances are unstable or the household contains an ABAWD.
- (B) Households with unstable circumstances, such as households with zero net income, and households with an ABAWD member should be assigned certification periods consistent with their circumstances, but generally no less than 3 months.
- (C) The Agency will certify for up to 24 months households in which all adult members are elderly or disabled with no earned income. The Agency must have at least one contact with each household every 12 months.
- (D) Households may be assigned 1- or 2-month certification periods when it appears likely that the household will become ineligible for SNAP in the near future.

(2) Shortening certification periods

The Agency may not end a household's certification period earlier than its assigned termination date, unless the Agency receives information that the household has become ineligible, the household has not complied with requirements of [Section 15.1 Household Responsibility to Report](#) or the Agency must shorten the household's certification period to comply with the

requirements of [Section 15.3 Simplified Reporting Households](#). The Agency may not use the Notice of Expiration to shorten a certification period.

NOTE: Loss of public assistance or a change in employment status is not sufficient in and of itself to meet the criteria necessary for shortening the certification period.

13.9 CERTIFICATION NOTICES TO HOUSEHOLDS

(1) Initial applications

The Agency will provide applicants with one of the following written notices as soon as a determination is made, but no later than 30 days after the date of the initial application:

(A) Notice of eligibility.

1. If an application is approved, the Agency will provide the household with written notice of the amount of the allotment and the beginning and ending dates of the certification period. The household will also be advised of variations in the benefit level based on changes anticipated at the time of certification.

If the initial allotment contains benefits for both the month of application and the current month's benefits, the notice will explain that the initial allotment includes more than one month's benefits and will indicate the monthly allotment amount for the remainder of the certification period. The notice will also advise the household of its right to a fair hearing, the telephone number of the SNAP office (a toll-free number or a number where collect calls will be accepted for households outside the local calling area), and, if possible, the name of the person to contact for additional information. If there is an individual or organization available that provides free legal representation, the notice will also advise the household of the availability of the services.

2. In cases where a household's application is approved on an expedited basis without verification, the notice will explain that the household must provide the verification which was waived and the consequences of failure to provide the postponed verification.
3. For households provided a notice of expiration at the time of certification, the notice of eligibility may be combined with the notice of expiration or separate notices may be sent.

- (B) Notice of denial. If the application is denied, the Agency will provide the household with written notice explaining the basis for the denial, the household's right to request a fair hearing, the telephone number of the SNAP office (a toll-free number or a number where collect calls will be accepted for households outside the local calling area), and, if possible, the name of the person to contact for additional information.

If there is an individual or organization available that provides free legal representation, the notice will also advise the household of the availability of the service.

- (C) Notice of pending status. If the application is to be held pending because some action by the household is needed to complete the application process, the notice will explain what action the household must take and that its application will be denied if the household fails to take the required action within 30 days of the date the application was filed. The Agency will include on the notice of pending status the date by which the household must provide the missing verification. For notices that must be translated, the client must be allowed at least ten days from the time the translated notice is mailed to provide the requested verification.

(2) Applications for recertification

The Agency will provide households that have filed an application by the 15th of the last month of their certification period with either a notice of eligibility or a notice of denial by the end of the current certification period if the household has complied with all recertification requirements. The Agency will provide households that have received a notice of expiration at the time of certification, and have timely reapplied, with either a notice of eligibility or a notice of denial not later than 30 days after the date of the household's initial opportunity to obtain its last allotment.

Chapter 14 Determining Action on Households with Special Circumstances

14.1 TREATMENT OF INCOME AND RESOURCES OF CERTAIN NON-HOUSEHOLD MEMBERS

During the period of time that a household member cannot participate for the reasons addressed in this section, the eligibility and benefit level of any remaining household members will be determined in accordance with the procedures outlined in this section.

(1) **Intentional Program violation (IPV), felony drug conviction, or fleeing felon disqualifications, and work requirement sanctions**

The eligibility and benefit level of any remaining household members of a household containing individuals determined ineligible because of a disqualification for an intentional Program violation, a felony drug conviction, their fleeing felon status, noncompliance with a work requirement of [Chapter 8 Work Provisions](#) or certain convicted felons as provided in [Section 14.12 Disqualification for Certain Convicted Felons](#) will be determined as follows:

- (A) **Income, resources, and deductible expenses.** The income and resources of the ineligible household member(s) will continue to count in their entirety, and the entire household's allowable earned income, standard, medical, dependent care, child support, and excess shelter deductions will continue to apply to the remaining household members.
- (B) **Eligibility and benefit level.** The ineligible member will not be included when determining the household's size for the purposes of:
 - i. Assigning a benefit level to the household;
 - ii. Assigning a standard deduction to the household;
 - iii. Comparing the household's monthly income with the income eligibility standards; or
 - iv. Comparing the household's resources with the resource eligibility limits. The Agency will ensure that no household's SNAP benefit allotment is increased as a result of the exclusion of one or more household members.

(2) SSN disqualifications and Ineligible ABAWDs

The eligibility and benefit level of any remaining household members of a household containing individuals determined to be ineligible for refusal to obtain or provide an SSN or for not meeting the time limit for ABAWD, will be determined as follows:

- (A) **Resources.** The resources of such ineligible members will continue to count in their entirety to the remaining household members.
- (B) **Income.** A pro rata share of the income of such ineligible members will be counted as income to the remaining members. This pro rata share is calculated by first subtracting the allowable exclusions from the ineligible member's income and dividing the income evenly among the household members, including the ineligible members. All but the ineligible members' share is counted as income for the remaining household members.
- (C) **Deductible expenses.** The 20 percent earned income deduction will apply to the prorated income earned by such ineligible members which is attributed to their households. That portion of the households' allowable child support payment, shelter and dependent care expenses which are either paid by or billed to the ineligible members will be divided evenly among the households' members including the ineligible members. All but the ineligible members' share is counted as a deductible child support payment, shelter or dependent care expense for the remaining household members.

EXCEPTION: If the household is entitled to the MUA or BUA, the expense will not be prorated among the eligible household members. The entire expense for the MUA/BUA will be allowed for the household. See [Section 12.5 Utility Allowances \(5\) multiple households/multiple residences](#). All other expenses, such as rent, actual utilities (if applicable), etc. will be prorated.

- (D) **Eligibility and benefit level.** Such ineligible members will not be included when determining their households' sizes for the purposes of:
 - i. Assigning a benefit level to the household;
 - ii. Assigning a standard deduction to the household
 - iii. Comparing the household's monthly income with the income eligibility standards; or
 - iv. Comparing the household's resources with the resource eligibility limits.

(3) Ineligible non-citizen

The Agency must determine the eligibility and benefit level of any remaining household members of a household containing an ineligible non-citizen (See Section for rules pertaining to determining non-citizen status) as follows:

- (A) **Resources.** The resources of ineligible non-citizens will continue to count in their entirety to the remaining household members.
- (B) **Income.** A pro rata share of the income of ineligible non-citizens will be counted as income to the remaining members. This pro rata share is calculated by first subtracting the allowable exclusions from the ineligible member's income and dividing the income evenly among the

household members, including the ineligible members. All but the ineligible members' share is counted as income for the remaining household members.

- (C) **Deductible expenses.** The 20 percent earned income deduction will apply to the prorated income earned by such ineligible members which is attributed to their households. That portion of the households' allowable child support payment, shelter and dependent care expenses which are either paid by or billed to the ineligible members will be divided evenly among the households' members including the ineligible members. All but the ineligible members' share is counted as a deductible child support payment, shelter or dependent care expense for the remaining household members.

EXCEPTION: If the household is entitled to the MUA or BUA, the expense will not be prorated among the eligible household members. The entire expense for the MUA/BUA will be allowed for the household. See Section 12.5 Utility Allowances (5) multiple households/multiple residences. All other expenses, such as rent, actual utilities (if applicable), etc. will be prorated.

- (D) **Eligibility and benefit level.** Such ineligible members will not be included when determining their households' sizes for the purposes of:
- i. Assigning a benefit level to the household;
 - ii. Assigning a standard deduction to the household
 - iii. Comparing the household's monthly income with the income eligibility standards; or
 - iv. Comparing the household's resources with the resource eligibility limits.

The Agency must not include the resources and income of the sponsor and the sponsor's spouse in determining the resources and income of an ineligible sponsored non-citizen.

(4) Reduction or termination of benefits within the certification period

Whenever an individual is determined ineligible within the household's certification period, the Agency will determine the eligibility or ineligibility of the remaining household members based, as much as possible, on information in the case file.

- (A) **Excluded for intentional Program violation disqualification.** If a household's benefits are reduced or terminated within the certification period because one of its members was excluded because of disqualification for intentional Program violation, the Agency will notify the remaining members of their eligibility and benefit level at the same time the excluded member is notified of his or her disqualification.

The household is not entitled to a notice of adverse action but may request a fair hearing to contest the reduction or termination of benefits, unless the household has already had a fair hearing on the amount of the claim as a result of consolidation of the administrative disqualification hearing with the fair hearing.

However, a participating household is entitled to a notice of adverse action prior to any action to reduce, suspend or terminate its benefits, if the Agency determines that it contains an individual who was disqualified in another State and is still within the period of disqualification.

(B) *Disqualified or determined ineligible for reasons other than intentional Program violation.*

If a household's benefits are reduced or terminated within the certification period for reasons other than an Intentional Program Violation disqualification, the Agency will issue a notice of adverse action in accordance with [Section 16.1 Use of Notice](#) which informs the household of the ineligibility, the reason for the ineligibility, the eligibility and benefit level of the remaining members, and the action the household must take to end the ineligibility.

14.2 TREATMENT OF INCOME AND RESOURCES OF OTHER NON-HOUSEHOLD MEMBERS

For all other non-household members defined in [Section 2.2 Special Household Requirements \(1\) Required household combinations](#) and [Section 2.2 Special Household Requirements \(2\) Elderly and disabled persons](#) who are not specifically mentioned in [Section 14.1 Treatment of Income and Resources of Certain Non-household Members](#), the income and resources of such individuals will not be considered available to the household with whom the individual resides.

Cash payments from the non-household member to the household will be considered income under the normal income standards set in [Section 11.2 Definition of Income](#).

Vendor payments, as defined in [Section 11.6 Income Exclusions](#), will be excluded as income. If the household shares deductible expenses with the non-household member, only the amount actually paid or contributed by the household will be deducted as a household expense. If the payments or contributions cannot be differentiated, the expenses will be prorated evenly among persons actually paying or contributing to the expense and only the household's pro rata share deducted.

When the earned income of one or more household members and the earned income of a non-household member are combined into one wage, the income of the household members will be determined as follows:

- (A) If the household's share can be identified, the Agency will count that portion due to the household as earned income.
- (B) If the household's share cannot be identified, the Agency will prorate the earned income among all those whom it was intended to cover and count that prorated portion to the household.

Such non-household members will not be included when determining the size of the household for the purposes of:

- i. Assigning a benefit level to the household;
- ii. Comparing the household's monthly income with the income eligibility standards; or
- iii. Comparing the household's resources with the resource eligibility limits.

14.3 RESIDENTS OF DRUG ADDICTION OR ALCOHOLIC (DAA) TREATMENT AND REHABILITATION PROGRAMS

Alcoholics or narcotic addicts who regularly participate in publicly operated or private non-profit Drug Addiction or Alcoholic (DAA) Treatment and Rehabilitation Programs on a resident basis may apply for SNAP benefits. Residents must be certified as one person households unless their children are residing with them, in which case the children must be included in the household (See exceptions to residents of an institution in [Section 2.3 \(11\) \(B\) Ineligible Household Members](#)). Any meals served to the children by the DAA treatment center are eligible for purchase with SNAP benefits.

(1) DAA eligibility for SNAP

In order for the alcoholic/addict to be eligible for SNAP participation, the DAA treatment center must provide evidence that it is authorized as a retailer by FNS or is tax exempt and certified by the State agency responsible for the treatment and rehabilitation of drug addicts and/or alcoholics (the State Title XIX Agency) as:

- Receiving funding under part B of title XIX; **OR**
- Eligible to receive funding under part B of title XIX even if no funds are being received; **OR**
- Operating to further the purposes of part B of title XIX, to provide treatment and rehabilitation; or rehabilitative and recovery services of drug addicts and/or alcoholics.

The Agency must verify that the DAA center meets the above requirements before it determines any residents of the DAA center eligible for SNAP benefits. The DAA center must provide verification of this status by providing a copy of a letter, license, or other certification issued by the Title XIX agency acknowledging that the facility meets one of the standards for certification listed above. State licensing of the DAA will not be required for SNAP participation.

If the DAA center in question offers an alternative model of treatment or rehabilitation not eligible for licensing by the State, the Title XIX agency should still make a determination as to whether or not the facility is operating to further the purpose of Part B of Title XIX, to provide treatment and rehabilitation of drug addicts and/or alcoholics. A letter from the Title XIX agency acknowledging

that the facility is operating for this purpose will serve as verification. If FNS has authorized the DAA center as a retailer, this authorization will serve as verification.

South Carolina's state Title XIX agency is the South Carolina Department of Behavioral Health and Developmental Disabilities (BHDD)/Office of Substance Use Services. The DAA treatment center may obtain certification from BHDD that they are either receiving funding under Part B of Title XIX, eligible to receive funding under Part B of Title XIX even though no funds are being received or operating in a manner that furthers the purpose of Part B of Title XIX to provide treatment and rehabilitation of drug addicts and/or alcoholics.

Website address: <https://www.daodas.sc.gov/>

Once this certification is obtained, residents may be eligible for SNAP participation.

(2) Authorized representatives for SNAP participants in DAAs

The residents of DAA treatment centers must apply and be certified for SNAP benefits through the use of an authorized representative who is employed by the center and designated by the center for that purpose. The Agency will require the household to designate the DAA treatment center as its authorized representative for the purpose of receiving and using the allotment on behalf of the household.

Once the household leaves the DAA treatment center, the center can no longer act as authorized representative for application or issuance purposes.

The local county DSS office must ensure that each authorized representative, as well as the DAA treatment center Director, has received a copy of DSS Brochure 1622, What You Need to Know! SNAP (DAA), prior to being named as an authorized representative.

(3) Processing provisions for DAAs

Residents of DAA treatment centers are not allowed to apply on their own behalf. Residents of DAA treatment centers are certified by using the same provisions that apply to all other households, including but not limited to, the same rights to notices of adverse actions and fair hearings.

A DAA treatment center facility must take the following actions:

- (A) Provide the local county DSS office with a monthly or semimonthly certified list of residents currently participating in SNAP. The local county DSS office must conduct periodic random on-site visits to the DAA treatment center to assure accuracy of the list and to ensure that DSS records are consistent and up-to-date.

- (B) Provide the local county DSS office with a statement signed by a responsible DAA treatment center official attesting to the validity of the above mentioned list.
- (C) Notify the local county DSS office of changes in the household's income and other changes in the household's circumstances.
- (D) Notify the local county DSS office when a resident recipient leaves the DAA treatment center.
- (E) Provide the household with its EBT card to use for any benefits remaining in the EBT account when a resident recipient leaves the DAA treatment center. If the household has left the DAA treatment center prior to this being accomplished, the EBT card must be returned to the local county DSS office.
- (F) Inform the household that they must report their change in address and other circumstances to the local county DSS office within 10 days.

(4) SNAP benefits on leaving the DAA

When a household leaves the DAA treatment center, the center must perform the following:

- **Notify SCDSS.** If possible, the center must provide the household with a DSS Form 1620, Change Report Form, to report to the SCDSS the household's new address and other circumstances after leaving the center and must advise the household to return the form to the appropriate office within 10 days. After the household leaves the DAA treatment center, the center can no longer act as the household's authorized representative for certification purposes or for obtaining or using benefits.
- **Provide the household with its EBT card if it was in the possession of the DAA treatment center.** The DAA treatment center must return to SCDSS any EBT card not provided to departing residents by the end of each month.

If the household leaves the DAA treatment center prior to using any of the household's allotment, the center must provide the allotment to the household. If the household has already left the DAA treatment center, the center must return the allotment to the local county DSS office.

If the household leaves the DAA treatment center prior to the 16th of the month and the benefits have been issued and any portion used on behalf of the household, the center will provide the household with 1/2 of its monthly benefits.

If the household leaves on or after the 16th of the month, the DAA treatment center will provide the household with a prorated amount of benefits based on the day the household leaves the center and the allotment amount.

The DAA treatment center must return to the local county DSS office any EBT cards or benefits not provided to departing residents by the end of the month. These benefits may include those not

provided to departing residents because they left either prior to the 16th and the DAA treatment center was unable to provide the household with the benefits or the household left on or after the 16th of the month and the benefits were not returned to the household.

(5) DAA Center's responsibility

The DAA treatment center is responsible for any misrepresentation or intentional program violation (IPV) which it knowingly commits in the certification of center residents. As an authorized representative, the DAA treatment center must be knowledgeable about household circumstances and should carefully review these circumstances with residents prior to applying on their behalf. The DAA treatment center is liable for all losses or misuse of EBT cards or benefits held on behalf of resident households and for all over-issuances which occur while the households are residents of the center.

(6) DAA's misuse of benefits

DAA treatment centers which are authorized by FNS as a retailer may be penalized or disqualified if it is determined administratively or judicially that SNAP benefits were misappropriated or used for purchases that did not contribute to a certified household's meals. The local county DSS office will notify the SNAP Benefit Integrity Coordinator at State Office when it has reason to believe that the DAA treatment center is misusing benefits. The SNAP Benefit Integrity Coordinator will coordinate with USDA FNS on the referral. The Agency will take no action prior to FNS action against the DAA treatment center. If any over-issuances are discovered during an investigation or hearing procedure for redemption violations, a claim will be established. If FNS disqualifies the DAA treatment center as an authorized retailer, DSS will suspend the center's authorized representative status for the same time period.

14.4 RESIDENTS OF A GROUP LIVING ARRANGEMENT (GLA)

A Group Living Arrangement (GLA) is a public or private nonprofit residential setting that serves no more than 16 residents and is certified by the appropriate State agency. Prior to certifying any residents, the Agency must verify that the GLA is either:

- (A) Authorized by FNS **OR**
- (B) Certified by the appropriate State agency including the agency's determination that the center is a nonprofit organization.

NOTE: In SC, the appropriate state agency is South Carolina-Department of Behavioral Health and Developmental Disabilities (BHDD)/Office of Intellectual and Developmental Disabilities.

To be eligible for SNAP, residents of GLAs must be blind or disabled (See exceptions to residents of an institution in [Section 2.3 \(11\) \(C\) Ineligible Household Members](#)).

(1) GLA eligibility for SNAP

Disabled or blind residents of a GLA may apply as follows:

- (A) Through the use of an authorized representative employed and designated by the GLA
- (B) Through an authorized representative of their choice **OR**
- (C) On their own behalf.

The GLA must determine if any resident can apply on his/her own behalf. The determination is based on the resident's physical and mental ability to handle his/her own affairs.

(2) Authorized representatives for SNAP participants in GLAs

Some residents of the GLA may apply on their own behalf while other residents of the same GLA may apply through the GLA's representative.

The local county DSS office must ensure that each authorized representative, as well as the GLA Director, has received a copy of DSS Brochure 1621, What You Need to Know! SNAP (GLA), prior to being named as an authorized representative.

(3) Processing provisions for GLAs

For residents who apply through an authorized representative of their choice or who apply on their own behalf, household size is handled in accordance with [Section 2.1 General Household Definitions](#). These residents are certified using the same provisions that apply to all other households. The household is responsible for reporting changes in their income and household circumstances to the county office.

For residents who apply through the use of the GLA's authorized representative, their eligibility must be determined as a one-person household.

The GLA must take the following actions:

- (A) Provide the local county DSS office with a monthly certified list of residents currently participating in SNAP. The local county DSS office must conduct periodic random on-site visits to the GLA to assure accuracy of the list and to ensure that DSS records are consistent and up-to-date.
- (B) Provide the local county DSS office with a statement signed by a responsible GLA official attesting to the validity of the above mentioned list.

- (C) Notify the local county DSS office, if acting as the authorized representative, of changes in the household's income and other changes in the household's circumstances or when a resident recipient leaves the GLA.
- (D) Provide the household with its EBT card to use for any benefits remaining in the EBT account when a resident recipient leaves the GLA. If the household has left the GLA treatment center prior to this being accomplished, the EBT card must be returned to the local county DSS office.
- (E) Once the resident leaves the GLA, the GLA may no longer act as his/her authorized representative. The GLA will inform the household to report their new address and any changes in circumstances after leaving the GLA within 10 days.

(4) SNAP benefits on leaving the GLA

For residents who apply through the use of the GLA authorized representative, the following procedures apply:

If the household leaves the GLA prior to using any of the household's allotment, the GLA must provide the allotment to the household.

If the household leaves the GLA prior to the 16th day of the month and the benefits have been issued and any portion used on behalf of the household, the GLA will provide the household with 1/2 of its monthly benefits.

If the household leaves on or after the 16th of the month and the benefits have already been issued and used, the household will not receive any benefits. If the household leaves on or after the 16th of the month and the benefits have not been issued or used, the GLA will provide the household with a prorated amount of benefits based on the day the household leaves the GLA and the allotment amount.

The GLA must return to DSS any EBT cards or benefits not provided to departing residents at the end of each month. The returned benefits include those not provided to departing residents because they left on or after the 16th day of the month or they left prior to the 16th and the GLA was unable to provide them with benefits.

For residents certified on their own behalf, SNAP benefits may either be returned to the GLA to be used to purchase meals served either communally or individually to eligible residents or retained and used to purchase and prepare food for their own consumption. The GLA may purchase and prepare food to be consumed by eligible residents on a group basis if residents normally obtain their meals at a central location as part of the GLA's service or if meals are prepared at a central location for delivery to the individual residents.

If personalized meals are prepared and paid for with SNAP benefits, the GLA must ensure that the resident's SNAP benefits are used for meals intended for that resident.

If a group of residents have been certified as one household and have returned the benefits to the GLA to use, the departing residents will be given a pro-rata share of 1/2 of the allotment if leaving prior to the 16th day of the month.

(5) GLA's responsibility

The GLA is responsible for any misrepresentation or intentional program violation (IPV) which it knowingly commits in the certification of GLA residents.

As an authorized representative, the GLA must be knowledgeable about household circumstances and should carefully review these circumstances with residents prior to applying on their behalf.

As an authorized representative, the GLA is liable for all losses or misuse of EBT cards or benefits held on behalf of resident households and for all over-issuances which occur while the households are residents of the GLA.

(6) GLA's misuse of benefits

GLAs authorized by FNS as a retailer may be penalized or disqualified if it is determined administratively or judicially that SNAP benefits were misappropriated or used for purchases that did not contribute to a certified household's meals.

The local county DSS office will notify the SNAP Benefit Integrity Coordinator at State Office when it has reason to believe that the GLA is misusing benefits. The SNAP Benefit Integrity Coordinator will coordinate with USDA FNS on the referral. The Agency will take no action prior to FNS action against the GLA. If any over-issuances are discovered during an investigation or hearing procedure for redemption violations, a claim will be established. If FNS disqualifies the GLA as an authorized retailer, DSS will suspend the center's authorized representative status for the same time period; but residents applying on their own behalf will still be able to participate if otherwise eligible.

14.5 SHELTER FOR BATTERED WOMEN AND CHILDREN

A shelter for battered women and children is a public or private nonprofit residential facility that serves battered women and their children (See exceptions for residents of an institution in [Section 2.3 \(11\) \(D\) Ineligible Household Members](#)). If such a facility serves other individuals, a portion of the facility must be set aside on a long-term basis to serve only battered women and children.

Shelter residents who are included in households already certified may apply for and, if otherwise eligible, participate as a separate household if the certified household listing them as members also contains the person who abused them.

Residents may receive an allotment as a separate household only once a month. The local county DSS office must take prompt action to ensure that the former household's eligibility or allotment reflects the change in the household's composition.

Shelter residents who apply as a separate household will be certified solely on the basis of their income and resources and the expenses for which they are responsible. They must be certified without regard to the income, resources and expenses of their former household.

Jointly held resources are considered inaccessible if the resources are jointly owned by shelter residents and by members of their former household and if the shelter resident's access to the value of the resources is dependent on the agreement of a joint owner who still resides in the former household.

14.6 HOMELESS SNAP HOUSEHOLDS

Homeless individual is defined as:

- (A) an individual who lacks a fixed and regular nighttime residence including, but not limited to, an individual who will imminently lose their nighttime residence; or
- (B) an individual who has a primary nighttime residence that is:
 - (1) A supervised publicly or privately operated shelter designed to provide temporary living accommodations (such as a welfare hotel or congregate shelter);
 - (2) A halfway house or similar institution that provides a temporary residence for individuals intended to be institutionalized;
 - (3) A temporary accommodation for not more than 90 days in the residence of another individual; or
 - (4) A public or private place not designed for, or ordinarily used as, a regular sleeping accommodation for human beings (such as a hallway, a bus station, a lobby or similar places).

Homeless SNAP households will be permitted to use their SNAP benefits to purchase prepared meals from homeless meal providers authorized by FNS (See exception in [Section 2.3 \(11\) \(E\) Ineligible Household Members](#)).

14.7 PRERELEASE APPLICANTS FOR SNAP

A household which consists of a resident or residents of a public institution(s) which applies for SSI under SSA's Prerelease Program for the Institutionalized will be allowed to apply for SNAP benefits jointly with their application for SSI prior to their release from the institution.

14.8 TREATMENT OF TANF SANCTIONS IN SNAP

(1) Failure to comply

A TANF household may be sanctioned due to failure to comply with the requirements of the TANF Program. A TANF sanction may occur due to the reasons listed below:

- (A) Failure to meet SSN requirements
- (B) Failure of a TANF recipient under age 19 to be enrolled in school or enrolled in school and fail to maintain satisfactory attendance
- (C) Failure to comply with the Child Support Services Division (CSSD)
- (D) Failure to comply with the work requirement of the TANF Program (See [8.5 Failure to Comply with SNAP Work Requirements](#))

A sanction for any of the previous reasons will result in a decreased TANF benefit. A decreased TANF benefit will usually result in an increased SNAP allotment for the household; however, due to federal regulations, the household must not receive an increase in SNAP benefits.

This provision does not apply to initial TANF applications or when a new member is determined ineligible. The individual or household against whom the penalty is imposed must have been receiving TANF benefits that are reduced, suspended or terminated due to a failure to comply with a TANF Program requirement or the individual or household has applied for continued benefits and there is no break in participation.

This provision only applies to individuals who are receiving SNAP benefits at the time of failure to comply with the requirements of the TANF Program. In addition, this provision does not apply to situations such as:

- Reaching a time limit for time-limited benefits
- Having a child that is not eligible because of the family cap
- Failing to complete the TANF annual redetermination process
- Failing to perform an action that the individual is unable to perform as opposed to refusing to perform **OR**
- Failing to comply with a purely procedural requirement. A procedural requirement, which would not trigger a SNAP sanction, is a step that an individual must take to continue receiving benefits in the program such as providing verification of circumstances.

This provision does pertain to individuals included in the SNAP household including ineligible household members.

(2) Budgeting

The SNAP benefits will be calculated using the benefit amount the household would have received if the TANF benefit had not been decreased due to the noncompliance with TANF requirements. The amount by which the TANF benefit would be reduced will be budgeted in the SNAP case at the time the TANF benefit is reduced. An increase in the SNAP benefits will be prohibited for the duration of the TANF penalty.

NOTE: The worker will determine the amount by which the TANF benefit has been reduced due to removal of the individual. The TANF benefit amount prior to the sanction minus the TANF benefit amount after the sanction is the amount that will be entered in CHIP (TANF penalty amount). The code for the income will be "RB" (reduced by). The "RB" code and the TANF penalty amount will be entered on CHIP UNIN screen in order to make an eligibility determination for SNAP.

For cases where the household is no longer receiving TANF, the Agency must remove the amount by which the TANF benefit would be reduced from the SNAP budget at the end of one year.

(3) Length of the SNAP failure to comply penalty

The amount by which the TANF benefit is reduced continues to be budgeted in the SNAP benefit calculation until one of the following occurs:

- (A) The TANF sanction is cured.
- (B) The sanctioned individual meets the exemption/deferral criteria for TANF work requirements
- (C) The household is no longer eligible for TANF benefits due to one of the following:
 - Excess income
 - Resources
 - No eligible child(ren)
 - Expiration of time limits
 - Receipt of SSI
 - Disqualification due to ineligible or questionable non-citizen/citizenship status, fleeing felon status, drug conviction status or conviction for fraudulently misrepresenting residency or identity in order to receive benefits in more than one state or county.

For cases where the household is no longer receiving TANF, the prohibition on the increase in SNAP benefits cannot exceed a one-year time period.

Even if the household does not meet one of the criteria prior to the end of the one-year time period, the amount by which the TANF benefit is reduced is still removed from the SNAP budget at the end of the one-year time period.

Any household that applies for SNAP and is receiving a reduced TANF benefit because a person in the household has committed a failure to comply will not receive an increased SNAP benefit because of this sanction for the remainder of the TANF sanction period.

(4) Household responsibility

It is the responsibility of the household to report any change that would affect a TANF sanction. The household must reapply for TANF in order to cure the TANF sanction and remove the penalty income amount unless the household is no longer eligible for TANF due to:

- Excess income
- Resources
- No eligible children
- Expiration of time limits
- Receipt of SSI **OR**
- Disqualification due to ineligible or questionable citizen status, fleeing felon status, drug conviction status, or conviction for fraudulently misrepresenting residence or identity in order to receive benefits in more than one state or county.

The Agency must communicate with the TANF staff to determine if the household meets any of these criteria. The Agency must lift the prohibition on the increased benefits when the Agency is notified or becomes aware of a cure, exemption or deferral. The prohibition on increased benefits would not be reinstated unless the household is sanctioned again for failure to comply with the requirements of the TANF Program.

14.9 PARTICIPATION OF DECEASED INDIVIDUALS

SNAP must ensure that benefits are not issued to any individual who is deceased. In order to provide this assurance, the Agency has entered into an agreement with the Social Security Administration (SSA) to obtain information from SSA about individuals who are deceased. This information must be used to ensure that SNAP benefits are not issued to deceased individuals. The State Verification and Exchange System (SVES) will provide eligibility staff access to information on deceased individuals furnished by SSA.

A request for information on deceased individuals on all applicants/recipients must be made at the following times:

- Application prior to approval
- Any face-to-face or telephone interview for recertification

- Before adding a new household member
- As necessary to determine eligibility (e.g. six-month recertification, tri-annual recertification and interim contact).

The certification process must not be delayed beyond the processing standards if the SVES data is not available. If information is received after certification, the Agency must take immediate action to affect any changes, if appropriate. The Agency should use information provided by the household if more current and/or accurate than available SVES information.

Information on deceased individuals obtained from SVES is not considered verified upon receipt. When the Agency receives Death Match information from SVES, the Agency will follow up by notifying the household that a match was received. The Agency must obtain independent verification through contact with family members of the deceased, a newspaper obituary, or other appropriate means. (See [Section 15.7 – Unclear Information](#))

14.10 DEFINITION OF ELDERLY OR DISABLED

An elderly or disabled member is a member of a household who:

- 1) Is age 60 or older **OR**
- 2) Meets the definition of disabled under [Section 5.1 Verification Prior to Certification, \(5\)\(I\) Disability](#).

NOTE: In order for an individual, who is under 60 years old, to receive a Special Category designation on CHIP SSDO screen, the individual must be disabled according to Section 5.1 Verification Prior to Certification, (5)(I) Disability.

14.11 DISQUALIFICATION FOR SUBSTANTIAL LOTTERY OR GAMBLING WINNINGS

Any household certified to receive SNAP benefits will lose eligibility immediately upon receipt by any individual in the household of substantial lottery or gambling winnings. The household must report the receipt of substantial winnings to DSS by the 10th day following the month the change occurred. DSS will also take action to disqualify any household identified as including a member with substantial winnings, allowing for the issuance of a timely notice.

(1) Regaining Eligibility

Households with substantial lottery or gambling winnings will remain ineligible until they meet the allowable resource limit (less than \$4500) ([Appendix 2: Chapter 10 Resource](#)) and income eligibility requirements ([Section 13.6 Calculating Net Income and Benefit Levels \(2\) Eligibility](#)).

This requirement only applies to the first time a household is certified following the loss of eligibility for substantial lottery and gambling winnings.

If the composition of the household changes, that household would no longer exist, and any remaining members would be considered as a new household if they choose to apply for SNAP benefits. An individual who chooses to reapply for SNAP benefits, alone or as a member of an existing household, would be considered a distinct household from the household that had substantial lottery or gambling winnings. The new household would not have to meet the regaining eligibility requirement.

(2) Substantial Winnings

Substantial lottery or gambling winnings are defined as a cash prize equal to or greater than the maximum allowable financial resource limit ([Appendix 2: Chapter 10 Resource](#)) for elderly or disabled households won in a single game before taxes or other withholdings. For the purposes of this provision, the resource limit applies to all households, including non-elderly/disabled households, with substantial lottery and gambling winnings. If multiple individuals shared in the purchase of a ticket, hand, or similar bet, then only the portion of the winnings allocated to the member of the SNAP household would be counted in the eligibility determination.

The value of substantial winnings will be adjusted annually.

14.12 DISQUALIFICATION FOR CERTAIN CONVICTED FELONS

An individual will not be eligible for SNAP benefits if:

- (1) The individual is convicted as an adult of:
 - (a) Aggravated sexual abuse under section 2241 of title 18, United States Code;
 - (b) Murder under section 1111 of title 18, United States Code;
 - (c) An offense under chapter 110 of title 18, United States Code;
 - (d) A Federal or State offense involving sexual assault, as defined in section 40002(a) of the Violence Against Women Act of 1994 (42 U.S.C. 13925(a)); or
 - (e) An offense under State law determined by the Attorney General to be substantially similar to an offense described above in (a), (b), or (c); **and**
- (2) The individual is not in compliance with the terms of the sentence of the individual or the restrictions under [Section 7.5 Fleeing Felons and Probation/Parole Violators](#).

The disqualification contained in this section will not apply to a conviction if the conviction is for conduct occurring on or before February 7, 2014.

If on an application or recertification or during an interview, a written or verbal response to the question, “Have you or anyone in your household been convicted after February 7, 2014 of aggravated sexual abuse, murder, exploitation of a child, sexual assault as defined in the Violence Against Women Act of 1994, or a similar state law and is also not in compliance with the terms of the sentence(s)?” is “yes”, the household member will be disqualified.

The worker should document all verbal responses to the question. Documentation of the response to the question should be completed in the folder notes associated with the case action in SCOSA.

If a SNAP household member is disqualified due to a conviction listed above in this section, that household member should be coded “DI CF” on CHIP SEPA screen. The household member will remain disqualified until verification of compliance with his/her sentence is received.

Chapter 15 Change Reporting Requirements

15.1 HOUSEHOLD RESPONSIBILITY TO REPORT

All applicants/recipients must report certain changes in their circumstances. The Agency must take appropriate action on all changes to determine if the change affects the household's eligibility or allotment.

15.2 CHANGES DURING THE APPLICATION FOR CERTIFICATION PROCESS

Applicant households are required to report any change(s) which has occurred in its circumstances since filing the application at the certification interview; however, reportable changes which occur after the interview, but before notification of eligibility, must be reported by the household by the tenth day of the month following the month in which the household receives the notice of eligibility.

15.3 SIMPLIFIED REPORTING HOUSEHOLDS

Simplified reporting allows the Agency to reduce and simplify the rules under which most SNAP participants inform the state about changes in their income and circumstances during a certification period. [Section 15.5 Actions on Reported Changes](#).

At the initial certification, annual recertification, six-month recertification, tri-annual recertification and when the Agency transfers households to simplified reporting, the Agency must provide the household with the following:

- A written and oral explanation of how simplified reporting works;
- A written and oral explanation of the reporting requirements including:
- What needs to be reported and verified;
- When the report is due;
- How to obtain assistance; and

- The consequences of failing to file a report.
- Special assistance in completing and filing periodic reports to households whose adult members are all either mentally or physically handicapped or are non-English speaking or otherwise lacking in reading and writing skills such that they cannot complete and file the required report; and
- A telephone number (toll-free number or a number where collect calls will be accepted outside the local calling area) which the household may call to ask questions or to obtain help in completing the periodic report.

SNAP households in which **all adult** members are elderly or disabled with no earned income are assigned a twenty-four month certification period. Under simplified reporting rules, these households are required to report any change in the household's circumstances only at the Interim Contact (DSS Form 3808) or at the 24-month Recertification (DSS Form 3807A), unless the household's gross income exceeds 130% of poverty or a member of the household has won substantial lottery or gambling winnings. SNAP households in which **all members** are elderly with no earned income (ESAP) are assigned a 36-month certification. Under simplified reporting rules, these households are required to report any change in the household's circumstances only at Interim Contact (DSS Form 3808) or 36-month Recertification (DSS Form 3809), unless the household's gross income exceeds 130% of poverty or a member of the household has won substantial lottery or gambling winnings. Changes must be reported within the first 10 days of the month after occurrence. The DSS Form 3808 is used as the change reporting document for annual reporters. The DSS Forms 3808 and 3809 are mailed to households and must be returned to the Agency by the 15th of the month the respective form is due. Incomplete forms which contain the household's signature, name and address or forms filed by the authorized representative must be accepted.

See [Section 15.6 Action on Interim Reporting Households](#) for the Interim Contact Process and [Section 19.13 Determining Continued Eligibility for ESAP Households](#) for the Recertification Process for ESAP

SNAP households, which are assigned a 12-month certification period, are subject to simplified reporting requirements at each recertification. These households are required to report any change in the household's circumstances only at the annual recertification, the six-month recertification or the tri-annual recertification, unless the household's gross income exceeds 130% of poverty, an ABAWD's work hours fall below 20 hours per week or a member of the household wins substantial lottery or gambling winnings (\$4500 or more). This change must be reported by the 10th day following the month the change occurred. Although the six month or tri-annual recertification does not require an interview, either face-to-face or telephone, these households do have the right to a face-to-face or telephone interview if one is requested by the household or its authorized representative.

See [Chapter 17 Recertification of SNAP Household](#) for the Recertification Process for regular SNAP.

NOTE: An individual who works a minimum of 30 hours per week or earns the weekly wages at least equal to the Federal minimum wage multiplied by 30 hours is required to report if his or her work hours falls below 20 hours per week. The household must report the reduction in work hours by the tenth day of the month following the month of the change. Any month in which this individual received a full month of benefits while not fulfilling the ABAWD work requirement or not otherwise exempt, will be a countable month.

15.4 INTERIM CHANGES FOR SIMPLIFIED REPORTING HOUSEHOLDS

(1) Interim changes considered verified upon receipt

Regardless of a household's reporting requirement, the Agency must take action on the following changes, considered verified upon receipt, whether the change causes an increase or decrease in the SNAP allotment:

- (A) BENDEX information on IEVS
- (B) SDX information on IEVS
- (C) Child support income changes received through the PACSS/CHIP interface
- (D) Changes reported for TANF only if the change results in a change in the TANF benefit amount
- (E) Employment verification received from E & T

(2) Interim changes reported by the household that must be acted on

Although simplified reporting households are not required to report any interim changes unless the household's gross income exceeds 130% of poverty, an ABAWD's work hours fall below 20 hours per week or a member of the household wins substantial lottery or gambling winnings (\$4500 or more), the household may report any changes it chooses to report during the certification period. If the household reports one of the following, the Agency must take action on the change, regardless of whether the change causes an increase or decrease in the SNAP allotment:

- (A) Household member(s) moving from one SNAP household to another SNAP household
- (B) Death of **any** household member(s).
- (C) Relocation of any household member(s) out-of-state. This change may also be reported to the Economic Services worker by a SNAP agency outside of South Carolina and the Economic Services worker must take action on the change, regardless of whether the change causes an increase or decrease in the SNAP allotment.
- (D) The household has voluntarily requested that its case be closed in accordance with [Section 16.2 Exemptions from Notice \(K\)](#).
- (E) Household member(s) removed from a SNAP household by SCDSS Child Welfare Services (CWS) or SCDSS Adult Protective Services (APS). This change may also be reported to the Economic Services worker by SCDSS Child Welfare Services (CWS) or SCDSS Adult

Protective Services (APS) and the Agency must take action on the change, regardless of whether the change causes an increase or decrease in the SNAP allotment.

- (F) An ABAWD moves out of the SNAP household. (See [Section 8.17 ABAWD Reporting Requirements](#))
- (G) A change in household circumstances which reveals that a SNAP household member is an ABAWD. (See [Section 8.17 ABAWD Reporting Requirements](#))
- (H) An ABAWD obtains a job.
- (I) A household member has been identified as a fleeing felon in accordance with [Section 7.5 \(1\) Fleeing Felon](#).
- (J) A household member has been identified as a probation or parole violator in accordance with [Section 7.5 \(2\) Probation/Parole Violator](#).
- (K) The Agency has verified information that a member of a SNAP household has won substantial lottery or gambling winnings in accordance with [Section 14.11 Disqualification for Substantial Lottery or Gambling Winnings](#).

(3) Other interim changes reported by the household

Although simplified reporting households are not required to report any interim changes unless the household's gross income exceeds 130% of poverty, an ABAWD's work hours fall below 20 hours per week, or a member of household wins substantial lottery or gambling winnings (\$4500 or more), the household may report any changes it chooses to report during the certification period. Other than changes addressed in [Section 15.4 Interim Changes for Simplified Reporting Households \(1\) Interim changes considered verified upon receipt](#) and [\(2\) Interim changes reported by the household that must be acted on](#), the Agency must determine if the change reported by the household will cause an increase or decrease in the monthly benefit. The Agency will only act on an interim change reported by the household if it causes an increase in benefits. The Agency will not act on a change causing a decrease until the next mandatory action requiring a re-budget of SNAP benefits occurs.

EXCEPTION: When the household reports a loss of income due to voluntary quit or reduction of work effort of a household member subject to work registration and it is determined that this voluntary quit or reduction of work effort was without good cause, the Agency should impose the sanction regardless of the effect that it has on the benefit (increase or decrease). See [Section 8.11 \(4\)](#)

NOTE: The ES worker should consider the net effect of all changes (which have been reported up to that time) when deciding on whether to make a change.

15.5 ACTIONS ON REPORTED CHANGES

(1) Increase in benefits

The following procedures must be followed when a reported change results in an increase in benefits:

- (A) The Agency must increase the benefits for the month following the month the change is reported.
- (B) If the change is reported too late in the month to adjust the benefits for the following month, the Agency must issue supplemental benefits, provided verification of the change is received within 10 days from the date requested. For notices that must be translated, allow ten days from the date the translated notice is sent.
- (C) The Agency must not issue supplemental benefits in the month the change is reported.
- (D) The Agency must not issue supplemental benefits if verification is not received within 10 days from the date requested.

NOTE: A household subject to simplified reporting may report a change in expenses during the certification period that will increase benefits but fail to provide verification of the change. If this situation occurs, the previous amount of expenses will continue to be budgeted in the SNAP case.

(2) Decrease in benefits

The following procedures must be followed for all households subject to simplified reporting requirements when acting on a mandatory decrease in benefits as outlined in section 15.4 or when closing a case because the household's gross income exceeds 130% of poverty for the household or a member of the household wins substantial lottery or gambling winnings (\$4500 or more):

- (A) If sufficient information is reported to make a change resulting in a decrease in benefits or ineligibility, the Agency must issue a timely and adequate notice, as outlined in [Chapter 16, Notice of Adverse Action](#).
- (B) If insufficient information is reported to effect the change, the household must be given 10 days to provide verification. This must be documented in the case file.
- (C) If no response, notice of adverse action is used to notify the household of reduction or termination.
- (D) Ineligibility or decrease in benefits is effective the month following the expiration of the notice of adverse action unless a fair hearing and continuation of benefits is requested.

15.6 ACTION ON INTERIM REPORTING HOUSEHOLDS

The Agency must take action on a complete interim reporting form and authorize benefits. If the form is incomplete and verification is not provided, the household's benefits are terminated if continued eligibility cannot be determined. The interim reporting form is due in the county office

by the 15th of the month in which it is due in order for the interim report to be considered filed timely. The household is entitled to uninterrupted benefits if a completed interim report form is filed timely.

When the interim reporting form is received incomplete, whether timely or untimely, the Agency must notify the household. The notice must include what is needed to make the form complete, when the information or verification must be received, and what will happen if the information or verification is not received timely.

If an incomplete form is filed timely but the household does not provide required verification by the end of the month in which the report is due, the certification period is terminated at the end of that month. If the household files the form between the 16th and the last day of the month, the household loses its entitlement to uninterrupted benefits, but is entitled to a determination of benefits within 30 days from the date the interim reporting form was received by the county.

If the household files the form between the 16th and the last day of the month in which it is due but does not provide required verification within 30 days from the date the form was received by the county, certification is terminated.

The Agency must revert to open on CHIP any case where the interim reporting form received by the last working day of the month, but the Agency failed to acknowledge its receipt on CHIP.

Failure to provide verification of a reported expense may result in the exclusion of that deduction.

15.7 UNCLEAR INFORMATION

Unclear information is information that is not verified, or information that is verified but the Agency needs additional information to act on the change.

During the certification period, the Agency may receive unclear information about changes in the household's circumstances from which the effect of the change on the household's benefit amount or continued eligibility cannot be readily determined. The Agency may receive this unclear information from a third party, the household, or data matches, and must pursue clarification and verification (if applicable) of the household circumstances if:

- The unclear information is received outside the recertification review is fewer than 60 days old relative to the current month of participation; and would, if accurate, have been required to be reported under simplified reporting requirements; or
- Any unclear information appears to present significantly conflicting information from that used by the Agency at the time of certification.

The following procedure must be followed to clarify and verify the household's circumstances:

- (A) The Agency **must** issue a written Request for Contact (RFC) which clearly advises the household of the verification it must provide or the actions it must take to clarify its circumstances, which affords the household at least 10 days to respond and to clarify its circumstances, either by telephone or by correspondence, and which states the consequences if the household fails to respond to the RFC. For notices that must be translated, allow 10 days from the date the translated notice is sent.
- (B) If the household does not respond to the RFC or does respond but refuses to provide sufficient information to clarify its circumstances, the Agency must send the household a notice of adverse action, as described in Section 16.1, which closes the SNAP case.

EXCEPTION: For Prisoner and Death matches, the Agency must remove the subject individual and the individual's income from the SNAP household and adjust the SNAP benefits accordingly.

NOTE: The Notice of Adverse Action (NOAA) cannot be used to advise the household of the verification needed or actions it must take to clarify its circumstances. This is the purpose of the request for contact. The NOAA should be used to notify the household of the case closure that results from the failure to provide verification or take needed action.

- (C) If the household responds to the RFC and provides sufficient information, the Agency must adjust the household's benefit amount by acting on the new circumstances according to simplified reporting rules.

NOTE: RFC may only be issued when the Agency becomes aware of a change in the household's circumstances that calls into question the household's continued eligibility or current level of benefits.

If the unclear information does not meet the criteria listed above in this section **and** does not relate to the data matches described below in this section, then the Agency will not act on the information or require the household to provide information until the household's next certification action or recertification review is due. The Agency may follow up with a household to provide information on a voluntary basis if that information would result in an increase in benefits but may not take adverse action if the household does not respond.

The Agency has an established system to monitor and prevent individuals who are being held in any Federal, State and/or local detention or correctional institutions for more than 30 days from being included in a SNAP household. The prisoner verification system provides for the comparison of identifying information about each household member, excluding minors, against identifying information about inmates of institutions. The Agency must make a comparison of match data for **adult** household members at the time of application and at recertification.

If a Prisoner match occurs,

- Send CHIP Notice C315, Prisoner Match - Information Request, notifying the household that a match was received.

The notice also includes instructions to the household to have the **correctional facility complete the bottom half of the form** or submit release documentation if the person is no longer in the facility.

- Allow **10 days** for the household to submit the completed form or contact the worker. The worker must provide assistance in obtaining the verification, if requested.
- If verification is not received by the due date, remove the person from the SNAP budget (or close the case for 1-person household or if all adults are incarcerated) **following Advance Notice (Notice of Adverse Action) requirements.**
- If the ES worker decides to make contact with the correctional facility to request the release information prior to being asked by the household to assist with obtaining the verification, and is successful in obtaining the verification, CHIP Notice C314, Prisoner Match-Notice of Match Results, must be sent to the household. This notice informs the household that information has been received from the Social Security Administration indicating that a household member is or was previously incarcerated but that no further action is required of the household because the Agency has already obtained the necessary verification.

The Agency has an established system to verify and ensure that SNAP benefits are not issued to individuals who are deceased. The system provides for comparing identifiable information about **all** household member against information from the database on deceased individuals. The agency must make the comparison of matched data at the time of application and no less frequently than once a year.

If a Death Match occurs,

- Send CHIP Notice C321, Loss of Household Member, to the household.
- Allow 10 days for the household to respond.

After the 10-day time frame has expired, take action as follows:

- **All members deceased:** Close the case.

NOTE: A closure notice is not required. If the worker chooses to send a notice, send CHIP Notice C320, Closure - Death of Client.

- **Multiple household members with at least one adult remaining in the home and one or more members are deceased:** Remove the person(s) from the case and send a notice informing the household of the change in benefits with the reason identified. (i.e. “because _____ has been removed from the SNAP case”).

- Follow Advance Notice (Notice of Adverse Action) requirements if benefits **decrease**.
- **Children remain in the home and all adults are deceased:** Close the case and send CHIP Notice C320 to the household.

Complete the DSS Form 1601, Referral to Human Services, to make a referral to Child Welfare Services for an investigation to be conducted to determine the well-being of the children.

15.8 MASS CHANGES

Changes initiated by the State or Federal government which may affect the entire caseload or significant portions of the SNAP caseload are defined as mass changes. Mass changes that may affect SNAP include, but are not limited to:

- Adjustments to net income eligibility standards
- Adjustments to shelter/utility deductions
- Adjustments to the thrifty food plan and standard deduction
- Annual and seasonal adjustments to SSA, SSI and other federal benefits
- Periodic adjustments to TANF payments
- Other changes in the eligibility and benefit criteria based on legislative or regulatory actions.

15.9 FAILURE TO REPORT

If the Agency discovers that the household failed to report a change as required by Simplified Reporting Requirements, and, as a result, received benefits to which it was not entitled, the Agency will file a claim against the household in accordance with Chapter 23 Claims Against Households. If the discovery is made within the certification period, the household is entitled to a notice of adverse action if the household's benefits are reduced. A household will not be held liable for a claim because of a change in household circumstances which it is not required to be reported. Individuals will not be disqualified for failing to report a change, unless the individual is disqualified in accordance with the disqualification procedures specified in Chapter 20 Disqualification for Intentional Program Violation (IPV).

Chapter 16 Notice of Adverse Action

16.1 USE OF NOTICE

Prior to any action to reduce or terminate a household's benefits within the certification period, the Agency will, except as provided in [Section 16.2 Exemptions from Notice](#), provide the household timely and adequate advance notice before the adverse action is taken.

The notice of adverse action will be considered timely if the advance notice period includes at least 10 days from the date the notice is mailed to the date upon which the action becomes effective. Also, if the adverse notice period ends on a weekend or holiday, and a request for a fair hearing and continuation of benefits is received the day after the weekend or holiday, the Agency will consider the request timely received.

NOTE: Economic Services workers should count backwards 12 days from the first day of the month that the action will be effective.

The notice of adverse action will be considered adequate if it explains in easily understandable language:

- The proposed action;
- The reason for the proposed action;
- The household's right to request a fair hearing;
- The telephone number of the SNAP office (toll-free number or a number where collect calls will be accepted for households outside the local calling area) and, if possible, the name of the person to contact for additional information;
- The availability of continued benefits; and
- The liability of the household for any over-issuances received while awaiting a fair hearing if the hearing official's decision is adverse to the household.
- If there is an individual or organization available that provides free legal representation, the notice will also advise the household of the availability of the service.

The Agency may notify a household that its benefits will be reduced or terminated, no later than the date the household receives, or would have received, its allotment, if the following conditions are met:

- (A) The household reports the information which results in the reduction or termination.
- (B) The reported information is in writing and signed by the household.
- (C) The Agency can determine the household's allotment or ineligibility based solely on the information provided by the household as required in B above.
- (D) The household retains its right to a fair hearing as allowed in [Chapter 18 Fair Hearings](#).
- (E) The household retains its right to continued benefits if the fair hearing is requested within the time period set by the Agency in accordance with [Section 18.3 Continuation of Benefits \(1\) Timely request for a fair hearing](#).
- (F) The Agency continues the household's previous benefit level, if required, within five working days of the household's request for a fair hearing.

16.2 EXEMPTIONS FROM NOTICE

Individual notices of adverse action will not be provided when:

- (A) The State initiates a mass change as described in [Section 15.8 Mass Changes](#)
EXCEPTION: A notice of adverse action must be sent if an annual and/or seasonal adjustment to SSA, SSI and other federal benefits results in the termination or decrease of a household's benefits.
- (B) The Agency determines based on reliable information that all members of a household have died.
- (C) The Agency determines, based on reliable information that the household has moved from the State.
- (D) The household has been receiving an increased allotment to restore lost benefits, the restoration is complete, and the household was previously notified in writing of when the increased allotment would terminate.
- (E) The household's allotment varies from month to month within the certification period to take into account changes which were anticipated at the time of certification, and the household was so notified at the time of certification.
- (F) The household jointly applied for TANF and SNAP benefits and has been receiving SNAP benefits pending the approval of the TANF grant and was notified at the time of certification that SNAP would be reduced upon approval of the TANF grant.
- (G) A household member is disqualified for Intentional Program Violation (IPV), in accordance with [Section 20.4 SNAP Disqualification for an Intentional Program Violation \(IPV\)](#), or the benefits of the remaining household members are reduced or terminated to reflect the disqualification of that household member.

- (H) The Agency has assigned a longer certification period to a household certified on an expedited basis and for whom verification was postponed, provided the household has received written notice that the receipt of benefits beyond the month of application is contingent on its providing the verification which was initially postponed and that the Agency may act on the verified information without further notice.
- (I) Converting a household to benefit reduction as a result of failure to make agreed upon repayment as discussed in [Section 23.7 Collection of Recipient Claims](#).
- (J) The Agency is terminating the eligibility of a resident of a Drug Addiction or Alcoholic (DAA) treatment center or a Group Living Arrangement (GLA) if the facility loses either its certification from the appropriate agency or agencies of the State or has its status as an authorized representative suspended due to FNS disqualifying it as a retailer. However, residents of group living arrangements applying on their own behalf are still eligible to participate.
- (K) The household voluntarily requests, in writing or in the presence of a caseworker, that its participation be terminated. If the household does not provide a written request, the Agency will send the household a letter confirming the voluntary withdrawal. Written confirmation does not entail the same rights as a notice of adverse action except that the household may request a fair hearing.
- (L) The Agency determines, based on reliable information that the household will not be residing in the State and, therefore, will not be entitled to obtain its next allotment. The Agency will inform the household of its termination no later than its next scheduled issuance date. While the Agency may inform the household before its next issuance date, the Agency will not delay terminating the household's participation in order to provide advance notice.
- (M) The Agency initiates recoupment of a claim as specified in [Section 23.9 Delinquent Recipient Claims](#) against a household which has previously received a notice of adverse action with respect to such claim.

16.3 ADEQUATE NOTICE WHEN THE HOUSEHOLD'S ADDRESS IS UNKNOWN

The Agency will take no action during the certification period when the household's address is unknown, and mail directed to it (including initial approval notices) has been returned by the post office indicating no known forwarding address. This information should be filed in the case record and will be acted on at the next mandatory re-budget of the case as provided in [Section 15.4 Interim Changes For Simplified Reporting Households](#).

Chapter 17 Recertification of SNAP Households

17.1 RECERTIFICATION PROCESS

SNAP benefits are time limited. No household may participate beyond the expiration of the certification period without a determination of eligibility for a new certification period. The Agency must notify households of expiration dates, provide an application form for recertification, complete an interview (telephone or face-to-face), at least once a year, and recertify eligible households prior to the expiration of certification periods. Households must apply for recertification and comply with interview and verification requirements.

(1) Notice of Expiration (NOE)

The Agency will provide households certified for one month or certified in the second month of a two-month certification period a Notice of Expiration (NOE) at the time of certification. The Agency will provide other households the NOE before the first day of the last month of the certification period, but not before the first day of the next-to-the-last month. The NOE must contain the following:

- (A) The date the certification period expires;
- (B) The date by which a household must submit an application for recertification in order to receive uninterrupted benefits;
- (C) The consequences of failure to apply for recertification in a timely manner;
- (D) Notice of the right to receive an application form upon request and to have it accepted as long as it contains a signature and a legible name and address;
- (E) Information on alternative submission methods available to households which cannot come into the certification office or do not have an authorized representative and how to exercise these options;
- (F) The address of the office where the application must be filed;
- (G) The household's right to request a fair hearing if the recertification is denied or if the household objects to the benefit issuance;
- (H) Notice that any household consisting only of Supplemental Security Income (SSI) applicants or recipients is entitled to apply for SNAP recertification at an office of the Social Security Administration (SSA);

- (I) Notice that failure to participate in an interview may result in delay or denial of benefits; and
- (J) Notice that the household is responsible for rescheduling a missed interview and for providing required verification information.

To expedite the recertification process, the Agency will mail a form for recertification, an interview notification that allows for either face-to-face or telephone interviews, and a statement of needed verification with the NOE.

(2) Recertification application

The Agency will mail an application to be used by households when applying for recertification. This recertification form is the DSS Form 3807A, Notice of Expiration (NOE), which is completed at the 12th month (Annual Recertification), 6-month interval (Six-Month Recertification) and 4-month intervals (Tri-annual Recertification). A new household signature is required at the time of application for recertification. The recertification process can be used for:

- (A) Households which apply for recertification prior to the end of their certification period **AND**
- (B) Households which file an application within 30 days after the end of the certification period. Thirty days is defined as a calendar month.

The recertification process must elicit from the household sufficient information that, when added to information already contained in the case file, will ensure an accurate determination of eligibility and benefits.

17.2 RECERTIFICATION INTERVIEW

At least one interview (face-to-face or telephone) must be conducted for each household (with a member of the household or its authorized representative) once every 12 months, unless the household receives a 24-month certification period because all adult members are elderly or disabled with no earned income. Households certified for 24 months will receive a mailed system generated form, DSS Form 3808, Interim Contact Form, at 12 months.

The Agency cannot require the household to complete an interview before the last month of the current certification period. The interview must be conducted on or after the date the application is timely filed. If the interview is scheduled before the last month of the certification period, the household may not be denied for failing to appear for the interview prior to the end of the certification period. If a household misses its interview and requests another interview, the Agency must schedule an interview.

The Agency must make sufficient effort to complete the interview so that the household has at least 10 days after the interview in which to provide verification before the certification period expires.

EXCEPTION: This does not apply to households which file an application within 30 days after the end of the certification period.

The Agency must notify the household which has filed an application for recertification when an initial interview to determine eligibility is missed by the household or the household's designated authorized representative. This notification will communicate to the household that they are responsible for rescheduling missed interviews. The Agency will not initiate additional action beyond this notification requirement unless the applicant requests another interview.

Procedure:

All initial applications, reapplications, and annual recertifications must be registered in SCWINS. A date set ten days from the application file date (four days for expedited application) will be automatically entered on CHIP INRD screen in the INTERVIEW DATE field. When the interview is conducted, the ES Worker should acknowledge the completion of the interview by coding CHIP INRD screen with a "Y" in the interview completed field and ensure that the INTERVIEW DATE field reflects the actual date that the interview was completed.

If the interview is not completed within the applicable timeframe (ten days for non-expedited or four days for expedited applications) or if the interview is not acknowledged with a "Y" in the INTERVIEW COMPLETED field on INRD within the applicable timeframe, a Notice of Missed Interview (NOMI) will be sent to the household.

17.3 PROCESSING APPLICATIONS FOR RECERTIFICATIONS

(1) Timely recertification

A timely application for recertification is an application received by the 15th day of the last month of the current certification period. If the 15th falls on a holiday or weekend, the application for recertification is due on the last working day prior to the holiday or weekend.

The household must be notified of the approval or denial by the end of the household's current certification; however, the application cannot be denied for failure to provide information before the certification period expires. If the end of the month falls on a holiday or weekend, requested information must be received by close of business on the last working day of the month.

The household's recertification application may be denied at the end of the current certification period. However, the household is allowed the 30 days after the end of the certification period to complete the recertification process and have its application treated as an application for recertification.

If the household takes the required action after denial but within the calendar month after the end of the certification period, the Agency will reopen the case and prorate benefits from the date the household takes the required action.

NOTE: The required actions include submitting a signed recertification application form, completing the interview, and providing verification, if requested.

For more detailed information and examples, see [SNAP Tool Kit 3: SNAP Annual \(12-Month\) Recertification Chart](#) and [SNAP Tool Kit 4: SNAP Six \(6\) Month & Tri-Annual \(4-Month\) Recertification Chart](#).

(2) Untimely recertification

An application for recertification received after the 15th of the month of the current certification, but before the current certification ends is considered untimely.

For an application received after the 15th of the month of the current certification, but before the current certification ends, the following must be adhered to:

- The household loses its right to uninterrupted benefits.
- The household has 30 days after the end of the certification period to complete the recertification process and have its application treated as an application for recertification. Thirty days is defined as a calendar month.
- If the household takes the required action before the end of the certification period, the Agency must process the application and provide a full month's benefits for the initial month of the new certification period.
- If the household takes the required action after the end of the certification period but within 30 days of the date of the application for recertification, the Agency must process the application and provide a full month's benefits for the initial month of the new certification period.
- For applications for recertification filed after the 15th of the last month of the certification period but prior to the end of the certification period where the household does not take the required action within 30 days, the application must be denied. However, if the household takes the required action after denial but within the calendar month after the end of the certification period, the Agency will reopen the case and prorate benefits from the date the household takes the required action.

NOTE: The required actions include submitting a signed recertification application form, completing the interview, and providing verification, if requested.

EXCEPTION: If the Agency is at fault for delaying the household's recertification application beyond the first of the month of what would have been its new certification period, the household's benefits will be prorated based on the date of the new application and restored benefits will be provided back to the date the household's

certification period should have begun had there been no error and the household been able to apply timely.

For more detailed information and examples, see [SNAP Tool Kit 3: SNAP Annual \(12-Month\) Recertification Chart](#) and [SNAP Tool Kit 4: SNAP Six \(6\) Month & Tri-Annual \(4-Month\) Recertification Chart](#).

(3) Late recertification

An application for recertification received after the current certification period ends but within the calendar month after the end of the certification period is considered late.

For an application received after the current certification period ends but within the calendar month after the end of the certification, the following must be adhered to:

- The household loses its right to uninterrupted benefits.
- The application is entitled to expedited treatment if the expedited criteria are met.
- Benefits are prorated from the date the recertification application is filed.

EXCEPTION: If the Agency is at fault for delaying the household's recertification application beyond the first of the month of what would have been its new certification period, the household's benefits will be prorated based on the date of the new application and restored benefits will be provided back to the date the household's certification period should have begun had there been no error and the household been able to apply timely.

- The household must be given the opportunity to participate as soon as possible but no later than 30 days after the application is filed. If the recertification process is not completed within 30 days, a notice of denial is sent to the household. Policy relating to second 30 days does not apply in this case.

For more detailed information and examples, see [SNAP Tool Kit 3: SNAP Annual \(12-Month\) Recertification Chart](#) and [SNAP Tool Kit 4: SNAP Six \(6\) Month & Tri-Annual \(4-Month\) Recertification Chart](#).

17.4 AGENCY FAILURE TO PROVIDE AN OPPORTUNITY TO PARTICIPATE AT RECERTIFICATION

Failure of the Agency to provide any eligible household which filed an application for recertification the opportunity to participate in the month following the expiration of its current certification entitles the household to a restoration of lost benefits.

If an eligible household files an application for recertification before the end of the certification period and provides all information necessary to determine eligibility, but because of agency fault, the recertification is not processed within 30 days, the household is entitled to a full month's allotment for the first month of the new certification period. Benefits must not be prorated from the approval date.

17.5 PRORATED BENEFITS AT RECERTIFICATION

Any application **filed in the month after the certification expires** is considered an application for recertification and will receive prorated benefits from the date the application is filed, if approved.

Any recertification application **filed in a month later than the above month** is considered as received too late and the Agency will require the household to file a new application in order to make an eligibility determination. However, if a DSS Form 3800 or online application is filed during this timeframe, it will be treated as an initial certification and, if approved, benefits will be prorated from the date of application.

17.6 EXPEDITED SERVICE AT RECERTIFICATION

The Agency is not required to apply the expedited service provisions of [Section 6.5 Expedited Service](#) at recertification if the household applies for recertification before the end of its current certification period.

Chapter 18 Fair Hearings

18.1 FAIR HEARING DEFINITION

The fair hearing (appeal) is the administrative process to protect the applicant or recipient household's rights to due process of law when an adverse action is proposed or when the household is aggrieved by any action of the Agency which affects the household's participation in SNAP.

Fair hearing requests involving EBT transactions should be referred to the SCEBT office. SCEBT will prepare the summary, testify and resolve the issues on all EBT transaction hearings.

18.2 TIME FRAMES

The household may be granted a fair hearing for:

- Actions taken/not taken by the Agency which have occurred within the previous 90 days.
- Loss of benefits which have occurred within the previous 90 days.
- Current level of benefits (for example the allotment occurring over the last 12 months for those households certified for 12 months or 24 months for household that can contain a disabled household member or ESAP households).

Any household who wishes to appeal an adverse action should be offered the following options in which to file their appeal:

1. Call the Office of Administrative Hearings (OAH) at 1-803-898-8080 or 1-800-311-7220;
2. Complete the DSS Form 2633 and submit the form to either their local office, mailed to OAH, or by email to appeals@dss.sc.gov; or
3. Have the Economic Services worker or supervisor they are speaking with to complete the DSS Form 2633 on the household's behalf. The Economic Services worker/supervisor should email the completed form to appeals@dss.sc.gov.

18.3 CONTINUATION OF BENEFITS

(1) Timely request for a fair hearing

SNAP benefits must be continued at the level authorized immediately prior to the notice of adverse action, unless the household specifically declines the receipt of continued benefits. Continuation of benefits is considered timely requested when the following applies:

- the household requests a fair hearing within the notice of adverse action period (at least 10-days, as provided in [Section 16.1 Use of Notice](#)); and
- the certification period has not expired (continuation of benefits should not be granted if the case has closed as a result of an action associated with a tri/six/annual recertification or interim contact).

The Agency must explain to the household at the time the fair hearing request is made that if the hearing decision supports the change, any benefits received ineligibly pending the decision will be subject to recovery.

(2) Untimely request for a fair hearing

If the household does not request a hearing during the notice of adverse action period, benefits must be reduced or terminated as provided in the notice. If the household later establishes good cause, the Agency must reinstate the benefits to the prior basis.

The Office of Administrative Hearings (OAH) will notify the Agency to reinstate benefits on fair hearing requests with good cause received by their office.

(3) Reducing or terminating continued benefits

Once continued or reinstated, the Agency must not reduce or terminate benefits prior to the receipt of the official hearing decision unless:

- (A) The certification period expires. The household may reapply and may be determined eligible for a new certification period with a benefit amount as determined by the Agency;
- (B) A change affecting the household's eligibility or basis of issuance occurs while the hearing decision is pending and the household fails to request a hearing after the subsequent notice of adverse action;
- (C) A mass change affecting the household's eligibility or basis of issuance occurs while the hearing decision is pending;
- (D) The household, or its representative, failed to appear for the scheduled hearing; or

- (E) The household, or its representative, withdrew the fair hearing request orally or in writing and did not advise the Agency of its desire to reinstate the fair hearing within 10 days.

18.4 MASS CHANGES

The household is entitled to request a fair hearing when it is aggrieved by a mass change.

NOTE: A household which requests a fair hearing due to a mass change is entitled to continued benefits at its previous level only if the household meets three criteria:

- (A) *The household does not specifically waive its right to a continuation of benefits;*
- (B) *The household requests a fair hearing timely (within the 10 day adequate notice period); and*
- (C) *The household's fair hearing is based upon improper computation of SNAP eligibility or benefits, or upon misapplication or misinterpretation of Federal law or regulation.*

EXCEPTION: The household is NOT entitled to a fair hearing when benefits are reduced or terminated due to an order issued by FNS and participation on the prior basis must be reinstated only if the issue being contested is that eligibility or benefits were improperly computed or that a Federal law or regulation is being misapplied or misinterpreted by the Agency.

NOTE: For this exception to be applicable, the Agency should provide OAH a copy of the order issued by FNS. This exception does not apply to changes in state cost-of-living adjustments, SSA/SSI cost-of-living adjustments, or changes in SCCAP allotments as these mass changes are not a result of an FNS order.

18.5 RESPONSIBILITIES REGARDING THE FAIR HEARING PROCESS

(1) Responsibilities of the Agency's Economic Services worker

The Economic Services worker has the following responsibilities regarding procedures for fair hearings:

- (A) Inform the household of fair hearing rights at application or recertification.
- (B) Conduct a pre-hearing conference with the household to discuss the proposed action once a fair hearing has been requested either verbally or in writing. The pre-hearing conference may be conducted over the telephone. Any action deemed necessary as a result of this conference must be taken immediately. A fair hearing must still be held unless the household withdraws the hearing request; or indicates to OAH or the Economic Services worker/supervisor they no longer want a hearing.

- (C) Assist the household in completing and submitting the appeal and preparing the case, if necessary.
- (D) Inform the household of any available free legal services including the name, address and phone number of the office.
- (E) Explain continued benefits. See [Section 18.3 Continuation of Benefits](#).
- (F) If the household informs an Economic Services worker of their wish to request a fair hearing, they must complete and forward the DSS Form 2633, Request for Fair Hearing, to the Office of Administrative Hearings (OAH) within two working days.
- (G) Make the case file available, provided that confidential information, such as names of individuals who have disclosed information about the household without its knowledge or the nature or status of pending criminal prosecutions is protected from release. If essential to the hearing, this information may be subpoenaed by the household. Provide a free copy to the household the portions of the case file that are relevant to the hearing.
- (H) Request the Office of Administrative Hearings to subpoena documents or witnesses at least 14 days in advance of the hearing. The county office assumes responsibility for any subpoena fees charged unless requested by the household.
- (I) Represent the Agency at the hearing (face-to-face through Microsoft Teams video conferencing or telephone) **AND**
- (J) Implement the hearing decision within 10 days of the final decision and notify the household or his/her representative in writing of the action taken. See [Section 18.11\(5\) Implementation of Fair Hearing Decisions](#).

(2) Responsibilities of the Economic Services supervisor

The Economic Services supervisor has the following responsibilities regarding procedures for fair hearings:

- (A) Review proposed case action when the household requests a fair hearing to ensure that the issue cannot be resolved without a fair hearing.
- (B) Ensure that the pre-hearing conference is scheduled.
- (C) Participate in the pre-hearing conference with the household and resolve the appealed issue, if possible.
- (D) Attend the fair hearing and participate to ensure that relevant evidence and testimony are presented, **AND**
- (E) Ensure that appropriate action is taken timely to implement the decision. See [Section 18.11 \(5\) Implementation of Fair Hearing Decisions](#).

(3) Responsibilities of the SNAP household

The household has the following responsibilities relating to the fair hearing process:

- (A) File the appeal request, either orally or in writing, which must indicate the reason the household is dissatisfied. (The Office of Administrative Hearings can request that the claimant be more specific about the issue). An oral request may be made by telephoning the Economic Services worker or Economic Services supervisor or the Office of Administrative Hearings.

When the action the household wishes to appeal is not clear, the Economic Services worker or Economic Services supervisor must ask the household to clarify the request; however, forwarding the request to the Office of Administrative Hearings must not be delayed beyond two working days after receipt of the request.

- (B) Decide if the household wants to receive continued benefits.
- (C) Notify OAH if they wish to have a face-to-face hearing (through Microsoft Teams video conferencing). Otherwise, a telephone hearing will be scheduled unless a Hearing Officer decides that a face-to-face (through Microsoft Teams videoconferencing) hearing is necessary.
- (D) Present the household's case or appoint a representative to present the case **AND**
- (E) Request the Office of Administrative Hearings to subpoena any necessary documents or witnesses at least 14 days in advance of the hearing. When the household requests a subpoena, the household automatically accepts responsibility for all subpoena fees charged.

18.6 DENIAL/DISMISSAL OF FAIR HEARING REQUESTS

The Economic Services worker or Economic Services supervisor cannot deny or dismiss a hearing request; however, the hearing officer may do so if any of the following situations occur:

- (A) The request is not received in the specified time period. See [Section 18.2 Time Frames](#).
- (B) The household or the household's representative fails without good cause to appear at the scheduled hearing.
- (C) The request is withdrawn orally or in writing from the household or representative. A written withdrawal must be signed by the household or the household's representative. All withdrawals must also be forwarded to the Office of Administrative Hearings (OAH) and be acknowledged as withdrawn by the OAH.

NOTE: The Economic Services worker or Economic Services supervisor must not coerce or attempt to influence the household to withdraw the fair hearing request.

- **Preferred Methods of Withdrawal from a Fair Hearing**

To ensure that Fair Hearings are being withdrawn consistently, the acceptable methods of withdrawal are listed below:

1. A county may call OAH to withdraw from a fair hearing with the household on the phone;
2. A county may transfer the household to OAH to withdraw from a fair hearing. The county should stay on the line long enough to identify who they have on the phone, the household's case number, and that the household wishes to withdraw, prior to transferring the call;
3. A household may call on his/her own and withdraw from a fair hearing; or
4. A household may write to OAH (preferably by email to appeals@dss.sc.gov) to withdraw from a fair hearing.

The Office of Administrative Hearings must send a written notice (order to dismiss) to the household within 10 days of the withdrawal request to confirm the withdrawal request and to provide the household with an opportunity to request their hearing be reinstated.

The notice must advise the household that it has 10 days from the date it receives the order to dismiss to inform OAH, the Economic Services worker or Economic Services supervisor that the household wishes to reinstate/reschedule the hearing.

If the household timely informs OAH, the Economic Services worker or Economic Services supervisor that he/she wishes to reinstate the hearing, the fair hearing must be held.

The 60-day time frame in [Section 18.11 Fair Hearing Decision \(3\) Time frames](#) will begin with the date the household notifies the Economic Services worker or Economic Services supervisor that the household wishes to continue the fair hearing process. The Economic Services worker or Economic Services supervisor or the Office of Administrative Hearings must reinstate a fair hearing as requested by the household at least once. The fair hearing request must not be denied if the household is aggrieved by action that differs from the reinstated action.

18.7 FAIR HEARING SUMMARY

The Economic Services worker or Economic Services supervisor must attach any supporting documentation to a summary which describes the events leading to and including the action that is in question.

The following basic information must be included in the fair hearing summary. The pages of the summary should be numbered to aid in locating information referenced in the hearing:

- (A) Case name, case number and name of the Economic Services worker
- (B) Benefit type, date of application and amount of over-issuance or under-issuance
- (C) Date of the notice of adverse action and dates of the questioned eligibility period
- (D) Logical, concise explanation of the county action

- (E) Statement clarifying if continued benefits were authorized or declined
- (F) Supporting documentation substantiating case action (e.g., notice, CHIP budget screens, etc.).

NOTE: Hearing Officers do not have access to CHIP or SCOSA and therefore cannot review these systems to determine what is happening in the household's case.

The Economic Services worker or Economic Services supervisor must forward a copy of the same fair hearing summary and evidence to the household and Hearing Officer prior to the scheduled hearing.

NOTE: If the summary and evidence is sent by first class mail, the evidentiary packet should be sent at least five days prior to the hearing.

18.8 SCHEDULING THE FAIR HEARING

Upon receipt of an appeal request the Office of Administrative Hearings (OAH) will:

- As a courtesy, notify by email the Economic Services worker and Economic Services supervisor whom OAH has identified as responsible for the most recent action when the hearing request was made and/or the action the household disputes. **This is sent as a courtesy, to provide the Agency additional time to contact the household.** If the Economic Services worker and Economic Services supervisor believe they were improperly identified, they should confer with the worker/supervisor they believe should be responsible for the hearing and inform OAH of the appropriate worker/supervisor that will represent the Agency.
- Schedule the hearing using Microsoft Teams and invite the Economic Services worker and Economic Services supervisor.

NOTE: If the Economic Services worker and Economic Services supervisor are unable to participate at the scheduled time, alternate arrangements may be made if the Hearing Officer is notified prior to a schedule letter being mailed.

- At least 10 days prior to a scheduled hearing, the Hearing Officer will schedule the fair hearing using Microsoft Teams and invite the Economic Services worker and Economic Services supervisor.

The Office of Administrative Hearings will notify the household in writing of:

- The date, time and place for a telephone (or face-to-face hearing through Microsoft Teams videoconferencing when requested)

- The household's rights and responsibilities relating to the hearing
- Explanation of the administrative hearing process.

A copy of the notification will also be sent by the Office of Administrative Hearings at the same time to the Economic Services worker and Economic Services supervisor.

If the household is unable to participate at the scheduled time, alternate arrangements may be made. The household may request less advance notice if an earlier hearing date is desired.

18.9 FAIR HEARING PROCEDURES

(1) Fair Hearing Procedures for Regionalized Specialized Workload (RSW)

The fair hearing will be held by telephone, unless the household asks that it be held face-to-face. The household will always be given the option for a face-to-face hearing through Microsoft Teams video conferencing. The worker who took the action will always represent the Department (Agency). The pre-hearing contact will be made by the county in which the worker who took the action is housed.

EXCEPTION: *Actions that are system generated while the case is in Universal Caseload will be handled by the county of residence.*

If a face-to-face hearing is requested, the household may join the hearing through Microsoft Teams video conferencing email link sent by the Hearing Officer or they may choose to report to his/her county of residence. An Economic Services supervisor in the county of residence will be present and the worker who took the action will call in.

In each case the worker will participate in the hearing by joining the scheduled Teams meeting/video conference using the information contained in the schedule letter and/or joining the Teams meeting/video conference from their DSS Microsoft Teams/Outlook account. If the worker who took the action is not at work or not available for the hearing, then the supervisor or designee must represent the Agency.

(2) Responsibilities of the hearing officer during a hearing

The responsibilities of the hearing officer during a hearing are as follows:

- (A) Regulate the course of the hearing and the conduct of the parties and their counsel consistent with due process to ensure an orderly hearing.
- (B) Administer oaths or affirmation.
- (C) Rule on offers of proof and the admissibility of evidence.

- (D) Request, receive and make part of the record all evidence determined necessary to decide the issues being raised.
- (E) Rule on procedural and substantive motions and objections.
- (F) Call, examine, sequester, and/or disqualify witnesses.
- (G) Allow each party to question or refute any testimony or evidence.
- (H) Ask questions of any witness.
- (I) Determine credibility, reliability, and relevance of any admitted evidence and testimony.
- (J) To serve as an impartial decision maker during the proceeding.
- (K) Conclude the hearing when satisfied that all pertinent information bearing on the issue has been introduced and examined.
- (L) Dismiss the fair hearing if the household fails to call, or otherwise attend, the hearing within 10 minutes of the scheduled date and time.

(3) Responsibilities of the Economic Services worker or Economic Services supervisor

Responsibilities of the Economic Services worker or Economic Services supervisor during a hearing are as follows:

- (A) Arrange for any witnesses to be present at the hearing.
- (B) Notify and arrange for appropriate Agency staff to testify when needed.
- (C) Call, or otherwise attend, the hearing at the scheduled time given for the hearing.
- (D) Read prepared summary of circumstances leading up to the hearing.
- (E) Testify and present evidence to substantiate action taken adversely against the household.
- (F) Question the household and/or witnesses AND
- (G) Refute any evidence or testimony presented by the household.

(4) Responsibilities of the household

Responsibilities of the household during a hearing are as follows:

- (A) Call, or otherwise attend, the hearing at the scheduled time given for the hearing.
- (B) Present the household's case or appoint a representative to present the case.
- (C) Testify and present evidence to substantiate the case; bring witnesses.
- (D) Question the witnesses.
- (E) Examine all evidence relied upon by the county in reaching its adverse action decision AND
- (F) Refute any evidence or testimony presented by the Economic Services worker or Economic Services supervisor.

18.10 EVIDENCE APPLICABLE IN A FAIR HEARING

The burden of proof in a fair hearing generally falls on the Economic Services worker or Economic Services supervisor. The following chart describes the types of evidence which may be presented in a fair hearing:

Type of Evidence	Definition
Direct	Original or primary evidence (e.g. eyewitness testimony, receipts, wage stubs, canceled checks, etc.); evidence that is the most reliable and direct in relationship to what is offered to prove.
Indirect/Circumstantial	Evidence that creates more than a mere suspicion and that a reasonable person would find sufficient to support a conclusion.
Hearsay	Secondhand information, usually a statement made out of court and not under oath and offers in evidence as proof that what is stated is true. Hearsay evidence is generally not admissible. <i>SOME EXCEPTIONS:</i> <i>Prior statements made by a party to the hearing are admissible if they are against the party's interest.</i> <i>Records kept in the course of a regular activity may be admissible.</i>
Irrelevant	Evidence which does not have a direct or indirect bearing on the issue; does not tend to prove or disprove any issue of fact that is of consequence to the case.

Hearing Officer and Committee member will determine credibility, reliability, and relevance of the evidence and testimony from both the household and the Agency.

18.11 FAIR HEARING DECISION

(1) Fair Hearing committee

The Fair Hearing Committee has the final decision making power in fair hearings. The committee has the responsibility of reviewing the hearing record provided by the Office of Administrative Hearings before making the final decision. Decisions of the Fair Hearing Committee must comply with federal law and regulations and must be based on the hearing record. The decision is binding on the county office and must be retained in the case file for three years.

(2) Notification

The household, the Economic Services worker, and Economic Services supervisor must each be notified in writing of:

- (A) The Fair Hearing Committee's decision
- (B) The reasons for the decision

(C) The available appeal rights.

(3) Time frames

The household must be informed of the decision by the Fair Hearing Committee within 60 days of the initial request for a fair hearing by the household.

The Agency must effectuate any change in benefits within 10 days of receiving the final decision. In the event of an over-issuance, the Economic Services worker must establish a claim against the household.

(4) Motion for reconsideration

Any party (county or household) aggrieved by a final fair hearing decision may, within 10 days of the service of the order, file a written Motion for Reconsideration, which will specify in detail the grounds for relief sought and supporting authorities.

The Motion for Reconsideration is a written explanation of the reason that the party disagrees with the hearing decision and any supporting evidence for this. There is no formal format for this. The Office of Administrative Hearings may order reconsideration on its own motion within 10 days after the service of the final order. The service of order is the date the fair hearing decision is received by the county or the household.

The filing of a motion for reconsideration will not suspend or delay the effective date of the order, and the order will take effect on the date fixed by the Office of Administrative Hearings and will continue in effect unless the motion is granted or until the order is super-ceded, modified, or set aside as provided by law.

A Motion for Reconsideration will only be granted on the basis of:

- (A) A material error of law
- (B) A material error of fact
- (C) The discovery of new evidence sufficiently strong to reverse or modify the order, which could not have been previously discovered by due diligence.

The Office of Administrative Hearings may order a rehearing or enter an order with reference to the motion without ordering a hearing and will dispose of the motion within 30 days after it is filed. If the Office of Administrative Hearings determines, in its discretion, that a rehearing is necessary, the matter will be set for further proceedings as soon as practical.

If after such rehearing, it appears that the original decision, order, or determination is in any respect unlawful or unreasonable, the Hearing Officer Manager or Individual and Provider Rights (IPR) Director's designee may reverse, change, modify, or suspend the same accordingly.

Any decision, order, or determination made after such reconsideration, reversal, change, modification, or suspension of the original determination will have the same force and effect as the original decision, order, or determination.

(5) Implementation of Fair Hearing decisions

(A) The Hearing Authority Upholds the Decision of the Agency.

In the event the hearing decision upholds the Agency action, any benefits to the household which were continued pending the hearing, will be discontinued beginning with the next scheduled issuance, regardless of whether or not an appeal is filed.

(B) The Hearing Authority Decides in Favor of the Household.

When the hearing official decides in favor of the household, SNAP benefits to the household will begin or be reinstated, as required by the decision. Any lost benefits due to the household must be issued as soon as possible.

18.12 RIGHT TO APPEAL THE HEARING DECISION

In addition to a Motion for Reconsideration, the household has the right to appeal an adverse decision of the Fair Hearing Committee to the Administrative Law Court for judicial review. This must be initiated within 30 days of the decision of the Fair Hearing Committee.

Chapter 19 Federal Demonstration Projects

19.1 DEFINITION OF THE SOUTH CAROLINA COMBINED APPLICATION PROJECT (SCCAP)

The South Carolina Combined Application Project (SCCAP) is a cooperative effort between SCDSS, the USDA Food and Nutrition Service (FNS) and the SSA. This federally approved demonstration project is designed to simplify the application process for the SSI applicant who chooses to apply for SNAP benefits.

To be defined as a SCCAP “Y” household, the SSI applicant must meet the following requirements:

- (A) The applicant is an SSI eligible individual.
- (B) The applicant has no earned income, and.
- (C) The applicant lives alone or purchases and prepares meals separately if living with others. Separate household status does not apply to SSI applicants who must be included in a required household combination as specified in [Section 2.2 \(1\) Special Household Requirements \(Required household combinations\)](#).

A SCCAP “Y” participant will receive a standard amount of SNAP benefits based on a monthly representative income consistent with the SSI federal benefit rate for SSI only (\$994) or for a combination of SSI and other income (other than earned) (\$1014) and one of two standard shelter/utility deductions representative of expenses paid by the individual. The “shelter low” deduction is given when actual expenses are \$0 - \$497. The “shelter high” deduction is given when actual expenses are \$498 - \$701. Standard SCCAP benefit amounts are shown below:

If income is \$994 – with “shelter low” deduction: \$93

If income is \$994 – with “shelter high” deduction: \$155

If income is \$1014 – with “shelter low” deduction: \$84

If income is \$1014 – with “shelter high” deduction: \$146

An individual meeting the SCCAP “Y” definition may be excluded from SCCAP “Y” and participate in the regular SNAP under SCCAP “E” only if one of the following can be verified by the applicant:

- shelter and utility expenses in excess of the higher standard (over \$701 per month)
- out-of-pocket medical expenses in excess of \$50 per month; or
- paying legally obligated child support to someone outside of the household

19.2 ELIGIBILITY DETERMINATION FOR THE SOUTH CAROLINA COMBINED APPLICATION PROJECT (SCCAP)

SCCAP “Y” eligibility and allotment levels are automatically determined based on household information transferred from the SDX.

Households that meet resource eligibility for SSI are considered to have met resource eligibility for SNAP.

SDX information is used to make the SCCAP “Y” determination. To be determined a SCCAP “Y” household:

- (A) The pay status code on SDX must be C01, E01, M01, or M02
- (B) The marital status (TMR field) must be coded either AI (aged individual), BI (blind individual), or DI (disabled individual) which indicates they are not married.
- (C) The federal living arrangement code must read A
- (D) The individual must not have earned income
- (E) The gross amount must equal the appropriate federal benefit rate with a frequency code of C.

NOTE: The worker should use the SDX field “GRO” when determining SCCAP eligibility in addition to any other unearned income in a current pay status on SDX other than in-kind income/benefits.

A household meeting these criteria is coded "Y" in the SCCAP field on CHIP INRD screen.

If an SSI recipient meets the SCCAP “Y” definition, he/she may only receive SNAP benefits through SCCAP “Y”.

Eligibility for benefits for SCCAP “Y” begins on the date of application (prorated month) when the SCCAP “Y” application is received from a source other than SSA, (e.g., local county DSS offices, internet and direct mail-ins), if these applicants are receiving SSI at the time application is made for SCCAP.

19.3 PROCESSING HOUSEHOLDS ELIGIBLE FOR THE SOUTH CAROLINA COMBINED APPLICATION PROJECT (SCCAP)

For households that meet SCCAP “Y” definition, the local county DSS office will:

- (A) Have the recipient sign the DSS Form 1205, Declaration and Consent to Participate in SCCAP.
- (B) Inform clients that no interview is required for households that meet SCCAP “Y” criteria;
AND
- (C) Register the SCCAP application in SCWINS.

SCCAP “Y” households are assigned a 36-month (3-year) certification period. SCCAP “Y” households will be mailed a system generated DSS Form 1602, SCCAP SNAP Recertification, once every three years. The household must complete the DSS Form 1602 to continue SNAP participation. The DSS Form 1602 requests information regarding address, residence, and income. The information requested is sufficient that, when added to information already contained in the case file, will ensure an accurate determination of eligibility and benefits. The ES worker will evaluate this information, make any needed change, and determine continued eligibility based on this information.

Failure to return a completed DSS Form 1602 will result in a system generated case closure.

19.4 EXCEPTION TO SOUTH CAROLINA COMBINED APPLICATION PROJECT (SCCAP) ELIGIBILITY

Households may be excluded from meeting the SCCAP “Y” definition if any of the following occurs:

- Out-of-pocket medical expenses incurred exceed the monthly average of \$50.
- Combined monthly actual shelter and utility expenses incurred exceed the higher of the SCCAP standard shelter/utility deduction.
- The household is paying legally obligated child support to someone outside of the home and is eligible for this deduction. (See [Section 12.7 Child Support Deduction](#))

If one of these situations exists, the individual may receive benefits under SCCAP “E.” If the household meets the criteria to opt-out of SCCAP “Y”, the DSS Form 1205, Declaration and Consent to Participate in SCCAP, can be registered as regular SNAP or ESAP (If all household members are age 60 or older with no earned income).

The household must provide verification of out-of-pocket medical expenses that exceed the monthly average of \$50, combined shelter and utility expenses that exceed the higher of the SCCAP standard shelter/utility deduction or paying legally obligated child support.

A SCCAP household that verifies excess shelter or medical expenses may elect to receive the mandatory utility allowance (MUA) or the basic utility allowance (BUA) instead of the actual utility deduction. A SCCAP household that verifies excess shelter expenses is processed by the rules of the regular SNAP. These households are coded "E" in the SCCAP indicator field on CHIP INRD screen to show that they are excluded" from SCCAP. A SCCAP household that verifies paying legally obligated child support are coded "B" in the SCCAP indicator field on CHIP INRD screen to show that they are excluded" from SCCAP.

For households that meet SCCAP "Y" definition but are excluded from SCCAP because they have verified excess expenses, the Economic Services worker will:

- Have the recipient complete a DSS Form 3800, Temporary Assistance for Needy Families (TANF) Application Supplemental Nutrition Assistance Program (SNAP) Application Refugee Cash Assistance (RCA) Application, or have the clerical staff register the DSS Form 1205 as a regular SNAP or ESAP application;
- Verify SSI;
- Verify expenses; **AND**
- Update the SCCAP indicator on CHIP INRD screen to "E" or "B", whichever is appropriate.

19.5 SSA PROCEDURES FOR THE SOUTH CAROLINA COMBINED APPLICATION PROJECT (SCCAP)

An applicant for SSI will be screened for SCCAP eligibility by SSA. If this screening indicates possible eligibility, SSA will explain SCCAP to the applicant. The SSI application includes the option to receive SNAP benefits through SCCAP or to not receive SNAP benefits. If an SSI recipient meets SCCAP definition, he/she may only receive SNAP benefits through SCCAP. The SSA worker enters appropriate codes on the SDX to indicate that the individual wishes to participate in the SCCAP project. This information is transferred to SCDSS for appropriate action. The SSA worker provides an explanation of benefit amounts and delivery methods.

SSA will also inform the applicant that if he/she has shelter/utility expenses in excess of the SCCAP standard shelter/utility deductions, out-of-pocket medical expenses in excess of \$50, or pays legally obligated child support, he/she may apply at the local county DSS office to receive benefits under the regular SNAP.

Additionally, SSA will inform the applicant that he/she may receive SNAP benefits while the SSI determination is being processed by applying at the local county DSS office.

Eligibility for benefits for SCCAP “Y” households begins the month following SSI eligibility determination or the month following application date where SSI is already being received. These households are not entitled to prorated or retroactive benefits; therefore, SSA will instruct the applicant to apply at the local county DSS office if he/she wishes to receive SNAP benefits in the interim.

19.6 RESPONSIBILITY FOR SOUTH CAROLINA COMBINED APPLICATION PROJECT (SCCAP) HOUSEHOLDS

Once SSI/SCCAP eligibility is determined, local county DSS offices assume full responsibility of the case. Eligibility for SNAP benefits through SCCAP continues as long as the household is SSI eligible. When SSA re-determines eligibility for SSI benefits, the household will be screened for continued SCCAP eligibility. All changes will be reported to SSA and picked up by CHIP through the transfer of SDX information monthly.

Since addresses for SCCAP households must agree with the SDX address information, no changes can be made to CHIP ADDR screen until the same change is reflected on the SDX, except when the address on SDX is that of a representative payee. An SSI recipient who lives in South Carolina but changes addresses within South Carolina is still eligible for SCCAP “Y” and the address change will be corrected from the SDX.

19.7 SSI DENIAL

If the SSI application is denied, the individual will need to apply for SNAP benefits at the local county DSS office under the regular SNAP rules.

19.8 CHANGES IN SOUTH CAROLINA COMBINED APPLICATION PROJECT (SCCAP) HOUSEHOLDS

Changes in SCCAP “Y” cases are reported to SSA and processed by the local county DSS offices.

(1) Regular SNAP household that becomes SCCAP “Y”

If the household reports a change in circumstances which would cause a regular SNAP case to become a SCCAP “Y”,

- (A) The ES worker must close the regular SNAP case

- (B) Send the recipient a DSS Form 1205, Declaration and Consent Form to Participate in SCCAP
- (C) Once the DSS Form 1205 is received by any local county DSS office, it will be registered and processed as SCCAP “Y” case.

(2) SCCAP household reports a change in circumstances which would cause the case to be excluded from SCCAP

If the household reports a change in circumstances which would cause the case to be excluded from SCCAP, the local county DSS office must take the following action:

- (A) Request verification of expenses, child support, earned income, etc. via the DSS Form 1669, Request for Information, or CHIP Notice C000, Additional Information Required. Allow the household 10 days to provide requested verification.
- (B) Upon receipt of requested information, determine eligibility for the regular SNAP AND
- (C) If not eligible to receive expense deductions for excess shelter/utility expenses, court ordered child support payments, or out-of-pocket medical expenses, notify the household in writing and leave the case open as a SCCAP “Y” case OR
- (D) If the individual is determined eligible for the regular SNAP and excluded from SCCAP:
 - Have a new application, DSS Form 3800, or DSS Form 16176, Application for ESAP, (if all household members are age 60 and over with no earned income) signed by the household.
 - Register the application in SCWINS. Client must call to complete the interview for regular SNAP or ESAP SNAP case, whichever is appropriate.
 - Authorize benefits for the appropriate month, AND
 - Notify the household of the new benefit amount.

19.9 RECIPIENT CLAIMS FOR SOUTH CAROLINA COMBINED APPLICATION PROJECT (SCCAP) HOUSEHOLDS

Regulations concerning categorical eligibility are followed in the event that there is a recipient claim on a SCCAP case. Any possible recipient claim detected in an SCCAP case will be forwarded on a DSS Form 1680, Possible Claims Referral Form, to the appropriate Benefit Integrity Claims Supervisor for the county in which the SCCAP household resides. This referral will be processed by standard recipient claims policy for SNAP.

19.10 DEFINITION OF THE ELDERLY SIMPLIFIED APPLICATION PROJECT (ESAP)

The South Carolina Elderly Simplified Application Project (ESAP) is designed to simplify the SNAP process for elderly households who have traditionally proven to be our most stable population, on fixed income, with few reportable changes in household composition or deductions.

This segment of our population faces barriers to participation in SNAP due to the complexity of the application process and problems associated with age, such as transportation, mobility and disability.

In addition, this project is consistent with the SNAP goal of providing food assistance to raise levels of nutrition among low-income individuals and to better serve the nutritional needs of elderly individuals.

ESAP cases are handled by the county DSS office staff who processes all applications, continuing eligibility and maintenance functions.

19.11 ELIGIBILITY FOR THE ELDERLY SIMPLIFIED APPLICATION PROJECT (ESAP)

To be determined an ESAP household; the household must meet the following requirements:

- (A) All household members are elderly (age 60 or older)
- (B) The household has no earned income.
- (C) No member of the household receives SNAP benefits under SCCAP. Households mandatory for SCCAP “Y” cannot participate in ESAP. Households that meet the definition for SCCAP but participate in the regular SNAP under SCCAP “E” must participate in ESAP if they meet ESAP eligibility.
- (D) Complete an interview at initial application and reapplication.

ESAP eligibility will be determined based on information on the application, information obtained during the interview, and any information from state and federal computer matches. To determine eligibility, the household will not have to verify any additional information, unless questionable. If information regarding non-citizen status is needed, the household must provide this verification. In addition, any information that is not verified through state and federal computer matches (SDX, BENDEX, IEVS, etc.) such as medical expenses or child support expenses, may be considered questionable and require additional verification on the part of the household.

ESAP benefits will be calculated the same as for any regular SNAP household. For all households whose eligibility is determined under ESAP, the ESAP indicator on CHIP INRD screen will be coded "Y". Eligible ESAP households are assigned a 36-month (3-year) certification period.

Notification of SNAP eligibility is accomplished through CHIP by the county DSS office staff for ESAP cases. Notices will include the amount of benefits, the effective month of eligibility and instructions regarding the receipt and use of the EBT card.

19.12 PROCESSING HOUSEHOLDS ELIGIBLE FOR THE ELDERLY SIMPLIFIED APPLICATION PROJECT (ESAP)

An ESAP household may complete a DSS Form 16176, Application for ESAP; or a DSS Form 3800 in order to apply for SNAP benefits.

Upon application, the DSS staff or Outreach Partners will determine whether all household members meet the ESAP definition described in [Section 19.11 Eligibility for the Elderly Simplified Application Project \(ESAP\)](#).

Once the application is registered in SCWINS, an Interview Notice will be sent to the applicant to call and complete an interview.

When a household simply inquires to learn information about ESAP, the DSS Form 16178, ESAP Brochure, may be provided to the household.

When a household expresses interest in applying for SNAP benefits under ESAP, the DSS Form 16177, ESAP Cover Letter, DSS Form 16176 (in which the DSS Form 16178 and DSS Form 3800A, Your Rights and Responsibilities, are incorporated with this form), must be provided.

19.13 DETERMINING CONTINUED ELIGIBILITY FOR ELDERLY SIMPLIFIED APPLICATION PROJECT (ESAP) HOUSEHOLDS

ESAP households are required to complete a DSS Form 3808, Interim Contact/Notice of Expiration, annually at the 12th month and 24th month of the 36-month certification period. The household must complete this form to determine SNAP eligibility.

When the ESAP certification period is due to expire, the DSS Form 3809, ESAP SNAP Recertification, is mailed to the ESAP household in order for an eligibility determination to be made for a new 36-month certification period.

The DSS Form 3808 and DSS Form 3809 request information regarding address, residence, income and any anticipated changes. The information requested is sufficient that, when added to information already contained in the case file, will ensure an accurate determination of eligibility and benefits. To determine eligibility, the household will not have to verify any additional

information, unless questionable. The ES worker will evaluate this information, make any needed change, and determine continued eligibility based on this information.

Failure to return a completed DSS Form 3808 or DSS Form 3809 will result in a system generated case closure.

19.14 CHANGES IN ELDERLY SIMPLIFIED APPLICATION PROJECT (ESAP) HOUSEHOLDS

ESAP households are subject to simplified reporting requirements as defined in [Section 15.3 Simplified Reporting Households](#). Interim changes will be handled according to [Section 15.4 Interim Changes for Simplified Reporting Households](#).

The ES worker must send proper notification regarding the effect of any change on the benefit amount based on regular SNAP regulations.

In situations where the ESAP household composition changes and all members are no longer elderly or a household member now has earned income, the SNAP case must not be closed during the certification period in order to remove it from ESAP, but the case must be reevaluated under simplified reporting rules to determine the appropriate case to be taken. See [Section 15.5 Actions on Reported Changes](#).

19.15 RECIPIENT CLAIMS FOR ELDERLY SIMPLIFIED APPLICATION PROJECT (ESAP) HOUSEHOLDS

Any possible recipient claim detected in an ESAP case will be documented on the a DSS Form 1680, Possible Claim Referral Form, and scanned into SCOSA with any supporting evidence to the Benefit Integrity folder, Possible Claims as the Sub-Folder, the region as Claims Region and the Date Detected field updated to show what date the referral was found. This referral will be processed by standard recipient claims policy for SNAP.

Chapter 20 Disqualification for Intentional Program Violation (IPV)

20.1 ADMINISTRATIVE RESPONSIBILITY

The Agency will be responsible for investigating any case of alleged Intentional Program Violation (IPV) and ensuring that appropriate cases are acted upon either through administrative disqualification hearings or referral to a court of appropriate jurisdiction in accordance with the procedures outlined in this section. Administrative disqualification procedures or referral for prosecution action should be initiated by the Agency in cases in which the Agency has sufficient documentary evidence to substantiate that an individual has intentionally made one or more acts of IPV as defined in [Section 20.2 Definition of Intentional Program Violation \(IPV\)](#). The Agency will conduct administrative disqualification hearings (ADH's) (See [Section 20.3 Methods of Determination of an Intentional Program Violation](#)) in cases in which the Agency believes the facts of the individual case do not warrant civil or criminal prosecution through the appropriate court system, in cases previously referred for prosecution that were declined by the appropriate legal authority, and in previously referred cases where no action was taken within a reasonable period of time and the referral was formally withdrawn by the Agency.

The Agency will not initiate an administrative disqualification hearing against an accused individual whose case is currently being referred for prosecution or subsequent to any action taken against the accused individual by the prosecutor or court of appropriate jurisdiction, if the factual issues of the case arise out of the same, or related, circumstances.

The Agency may initiate administrative disqualification procedures or refer a case for prosecution regardless of the current eligibility of the individual.

If the Agency does not initiate administrative disqualification procedures or refer for prosecution a case involving an over-issuance caused by a suspected act of IPV, the Agency will take action to collect the over-issuance by establishing an inadvertent household error recipient claim against the household in accordance with [Section 23.3 Classification of Recipient Claims \(2\) Inadvertent household error](#). The collection of the overpayment and the disqualification for IPV are separate issues.

The Agency will base administrative disqualifications for intentional Program violations on the determinations of hearing authorities arrived at through administrative disqualification hearings or on determinations reached by courts of appropriate jurisdiction.

However, the Agency will allow accused individuals either to waive their rights to administrative disqualification hearings or to sign disqualification consent agreements for cases of deferred adjudication in accordance with [Section 20.3 Methods of Determination of an Intentional Program Violation](#). The Agency will base administrative disqualifications for IPV on the waived right to an administrative disqualification hearing or on the signed disqualification consent agreement in cases of deferred adjudication.

20.2 DEFINITION OF INTENTIONAL PROGRAM VIOLATION (IPV)

Intentional Program violations (IPV's) will consist of having intentionally:

- (A) Made a false or misleading statement, or misrepresented, concealed or withheld facts; **OR**
- (B) Committed any act that constitutes a violation of the Food and Nutrition Act, the SNAP Regulations, or any State statute for the purpose of using, presenting, transferring, acquiring, receiving, possessing or trafficking of SNAP benefits or authorization cards used as part of an automated benefit delivery system (access device).

20.3 METHODS OF DETERMINATION OF AN INTENTIONAL PROGRAM VIOLATION (IPV)

The methods in which a determination of IPV is made against an individual are:

- (A) An Administrative Disqualification Hearing (ADH) conducted by the Office of Administrative Hearings.

A pending hearing must not affect the individual's right to be certified and participate in SNAP. Benefit Integrity Claims staff will represent the Agency at this hearing.

- (B) An administrative consent agreement (ACA) in which the individual waives the right to an ADH

- (C) A deferred adjudication disqualification consent agreement (DCA) DSS Form 2659 with Court determination or prosecution in a court of law.

20.4 SNAP DISQUALIFICATION FOR AN INTENTIONAL PROGRAM VIOLATION (IPV)

An individual, not a household, who intentionally violates SNAP regulations, must be disqualified from participation.

Benefit Integrity Claims staff will be responsible for investigating any case of alleged IPV and ensuring that appropriate cases are acted upon either through administrative disqualification hearings or court referrals. DSS Brochure 2408, Administrative Disqualification Hearings, should be given to any individual who inquire about the administrative disqualification hearing process.

An individual disqualified for an IPV cannot act as an authorized representative or as a primary informant during the disqualification period. The disqualified person must name another adult member as the primary informant or name an authorized representative. However, if there is not another adult member and the disqualified person has no one he/she can name as an authorized representative, the disqualified individual may serve as the primary informant.

20.5 INTENTIONAL PROGRAM VIOLATION (IPV) DISQUALIFICATION TIME PERIODS

When it is determined that an individual has committed an IPV, that individual will be disqualified the month following the date of decision, whether the individual is participating or not. If the disqualified individual is the only household member, the case must be closed.

A written notice must be sent to the household stating the individual will be disqualified the month following the date of the decision.

An individual, not a household, who has been determined to have committed an IPV in SNAP, is disqualified from participating in SNAP for the time periods listed in the chart that follows. No additional household members may be disqualified unless there is convincing evidence of their complicity in committing the IPV.

When a case is referred to a court for prosecution, the length of the disqualification and the date the disqualification is to begin may be set by the court. If the court fails to impose a disqualification period for any IPV, the appropriate disqualification period will be imposed unless it is contrary to the court order.

Offense	Time Period	NDQ/eDRS penalty period
Any IPV or Suspected Fraud (SF)/ Fraud (FR) prior to April 1, 1983. These are considered a first IPV. When the disqualification was imposed prior to April 1, 1983, but was discontinued prior to completion due to the subsequent ineligibility of the household, consider that disqualification to be completed.	3 months	3
First offense between April 1, 1983 and September 22, 1996	6 months	6
First offense after September 22, 1996	12 months	12
Second offense between April 1, 1983 and September 22, 1996	12 months	12
Second offense after September 22, 1996	24 months	24
Third offense	Permanently	99 (past) 999 (current)
First offense of buying illegal drugs with SNAP benefits	2 Years/24 months	24
Second offense of buying illegal drugs with SNAP benefits	Permanently	99 (past) 999 (current)
First and/or subsequent offense by an individual found to have made a fraudulent statement or representation with respect to the identity or place of residence of the individual in order to receive multiple SNAP/EBT benefits simultaneously	10 years	97 (past) 120 (current)
Conviction(s) by a federal, state, or local court for trafficking benefits of an aggregate amount of \$500 or more	Permanently	99 (past) 999 (current)
Conviction(s) of buying or selling firearms, ammunition or explosives with SNAP benefits	Permanently	99 (past) 999 (current)

The disqualification period is ended by adding the disqualified individual(s), if eligible with no deferred disqualification, back to the household effective the month after the disqualification period expires. If the individual has served one disqualification period and subsequently commits a second IPV, the disqualification period would be imposed the month following the date of decision.

Once a disqualification penalty has been imposed against a currently participating household member, the disqualification period will continue uninterrupted until completed regardless of the eligibility of the disqualified member's household. However, the disqualified member's household will continue to be responsible for repayment of the overissuance which resulted from the disqualified member's intentional Program violation regardless of its eligibility for SNAP benefits.

An Agency Error (AG) claim must be established if benefits are over-issued due to failure to impose a disqualification period correctly or timely.

20.6 ELECTRONIC DISQUALIFIED RECIPIENT SUBSYSTEM (EDRS)

The eDRS is a nationwide database of persons disqualified for an Intentional Program Violation (IPV).

SSNs are used in computer matching to indicate if the person is disqualified in another state. If a person has disqualification imposed for an IPV in one State and moves to another, the remainder of the disqualification must be served in the new State.

(1) Economic Services worker responsibilities in eDRS/NDQ

The National Disqualification Query (NDQ) is a query system within the eDRS which is located in SCWINS. Economic Services workers are required to check NDQ at each SNAP application/reapplication and recertification (annual, six month, and triannual) for all SNAP household members.

In order to check NDQ, the Economic Services worker will need to click on the NDQ tab in SCWINS. Once the worker clicks on the NDQ tab, the drop-down box, Case Search, will appear. The worker will then click on the Case Search button. On the CHIP search screen, the worker will need to key the case number that needs to be inquired on and click the Search button. The results of the search will need to be imported into SCOSA.

NOTE: Regardless of whether or not the match result is “yes” or “no”, the screen displaying the results needs to be imported into SCOSA to show the results of the search.

If there is a hit, the worker will need to click on NDQ Details in the Action column to see the NDQ information. Here the worker will find the following disqualification details: the Location Code, the Offense, the Penalty Period, the Start Date and the State Code. This screen also needs to be imported into SCOSA.

(2) Benefit Integrity Claims staff responsibilities in eDRS/NDQ

A disqualification period stands as it has been entered in NDQ. If there is a need to verify the disqualification for second disqualification, a household contest the disqualification, etc., the household will remain disqualified if it is showing on NDQ, until verified otherwise.

Benefit Integrity Claims staff will receive verbal confirmation and written confirmation of the disqualification.

Benefit Integrity Claims Staff will impose any disqualifications, recalculate the case (if necessary) and set alerts on the case in regard to the disqualification.

Chapter 21 Restoration of Lost Benefits

21.1 ENTITLEMENT

The Agency will restore to households' benefits which were lost whenever the loss was caused by an error by the Agency or by an administrative disqualification for intentional Program violation which was subsequently reversed as specified in Section 21.5 below, or if there is a statement elsewhere in the regulations specifically stating that the household is entitled to restoration of lost benefits. Furthermore, unless there is a statement elsewhere in the regulations that a household is entitled to lost benefits for a longer period, benefits will be restored for not more than twelve months prior to whichever of the following occurred first:

- The date the Agency receives a request for restoration from a household; or
- The date the Agency is notified or otherwise discovers that a loss to a household has occurred.

The Agency will restore to households' benefits which were found by any judicial action to have been wrongfully withheld. If the judicial action is the first action the recipient has taken to obtain restoration of lost benefits, then benefits will be restored for a period of not more than twelve months from the date the court action was initiated. When the judicial action is a review of the Agency action, the benefits will be restored for a period of not more than twelve months from the first of the following dates:

- The date the Agency receives a request for restoration;
- If no request for restoration is received, the date the fair hearing action was initiated; but
- Never more than one year from when the Agency is notified of, or discovers, the loss.

Benefits will be restored even if the household is currently ineligible.

21.2 ERRORS DISCOVERED BY THE AGENCY

If the Agency determines that a loss of benefits has occurred, and the household is entitled to restoration of those benefits, the Agency will automatically take action to restore any benefits that were lost. No action by the household is necessary.

However, benefits will not be restored if the benefits were lost more than 12 months prior to the month the loss was discovered by the Agency in the normal course of business, or were lost more than 12 months prior to the month the Agency was notified in writing or orally of a possible loss to a specific household. The Agency will notify the household of its entitlement, the amount of benefits to be restored, any offsetting that was done, the method of restoration, and the right to appeal through the fair hearing process if the household disagrees with any aspect of the proposed lost benefit restoration.

21.3 DISPUTED BENEFITS

If the Agency determines that a household is entitled to restoration of lost benefits, but the household does not agree with the amount to be restored as calculated by the Agency or any other action taken by the Agency to restore lost benefits, the household may request a fair hearing within 90 days of the date the household is notified of its entitlement to restoration of lost benefits. If a fair hearing is requested prior to or during the time lost benefits are being restored, the household will receive the lost benefits as determined by the Agency pending the results of the fair hearing. If the fair hearing decision is favorable to the household, the Agency will restore the lost benefits in accordance with that decision.

If a household believes it is entitled to restoration of lost benefits but the Agency, after reviewing the case file, does not agree, the household has 90 days from the date of the Agency determination to request a fair hearing. The Agency will restore lost benefits to the household only if the fair hearing decision is favorable to the household. Benefits lost more than 12 months prior to the date the Agency was initially informed of the household's possible entitlement to lost benefits will not be restored.

21.4 COMPUTING THE AMOUNT TO BE RESTORED

After correcting the loss for future months and excluding those months for which benefits may have been lost prior to the 12-month time limits described above in [Section 21.2 Errors Discovered by the State](#) and [Section 21.3 Disputed Benefits](#), the Agency will calculate the amount to be restored as follows:

- (A) If the household was eligible but received an incorrect allotment, the loss of benefits will be calculated only for those months the household participated. If the loss was caused by an

incorrect delay, denial, or termination of benefits, the months affected by the loss will be calculated as follows:

- (B) If an eligible household's application was erroneously denied, the month the loss initially occurred will be the month of application, or for an eligible household filing a timely reapplication, the month following the expiration of its certification period.
- (C) If an eligible household's application was delayed, the months for which benefits may be lost will be calculated in accordance with [Section 6.4 Delays in Processing the Application](#).
- (D) If a household's benefits were erroneously terminated, the month the loss initially occurred will be the first month benefits were not received as a result of the erroneous action.
- (E) After computing the date the loss initially occurred, the loss will be calculated for each month subsequent to that date until either the first month the error is corrected or the first month the household is found ineligible.

For each month affected by the loss, the Agency will determine if the household was actually eligible. In cases where there is no information in the household's case file to document that the household was actually eligible, the Agency will advise the household of what information must be provided to determine eligibility for these months. For each month the household cannot provide the necessary information to demonstrate its eligibility, the household will be considered ineligible.

For the months the household was eligible, the Agency will calculate the allotment the household should have received. If the household received a smaller allotment than it was eligible to receive, the difference between the actual and correct allotments equals the amount to be restored.

If a claim against a household is unpaid or held in suspense (See [Chapter 23 Claims Against Households](#)), the amount to be restored will be offset against the amount due on the claim before the balance, if any, is restored to the household. At the point in time when the household is certified and receives an initial allotment, the initial allotment will not be reduced to offset claims, even if the initial allotment is paid retroactively.

21.5 LOST BENEFITS TO INDIVIDUALS DISQUALIFIED FOR INTENTIONAL PROGRAM VIOLATION (IPV)

Individuals disqualified for Intentional Program Violation (IPV) are entitled to restoration of any benefits lost during the months that they were disqualified, not to exceed twelve months prior to the date of Agency notification, only if the decision which resulted in disqualification is subsequently reversed. For each month the individual was disqualified, not to exceed twelve months prior to Agency notification, the amount to be restored, if any, will be determined by comparing the allotment the household received with the allotment the household would have received had the disqualified member been allowed to participate. If the household received a smaller allotment than it should have received, the difference equals the amount to be restored. Participation in an administrative disqualification hearing in which the household contests the Agency assertion of IPV will be considered notification that the household is requesting restored benefits.

21.6 METHOD OF RESTORATION

Regardless of whether a household is currently eligible or ineligible, the Agency will restore lost benefits to a household by issuing an allotment equal to the amount of benefits that were lost. The amount restored will be issued in addition to the allotment currently eligible households are entitled to receive.

The Agency will honor reasonable requests by households to restore lost benefits in monthly installments if, for example, the household fears that the amount to be restored is more than it can use in a reasonable period of time.

21.7 CHANGES IN HOUSEHOLD COMPOSITION

Whenever lost benefits are due a household and the household's membership has changed, the Agency will restore the lost benefits to the household containing a majority of the individuals who were household members at the time the loss occurred. If the Agency cannot locate or determine the household which contains a majority of household members, the Agency will restore the lost benefits to the household containing the head of the household at the time the loss occurred.

21.8 ACCOUNTING PROCEDURES

The Agency will be responsible for maintaining an accounting system for documenting a household's entitlement to restoration of lost benefits and for recording the balance of lost benefits that must be restored to the household. The Agency will, at a minimum, document how the amount to be restored was calculated and the reason lost benefits must be restored. The CHIP system will identify those situations where a claim against a household can be used to offset the amount to be restored.

Chapter 22 Issuance

Issuance is the distribution of SNAP benefits to certified households within a prescribed time frame.

22.1 METHOD OF ISSUANCE

South Carolina issues SNAP benefits to eligible households through Electronic Benefit Transfer (EBT). EBT allows SNAP recipients to receive their benefits through the use of a plastic magnetic striped EBT card. Benefits are electronically deposited into their EBT account. Food purchases will be debited from the account using the EBT card at Point-of-Sale (POS) terminals at authorized food retailers. Under normal circumstances, all purchase and balance inquiry transactions require a Personal Identification Number (PIN) to access the account. Benefits are protected once the EBT card is reported lost, damaged or stolen. Recipients receive updated account balance information with each purchase.

An eligible household may allow the following to purchase food for the household:

- (A) Any household member
- (B) Any authorized representative
- (C) Any non-household member. Responsibility for the use of the EBT card by a non-household member when the PIN has been provided by the household remains the responsibility of the household.

22.2 TYPES OF ISSUANCE

Types of SNAP issuance are limited to the following:

- (A) Regular monthly benefits (See [Section 13.6 \[3\] Calculating Net Income and Benefit Levels](#))
- (B) Supplemental benefits (See [Section 15.5 \[1\] Actions Reported on Changes](#))
- (C) Restoration of lost benefits (See [Section 21.1 Entitlement](#))
- (D) Replacement of food purchased with SNAP benefits destroyed in a household misfortune. (See [Section 22.8 Authorizing Replacements for Household Misfortunes](#))

22.3 AGENCY RESPONSIBILITIES FOR SNAP ISSUANCE

(1) Application registration clerk responsibilities

The application registration clerk is responsible for identifying the Primary Information (PI) person for the household at application registration. PI designation at the time of the SNAP application is mandatory. The person named PI at registration will be the individual who is responsible for receiving the SNAP benefits for the household. The PI's name will appear on the EBT card. Anytime the PI is changed, access to the case benefits is changed. It is important that the correct individual with his/her name as it appears on the Social Security card is designated as PI at the time of application registration. If the first name on the DSS Form 3800, Temporary Assistance for Needy Families (TANF) Application Supplemental Nutrition Assistance Program (SNAP) Application Refugee Cash Assistance (RCA) Application, and the signature of the person that signs the DSS Form 3800 is the same, then that person will be designated the PI. If the name and signature do not match, then the person that signs the application (if not the authorized representative) will be designated the PI.

It is mandatory that same day registration of applications and reapplications be done to:

- (A) Ensure timely number assignment
- (B) Ensure household access to EBT benefits
- (C) Minimize the effect on case processing time frames.

(2) Economic Services worker responsibilities

The Economic Services worker is responsible for the following actions:

- (A) Explaining EBT to the applicant/recipient during the interview.

This explanation includes:

- EBT
- EBT purchases
- Balance inquiry
- PIN protection/replacement
- Card replacement
- Authorized card users
- Recipient help lines
- Recipient rights

- Penalties for misusing SNAP benefits
- Items that can/cannot be purchased with SNAP benefits.

NOTE: *The client's identity must be verified before an EBT card can be issued. However, a picture ID is not required.*

- (B) Authorizing the SNAP benefits
- (C) Responding to or referring a recipient call concerning EBT benefits to the appropriate source. If the problem is not an eligibility issue, the Agency can refer the recipient to the EBT Vendor Helpline or to the EBT Coordinator. If the report is a lost, damaged or stolen card, the recipient should be referred to the EBT Helpline. Replacement cards are authorized through the Conduent toll-free customer service line. However, EBT Coordinators have access to authorize replacement cards through the EBT vendor's administration system.
- (D) Resolving an EBT account. An inactive EBT account is an account with a balance in which there has been no withdrawal activity within a 60-day time period.

Once a benefit has been posted to the account, even if the recipient is not eligible for the benefit, the Agency cannot debit the account except through:

- Authorized claims payment
- Expungement after 274 days of account inactivity
- EBT System adjustment

The Agency should take immediate action upon learning of an inactive account. Actions such as case closure, address change, retraining, PIN/card replacement, etc. should be initiated within appropriate time frames.

- (E) Authorizing replacement of food purchased with EBT benefits in the event of a household misfortune. The EBT Coordinator will process the replacement on CHIP FSRE screen.
- (F) Determining the nature of a fair hearing request. If the fair hearing request is the result of an EBT Contractor action, the fair hearing request should be forwarded to the SCEBT office.
- (G) Resolving any problem associated with returned mail EBT cards or unauthorized use of a mailed EBT card.

(3) Economic Services supervisor responsibilities

The Economic Services supervisor is responsible for the following actions:

- (A) Authorizing supplemental benefits
- (B) Authorizing restoration of lost benefits due to Agency error **AND**
- (C) Authorizing the replacement of benefits due to household misfortune.

(4) EBT Coordinator responsibilities

The EBT Coordinator's job duties consist of the following actions:

- (A) Training recipients when necessary, on EBT related issues.
- (B) Responding to recipient calls and resolving problems related to EBT
- (C) Authorizing replacement cards for reapplications or situations in which households report lost, damaged, or stolen cards.
- (D) Validating card status
- (E) Processing the replacement of benefits due to household misfortune on CHIP FSRE screen

22.4 AUTHORIZING EBT ISSUANCES

(1) Authorization Schedule

The Agency must ensure that benefits are authorized according to the following schedule:

- (A) Newly certified households. Benefits must be authorized no later than the 27th day after the application date so that eligible households can participate by the 30th day.
- (B) Expedited processing. Benefits must be authorized no later than the sixth day after the application date so that eligible households can participate by the seventh day.

(2) Availability of Benefits

SNAP benefits are available to the household the day after the benefits are authorized on CHIP, provided the household has an EBT card. Benefits are issued the first 19 days of each month. For ongoing cases approved before September 2012, SNAP benefits are available on the date that corresponds to the last digit of the recipient's SNAP case number. For households that applied beginning September 1, 2012, benefits are available according to the last digit of the recipient's SNAP case number: 1 = 11th, 2 = 2nd, 3 = 13th, 4 = 4th, 5 = 15th, 6 = 6th, 7 = 17th, 8 = 8th, 9 = 19th, and 0 = 10th.

NOTE: The monthly issuance cycle for households who were receiving SNAP benefits prior to September 1, 2012 and have a break in benefit receipt (non-receipt of benefits for at least one month) will have a change in their issuance cycle to reflect that the households have re-applied on or after September 1, 2012.

(3) Card Activation

SNAP households cannot use telephonic pinning until benefits have been approved and posted to the EBT account. This includes instances of new, but not yet approved applications and reapplications where the EBT account was previously deleted from the contractor's system. PIN changes and replacement card pin selection on existing accounts can be pinned by telephone immediately upon receipt regardless of the EBT account balance. To use the telephonic pinning

process, the household must have his/her 16-digit EBT card number, six-digit birth date, and nine digit social security number. If the household does not have a social security number, the EBT card may be pinned by using all zeroes.

22.5 EBT CARD PRODUCTION

EBT cards are produced by the EBT vendor and mailed daily directly to the household. An EBT card is generated in each of the following situations:

- (A) Initial approval of benefits. A household can continue to use the original EBT card even after periods of non-participation.
- (B) New PI is identified.
- (C) Household reports a lost, damaged or stolen card.

All EBT cards are mailed via first class mail.

22.6 NON-RECEIPT OF EBT CARDS

(1) Mailing of EBT cards

All SCEBT cards are mailed directly from the EBT card vendor's card production site.

(2) Returned Mailed Cards

All SCEBT cards that are declared non-deliverable by the US Postal Service (USPS) will be delivered to the SCEBT USPO Box 100229, Columbia, SC 29202-3229. This is the same address that is printed on the back of the new SCEBT card for cards found or returned by the cardholder.

NOTE: *Returned cards will not be forwarded to county offices regardless of the circumstance. Replacement cards will be handled through the process that follows.*

(3) Reporting non-receipt of EBT card

The household will contact either the EBT vendor helpline or the local county DSS office to report the non-receipt of the household's EBT card.

- (A) If the EBT vendor helpline is contacted and the card is in card status "11", the EBT vendor helpline will update the address promptly on the CHIP ADDR screen and then immediately process a replacement card.
- (B) If the local county office is notified, the EBT vendor system should be reviewed. If the card is in status "11", the address must be corrected on CHIP, and then a replacement card can be

requested, either by the EBT Coordinator processing a replacement card on the EBT vendor system or by calling the EBT vendor helpline.

(C) Non-receipt of a mailed EBT card may mean that the card was lost in the mail, undeliverable, or stolen. If a household reports that a mailed card has not yet been received, SNAP certification will contact the EBT Coordinator to determine the following:

- i. Sufficient time has elapsed for the card to reach the household. A rule of thumb in this instance is three to five days following the date of mailing.
- ii. The card has not been returned as undeliverable (Code "11" on the EBT Vendor Administrative System).
- iii. The card has or has not been used since the date of mailing. The EBT Vendor Administrative System must be accessed to determine this.

If sufficient time has elapsed for the card to reach the household and the card has not been returned as undeliverable, the card will be immediately used through the EBT Vendor Administrative System or by calling the toll free EBT helpline. The household will be contacted and advised of this and given the option of the replacement card being mailed or having the household come to the office for card issuance/PIN selection.

If the card has been used and the account debited or an attempt to use it has been made but no account debit has been made, the card will be immediately used through the EBT Vendor Administrative System or by calling the toll free EBT Helpline. If an account debit occurred, the household must be questioned as to the possible circumstances and whether or not he/she understands the use of an EBT card by a household member. This should happen before the replacement card is mailed.

The SCEBT will handle all claims of unauthorized use of an EBT card on cards reported as non-received.

(4) Unauthorized use of EBT card

SNAP benefits are considered in the possession of the household once the benefits are posted to the account and the client has the card. Unauthorized use of an EBT card is defined as an individual, not authorized by any member of the household, using the card to make transactions that reduce or increase the balance in the EBT account. An individual is authorized to make transactions if he/she has received the EBT card and has PIN access. It is the responsibility of the household to secure the EBT card and PIN. If the household is negligent and does not secure the EBT card and PIN in such a way as to allow others access to this information, the household is still responsible for the transactions that subsequent occur – in the same fashion as someone who leaves her pocketbook out and someone steals the cash out of the wallet.

If a household contends that an unauthorized person(s) made debit(s) to his/her EBT account, the Economic Services staff will evaluate the claim.

- If the client indicates that the retailer has accessed funds incorrectly (double debiting of account, cashier issue), contact the SCEBT office. The SCEBT office will review all available information/findings and assist in facilitating replacement of funds by the retailer;
- If the client indicates that funds were accessed by others after the client has received the card (stolen wallet for example), the client should file a police report and seek replacement from the individual who has committed the thief through the judiciary process.
- If the client has received an expedited EBT card at the county office that was linked to another's case, contact the SCEBT office. The SCEBT office will facilitate in making the correct client whole. Project Fair funding may be used to cover such corrections, if the balance in the account of the client who used the other client's benefits is not sufficient.

If a determination is made that replacement of funds is not appropriate as indicated above, the household will be advised of his/her right to a fair hearing. The SCEBT will represent the Agency in fair hearings regarding such EBT activities. If the fair hearing officer rules in favor of the household, the household will be entitled to a restoration of the lost benefits taken from the EBT account. A copy of the fair hearing decision documentation and other relevant documents will be filed in the electronic case record. Economic Services staff will authorize a restoration of these benefits in a whole-dollar amount. These benefits will be entered on CHIP UNAU screen.

22.7 RELOCATION OF SNAP HOUSEHOLDS TO OTHER STATES

Households relocating to other States may use their EBT card in these States for the remaining benefits in their account.

22.8 AUTHORIZING REPLACEMENTS FOR HOUSEHOLD MISFORTUNES

Household misfortune is defined as an isolated personal disaster such as fire and flooding which destroys or substantially damages food purchased with SNAP benefits. Upon receiving a request for replacement of SNAP benefits and/or food purchased with SNAP benefits in a household misfortune, Economic Services staff must:

- (A) Determine if the benefits were validly issued.
- (B) Determine if the report of the loss was made timely (i.e., within 10 days of the reported destruction).
- (C) Ensure that a DSS Form 1634B, Affidavit of Loss Due to a Household Misfortune, is completed and signed by a responsible household member.
- (D) Determine if the loss was due to a household misfortune. Household misfortune is defined as being caused by an occurrence such as power outage, flood, fire, etc. but does not include

mechanical failure. The misfortune must be verified through a collateral contact, through a community agency such as Red Cross, or the fire department.

- (E) Recommend a replacement of benefits and/or food in the actual amount of the loss but not to exceed the last issued amount of the household monthly benefits. If the monthly benefits include restored benefits, they must be replaced up to their full value.

Economic Services staff must approve a replacement within 10 calendar days of the reported loss.

When authorizing a replacement of food purchased with EBT benefits, the EBT Coordinator must process the replacement on CHIP FSRE screen.

The following documentation and reconciliation procedures must be completed:

- Economic Services staff documents in the household's case file each request for a replacement, the date, the reason and whether or not the replacement was provided.
- Economic Services staff maintains a record of replacements granted to a household, the reason, the benefit month and actual month of the replacement **AND**
- The EBT Coordinator files all affidavits for losses.

22.9 EBT ADJUSTMENTS

An EBT adjustment may be required in situations such as, but not limited to, cashier error, multiple debits or credits, or system errors.

Households have up to 90 calendar days to initiate a correction request in these situations. The household must call the EBT Helpline number (1-800-554-5268) to initiate such a request. Client initiated credit adjustments must be adjudicated and processed within 10 business days from the date the client reports the error. The client must note the claim tracking number received via the EBT Helpline in case follow-up is needed.

Retailers will notify the EBT office when erroneous transactions have occurred which require debits to the client's account. CHIP Notice X025, Manual Debit of EBT Services, will be automatically sent in this situation. The notice will provide details as to the transaction in question (amount, time and date), and the retailer involved. It will let the client know that, if he/she disagrees with the action being taken, the client may request a fair hearing within 90 days from the notice date.

If the fair hearing is requested within 10 days of the notice date, no adjustment will be made to the EBT account pending the fair hearing decision. The SCEBT Office will be responsible for coordinating receipt of documentation of the transaction in question and defending the proposed action.

Clients must notify the SCEBT Office timely if they wish a fair hearing and a hold on the proposed debiting of the account so that the SCEBT can flag the account to stop the automatic debit

adjustment. If the subsequent fair hearing decision is adverse to the client, the transaction amount will be debited from the account.

Chapter 23 Claims Against Households

This chapter is to be used as guidance for the Economic Services staff in the detection and referral of recipient claims and to assist the certification role in working with the household and the Benefit Integrity Claims Specialist (BICS). It is the Economic Services staff's responsibility to refer possible claims and BICS's responsibility to act on these referrals. Additional policy and procedures for establishing claims can be found in the SNAP/TANF Program Benefit Integrity Manual.

23.1 DEFINITION OF A RECIPIENT CLAIM

A recipient claim is an amount owed to the Agency because of:

- (A) SNAP benefits are overpaid
- (B) SNAP benefits are trafficked. *Trafficking* means:

- (1) The buying, selling, stealing, or otherwise effecting an exchange of SNAP benefits issued and accessed via Electronic Benefit Transfer (EBT) cards, card numbers and personal identification numbers (PINs), or by manual voucher and signature, for cash or consideration other than eligible food, either directly, indirectly, in complicity or collusion with others, or acting alone;
- (2) The exchange of firearms, ammunition, explosives, or controlled substances, as defined in **Section 802 of title 21, United States Code**, for SNAP benefits;
- (3) Purchasing a product with SNAP benefits that has a container requiring a return deposit with the intent of obtaining cash by discarding the product and returning the container for the deposit amount, intentionally discarding the product, and intentionally returning the container for the deposit amount;
- (4) Purchasing a product with SNAP benefits with the intent of obtaining cash or consideration other than eligible food by reselling the product, and subsequently intentionally reselling the

product purchased with SNAP benefits in exchange for cash or consideration other than eligible food;

(5) Intentionally purchasing products originally purchased with SNAP benefits in exchange for cash or consideration other than eligible food; or

(6) Attempting to buy, sell, steal, or otherwise affect an exchange of SNAP benefits issued and accessed via Electronic Benefit Transfer (EBT) cards, card numbers and personal identification numbers (PINs), or by manual voucher and signatures, for cash or consideration other than eligible food, either directly, indirectly, in complicity or collusion with others, or acting alone.

The amount of the recipient is determined by investigating the case and determining the correct amount of issuance. In the event of trafficking or misuse of benefits, the total amount of benefits trafficked or misused is the amount of the claim. The difference between the amount actually received and the amount that should have been received is the amount of the claim. Claims must be calculated according to the policies and procedures of SNAP at the time the overpayment occurred.

23.2 POSSIBLE RECIPIENT CLAIMS

All 46 counties are divided into four (4) regions within the state of South Carolina. Each Region includes Benefit Integrity Claims Specialists (BICS) and two (2) Regional Claims Supervisors (RCS). The BICS report directly to the RCS. The RCS are supervised by the Benefit Integrity State Supervisor who is supervised by the Benefit Integrity Program Manager.

All situations involving potential overpayment/trafficking are referred to as possible claims. In addition, local county DSS offices are required to submit possible claims referrals in all Quality Control (QC) error cases that cite an overpayment. Any referral made to the Benefit Integrity Unit must be made on a DSS Form 1680, Possible Claims Referral Form.

(1) Economic Services staff responsibilities for possible recipient claims

Economic Services staff has the following responsibilities regarding procedures for possible claims referrals:

- (A) Complete in duplicate a DSS Form 1680, Possible Claims Referral Form. All referrals must contain complete information including a potential claim classification based on the reason for the overpayment. See [Section 23.3 Classification of Recipient Claims](#). Any appropriate documentation to assist in the Benefit Integrity Claims unit's investigation of the claim should be attached. If the Economic Services worker is requesting information to correct future benefits and information from this source is relevant to the overpayment, the Economic Services worker should request information for the overpayment period as well. The

Economic Services worker is not required to request information to substantiate the claim unless it is relevant to the household's on-going eligibility determination.

- (B) The DSS Form 1680 and any documentation and /or verification must be scanned into SCOSA – Benefit Integrity Folder; Possible Claim (1680) Sub-folder.
- (C) BICS must search for the information in the appropriate folders to avoid making unnecessary requests for information that has already been received by DSS.
- (D) The DSS Form 1680 should be scanned in the Benefit Integrity Folder; Possible Claim (1680) Sub-folder no later than 10 days from the date of detection.
- (E) The Benefit Integrity Specialist Registrar is responsible for rotating the DSS Form 1680 to the next available BICS from the Claims mailbox and entering the date detected on CHIP Possible Claim (POCL) screen no later than 10 days following the date the referral was received in the Regional Claims mailbox.
- (F) Correct the current or future benefit issuance when it is determined that a case is incorrect.

Economic Services staff should not work overpayments in correction mode on CHIP in order to avoid problems for Benefit Integrity Claims staff. Overpayment determinations should be calculated using mini budget screen FSMB.

(2) Benefit Integrity Claims staff responsibilities for possible recipient claims

The Benefit Integrity Claims staff has the following responsibilities concerning claims referrals:

- (A) Review the possible claim referral.
- (B) Review the case file.
- (C) Determine classification of claim, period of over-issuance and over-issuance amount. Complete the DSS Form 2619A, Account of Claim Activity Report (and the DSS Form 2619B, Account of Claim Activity/Report Part 2 [IPV/FR]) **AND**
- (D) Follow other Benefit Integrity Claims staff duties as outlined in SNAP/TANF Program Benefit Integrity Manual

23.3 CLASSIFICATION OF RECIPIENT CLAIMS

Economic Services staff must assign a potential classification to possible recipient claims based on the reasons for the over-issuance. Claims may be assigned the following classifications:

(1) Agency error

Agency Error (AG) claims, are any claims for an overpayment caused by an action or failure to take action by the Agency. In some instances, an over-issuance must be classified as AG even if the Agency is not totally at fault. An example of this would be if the Agency acts on verification provided directly to the Agency by an income source with no involvement of the household. Instances which may result in an AG claim include, but are not limited to the Agency's:

- (A) Failure to take prompt action on a reported change

- (B) Incorrect computation of the amount of benefits
- (C) Incorrect benefit issuance due to computer system error
- (D) Continued benefits to a SNAP household after its certification period has expired without the household having been recertified
- (E) Failure to act on information received through the Income and Eligibility Verification System (IEVS) which causes an overpayment. Agency access to IEVS information does not relieve the household of its responsibility to report changes accurately. Economic Services staff is required to check IEVS at certification, recertification and CHIP alert notification.
- (F) Failure to timely impose a disqualification on a SNAP participant when an IPV has been adjudicated administratively or judicially.

(2) Inadvertent household error

Inadvertent household error (CL) claims are the result of a misunderstanding or unintentional error on the part of a household who otherwise complies with SNAP requirements. These claims occur when a household:

- (A) Fails to report a required change and the household's failure to act or report as required is the result of a lack of understanding of program requirements or inadvertent error
- (B) Unintentionally fails to report circumstances correctly but otherwise complies with program requirements.

The household is responsible for any information that they provide to the Agency regardless of the origin of the information.

For example, the household is responsible for information in a letter from an employer if the household obtained the information. The household is not responsible if the letter was sent directly from the employer to the Agency.

(3) Intentional Program Violation

An intentional program violation (IPV) claim is any claim in SNAP for an overpayment or trafficking resulting from a person having intentionally:

- (A) Misrepresented, concealed, withheld facts or made a false or misleading statement
- (B) Committed any act that constitutes a violation of the Food and Nutrition Act, the SNAP regulations, or any state statute relating to the use, presentation, transfer, acquisition, receipt, or possession of SNAP benefits.

A claim cannot be assigned as an IPV unless:

- i. It has been determined through an Administration Disqualification Hearing (ADH) that a household member has committed an IPV

- ii. The individual waives his/her right to an ADH by signing a DSS Form 1648, Administrative Consent Agreement (ACA)
- iii. The individual receives approval to participate in a Pretrial Intervention (PTI) Program and the DSS Form 2659 has been forwarded to the recipient claims staff by the Office of Investigation (OI).

In determining a possible claim classification of IPV, Benefit Integrity Claims staff may need to communicate with the household to clarify information. Claims staff may do this by contacting the household and giving them an opportunity to explain any questionable circumstances. Claims staff may ask the household to discuss the issues over the telephone or respond in writing. Claims staff may also request that the household appear for an in-office interview but cannot require that they do so. If the household fails or refuses to respond to any such request, recipient claims staff, having otherwise completed his/her investigation and having sufficient evidence, may proceed with an Administrative Disqualification Hearing action to disqualify the individual. In no event may the household or household member be threatened with the possibility of termination for non-cooperation.

An individual, not a household, who intentionally violates SNAP regulations must be disqualified from SNAP participation. Recipient Claims staff will be responsible for investigating any case of alleged IPV/FR and ensuring that appropriate cases are acted upon either through administrative disqualification hearings or court referrals. See [Chapter 20 Disqualification for Intentional Program Violation](#).

(4) Fraud

Fraud (FR) is defined as:

- (A) False representation of facts by words or conduct
- (B) False misleading allegations
- (C) Concealment of that which should have been disclosed, which deceives and is intended to deceive another in order to obtain assistance illegally.

A person who commits fraud violates state and federal laws. As generally accepted in SC courts, the necessary elements of fraud are as follows:

- i. A misrepresentation of a fact with intent to deceive, such as:
 - Positive assertion of falsehood
 - Concealment of the truth
 - Suppression of the truth
 - Establishment of a false impression by words, actions or trickery
- ii. Knowledge of the falsity of the representation by the maker
- iii. Materiality of the fact misrepresented
- iv. Reliance on the misrepresentation by the person deceived

- v. Damage to the person deceived (benefit to the wrongdoer is normally immaterial).
Damage is not required to prove a violation of SC Code 16-13-430, Fraudulent Acquisition or Use of SNAP.

A determination of fraud can only be made by a criminal court. Fraud must be proven by evidence which is beyond reasonable doubt. Many claims which the Agency might believe to have been caused by fraudulent action must be processed as IPV or CL because the Agency lacks the evidence to prove the claim in court.

An individual, not a household, who intentionally violates SNAP regulations, must be disqualified from SNAP participation. Benefit Integrity Claims staff will be responsible for investigating any case of alleged IPV/FR and ensuring that appropriate cases are acted upon either through administrative disqualification hearings or court referrals. See [Chapter 20 Disqualification for Intentional Program Violation](#).

23.4 LIABILITY FOR RECIPIENT CLAIMS

The following individuals are responsible for paying a claim:

- (A) Each person who was an adult member of the household when the overpayment or trafficking occurred. The PI may not be held "automatically" responsible for trafficking the household's benefits if there is no direct evidence identifying him/her as the guilty party. However, the PI may be held responsible when there is sufficient circumstantial evidence to show his/her complicity in the violative act. Complicity in this case means that even though the PI may not have actually conducted the transaction, upon questioning there is convincing evidence that he/she was aware of it, may have benefited, and took no actions to correct it. Complicity may be shown by establishing a clear pattern of misuse over time with the PI not providing a reasonable explanation and never reporting a loss/theft of the EBT card or benefits.
- (B) A sponsor of a non-citizen household if the sponsor is at fault.
- (C) A person connected to the household, such as an authorized representative, who causes an overpayment. This includes when a Drug Addiction or Alcoholic (DAA) treatment center or other Group Living Arrangement (GLA) acts as the authorized representative.
- (D) A person connected to the SNAP household, such as an authorized representative, who actually traffics. This includes when a DAA or other GLA acts as the authorized representative.

23.5 RECIPIENT'S RIGHT TO A FAIR HEARING ON A RECIPIENT CLAIM

Economic Services staff should be aware that the recipient has a right to a fair hearing if he/she does not agree with the amount, the basis or the classification of the claim. The period to request a fair hearing is 90 days from the date of the first notification. The recipient may request continued benefits within 10 days of notification that benefits will be reduced.

The recipient may request a fair hearing by contacting Benefit Integrity Claims staff who are responsible for representing the Agency in the fair hearing for a recipient claim.

If the hearing official determines that a claim does, in fact, exist against the household, the household must be re-notified of the claim. The language to be used in this notice is left up to the State agency. The demand for payment may be combined with the notice of the hearing decision. Delinquency must be based on the due date of this subsequent notice and not on the initial pre-hearing demand letter sent to the household.

If the hearing official determines that a claim does not exist, the claim must be discharged and reflect the event as a balance adjustment rather than a termination.

23.6 OFFSET OF RECIPIENT CLAIMS

An offset occurs any time a household is entitled to receive a restoration (supplement) of lost benefits and there is an outstanding recipient claim. The amount of restoration (supplement) the household is entitled to receive must be applied toward repayment of the claim. The household may receive the balance of the benefits after the claim has been paid in full. The CHIP automated offset occurs at the point the restoration is entered into the computer by the Economic Services staff. An automated offset will not occur for the current month.

23.7 COLLECTION OF RECIPIENT CLAIMS

SNAP recipient claims staff will initiate collection of overpayments made in the SNAP case. Regardless of the classification of a claim, it is of primary importance to have the client sign a repayment agreement, DSS Form 2627A, Repayment Agreement and Acknowledgement of Debt.

The repayment agreement for any claim must contain due dates or time frames for the periodic submission of payments. The household will also receive the CLMO screen to verify each month and amount of the claim for each month.

It must also specify that the household will be subject to an involuntary collection action(s) if payment is not received by the due date and the claim becomes delinquent.

Benefit Integrity Claims staff must accept any payment for a claim whether it represents full or partial payment in any of the acceptable forms of repayment. Acceptable forms of repayment are:

- (A) Reducing benefits prior to issuance. This includes allotment reduction and offsets to restored benefits.
- (B) Reducing SNAP benefits after issuance. These are benefits from electronic benefit accounts.
- (C) Accepting cash or any of its generally accepted equivalents. The equivalents include check or money order.
- (D) Requiring the household to perform public service.

Automated recoupment will take place on all active cases. SNAP certification should recognize if an allotment has been reduced because of this collection. This reduction is indicated on CHIP FSBH screen. On inactive cases, the recipient must make cash, money order or certified checks payments to any county DSS office or the State Office Division of Finance.

23.8 COLLECTION ACTION ON BANKRUPTCY CASES

When a person owing a claim, files for bankruptcy, the General Counsel will petition the bankruptcy court on behalf of the Agency. When written notification that a person has filed for bankruptcy is received by the Agency, all collection actions, including automated recoupment, will stop. If the Economic Services staff becomes aware of a bankruptcy petition, Economic Services staff will need to contact Benefit Integrity Program Manager.

23.9 DELINQUENT RECIPIENT CLAIMS

A recipient claim must be considered delinquent if:

- (A) The claim has not been paid by the due date on the initial demand letter and a satisfactory repayment agreement has not been made. The claim will remain delinquent until payment is received in full, a satisfactory repayment agreement is negotiated, or allotment reduction is invoked.
- (B) A repayment agreement has been made and a scheduled payment has not been made by the due date. The date of the delinquency of a claim in this category is the due date of the missed payment. The claim will remain delinquent until payment is received in full, allotment reduction is invoked, or the Agency determines to either resume or renegotiate the repayment agreement.

A claim will not be considered delinquent if another claim for the same household is currently being paid either through a repayment agreement or allotment reduction and the Agency expects to begin collection on the claim once the prior claim(s) is settled.

A claim is not subject to the requirement for delinquent debts if the Agency is unable to determine delinquency status because collection is coordinated through the court system.

Recipient claims that are 90 days delinquent may be referred to the Claims Collection Unit (CCU) at State Office. CHIP automatically transfers these claims from the local county DSS Office on CHIP to CCU at a monthly delinquency determination. Once a delinquent claim has been transferred to CCU, the primary responsibility for collection action belongs to CCU.

CCU will initiate collection on delinquent SNAP recipient claims by:

- The SC Department of Revenue Debt Offset Program for claims at least 90 days delinquent
- The federal Treasury Offset Program for claims at least 180 days delinquent.

23.10 EBT CLIENT INTEGRITY PROJECT

The EBT Client Integrity Project is an EBT anti-fraud project designed to deter fraudulent misuse of the EBT card and/or benefits in the EBT account.

Economic Services staff should refer any suspected misuse of the EBT card or SNAP benefits to the Benefit Integrity staff who will review and research available data regarding suspected misuse and determine if contact with the household is necessary to obtain documentation as to the nature of the misuse.

Disqualification from SNAP may occur if it is determined that a recipient has misused the EBT card and/or benefits in the EBT account, and adjudication supports this determination. The disqualification penalties are the same as those listed in [Section 20.5 Intentional Program Violation \(IPV\) Disqualification Time Periods](#).

Chapter 24 Program Performance Reporting System

24.1 GENERAL SCOPE AND PURPOSE

Under the Food and Nutrition Act, the Agency is responsible for the administration of SNAP in accordance with the Act, Regulations, and the Agency's plan of operation. To fulfill the requirements of the Act, the Agency will have a system for monitoring and improving its administration of SNAP. The Agency is also responsible for reporting on its administration to FNS. These reports will identify program deficiencies and the specific administrative action proposed to meet the program requirements established by USDA, FNS. If it is determined, however, that the Agency has failed without good cause to meet any of the program requirements established by FNS, or has failed to carry out the approved State plan of operation, the FNS will suspend and/or disallow from the Agency such funds as are determined to be appropriate.

The Food and Nutrition Act authorizes FNS to pay the Agency an amount equal to 50 percent of all administrative costs involved in the Agency's operation of SNAP. The Act further authorizes FNS to increase the percentage share if:

- (A) The Agency's payment error rate is less than or equal to 5.90 percent, and
- (B) The State Agency's negative case error rate is less than the national weighted mean negative case error rate for the prior fiscal year.

If the Agency qualifies for an increased percentage share, the amount of increase will be an additional percentage point for each full tenth of a percentage point by which the payment error rate is less than six percent, up to a maximum of 60 percent of administrative costs.

Those State agencies not receiving the increased share of funding will develop and implement corrective action plans to reduce payment errors.

24.2 AGENCY RESPONSIBILITIES

The Agency will establish a continuing performance reporting system to monitor SNAP administration and program operations. The components of the Agency's performance reporting system will be:

- (A) Data collection through Management Evaluation (ME) reviews and Quality Control (QC) reviews;
- (B) Analysis and evaluation of data from all sources;
- (C) Corrective action planning;
- (D) Corrective action implementation and monitoring; and
- (E) Reporting to FNS on program performance.

The Agency must ensure corrective action is effected at the State and local SNAP office levels. The Agency will employ sufficient State level staff to perform all aspects of the Performance Reporting System as required in this part of the regulations.

24.3 FEDERAL MONITORING

FNS will conduct the review to determine whether the Agency is operating SNAP and the Performance Reporting System in accordance with program requirements. The Federal reviewer may consolidate the scheduling of these reviews to reduce the frequency of entry into the Agency. FNS regional offices will conduct additional reviews to examine the Agency (including local SNAP offices), as considered necessary to determine compliance with program requirements. FNS will notify the Agency of any deficiencies detected in program or system operations. Any deficiencies detected in program or system operations which do not necessitate long range analytical and evaluative measures for corrective action development will be immediately corrected by the State Agency. Within 60 days of receipt of the findings of each review established below, the Agency will develop corrective action addressing all other deficiencies detected in either program or system operations and will ensure that the Agency's own corrective action plan is amended and that FNS is provided this information at the time of the next formal semiannual update to the Agency's State Corrective Plan, as required in [Section 28.2 State Corrective Action Plan](#).

(1) Reviews of State Agency's Administration/Operation of SNAP

FNS will conduct an annual review of certain functions performed at the State Agency level in the administration/operation of SNAP. FNS will designate specific areas required to be reviewed each fiscal year.

(2) Reviews of State Agency's Management Evaluation System

FNS will review the Agency's management evaluation system on a biennial basis; however, FNS may review the Agency's management evaluation system on a more frequent basis if a regular review reveals serious deficiencies in the ME system.

The ME review will include but not be limited to a determination of whether or not the Agency is complying with FNS regulations, an assessment of the Agency's methods and procedures for conducting ME reviews, and an assessment of the data collected by the Agency in conducting the reviews.

(3) Validation of State Agency error rates

FNS will validate the Agency's payment error rate and under-issuance error rate during each annual quality control review period. Federal validation reviews will be conducted by reviewing against the Food and Nutrition Act and the regulations, taking into account any FNS-authorized waivers to deviate from specific regulatory provisions. FNS must validate the Agency's negative case error rate when the State Agency's payment error rate for an annual review period appears to entitle it to an increased share of Federal administrative funding for that period, and its reported negative case error rate for that period is less than two percentage points above the national weighted mean negative case error rate for the prior fiscal year. Any deficiencies detected in the Agency's QC system will be included in the Agency's State Corrective Action Plan.

(4) Assessment of Corrective Action

FNS will conduct a comprehensive annual assessment of the Agency's corrective action process by compiling all information relative to the Agency's corrective action efforts, including the Agency's system for data analysis and evaluation. The purpose of this assessment and review is to determine if:

- Identified deficiencies are analyzed in terms of causes and magnitude and are properly included in either the State or local SNAP office corrective action plan;
- The Agency is implementing corrective actions according to the appropriate plan;
- Target completion dates for reduction or elimination of deficiencies are being met; and
- Corrective actions are effective.

In addition, FNS will examine the Agency's corrective action monitoring and evaluative efforts. The assessment of corrective action will be conducted at the State level or local SNAP office, as necessary.

In addition, FNS will conduct on-site reviews of selected corrective actions as frequently as considered necessary to ensure that the Agency is implementing proposed corrective actions within the timeframes specified in the Agency or local SNAP office corrective action plans and to determine the effectiveness of the corrective action. The on-site reviews will provide the Agency

and FNS with a mechanism for early detection of problems in the corrective action process to minimize losses to the program, participants, or potential participants.

24.4 RECORD RETENTION

The Agency will maintain Performance Reporting System records for ME and QC reviews to permit ready access to, and use of, these records. Performance Reporting System records include information used in data analysis and evaluation, corrective action plans, corrective action monitoring records in addition to ME review records and QC review records. To be readily accessible, system records will be retained and filed in an orderly fashion.

Precautions should be taken to ensure that these records are retained without loss or destruction for the 3-year period required by these regulations. Information obtained on individual households for Performance Reporting System purposes will be safeguarded in accordance with FNS policies on disclosure of information for SNAP.

Chapter 25 Quality Control Reviews

25.1 SCOPE AND PURPOSE

As part of the requirements by USDA FNS's Performance Reporting System, the Agency is responsible for conducting quality control reviews of SNAP households. Quality Control (QC) reviews measure the validity of SNAP cases at a given time (the review date) by reviewing against the SNAP standards established in the Food and Nutrition Act and the SNAP Regulations, taking into account any FNS authorized waivers to deviate from specific regulatory provisions. USDA FNS and the Agency will analyze findings of the reviews to determine the incidence and dollar amounts of errors, which will determine the Agency's liability for payment errors and eligibility for bonus funding, and to plan corrective action to reduce excessive levels of errors.

The objectives of quality control reviews are to provide:

- (A) A systematic method of measuring the validity of the SNAP caseload;
- (B) A basis for determining error rates;
- (C) A timely continuous flow of information on which to base corrective action at all levels of administration; **AND**
- (D) A basis for establishing the Agency's liability for errors that exceed the National standard and the Agency's eligibility for bonus funding.

25.2 SAMPLE OF CASES

A sample of households will be selected from two different categories:

- Households which are participating in SNAP (called active cases). Reviews will be conducted on active cases to determine if households are eligible and receiving the correct allotment of SNAP benefits. The determination of whether the household received the correct allotment will be made by comparing the eligibility data gathered during the review against the amount authorized on the master issuance file.

- Households, for which participation was denied, suspended or terminated (called negative cases). Reviews of negative cases will be conducted to determine whether the Agency's decision to deny, suspend or terminate the household, as of the review date, was correct.

A statewide sample of cases is selected randomly each month. It is the responsibility of the local county DSS office to make sure all pertinent verification/documentation is available in SCOSA.

25.3 QUALITY CONTROL (QC) FINDINGS

QC's findings will be reported to the county on the SNAP QC Active Report or the SNAP QC Caper Report. The SNAP QC Corrective Action form will be attached for cases found in error.

A local county DSS office may disagree with or question a QC decision through the use of the SNAP QC Corrective Action form which is attached to all error reports. The SNAP QC Corrective Action form is not returned by the county within 10 working days from the date of mailing, the findings are reported to the appropriate regional office. It is essential that QC findings be reviewed by the local county DSS office immediately upon receipt and the SNAP QC Corrective Action form returned within the allowed time frame for all error cases.

If the local county DSS office disagrees with the findings, the following procedures apply:

- (A) Review case file and QC report AND
- (B) Complete the SNAP QC Corrective Action form and send the original to QC along with supporting documentation to substantiate the disagreement. A copy should be filed in the case record.

25.4 SNAP HOUSEHOLDS' RESPONSIBILITY IN THE QUALITY CONTROL (QC) PROCESS

SNAP households are required to cooperate in a QC review. Refusal to cooperate will result in:

- (A) For state reviews, closure of the case until the household cooperates or 125 days after the end of the annual review period.

For federal reviews, closure of the case until the household cooperates or seven months after the end of the annual review period, i.e. seven months after September 30. Economic Services staff will take no further action until notified by QC that the household has cooperated.

- (B) Reapplication being subject to 100% verification of eligibility requirements except for those household's that are eligible for expedited service.
- (C) Examination for possible referral for investigation of willful misrepresentation.

Chapter 26 Management Evaluation (ME) Reviews

26.1 SCOPE AND PURPOSE

(1) Objectives

The Office of Economic Services will ensure that local SNAP offices operate SNAP in accordance with the Act, regulations, and FNS-approved State Plan of Operation. To ensure compliance with program requirements, ME reviews will be conducted to measure compliance with the provisions of FNS regulations. The objectives of an ME review are to:

- (A) Provide a systematic method of monitoring and assessing program operations in the local SNAP offices;
- (B) Provide a basis for local SNAP offices to improve and strengthen SNAP program operations by identifying and correcting deficiencies; and
- (C) Provide a continuing flow of information between the local SNAP offices, the State level SNAP administration, and FNS, necessary to develop the solutions to problems in program policy and procedures.

(2) Frequency of review

The Agency will conduct a review:

- (A) Once every year for large local SNAP offices;
- (B) Once every two years for medium local SNAP office areas, and
- (C) Once every three years for small local SNAP offices.

FNS may require the Agency to conduct additional on-site reviews when a serious problem is detected in a local SNAP office which could result in a substantial dollar or service loss.

The Agency will also establish a system for monitoring those local SNAP offices which experience a significant influx of migratory workers during such migrations. This requirement may be satisfied by either scheduling ME reviews to coincide with such migrations or by conducting special reviews.

As part of the review the Agency will contact local migrant councils, advocate groups, or other organizations in the project area/county to ensure that migrants are receiving the required services.

26.2 REVIEW COVERAGE

During each review period, the Agency will review the national target areas of program operation specified by FNS. FNS will notify the Agency of the minimum program areas to be reviewed at least 90 days before the beginning of each annual review period, which is the Federal fiscal year. FNS may add additional areas during the review period if deemed necessary. The FNS headquarters office will add national target areas during the review period only for deficiencies of national scope. The Agency has 60 days in which to establish a plan schedule for such reviews.

The Agency will be responsible for reviewing each national target area or other program requirement based upon the provisions of the regulations governing SNAP and the FNS-approved State Plan of Operation. If FNS approves the Agency's request for a waiver from a program requirement, any different policy approved by FNS would also be reviewed. When, in the course of a review, a local SNAP office is found to be out of compliance with a given SNAP requirement, the Agency will identify the specifics of the problem including:

- The extent of the deficiency;
- The cause of the deficiency, and,
- As applicable, the specific procedural requirements the local SNAP office is misapplying.

26.3 REVIEW PROCESS

(1) Review procedures

The Agency will review the SNAP requirements specified for ME review using procedures that are adequate to identify problems and the causes of those problems.

As each local SNAP office's operational structure will differ, the Agency will review each SNAP requirement applicable to the local SNAP office in a manner which will best measure the local SNAP office's compliance with each program requirement.

(2) ME review plan

The Agency will develop a review plan prior to each ME review. This review plan will specify whether each local SNAP office is large, medium, or small and will contain:

- (A) Identification of the local SNAP office to be reviewed, SNAP areas to be reviewed, the dates the review will be conducted, and the period of time that the review will cover;

- (B) Information secured from the local SNAP office regarding its caseload and organization;
- (C) Identification of the various SNAP elements selected for review and the techniques used to select them;
- (D) A description of the review method(s) the Agency plans to use for each SNAP area being reviewed.

ME review plans will be maintained in an orderly fashion and be made available to FNS upon request.

(3) Review methods

The Agency will determine the method of reviewing the SNAP requirements associated with each program area. For some areas of SNAP operation, it may be necessary to use more than one method of review to determine if the local SNAP office is in compliance with SNAP requirements. The procedures used will be adequate to identify any problems and the causes of those problems. The Agency will ensure that the method used to review a SNAP requirement does not bias the review findings. Bias can be introduced through leading questions, incomplete reviews, incorrect sampling techniques, etc.

(4) Review worksheet

The Agency will use a review worksheet to record all review findings. For each review, the Agency will, on the worksheet, identify:

- (A) The local SNAP office being reviewed;
- (B) Each SNAP requirement reviewed in the local SNAP office;
- (C) The method used to review each SNAP requirement;
- (D) A description of any deficiency detected;
- (E) The cause(s) of any deficiency detected, if known;
- (F) The number of case files and/or SNAP records selected and examined within the local SNAP office, identification of those selected (record case number, household name, etc.), the proportion which were not subject to review, as well as the method used to select the sample;
- (G) Where applicable, the numerical extent of any deficiency detected through examination of program records; and
- (H) Any pertinent comments concerning the local SNAP office's operation.

All information collected through ME review findings will promptly be used by the Office of Economic Services for analysis, evaluation, and corrective action planning. Review worksheets will be retained in an orderly fashion and made available to FNS upon request.

Chapter 27 Data Analysis and Evaluation

27.1 DATA MANAGEMENT

(1) Analysis

Analysis is the process of classifying data, such as by areas of program requirements or use of error-prone profiles, to provide a basis for studying the data and determining trends including significant characteristics and their relationships.

(2) Evaluation

Evaluation is the process of determining the cause(s) of each deficiency, magnitude of the deficiency, and geographic extent of the deficiency, to provide the basis for planning and developing effective corrective action.

The Office of Economic Services must analyze and evaluate at the State and local SNAP office levels all management information sources available to:

- (A) Identify all deficiencies in program operations and systems;
- (B) Identify causal factors and their relationships;
- (C) Identify magnitude of each deficiency, where appropriate (This is the frequency of each deficiency occurring based on the number of program records reviewed and where applicable, the amount of loss either to the program or participants or potential participants in terms of dollars. The Agency will include an estimate of the number of participants or potential participants affected by the existence of the deficiency, if applicable);
- (D) Determine the geographic extent of each deficiency (e.g., Statewide/local SNAP offices); and,
- (E) Provide a basis for management decisions on planning, implementing, and evaluating corrective action.

In the evaluation of data, situations may arise where the Office of Economic Services identifies the existence of a deficiency, but after reviewing all available management information sources sufficient information is not available to make a determination of the actual causal factor(s), magnitude, or geographic extent necessary for the development of appropriate corrective action. In

these situations, the Office of Economic Services will be responsible for gathering additional data necessary to make these determinations.

Deficiencies identified from all management information sources must be analyzed and evaluated together to determine their causes, magnitude, and geographic extent. Causes indicated and deficiencies identified must be examined to determine if they are attributable to a single cause and can be effectively eliminated by a single action. Deficiencies and causes identified must also be compared to the results of past corrective action efforts to determine if the new problems arise from the causal factors which contributed to the occurrence of previously identified deficiencies.

Data analysis and evaluation must be an ongoing process to facilitate the development of effective and prompt corrective action. The process will also identify when deficiencies have been eliminated through corrective action efforts and will provide for the reevaluation of deficiencies and causes when it is determined that corrective action has not been effective.

27.2 IDENTIFICATION OF HIGH ERROR AREAS

USDA, FNS may use QC information to determine which project areas/counties/local offices have reported payment error rates that are either significantly greater than the State Agency average or greater than the national error standard of the Program. When FNS notifies the Agency that a “high error” area exists, the Agency will ensure that corrective action is developed and reported in accordance with the provisions [Section 28.2 State Corrective Action Plan](#).

If FNS identifies a “high error” locality which the Agency has previously identified as error-prone and taken appropriate action, no further action will be required. If the Agency’s corrective action plan fails to address problems in FNS-identified “high error” areas, FNS may require the Agency to implement new or modified cost-effective procedures for the certification of households.

Chapter 28 Corrective Action

28.1 CORRECTIVE ACTION PLANNING

Corrective action planning is the process by which the Agency will determine appropriate actions to reduce substantially or eliminate deficiencies in SNAP operations and provide responsive service to eligible households.

The Agency (including local SNAP offices) will implement corrective action on all identified deficiencies. Deficiencies requiring action by the Agency (including local SNAP offices in the planning, development, and implementation of corrective action are those which:

- (A) Result from a payment error rate of 6 percent or greater (actions to correct errors in individual cases, however, will not be submitted as part of the Agency's corrective action plan);
- (B) Are the cause for non-entitlement to enhanced funding for any reporting period (actions to correct errors in individual cases however, will not be submitted as part of the Agency's corrective action plan);
- (C) Are the causes of other errors/deficiencies detected through QC, including error rates of 1 percent or more in negative cases (actions to correct errors in individual cases, however, will not be submitted as part of the Agency's corrective action plan);
- (D) Are identified by FNS reviews, GAO audits, contract audits, or USDA audits or investigations at the Agency (including local SNAP offices) (except deficiencies in isolated cases as indicated by FNS);
- (E) Result from 5 percent or more of the State Agency's QC sample being coded "not complete". This standard will apply separately to both active and negative samples; and
- (F) Result in under issuances, improper denials, or improper terminations of benefits to eligible households where such errors are caused by Agency rules, practices or procedures.

The Agency will ensure that appropriate corrective action is taken on all deficiencies including each case found to be in error by QC reviews and those deficiencies requiring corrective action only at the local SNAP office level.

Moreover, when a substantial number of deficiencies are identified which require Agency or local SNAP office level corrective action, the Agency or local SNAP office will establish an order of priority to ensure that the most serious deficiencies are addressed immediately and corrected as soon as possible. Primary factors to be considered when determining the most serious deficiencies are:

- Magnitude of the deficiency;
- Geographic extent of the deficiency (e.g., Statewide/local SNAP office);
- Anticipated results of corrective actions; and
- High probability of errors occurring as identified through all management evaluation sources.

In planning corrective action, the Agency will coordinate actions in the areas of data analysis, policy development, quality control, program evaluation, operations, administrative cost management, civil rights, and training to develop appropriate and effective corrective action measures.

28.2 STATE CORRECTIVE ACTION PLAN

The Office of Economic Services will prepare corrective action plans addressing those deficiencies specified in [Section 28.1 Corrective Action Planning](#) requiring action by the Agency (including local SNAP offices). This corrective action plan is an open-ended plan and will remain in effect until all deficiencies in SNAP operations have been reduced substantially or eliminated. The Agency will provide updates to their corrective action plans through regular, semiannual updates. These semiannual updates will be received by FNS by May 1st and November 1st respectively. Such updates must contain:

- Any additional deficiencies identified since the previous corrective action plan update;
- Documentation that a deficiency has been corrected and is therefore being removed from the plan; and
- Any changes to planned corrective actions for previously reported deficiencies.

The Agency corrective action plans will contain, but not necessarily be limited to, the following, based on the most recent information available:

- (A) Specific description and identification of each deficiency;
- (B) Source(s) through which the deficiency was detected;
- (C) Magnitude of each deficiency, if appropriate;
- (D) Geographic extent of the deficiency (e.g., Statewide/local SNAP office, specific project areas in which the deficiency occurs);
- (E) Identification of causal factor(s) contributing to the occurrence of each deficiency;
- (F) Identification of any action already completed to eliminate the deficiency;

- (G) For each deficiency, an outline of actions to be taken, the expected outcome of each action, the target date for each action, and the date by which each deficiency will have been eliminated; and
- (H) For each deficiency, a description of the manner in which the State Agency will monitor and evaluate the effectiveness of the corrective action in eliminating the deficiency.

FNS will provide technical assistance in developing corrective action plans when requested by the Agency. The Agency will be held accountable for the efficient and effective operation of all areas of the program. FNS is not precluded from issuing a warning because a deficiency is included in the State Agency's corrective action plan.

28.3 LOCAL SNAP OFFICE CORRECTIVE ACTION PLAN

The Office of Economic Services at the state level of the Agency will ensure that corrective action plans are prepared at the local SNAP office level, addressing those deficiencies not required to be included in the State corrective action plan. The local SNAP office corrective action plans will be open-ended and will remain in effect until all deficiencies in SNAP program operations have been reduced substantially or eliminated.

Any deficiencies detected through any source not previously reported to the Office of Economic Services, which require incorporation into the local SNAP office corrective action plan, will be submitted within 60 days of identification.

As deficiencies are reduced substantially or eliminated, the local SNAP office will notify the Office of Economic Services in writing. The local SNAP office will be responsible for documenting why each deficiency is being removed from the corrective action plan. The removal of any deficiency from the plan will be subject to Office of Economic Services and FNS review and validation.

Local SNAP office corrective action plans will contain all the information necessary to enable the Office of Economic Services to monitor and evaluate the corrective action properly. Also, the Office of Economic Services will establish requirements for local SNAP offices in planning, implementing and reporting corrective action to assist the Agency's efforts to fulfill its responsibilities for determining which deficiencies must be addressed in the State corrective action plan. Local SNAP office corrective action plans will include the following, based on the most recent information available:

- (A) Specific description and identification of each deficiency;
- (B) Source(s) through which the deficiency was detected;
- (C) Magnitude of each deficiency, if appropriate;
- (D) Geographic extent of the deficiency (throughout the local SNAP office or only in specific offices);

- (E) Identification of causal factor(s) contributing to the occurrence of each deficiency;
- (F) Identification of any action already completed to eliminate the deficiency;
- (G) For each deficiency, an outline of actions to be taken, the expected outcome of each action, the target date for each action, the date by which each deficiency will have been eliminated; and
- (H) For each deficiency, a description of the manner in which the local SNAP office will monitor and evaluate the effectiveness of the corrective action in eliminating the deficiency

28.4 MONITORING AND EVALUATION

The Office of Economic Services will monitor and evaluate corrective action at the State and local SNAP office levels. Monitoring and evaluation will be an ongoing process to determine that deficiencies are being substantially reduced or eliminated in an efficient manner and that SNAP provides responsive service to eligible households.

The Office of Economic Services will ensure that corrective action on all deficiencies identified in the State Corrective Action Plan and local SNAP office Corrective Action Plan is implemented and achieves the anticipated results within the specified time frames. The Office of Economic Services will monitor and evaluate corrective action at the State and local SNAP offices through a combination of reports, field reviews, and examination of current data available through program management tools and other sources.

In instances where the Office of Economic Services and/or local SNAP offices determines that the proposed corrective action is not effective in reducing substantially or eliminating deficiencies, the Office of Economic Services and/or the local SNAP office will promptly reevaluate the deficiency, causes, and the corrective action taken, and develop and implement new corrective actions.

Chapter 29 Determination of State Agency Program Performance

29.1 AGENCY PROGRAM PERFORMANCE

USDA, FNS will determine the efficiency and effectiveness of a State's administration of SNAP by measuring:

- (A) State compliance with the standards contained in Food and Nutrition Act, regulations, and the State Plan of Operation; and
- (B) State efforts to improve SNAP operations through corrective action.

This determination will be made based on:

- (A) Reports submitted to FNS by the State;
- (B) FNS reviews of State Agency operations;
- (C) State performance reporting systems and corrective action efforts; and
- (D) Other available information such as Federal audits and investigations, civil rights reviews, administrative cost data, complaints, and any pending litigation.

29.2 STATE AGENCY ERROR RATES

FNS will estimate the State Agency's error rates based on the results of QC review reports. The Agency's active case error, payment error, under-issuance error, and negative case error rates will be estimated as follows:

- (A) **Active case error rate.** The active case error rate will include the proportion of active sample cases which were reported as ineligible or as receiving an incorrect allotment;
- (B) **Payment error rate.** The payment error rate will include the value of the allotments over-issued, including those to ineligible cases, and the value of allotments under-issued for those cases included in the active error rate.
- (C) **Negative case error rate.** The negative case error rate will be the proportion of negative sample cases which were reported as having been eligible at the time of denial, suspension or termination.

29.3 STATE AGENCY LIABILITY FOR ERROR RATES

At the end of each federal fiscal year, each State agency's payment error rate over the entire fiscal year will be computed and evaluated to determine whether the payment error rate goals established in the following paragraphs have been met. FNS will announce a national performance measure not later than June 30 after the end of the fiscal year. The national performance measure is the sum of the products of each State agency's error rate times that State agency's proportion of the total value of national allotments issued for the fiscal year using the most recent issuance data available at the time the State agency is notified of its payment error rate. Once announced, the national performance measure for a given fiscal year will not be subject to change. The national performance measure is not subject to administrative or judicial review.

Liability for payment will be established whenever there is a 95 percent statistical probability that, for the second or subsequent consecutive fiscal year, an Agency's payment error rate exceeds 105 percent of the national performance measure. The Agency's liability for payment error rates as determined above are not subject to the FNS warning process. The amount of the liability will be equal to the product of:

- The value of all allotments issued by the Agency in the (second or subsequent consecutive) fiscal year; multiplied by
- The difference between the Agency's payment error rate and 6 percent; multiplied by
- 10 percent

Whenever a State is assessed for an excessive payment error rate, the state will have the right to request an appeal. When a State agency with otherwise effective administration exceeds the tolerance level for payment errors as described in this section, the agency may seek relief from liability claims that would otherwise be levied under this section on the basis that the agency had good cause for not achieving the payment error rate tolerance. The five unusual events described below in this section are considered to have a potential for disrupting program operations and increasing error rates to an extent that relief from a resulting liability or increased liability is appropriate. The occurrence of an event(s) does not automatically result in a determination of good cause for an error rate in excess of the national performance measure. The State agency must demonstrate that the event had an adverse and uncontrollable impact on program operations during the relevant period, and the event caused an uncontrollable increase in the error rate. Good cause relief will only be considered for that portion of the error rate/liability attributable to the unusual event. The following are unusual events which State agencies may use as a basis for requesting good cause relief and specific information that must be submitted to justify such requests for relief:

- (A) **Natural disasters and civil disorders.** Natural disasters such as those under the authority of the Stafford Act of 1988 or civil disorders that adversely affect program operations.
- (B) **Strikes.** Strikes by State agency staff necessary to determine SNAP eligibility and process case changes.
- (C) **Caseload growth.** A significant growth in SNAP caseload in a State prior to or during a fiscal year, such as a 15 percent growth in caseload. Caseload growth which historically increases

during certain periods of the year will not be considered unusual or beyond the State agency's control.

- (D) **Program changes.** A change in SNAP or other Federal or State program that has a substantial adverse impact on the management of SNAP of a State. Requests for relief from errors caused by the uncontrollable effects of unusual program changes will be considered to the extent the program change is not common to all States.
- (E) **A significant circumstance beyond the control of the State agency.** Requests for relief from errors caused by the uncontrollable effect of the significant circumstance will be considered to the extent that the circumstance is not common to all States, such as a fire in a certification office.

29.4 RESOLUTION OF LIABILITIES

FNS may:

- (A) Waive all or a portion of the liability;
- (B) Require the State agency to reinvest up to 50 percent of the liability in activities to improve program administration, which new investment money will not be matched by Federal funds;
- (C) Designate up to 50 percent of the liability as “at-risk” for repayment if a liability is established based on the State agency's payment error rate for the subsequent fiscal year; or
- (D) Assert any combination of these options.

Once FNS establishes its proposed liability resolution plan, the amount assigned as at-risk is not subject to settlement negotiation between FNS and the State agency and may not be reduced unless an appeal decision revises the total dollar liability. FNS and the State will settle any waiver amount or reinvestment amount before the end of the federal fiscal year in which the liability amount is determined unless an administrative appeal relating to the claim is pending. If a State agency appeals its liability determination, if the State agency began required reinvestment activities prior to an appeal determination, and if the liability amount is reduced to \$0 through the appeal, FNS will pay to the State agency an amount equal to 50 percent of the new investment amount that was included in the liability amount subject to the appeal. If FNS wholly prevails on a State agency's appeal, FNS will require the State agency to invest all or a portion of the amount designated for reinvestment during the appeal to be reinvested or to be repaid to the Federal government.

Chapter 30 High Performance Bonuses

30.1 GENERAL RULE

USDA, FNS will award bonuses totaling \$48 million for each fiscal year to State agencies that show high or improved performance. FNS will award the bonuses no later than September 30th of the federal fiscal year following the performance measurement year.

A State agency is not eligible for a bonus payment in any fiscal year for which it has a liability amount established as a result of an excessive payment error rate in the same year. If a State is disqualified from receiving a bonus payment, and the State is not tied for a bonus, the State with the next best performance will be awarded a bonus payment. The determination whether, and in what amount, to award a performance bonus payment is not subject to administrative or judicial review.

A State cannot be awarded two bonuses in the same category (see Section 30.2 below). If a State is determined to be among the best and the most improved in a category, it will be awarded a bonus only for being the best. The next State in the best category will be awarded a bonus as being among the best States. Where there is a tie to the fourth decimal point, FNS will add the additional State(s) into the category and the money will be divided among all the States.

In determining the amount of the award, FNS will first award a base amount of \$100,000 to each State agency that is an identified winner in each category. Subsequently, FNS will divide the remaining money among the States in each category in proportion to the size of their caseloads (the average number of households per month for the federal fiscal year for which performance is measured).

30.2 PERFORMANCE MEASURES

FNS will measure performance by and base awards on the following categories of performance measures:

(1) Payment accuracy

FNS will divide \$24 million among the 10 States with the lowest and the most improved combined payment error rates as specified directly below:

- (A) ***Excellence in payment accuracy.*** FNS will provide bonuses to the 7 States with the lowest combined payment error rates based on the validated quality control payment error rates for the performance measurement year.
- (B) ***Most improved in payment accuracy.*** FNS will provide bonuses to the 3 States with the largest percentage point decrease in their combined payment error rates based on the comparison of the validated quality control payment error rates for the performance measurement year and the previous fiscal year.

(2) Negative error rate

FNS will divide \$6 million among the 6 States with the lowest and the most improved negative error rates as specified directly below:

- (A) ***Lowest negative error rate.*** FNS will provide bonuses to the 4 States with the lowest negative error rates based on the validated quality control negative error rates for the performance year.
- (B) ***Most improved negative error rate.*** FNS will provide bonuses to the 2 States with the largest percentage point decrease in their negative error rates, based on the comparison of the performance measurement year's validated quality control negative error rates with those of the previous fiscal year. A State agency is not eligible for a bonus under this criterion if the State's negative error rate for the fiscal year is more than 50 percent above the national average.

(3) Program Access Index (PAI)

FNS will divide \$12 million among the 8 States with the highest and the most improved level of participation as determined in (C) below. The PAI is the ratio of participants to persons with incomes below 125 percent of poverty.

- (A) ***High program access index.*** FNS will provide bonuses to the 4 States with the highest PAI.
- (B) ***Most improved program access index.*** FNS will provide bonuses to the 4 States with the most improved PAI.
- (C) ***Determining the PAI.*** For the number of participants (numerator), FNS will use the administrative annual counts of participants minus new participants certified under special disaster program rules by State averaged over the calendar year. For the number of people below 125 percent of poverty (denominator), FNS will use the Census Bureau's March Supplement to the Current Population Survey's (CPS) count of people below 125 percent of poverty for the same calendar year. FNS will reduce the count in each State where a

Food Distribution Program on Indian Reservations (FDPIR) program is operated by the administrative counts of the number of individuals who participate in this program averaged over the calendar year. FNS will reduce the count in California by the Census Bureau's percentage of people below 125% of poverty in California who received Supplemental Security Income in the previous year.

FNS reserves the right to use data from the American Community Survey (ACS) in lieu of the CPS, and to use the count of people below 130 percent of poverty, should these data become available in a timely fashion and prove more accurate. Such a substitution would apply to all States.

(4) Application processing timeliness

FNS will divide \$6 million among the 6 States with the highest percentage of timely processed applications. A timely processed application is one that provides an eligible applicant the “opportunity to participate” within thirty days for normal processing or 7 days for expedited processing. New applications that are processed outside of this standard are untimely for this measure, except for applications that are properly pending because verification is incomplete and the State agency has taken all the necessary actions will not be included in this measure. Applications that are denied will not be included in this measure. Only applications that were filed on or after the beginning of the performance measurement (federal fiscal) year will be evaluated under this measure. FNS will use quality control data to determine each State's rate of application processing timeliness.

SNAP Tool Kit

[1: Permanent Disability Established by the Social Security Act](#)

[2: Acceptable Verification of U.S. Citizenship and Non-Citizen Eligibility](#)

[3: SNAP Annual \(12-Month\) Recertification Chart](#)

[4: SNAP Six \(6\) Month & Tri-Annual \(4-Month\) Recertification Chart](#)

[5: SNAP Cheat Sheets](#)

[6: SNAP Student Eligibility Tool](#)

[7: SNAP Glossary](#)

1: Permanent Disability Established by the Social Security Act

When making the disability determination for individuals specified in [Section 5.1 Verification Prior to Certification, \(5\) \(II\) Disability](#), the Agency must use the Social Security SSA most current list of disabilities considered permanent under the Social Security Act. The list of impairments includes:

- Musculoskeletal System
 - Major dysfunction of a joint(s)
 - Reconstructive surgery or surgical arthrodesis of a major weight-bearing joint
 - Disorders of the spine
 - Amputation
 - Fracture of the femur, tibia, pelvis, or one or more of the tarsal bones
 - Fracture of an upper extremity
 - Soft tissue injury (e.g., burns)
- Special Senses and Speech
 - Loss of Central visual acuity
 - Contraction of the visual field in the better eye
 - Loss of visual efficiency
 - Disturbance of labyrinthine-vestibular function
 - Loss of speech
 - Hearing loss not treated with cochlear implantation
 - Hearing loss treated with cochlear implantation
- Respiratory Disorders
 - Chronic Respiratory Disorders

- Asthma
- Cystic Fibrosis
- Bronchiectasis
- Chronic pulmonary hypertension due to any cause
- Lung transplant
- Respiratory Failure

- **Cardiovascular System**

- Chronic heart failure
- Ischemic heart disease
- Recurrent Arrhythmias
- Symptomatic congenital heart disease
- Heart transplant
- Aneurysm of aorta or major branches
- Chronic venous insufficiency
- Peripheral Arterial Disease

- **Digestive System**

- Gastrointestinal Hemorrhaging from any cause, requiring blood transfusion
- Chronic liver disease
- Inflammatory Bowel Disease (IBD)
- Short Bowel Syndrome (SBS)
- Weight Loss due to any digestive disorder
- Liver transplant

- Genitourinary Disorders
 - Chronic kidney disease with chronic hemodialysis or peritoneal dialysis
 - Chronic kidney disease with kidney transplant
 - Chronic kidney disease with impairment of kidney function
 - Nephrotic syndrome
 - Complications of chronic kidney disease
- Hematological Disorders
 - Hemolytic anemias, including sickle cell disease, thalassemia, and their variants
 - Disorders of thrombosis and hemostasis
 - Disorders of bone marrow failure
 - Hematological disorders treated by bone marrow or stem cell transplantation
 - Repeated complications of hematological disorders
- Skin Disorders
 - Ichthyosis
 - Bullous disease
 - Chronic infections of the skin or mucous membranes
 - Dermatitis
 - Hidradenitis Suppurativa
 - Genetic photosensitivity disorders
 - Burns
- Endocrine Disorders
 - Pituitary gland disorders

- Thyroid gland disorders
 - Parathyroid gland disorders
 - Adrenal gland disorders
 - Diabetes mellitus and other pancreatic disorders
- Congenital Disorders
 - Non-mosaic Down Syndrome (chromosome 21 trisomy or chromosome 21 translocation)
- Neurological Disorders
 - Epilepsy
 - Vascular insult to the brain
 - Benign brain tumors
 - Parkinsonian Syndrome
 - Cerebral Palsy
 - Spinal Cord Disorders
 - Multiple Sclerosis
 - Amyotrophic Lateral Sclerosis (ALS)
 - Post-Polio Syndrome
 - Myasthenia Gravis
 - Muscular Dystrophy
 - Peripheral Neuropathy
 - Neurodegenerative disorders of the central system, such as Huntington's Disease, Friedreich's Ataxia and Spinocerebellar Degeneration
 - Traumatic brain injury
 - Coma or persistent vegetative state
 - Motor neuron disorders other than ALS

- Mental Disorders
 - Neurocognitive disorders
 - Schizophrenia spectrum and other psychotic disorders
 - Depressive, bipolar and related disorders
 - Intellectual disorder
 - Anxiety and obsessive-compulsive disorders
 - Somatic symptom and related disorders
 - Personality and impulse-control disorders
 - Autism spectrum disorder
 - Neurodevelopmental disorders
 - Eating disorders
 - Trauma- and stressor related disorders
- Cancer (Malignant Neoplastic Diseases)
 - Soft tissue cancers of the head and neck
 - Skin
 - Soft tissue sarcoma
 - Lymphoma
 - Leukemia
 - Multiple myeloma
 - Salivary glands
 - Thyroid gland
 - Breast
 - Skeletal system-sarcoma
 - Maxilla, orbit or temporal fossa
 - Nervous system
 - Lungs

- Pleura or mediastinum
- Esophagus or stomach
- Small intestine
- Large intestine
- Liver or gallbladder
- Pancreas
- Kidneys, adrenal glands, or ureters—carcinoma
- Urinary bladder—carcinoma
- Cancers of the female genital tract—carcinoma or sarcoma
- Prostate gland—carcinoma
- Testicles
- Penis
- Primary site unknown
- Cancer treated by bone marrow or stem cell transplantation
- Malignant melanoma

- Immune System Disorders

- Systemic lupus erythematosus
- Systemic vasculitis
- Systemic sclerosis (scleroderma)
- Polymyositis and dermatomyositis
- Undifferentiated and mixed connective tissue disease
- Immune deficiency disorders, excluding HIV infection
- Inflammatory arthritis
- Sjogren's Syndrome
- Human Immunodeficiency Virus (HIV) infection

2: Acceptable Verification of U.S. Citizenship and Non-Citizen Eligibility

Acceptable Verification of U.S. Citizenship

Verification of U.S. citizenship is not required unless U.S. citizenship is questionable. If citizenship is questionable, the following documents may be used to verify U.S. citizenship:

Acceptable Verification of U.S. Citizenship and U.S. Non-Citizen Nationals

- **Birth certificate showing birth in one of the 50 States, the District of Columbia, Puerto Rico (on or after 01/13/1941), Guam, the U.S. Virgin Islands (on or after 01/17/1917), American Samoa, Swain's Island, or the Northern Mariana Islands, unless the person was born to foreign diplomats residing in the U.S. Note: Citizens of the Marshall Islands, Micronesia, and Palau are not eligible for federal public assistance.**
- **United States passport (except limited passports, which are issued for periods of less than five years)**
- **Report of birth abroad of a U.S. Citizen (FS-240) (Issued by the Department of State to U.S. Citizens)**
- **Certification of birth (FS-545) (issued by a foreign service post) or Certification of Report of Birth (DS-1350) (issued by the Department of State)**
- **Certificate of Naturalization (N-550 or N-570) (issued by the USCIS through a Federal or State court, or through administrative naturalization after December 1990 to individuals who are individually naturalized; the N-570 is a replacement certificate issued when the N-550 has been lost or mutilated or the individual's name has been changed)**
- **Certificate of Citizenship (N-560 or N-561) (issued by the USCIS to individuals who derive U.S. citizenship through a parent; the N-561 is a replacement certificate issued**

when the N-560 has been lost or mutilated or the individual's name has changed)

- **United States Citizen Identification Card (I-197, formerly Form I-179) (issued by the USCIS until April 7, 1983 to U.S. citizen living near the Canadian or Mexican border who needed it for frequent border crossings) (formerly Form I-179, last issued in February 1974)**
- **Northern Mariana Identification Card (issued by the USCIS to a collectively naturalized citizen of the U.S. who was born in the Northern Mariana Islands before November 3, 1986)**
- **Statement from a U.S. consular officer certifying that the individual is a U.S. citizen (this is given to an individual born outside the U.S. who derives citizenship through a parent but does not have an FS-240, FS-545, or DS-1350)**
- **American Indian Card with a classification code "KIC" and a statement on the back (identifying U.S. citizen member of the Texas Band of Kickapoos living near the U.S./Mexican border)**

Others Who Are Eligible on the Same Basis as U.S. Citizens

Category	Verification
An American Indian born in Canada who possesses at least 50 per centum of blood of the American Indian race to whom the provisions of the Immigration and Nationality Act (INA) apply	▪ United States Citizenship and Immigration Services (USCIS) Form I-551 with code S13; OR ▪ Unexpired temporary I-551 stamp in Canadian passport or on USCIS Form I-94 with code S13; OR

	▪ Letter or other tribal document certifying at least 50 per centum American Indian blood, as required by INA Section 289, combined with a birth certificate or other satisfactory evidence of birth in Canada.
An individual who is lawfully residing in the U.S. and was a member of a Hmong or Highland Laotian tribe at the time that the tribe rendered assistance to U.S. personnel by taking part in a military or rescue operation during the Vietnam era (beginning August 5, 1964, and ending May 7, 1975). • The spouse; or surviving spouse of such Hmong or Highland Laotian who is deceased, or • An unmarried dependent child of such Hmong or Highland Laotian who is under the age of 18 or if a full-time student under the age of 22; • An unmarried child under the age of 18 or if a full time student under the age of 22 of such a deceased Hmong or Highland Laotian provided the child was dependent upon him or her at the time of his or her death; or • An unmarried disabled child age 18 or older if the child was disabled and	▪ I-94 cards or a foreign passport endorsed with "Processed for I-551 as Temporary Evidence of Admission for Lawful Permanent Residency" or the term "Resident Alien". The LPR will only have an I-94 card until U.S. Citizenship and Immigration Services (USCIS) processes the I-551 card (4-6 months after application). ▪ An unexpired Permanent Resident Card (formerly known as a "green card") Form I-551. ▪ An unexpired Conditional Resident Alien Card - I-551. ▪ An unexpired Re-Entry Permit - Form I-327. ▪ A private bill enacted by the United States Congress indicating permanent resident status.

dependent on the person prior to the child's 18th birthday	
A member of an Indian tribe as defined in Section 4(e) of the Indian Self-determination and Education Assistance Act which is recognized as eligible for the special programs and services provided by the U.S. to Indians because of their status as Indians.	• Membership card or other tribal document demonstrating membership in a federally recognized Indian tribe under section 4(e) of the Indian Self-Determination and Education Assistance Act; OR • Contact with tribal government for confirmation of the individual's membership
FAS citizens residing in the United States.	• Form I-766, Employment Authorization Document, for Freely Associated States (FAS).

Acceptable Verification of Non-Citizen Eligibility

Due to the implementation of the One Big Beautiful Bill of 2025 (OBBB), some non-citizens previously eligible for SNAP are no longer eligible. Non-Citizens continue to be subject to a 5-year waiting period, unless exempted by Personal Responsibility Work Opportunity Act of 1996 (PRWORA). The OBBB limits eligibility for SNAP to the following groups: U.S. citizens, U.S. nationals, Lawful Permanent Residents (LPRs), Cuban and Haitian entrants, and Compacts of Free Association (COFA) citizens. The chart directly below summarizes eligibility for non-citizens pursuant to the OBBB amendments to section 6(f) of the Food & Nutrition Act of 2008 (FNS).

Eligible Non-Citizen Category Under the OBBB	Eligibility Timing
• Non-citizen U.S. nationals • Cuban and Haitian Entrants (CHE) • Compacts of Free Association (COFA) citizens	Eligible immediately, with no waiting period, as long as they meet all other SNAP financial and non-financial eligibility requirements.
• Lawful Permanent Residents (LPR) (also known as Green Card holders)	Eligible after a 5-year waiting period, as long as they meet all other SNAP financial and non-financial eligibility requirements. LPRs may still be eligible for SNAP without a waiting period if they meet one or more of the following conditions: • Are under 18 years old • Have 40 qualifying work quarters • Are blind or disabled • Were lawfully residing in the U.S. and 65 or older on August 22, 1996 • Have a U.S. military connection • Are admitted to the United States as an Amerasian immigrant • Are an American Indian born abroad • Certain Hmong or Highland Laotian tribal members

The Agency must verify the eligible status of applicant non-citizens according to **Section 5.1 Verification Prior to Certification, (6) Non-Citizen Eligibility** and **Section 7.3 Citizenship and Non-Citizen Status**. The validity of these documents must also be verified in the SAVE program.

Common USCIS documents used as acceptable forms of verification are:

I-94: Arrival Departure Record

I-130: Petition for Alien Relative

I-551: Permanent Resident Card or Alien Registration Receipt Card; commonly known as a “green card”

I-571: Refugee Travel Document

I-688B: Employment Authorization Card

I-766: Employment Authorization Document

I-797: Notice of Action

The chart directly below provides a comparison of SNAP eligibility for Non-Citizens Categories before (Pre) and after (Post) the OBBB became law. Each category of eligible non-citizen status stands alone for purposes of determining eligibility. If eligibility expires under one eligible non-citizen status, the Agency must determine if eligibility exists under another status.

Non-Citizen Category	Pre-OBBB Eligibility	Post-OBBB Eligibility
Non-Citizen U.S. Nationals <i>Born in an outlying possession of the U.S. on or after the date the U.S. acquired the possession or a person whose parents are U.S. non-citizen nationals</i>	Eligible immediately	Eligible immediately

Lawful Permanent Residents (LPR) <i>Admitted lawfully for permanent residence under the INA</i>	Eligible after a 5-year waiting period, as long as they meet all other SNAP financial and non-financial eligibility requirements. LPRs may still be eligible for SNAP without a waiting period if they meet one or more of the following conditions: • Are under 18 years old • Have 40 qualifying work quarters • Are blind or disabled • Were lawfully residing in the U.S. and 65 or older on August 22, 1996 • Have a U.S. military connection	Eligible after a 5-year waiting period, as long as they meet all other SNAP financial and non-financial eligibility requirements. LPRs may still be eligible for SNAP without a waiting period if they meet one or more of the following conditions: • Are under 18 years old • Have 40 qualifying work quarters • Are blind or disabled • Were lawfully residing in the U.S. and 65 or older on August 22, 1996 • Have a U.S. military connection • Are admitted to the United States as an Amerasian immigrant • Are certain American Indians born abroad • Are certain Hmong or Highland Laotian tribal members
Cuban and Haitian Entrants (CHE) <i>Granted entry into the U.S. as defined in section 501(e) of the Refugee Education Assistance Act of 1980</i>	Eligible immediately	Eligible immediately

Compacts of Free Association (COFA) Citizens <i>Lawfully residing in the U.S. in accordance with section 141 of the Compacts of Free Association between the Government of the United States and the Governments of the Federated States of Micronesia (FSM), the Republic of the Marshall Islands (RMI), and the Republic of Palau.</i>	Eligible immediately	Eligible immediately
Children Under Age 18 in any SNAP-eligible Non-Citizen Category	Eligible immediately	Eligible immediately
LPRs with 40 Qualifying Work Quarters <i>Non-citizens age 18 or older lawfully admitted for permanent residence under the INA who have 40 qualifying quarters as determined under Title II of the SSA, including qualifying quarters of work not covered by Title II of the SSA, based on the sum of:</i> <i>quarters the non-citizen worked</i>	Eligible immediately	Eligible immediately

• quarters credited from the work of a parent of the non-citizen before the non-citizen became 18 (including quarters worked before the non-citizen was born or adopted); and • quarters credited from the work of a spouse of the non-citizen during their marriage if they are still married or the spouse is deceased		
<u>Individuals in any SNAP-eligible Non-Citizen Category Who is Blind or Disabled</u> <i>Receiving benefits or assistance for blindness or disability as specified in <u>Section 5.1 Verification Prior to Certification, (5)(I) Disability</u></i>	Eligible immediately	Eligible immediately
<u>Individuals in any SNAP-eligible Non-Citizen Category Lawfully Residing in the U.S. and Was 65 or Older on August 22, 1996</u> <i>Elderly born on or before 08/22/1931 who lawfully resided in the U.S. on 08/22/1996</i>	Eligible immediately	Eligible immediately

<u>Individuals in any SNAP-eligible Non-Citizen Category Who Has a Military Connection</u> <i>An individual who is lawfully residing in a State and is on active duty in the military (excluding National Guard) or is an honorably discharged veteran whose discharge is not because of immigration status (includes spouse, surviving spouse if not married, and unmarried dependent children). A discharge “Under Honorable Conditions”, which is not the same as an honorable discharge, does not meet this requirement.</i>	Eligible immediately	Eligible immediately
Deportation Withheld <i>Deportation is withheld under §243(h) of the INA as in effect prior to 04/01/97 or removal is withheld under §241(b)(3) of the INA</i>	Eligible immediately	Not eligible unless an LPR, then eligible immediately
Amerasians <i>Admitted to the U.S. pursuant to section 584 of the Foreign Operations, Export Financing, and Related Programs Appropriations Act of 1988</i>	Eligible immediately	Eligible immediately

Certain American Indians Born Abroad <i>Born in Canada living in the United States (U.S.) under §289 of the Immigration and Nationality Act (INA) or non-citizen members of a federally recognized Indian tribe under §4(e) of the Indian Self-Determination and Education Assistance Act.</i>	Eligible immediately	Not eligible unless an LPR, then eligible immediately
Hmong or Highland Laotian Tribal Members <i>Lawfully residing in the U.S. as a member of a Hmong or Highland Laotian tribe that rendered assistance to U.S. personnel by taking part in a military or rescue operation during the Vietnam era (Aug. 5, 1964 – May 7, 1975). This category includes the spouse (or un-remarried surviving spouse) or unmarried dependent children of these individuals.</i>	Eligible immediately	Not eligible unless an LPR, then eligible immediately
Iraqi and Afghan Special Immigrants (SIV) <i>Granted special immigrant status under §101(a)(27) of the INA</i>	Eligible immediately	Not eligible unless an LPR, then eligible immediately

• Principal Iraqi/Afghan Special Immigrant • Spouse of Principal Iraqi/Afghan Special Immigrant • Unmarried Child Under 21 Years of Age of Principal Iraqi/Afghan Special Immigrant • Unmarried Child Under 21 Years of Age of Principal Iraqi/Afghan Special Immigrant • Principal Applicant Iraqi/Afghan Special Immigrant Adjusting Status in the U.S. • Spouse of Principal Applicant Iraqi/Afghan Special Immigrant Adjusting Status in the U.S. Unmarried Child Under 21 Years of Age of Principal Applicant Iraqi/Afghan Special Immigrant Adjusting Status in the U.S.		
Conditional Entrants <i>Granted conditional entry under §203(a)(7) of the INA as in effect before 04/01/1980</i>	Eligible immediately	Not eligible unless an LPR, then eligible after a five-year waiting period. Provided other SNAP eligibility requirements are met, an individual is not subject to the 5-year waiting period if he/she: • Is under 18 years old; • Has 40 qualifying work quarters;

		• Is blind or disabled; • Was lawfully residing in the U.S. and 65 or older on August 22, 1996; or • Has a U.S. military connection
Battered Non-Citizens <i>Non-citizens who have been battered or subjected to extreme cruelty in the U.S. by a spouse or a parent or by a member of the spouse or parent's family residing in the same household as the non-citizen at the time of the abuse, a non-citizen whose child has been battered or subjected to battery or cruelty, or a non-citizen child whose parent has been battered.</i>	Eligible immediately	Not eligible unless an LPR, then eligible after a five-year waiting period. Provided other SNAP eligibility requirements are met, an individual is not subject to the 5-year waiting period if he/she: • Is under 18 years old; • Has 40 qualifying work quarters; • Is blind or disabled; • Was lawfully residing in the U.S. and 65 or older on August 22, 1996; or • Has a U.S. military connection
Victims of Severe Trafficking and Certain Family Members <i>Victims under the Trafficking Victims Protection Act of 2000 and family members granted derivative T nonimmigrant status.</i>	Eligible immediately	Not eligible unless an LPR, then eligible immediately
Refugees	Eligible immediately	Not eligible unless an LPR, then eligible immediately

<i>Admitted as a refugee into the U.S. under §207 of the INA</i>		
Individuals Granted Asylum <i>Granted asylum into the U.S. under §208(b) of the INA</i>	Eligible immediately	Not eligible unless an LPR, then eligible immediately
Parolees <i>Paroled into the U.S. under §212(d)(5) of the INA for a period of at least 1 year.</i>	Eligible after a 5-year waiting period	Not eligible unless an LPR, then eligible after a five-year waiting period Provided other SNAP eligibility requirements are met, an individual is not subject to the 5-year waiting period if he/she: • Is under 18 years old; • Has 40 qualifying work quarters; • Is blind or disabled; • Was lawfully residing in the U.S. and 65 or older on August 22, 1996; or • Has a U.S. military connection
Certain Afghan Nationals Granted Parole Between July 31, 2021 and September 30, 2023	Eligible immediately	Not eligible unless an LPR, then eligible immediately
Certain Ukrainian Nationals Granted Parole Between February 24, 2022 and September 30, 2024	Eligible immediately	Not eligible unless an LPR, then eligible immediately

LPR Pursuant to Section 249 of the INA (8 USC 1259)	Eligible after a 5-year waiting period	See “Post-OBBS Eligibility” for LPR
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Individuals have “adjusted status to LPR” when they have received an approval notice and Permanent Resident Card (Green Card) from the United States Citizenship and Immigration Services (USCIS). Individuals are not considered an LPR if they have applied to adjust status and have not yet received a decision.

USCIS documents generally contain the date a non-citizen entered the country or adjusted to the immigration status reflected on the document. If a non-citizen does not have USCIS documentation, the Agency can verify the date of entry into the United States or date status was given by submitting a request for additional verification through the Systematic Alien Verification for Entitlements (SAVE) program.

3: SNAP ANNUAL (12-MONTH) RECERTIFICATION CHART

Timely	Interview	Verification	Process
1st – 15th Annual recertification (“A” Form) is due June 15th. The household submits form on June 10th.	Interview completed Timely	No additional verification needed after the interview	- When the “A” Form is registered in SCWINS with an application date of June 10th, the interview date field on CHIP INRD screen will automatically be populated with an interview date 10 days from the date of registration. The “A” form was registered on the date of receipt. - A CHIP system generated Interview Notice (X095) is sent. - Acknowledge interview completion on CHIP INRD screen with the actual date the household completes the interview and process the annual recertification by the last day of the month. Example: <i>Interview is completed on June 14. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. All verification needed was submitted with the “A” form; therefore, case is processed by June 30th. The household receives July benefits during regular issuance cycle.</i> NOTE: As long as the household completes the interview by June 30th, the household is entitled to uninterrupted benefits.
Timely	Interview	Verification	Process
1st – 15th Annual recertification (“A” Form) is due June 15th. The household submits form on June 10th.	Interview delayed-Agency	No additional verification needed after the interview	- When the “A” Form is registered in SCWINS with an application date of June 10th, the interview date field on CHIP INRD screen will automatically be populated with interview date 10 days from the date of registration. The “A” form was registered on the date of receipt. - A CHIP system generated Interview Notice (X095), Notice of Missed Interview (NOMI), is sent. - The household fails to call for interview by June 20th. A CHIP system generated (X035), Notice of Missed Interview (NOMI), is sent.

			- The household does not complete the interview by June 30th. - CHIP automatically denies the case on June 30th because the household failed to complete the interview (FC). <u>Example:</u> <i>Interview is completed on Monday, July 3. Actual date of interview is coded on CHIP INRD screen and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. All verification needed was submitted with “A” form therefore case should be processed the same day of the interview in order to prevent an invalid denial.</i> <i>The household reported the inability to get through to the interview center on June 28th and June 30th. The office was closed due to inclement weather on June 28th, 29th and 30th. Due to Agency caused delay, July benefits should not be prorated. The household is entitled to a full month allotment for July.</i>
Timely 1st – 15th Annual recertification (“A” Form) is due June 15th. The household submits form on June 10th.	Interview Interview delayed-household	Verification No additional verification needed after the interview	Process - When the “A” Form is registered in SCWINS with an application date of June 10th, the interview date field on CHIP INRD screen will automatically be populated with an interview date 10 days from the date of registration. The “A” form was registered on the date of receipt. - A CHIP system generated Interview Notice (X095) is sent. - The household fails to call for interview by June 20th. A CHIP system generated (X035), Notice of Missed Interview (NOMI), is sent. - The household does not call by June 30th. - CHIP automatically denies the case on June 30th because the household failed to complete the interview (FC). <u>Example:</u> <i>Interview is completed on July 3. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. All verification needed was submitted with “A” form; therefore, case should be processed the same day of the interview in order to prevent an invalid denial. July benefits will be prorated from July 3rd.</i>

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Timely	Interview	Verification	Process
1st – 15th Annual recertification (“A” Form) is due June 15th. The household submits form on June 10th.	Interview not completed		- When the “A” Form is registered in SCWINS with an application date of June 10th, the interview date field on CHIP INRD screen will automatically be populated with an interview date 10 days from the date of registration. The “A” form was registered on the date of receipt. - A CHIP system generated Interview Notice (X095) is sent. - The household fails to call for interview by June 20th. A CHIP system generated (X035), Notice of Missed Interview (NOMI), is sent. - The household does not call by June 30th. - CHIP automatically denies the case on June 30th because the household failed to complete the interview (FC). NOTE: If the household does not complete the interview by July 31st, the household must reapply in order for an eligibility determination to be made.
Timely	Interview	Verification	Process
1st – 15th Annual recertification (“A” Form) is due June 15th. The household submits form on June 10th.	Interview completed Timely	Additional verification needed as a result of the interview	- When the “A” Form is registered in SCWINS with an application date of June 10th, the interview date field on CHIP INRD screen will automatically be populated with an interview date 10 days from the date of registration. The “A” form was registered on the date of receipt. - A CHIP system generated Interview Notice (X095) is sent. - Acknowledge interview completion on CHIP INRD screen with the actual date the household completes the interview. - Send written request for verification/pending notice to the household and enter date that verification was requested on CHIP INRD screen “Info Requested Date” field. - The household has until the last day of the month or 10 days from the date information was requested (if there are less than 10 days from the date information was requested and the last day of the month) to provide verification and receive a full allotment. - If the household does not submit verification, the recertification will auto-deny for “failure to provide verification” (FP) and the household will have until the

			end of the following month to provide verification. Benefits will be prorated from the date the verification is received. <u>Example #1:</u> <i>Interview completed on June 14. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. ES worker sends the household a pending notice on 06/14. The household submits verification on June 28th. Case must be processed by June 30th to be timely. The household receives July benefits during regular issuance cycle.</i> <u>Example #2:</u> <i>Interview completed on June 14. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. ES worker sends the household a pending notice on 06/14. The household does not submit verification by the end of June. Recertification auto-denies for “failure to provide information”. Household submits verification on July 8th. Benefits are prorated from July 8th.</i> <u>Example #3:</u> <i>Interview completed on June 14. Actual date of interview is coded on CHIP INRD screen and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. ES worker forgets to send pending notice to the household and does not send it until June 24th. An “Info Request Date” is entered on CHIP INRD screen to prevent an invalid auto denial. The household must be given at least 10 days to submit verification. Therefore, the household has until July 4th to submit verification. Since July 4th is a holiday, the verification will be considered timely received if submitted by July 5th. The approval action however is untimely since the delay is agency caused. The household receives a full allotment of July benefits outside of the regular issuance cycle.</i>
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Untimely	Interview	Verification	Process
16th – 30th (31st) Annual recertification form is due June 15th. The household submits form on June 20th.	Completed	No additional verification needed after the interview	- When the “A” Form is registered in SCWINS with an application date of June 20th, the interview date field on CHIP INRD screen will automatically be populated with an interview date 10 days from the date of registration. The “A” form was registered on the date of receipt. - A CHIP system generated Interview Notice (X095) is sent. - Acknowledge interview completion on CHIP INRD screen with the actual date the household completes the interview. Process case within 30 days from the date the “A” form was received. <u><i>Example:</i></u> <i>The household called June 25th to complete the interview. Actual date of interview is coded on CHIP INRD screen and a Y is also entered to acknowledge interview. All verification needed was submitted with the “A” form; therefore, case is processed by July 20th. The household receives a full allotment for July.</i>
Untimely	Interview	Verification	Process
16th – 30th (31st) Annual recertification form is due June 15th. The household submits form on June 20th.	Completed	Additional verification needed as a result of the interview	- When the “A” Form is registered in SCWINS with an application date of June 20th, the interview date field on CHIP INRD screen will automatically be populated with an interview date of June 30th (10 days from the registration date). - A CHIP system generated Interview Notice (X095) is sent. - Acknowledge interview completion on CHIP INRD screen with the actual date the household completes the interview. - Send written request for verification/pending notice to the household and enter date that verification was requested on CHIP INRD screen in “Info Requested Date” field. - The household is given 10 days to provide requested information. However, the household has 30 days from the date the “A” Form was received to provide requested verification and still be entitled to a full month allotment.

			• If the household does not provide the verification by the 30th day from the date the form was submitted, the recertification will auto-deny for failure to provide information (FP). • If the household provides the verification after the auto-denial date (30th day) and by the end of the month following the month the form was received, benefits will be prorated from the date the verification was received. <u>Example #1:</u> <i>The household called June 25th to complete the interview. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered to acknowledge interview. Additional verification is needed to determine eligibility. ES Worker sends the household a pending notice on June 25th, indicating requested information is due by July 5th. The household submits verification on June 28th. Case must be processed by July 20th to be timely. The household receives full allotment for July.</i> <u>Example #2:</u> <i>The household called June 25th to complete the interview. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered to acknowledge interview. Additional verification is needed to determine eligibility. ES Worker sends the household a pending notice on June 25th, indicating requested information is due by July 5th. However, the household has until July 20th to provide verification and the case must be processed by July 20th to be timely. The household submits verification on July 6th and receives a full allotment for July.</i> <u>Example #3:</u> <i>The household called June 25th to complete the interview. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered to acknowledge interview. Additional verification is needed to determine eligibility. ES Worker sends the household a pending notice on June 25th, indicating requested information is due by July 5th. However, the household has until July 20th to provide the verification. The household does not submit verification by July 20th. Recertification auto denies for failure to provide information. The household submits verification on July 29th. ES Worker reverts case to open status and benefits prorated from July 29th.</i>
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Untimely	Interview	Verification	Process
16th – 30th (31st) Annual recertification form is due June 15th. The household submits form on June 20th.	Interview delayed (Household)	No additional verification needed after the interview	- When the “A” Form is registered in SCWINS with an application date of June 20th, the interview date field on CHIP INRD screen will automatically be populated with an interview date of June 30th (10 days from the registration date). - A CHIP system generated Interview Notice (X095) is sent. - The household fails to call for interview by June 30th. A CHIP system generated (X035) Notice of Missed Interview (NOMI) is sent. <u>Example:</u> <i>The household completes the Interview on July 3rd. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. All required verification needed was submitted with “A” form. In order to prevent a denial, the recertification form should be processed by July 20th and the household is entitled to a full month’s allotment for the initial month (July) of the new certification period.</i>
16th – 30th (31st) Annual recertification form is due June 15th. The household submits form on June 20th.	Interview delayed	Additional verification needed after the interview	- When the “A” Form is registered in SCWINS with an application date of June 20th, the interview date field on CHIP INRD screen will automatically be populated with an interview date of June 30th (10 days from the registration date). - A CHIP system generated Interview Notice (X095) is sent. - The household fails to call for interview by June 30th. A CHIP system generated (X035) Notice of Missed Interview (NOMI) is sent. - The household completes interview, additional verification is needed. - Send written request for verification/pending notice to the household and enter date that verification was requested on CHIP INRD screen in “Info Requested Date” field. - The household is given 10 days to provide requested information. However, the household has 30 days from the date the “A” Form was received to provide requested verification and still be entitled to a full month allotment.

			• If the 30th day falls on a weekend or holiday, the household will have until the next business day to provide the information. • If the 30th day falls on a weekend or holiday, the worker has until the last business day prior to the 30th day to process the case and still be timely. <u>Example #1:</u> <i>The household completes the Interview on July 3rd. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. Additional information is due on July 13th. All required verification is received on July 15th. In order to prevent a denial, the recertification form should be processed by July 20th and the household is entitled to a full month’s allotment for the initial month (July) of the new certification period.</i> <u>Example #2:</u> <i>The household completes the interview on July 3rd and additional verification was requested on the same day. Additional information is due on July 13th. In order to prevent a denial, the recertification form should be processed by July 20th. The household does not submit verification by July 20th. The recertification auto denies for failure to provide information. The household submits all required verification on July 29th. The case is reverted to open status and allotment is prorated from July 29th.</i> <u>Example #3:</u> <i>The household completes the Interview on July 13th. Actual date of interview is coded on CHIP INRD screen. and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. The household must be given at least 10 days to submit verification. Make sure the date the verification was requested is entered in the CHIP INRD screen “Info Requested Date” field. Verification is due by July 23rd. Verification is received on July 19th. In order to prevent a denial, the recertification form should be processed by July 23rd and the household is entitled to a full month’s allotment for the initial month (July) of the new certification period. However, the case will be considered as untimely processed if not completed by July 20th.</i> <u>Example #4:</u> <i>The household completes the Interview on July 13th. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion</i>
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			of the interview. The household must be given at least 10 days to submit verification. Make sure the date the verification was requested is entered in the CHIP INRD screen “Info Requested Date” field. Verification is due by July 23rd. Verification was not received by July 23rd, so the recertification auto denies for failure to provide information. Verification is received July 25th. The case is reverted to open status and allotment is prorated from July 25th. <u>Example #5:</u> The recertification auto denies because the household fails to complete interview by July 20th. The household completes the Interview on July 21st. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. The household must be given at least 10 days to submit verification. Verification is due by July 31st. Verification is received July 29th. The allotment should be prorated from the date of the interview. <u>Example #6:</u> The recertification auto denies because the household fails to complete interview by July 20th. The household completes the Interview on July 23rd. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. The household must be given at least 10 days to submit verification. Verification is due by August 3rd. Verification is received August 2nd. The allotment should be prorated from the date of interview. <u>Example #7:</u> The recertification auto denies because the household fails to complete interview by July 20th. The household completes the Interview on July 23rd. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. The household must be given at least 10 days to submit verification. Verification is due by August 3rd. Verification is received August 8th. The household must re-apply with a new application.
Late	Interview	Verification	Process
	Completed		

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1st – 30th (31st) of the following month Annual recertification form is due June 15th. The household submits form July 5th. Case is re-opened and registered with a date of July 5th.		No additional verification needed after the interview	- When the “A” Form is registered in SCWINS with an application date of July 5th, the interview date field on CHIP INRD screen will automatically be populated with an interview date of July 15th (10 days from the registration date). - The household loses its right to uninterrupted benefits. - Form will be screened for expedited service. - A CHIP system generated Interview Notice (X096) is sent. - The household calls and completes the interview before July 15th. If entitled to expedited service, the household should call before July 11th. - No additional verification is needed. <u>Example:</u> <i>The household completes the interview on July 7th. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. All verification needed was submitted with “A” form.</i> <i>If the household is not entitled to expedited service, the form should be processed by August 4th with allotment being prorated from the date the recertification form was received.</i> <i>If the household is entitled to expedited service, the case should be completed within expedited processing standards (July 11th).</i>
Late 1st – 30th (31st) of the following month Annual recertification form is due June 15th. The household submits form July 5th. Case is re-opened	Interview Completed	Verification Additional verification needed after the interview	Process - When the “A” Form is registered in SCWINS with an application date of July 5th, the interview date field on CHIP INRD screen will automatically be populated with an interview date of July 15th (10 days from the registration date). - The household loses its right to uninterrupted benefits. - Form will be screened for expedited service. - A CHIP system generated Interview Notice (X096) is sent. - If the household fails to call for interview by July 15th, or by the 11th if entitled to expedited service, a CHIP system generated (X035), Notice of Missed Interview (NOMI), is sent. - If the household is determined to be potentially eligible for expedited service during the screening process, the household loses entitlement to expedited service

and registered with a date of July 5th.			if the interview is not completed within the processing standard for expedited service. • The household completes interview after July 15th, additional verification is needed. • Send written request for verification/pending notice to the household and enter date that verification was requested on CHIP INRD screen in “Info Requested Date” field. • The household is given 10 days to provide requested information. However, the household has 30 days from the date the “A” Form was filed to provide requested verification and still be entitled to benefits from the date the “A” Form was received. • If the 30th day falls on a weekend or holiday, the household will have until the next business day to provide the information. • If the 30th day falls on a weekend or holiday, the worker has until the last business day prior to the 30th day to process the case and still be timely. • If the household is approved for expedited service, set a postponed verification alert in CHIP to be generated 30 days from the date of recertification. • If postponed verification is not received, close the case. <u>Example #1:</u> <i>The household completes the interview on July 10th. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. The household must be given at least 10 days to submit verification. Verification is due by July 20th. Verification is received July 19th. The form should be processed by August 4th with the allotment being prorated from (July 5th) the date the recertification form was received.</i> <u>Example #2:</u> <i>The household completes the interview on July 17th. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. The household must be given at least 10 days to submit verification. Verification is due by July 27th. Verification is received July 29th. The form should be processed by August 4th with the allotment being prorated from (July 5th) the date the recertification form was received.</i>
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			<u>Example #3:</u> <i>The household completes the interview on July 23rd and additional verification was requested. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. The household must be given at least 10 days to submit verification. Verification is due by August 3rd. Verification is received July 29th. The form should be processed with the allotment being prorated from (July 5th) the date the recertification form was received.</i> <u>Example #4:</u> <i>The household completes the interview on July 23rd and additional verification was requested. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. The household must be given at least 10 days to submit verification. Verification is due by August 3rd. Verification is received August 1st. The form should be processed with the allotment being prorated from (July 5th) the date the recertification form was received.</i> <u>Example #5:</u> <i>The household completes the interview on July 23rd and additional verification was requested. Actual date of interview is coded on CHIP INRD screen, and a Y is also entered in the “Completed” field to acknowledge the completion of the interview. The household must be given at least 10 days to submit verification. Verification is due by August 3rd. Verification is received August 5th. The household must re-apply with a new application because verification was received more than 30 days from the date the “A” form was filed. A CHIP Notice C600 is sent.</i>
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4: SNAP SIX (6) MONTH & TRI-ANNUAL (4-MONTH) RECERTIFICATION

Timely	Complete	Process
1st – 15th The household submits Six Month or Tri-annual recertification form on December 10th.	No additional verification needed.	- When an “S” or “T” Form is received the form is registered in SCWINS with the receipt date. - The recertification form should be processed by the end of the month. <u>Example:</u> <i>The household’s recertification (six-month or tri-annual) is filed on December 10th with all required verification. Worker processes the recertification form on December 18th. The household is eligible for uninterrupted benefits and receives a full allotment for January.</i>
Timely	Incomplete	Process
1st – 15th The household submits six month or Tri-annual recertification form on December 10th. Form is incomplete.	Additional verification needed	- When an “S” or “T” Form is received the form is registered in SCWINS with the receipt date. - Code as incomplete on CHIP MRRE screen. CHIP will automatically put case in frozen status (IM). - Send incomplete MR Notice (C016) and allow the household 10 days to provide the requested verification. - If verification is not received within 10 days, CHIP will automatically close the case. (IM) - The household has 10 days from the date of request for verification or until the end of the month (whichever is greater) to return the verification and receive a full month’s allotment. - The household will have until the end of the following month to provide the verification and receive prorated benefit from the date the verification is

		received, if otherwise eligible. • If the 30th day falls on a weekend or holiday, the household will have until the next business day to provide the information. • If the 30th day falls on a weekend or holiday, the worker has until the last business day prior to the 30th day to process the case and still be timely. <u>Example #1:</u> <i>The household's recertification (six-month or tri-annual) is filed on December 10th. Worker sends incomplete notice/request for verification on December 17th. The household must be given at least 10 days to submit verification. Verification is due by December 27th. The household has until the last day of the month to return verification for full month's allotment. However, case will close if verification is not received by December 27th. If the household submits verification by December 31st, the household receives a full allotment for January.</i> <i>The household submits verification on December 28th. Worker reopened case and processed the recertification form on December 30th. The household is eligible for uninterrupted benefits and receives a full month's allotment for January.</i> <u>Example #2:</u> <i>The household's recertification (six-month or tri-annual) is filed on December 10th. Worker sends incomplete notice/request for verification on December 23rd. An "Info Request Date" is entered on INRD to prevent an invalid auto denial. The household must be given at least 10 days to submit verification. Verification is due by January 2nd. Since there was not 10 days from the date the verification was requested to the end of the month, the household has until January 2nd to return verification and receive a full allotment for January. However, case will close if verification is not received by January 2nd. The household submits verification on January 2nd. Worker reopened case and processed the recertification on January 4th. The household is eligible for uninterrupted benefits and receives a full month's allotment for January.</i> <u>Example 3:</u> <i>The household's recertification (six-month or tri-annual) is filed on December 10th. Worker sends incomplete notice/request for verification on December 23rd. An "Info Request Date" is entered on</i>
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		<i>INRD to prevent an invalid auto denial. The household must be given at least 10 days to submit verification. Verification is due by January 2nd. Since there was not 10 days from the date the verification was requested to the end of the month, the household has until January 2nd to return verification and receive a full allotment for January. However, case will close if verification is not received by January 2nd. The household has until the end of the following month to return the verification and receive prorated benefits.</i> <i>The household submits verification on January 12th. Worker reopened case and processed the recertification on January 14th. Benefits will be prorated from January 12th.</i> Note: <i>Benefits would be prorated from the date verification is received. CHIP will do this automatically if the ES Worker enters the date verification was received in the verification received field on CHIP MRVE screen.</i> <u>Example #4:</u> <i>The household's recertification (six-month or tri-annual) is filed on December 10th. Worker sends incomplete notice/request for verification on December 11th. The household must be given at least 10 days to submit verification. Verification is due by December 21st. The household has until the last day of the month (December) to return verification and received a full allotment for January. However, case will close if verification is not received by December 31st. The household submits verification on February 1st. The household must reapply with a new application because verification was received too late. A CHIP Notice C600 is sent.</i> <u>Example #5:</u> <i>The household's recertification (six-month or tri-annual) is filed on December 10th. Worker sends incomplete notice/request for verification on December 23rd. An "Info Request Date" is entered on INRD to prevent an invalid auto denial. The household must be given at least 10 days to submit verification. Verification is due by January 2nd. Since there was not 10 days from the date the verification was requested to the end of the month, the household has until January 2nd to return verification and receive a full allotment for January. However, case will close if verification is not received by January 2nd. The Household submits verification on February 1st. The household must reapply with a new application because verification was received too late. A CHIP Notice C600 is sent.</i>
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Untimely 16th – 30th (31st) The household submits six month or tri-annual recertification on December 23rd.	Complete No additional verification needed	Process - When an “S” or “T” Form is received the form is registered in SCWINS with the receipt date. - Process recertification within 30 days from the receipt of the recertification. - If the 30th day falls on a weekend or holiday, the worker has until the last business day prior to the 30th day to process the case and still be timely. <u>Example:</u> <i>The household’s recertification (six-month or tri-annual) is filed on December 23rd. Worker has until January 22nd to process case. If January 22nd falls on a weekend or holiday, the worker must process the recertification on the last working day prior to the 22nd in order to be timely. However, the approval action is untimely since the delay is agency caused. The household is eligible to a full month’s allotment for January.</i>
Untimely 16th – 30th (31st) The household submits six month or Tri-annual recertification on December 23rd.	Incomplete Additional verification needed	Process - When an “S” or “T” Form is received the form is registered in SCWINS with the receipt date. - Code as incomplete on CHIP MRRE screen. CHIP will automatically put case in frozen status (IM). - Send incomplete MR Notice (C016) and allow the household 10 days to provide the requested verification. - The household has 30 days from the date the recertification form was received or 10 days from the date the request for verification was sent (whichever is later) to return the verification and receive a full month’s allotment. The household will have until the end of the following month to provide verification and receive

		prorated benefits from the date the verification is received. • If the 30th day falls on a weekend or holiday, the household will have until the next business day to provide the information. • If the 30th day falls on a weekend or holiday, the worker has until the last business day prior to the 30th day to process the case and still be timely. <u>Example # 1:</u> <i>The household's recertification (six-month or tri-annual) is filed on December 23rd. Worker sends incomplete notice/request for verification on December 23rd. The household has 30 days from the date the recertification was received to provide the requested verification. The household has until January 22nd to provide verification and receive a full month's allotment. The verification was received December 31st, the household is entitled to a full month's benefits for January.</i> <u>Example # 2:</u> <i>The household's recertification (six-month or tri-annual) is filed on December 23rd. Worker sends incomplete notice/request for verification on December 23rd. The household has 30 days from the date the recertification was received to provide the requested verification. The household has until January 22nd to provide verification and receive a full month's allotment. The verification was received January 21st, the household is entitled to a full month's benefits for January.</i> <u>Example # 3:</u> <i>The household's recertification (six-month or tri-annual) is filed on December 23rd. Worker sends incomplete notice/request for verification on December 23rd. The household has 30 days from the date the recertification was received to provide the requested verification. The household has until January 22nd to provide verification and receive a full month's allotment. The verification was received Monday, January 24th.</i> <i>Since January 22nd fell on a Saturday, the information is still considered as being received timely. The household is entitled to a full month's benefits for January.</i>
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		<u>Example #4:</u> <i>The household's recertification (six-month or tri-annual) is filed on December 23rd. Worker sends incomplete notice/request for verification on January 18th. The household must be given at least 10 days to submit verification. If the household submits verification by the January 28th, the household is entitled to a full month's allotment for January. The verification was received January 27th.</i> <u>Example #5</u> <i>The household's recertification (six-month or tri-annual) is filed on December 23rd. Worker sends incomplete notice/request for verification on January 18th. The household must be given at least 10 days to submit verification. If the household submits verification by the 28th, the household is entitled to a full month's allotment for January. However, case will close if verification is not received by January 28th. The verification was received January 31st. The verification is untimely, and the household's case must be reopened and benefits prorated from January 31st.</i> <u>Example #6:</u> <i>The household's recertification (six-month or tri-annual) is filed on December 23rd. Worker sends incomplete notice/request for verification on January 18th. The household must be given at least 10 days to submit verification. If the household submits verification by the 28th, the household is entitled to a full month's allotment for January. However, case will close if verification is not received by January 28th. The verification was received February 1st. The verification is late; therefore, the household must reapply. A CHIP Notice C600 is sent.</i>
Late 1st – 30th (31st) of the month after month the recertification is due Six Month or Tri-annual recertification was due on December 15th. The	Complete No additional verification needed	Process • When an "S" or "T" Form is received the form is registered in SCWINS with the receipt date. • Screen for entitlement to expedited processing. • If expedited, process case by the 6th calendar day following the date form was received. • If not expedited, process within 30 days. • Benefits are prorated from the date the form is received.

household submits form on January 20 th .		<u>Example #1:</u> <i>The household's recertification (six-month or tri-annual) is filed on January 20th and screening indicates case is not expedited. The worker must process the case no later than February 19th in order to be timely processed. Benefits are prorated from January 20th.</i> <u>Example #2</u> <i>The household's recertification (six-month or tri-annual) is filed on January 20th and screening indicates case is expedited. Case must be processed no later than January 26th for January and February (since form is received after the 15th of the month). Benefits are prorated from January 20th.</i> <u>Example #3</u> <i>If the household's recertification (six-month or tri-annual) is filed on January 10th and screening indicates case is expedited, case must be processed no later than January 16th for January and February (since form was received on or before the 15th of the month). Benefits are prorated from January 10th.</i>
Late 1st – 30th (31st) of the month after month the recertification is due Six Month or Tri-annual recertification was due on December 15th. The household submits form on January 20th.	Incomplete Additional verification needed	Process • When an “S” or “T” Form is received, the form is registered in SCWINS with the receipt date. • Screen for entitlement to expedited processing. • If expedited, process case by the 6th calendar day following the date form was received. • If not expedited, register as incomplete. Send incomplete notice (C016). • The household is given 10 days to provide requested information. However, the household has 30 days from the date the “S” or “T” form was filed to provide the requested verification and still be entitled to benefits from the date the form was received.

		<u>Example #1:</u> <i>The household's recertification (six-month or tri-annual) is filed on January 20th and screening indicates the household is <u>not</u> entitled to expedited service. Worker sends incomplete notice/request for verification on January 20th. The household must be given at least 10 days to submit verification. However, case will close if verification is not received by February 19th. The household submits verification on February 17th. The household is entitled to benefits prorated from January 20th.</i> <u>Example #2:</u> <i>The household's recertification (six-month or tri-annual) is filed on January 20th and screening indicates the household is not entitled to expedited service. Worker sends incomplete notice/request for verification on January 20th. The household must be given at least 10 days to submit verification. However, case will close if verification is not received by February 19th. The household submits verification on February 25th. Verification is late; therefore, the household must re-apply.</i> <u>Example #3:</u> <i>The household's recertification (six-month or tri-annual) is filed on January 20th and screening indicates the household is not entitled to expedited service. Worker does not send incomplete notice to the household until February 15th. The household must be given 10 days to return verification. Therefore, the household has until February 25th to submit verification. The household submits verification on February 23rd. The household is entitled to benefits prorated from January 20th.</i> <u>Example #4:</u> <i>The household's recertification (six-month or tri-annual) is filed on January 20th and screening indicates the household is not entitled to expedited service. Worker does not send incomplete notice to the household until February 15th. The household must be given 10 days to return verification. Therefore, the household has until February 25th to submit verification. The household submits verification on February 28th. Verification is late; therefore, the household must reapply. A CHIP Notice C600 is sent.</i> <u>Example #5:</u> <i>Recertification form received on January 20th and screening indicates the household <u>is</u> entitled to expedited service. Case must be processed no later than January 26th for January and February</i>
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		<i>(since form is received after the 15th of the month). Benefits are prorated from January 20th. Case is processed with postponed verification.</i> <u>Example #6:</u> <i>If the recertification form was received on January 10th and screening indicates the household is entitled to expedited service. Case must be processed no later than January 16th for January (since the form was received on or before the 15th of the month). Benefits are prorated from January 10th. Case is processed with postponed verification.</i>
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5: SNAP Cheat Sheets

1: Processing Standards for Expedited Service

2: Commonly used Immigrant Classes of Admission (COA) Codes

3: Commonly used Non-Immigrant Classes of Admission (COA) Codes

4: Non-Citizen Employment Authorization Document (EAD) Codes

PROCESSING STANDARDS FOR EXPEDITED SERVICE

It is important that interviewers understand that even though the client is told he/she must call the Intake Center within 4 days, the client is entitled to expedited service if he/she calls within 6 days from the date of application.

The first day of the six-day time frame begins the calendar day after the application/annual recertification form was received by the Agency. If the application/annual recertification form is not registered timely, the interviewer should document the date that the application/annual recertification form was registered as the reason for allowing expedited service outside of the 6 days.

In addition, if the interviewer has information that indicates that the client may not have received the notice in time to call the Intake Center or that the client may not have been able to get through to the interview center by the 6th day, good cause should be granted to the client and the case should be expedited if all other expedited criteria have been met. Examples include but are not limited to:

- Client files SNAP application on the Wednesday before Thanksgiving. Because the agency was closed Thursday- Sunday, the interview notice was not mailed to the client until the following Monday (day 5). Therefore, it would be very unlikely that the client would have received his/her notice to call by the 6th day. He should be given good cause for calling late and expedited, if he calls within a reasonable amount of time after the 6th day.
- Client files application December 10th and calls Intake Center on December 17th (the 7th day) and indicates that he has been trying to call but could not get through. As an interviewer, you are aware that SCOSA was down for one full day during the time frame that the client claims to have been trying to call and ESIC daily activity reports show that there was a wait time of an hour to get thru to the Intake Center on the 16th (the 6th day). This client should also be given good cause for calling after the 6th day and allowed expedited processing.

Interviewers should use prudent judgment when determining whether or not a client should be given good cause for calling after the 6th day for the interview. If good cause is granted, the specific circumstances warranting this should be documented in the case file before the case is processed.

We are aware that this may result in an untimely action, but in order to properly serve the client, the agency is willing to absorb this untimely when we have evidence that the failure to call by the due date is of no fault to the client.

Commonly used Immigrant Classes of Admission (COA) Codes

COA Code	Description
AS	Asylee Applicant with work authorization
AS1	Approved Asylee Principal
AS2	Approved Spouse of Asylee
AS3	Approved Child of Asylee
AS6	Asylee principal
AS7	Spouse of a non-citizen classified as AS6
AS8	Child of a non-citizen classified as AS6
CU6	Cuban refugee
CU7	Non-Cuban spouse or child of a non-citizen classified as a CU6
DV1	Diversity immigrant (Principal, new arrival)
DV2	Spouse of a non-citizen classified as DV1 or DV6
DV3	Child of a non-citizen classified as DV1 or DV6
DV6	Diversity immigrant (Principal, adjustment)
DV7	Spouse of a non-citizen classified as DV1 or DV6
DV8	Child of a non-citizen classified as DV1 or DV6
F31	Married son or daughter of a U.S. citizen
F32	Spouse of a non-citizen classified as F31 or F36
F33	Child of a non-citizen classified as F31 or F36
F36	Married son or daughter of a U.S. citizen
F37	Spouse of a non-citizen classified as F31 or F36
F38	Child of a non-citizen classified as F31 or F36
F41	Brother or sister of a U.S. citizen
F42	Spouse of a non-citizen classified as F41 or F46
F43	Child of a non-citizen classified as F41 or F46
F46	Brother or sister of a U.S. citizen
F47	Spouse of a non-citizen classified as F41 or F46
F48	Child of a non-citizen classified as F41 or F46
IR0	Parent of a U.S. citizen
IR1	Spouse of a U.S. citizen
IR2	Child of a U.S. citizen

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IR3	Orphan adopted abroad by a U.S. citizen
IR4	Orphan to be adopted by a U.S. citizen
IR5	Parent of a U.S. citizen
IR6	Spouse of a U.S. citizen
IR7	Child of a U.S. citizen
IR8	Orphan adopted abroad by a U.S. citizen
IR9	Orphan to be adopted by a U.S. citizen
RE	Refugee
REF	Refugee
RE1	Refugee on or after 4/1/80
RE2	Spouse of Refugee RE1
RE3	Child of Refugee Class RE1
RE4	Derive Refuge status from RE1
RE5	Haitian Refugee
RE6	Refugee who entered the United States on or after Apr. 1, 1980 (RE 1 adjustment)
RE7	Spouse of a non-citizen classified as RE6 - spouse entered the United States on or after Apr. 1, 1980 (RE2 adjustment)
RE8	Child of a non-citizen classified as RE6 - child entered the United States on or after Apr. 1, 1980 (RE3 adjustment)
RE9	Other members of the case regarding a non-citizen classified as RE6 (entered the United States on or after Apr. 1, 1980)
ST0	Parent of ST6 (NOTE: The code has been established but the regulations are still being written.)
ST6	Victims of severe form of trafficking (T1 non-immigrant) (NOTE: The code has been established but the regulations are still being written.)
ST7	Spouse of ST6 (NOTE: The code has been established but the regulations are still being written.)
ST8	Child of ST6 (NOTE: The code has been established but the regulations are still being written.)
ST9	Sibling of an ST6 (NOTE: The code has been established but the regulations are still being written.)
SU0	Parent of SU6 (NOTE: The code has been established but the regulations are still being written.)
SU6	Victim of criminal activity (U1 non-immigrants) (NOTE: The code has been established but the regulations are still being written.)
SU7	Spouse of SU6 (NOTE: The code has been established but the regulations are still being written.)
SU8	Child of SU6 (NOTE: The code has been established but the regulations are still being written.)
SU9	Sibling of SU6

Immigrant Classes of Admission: An immigrant is a non-citizen entering the United States to reside permanently. For example, a Lawful Permanent Resident (LPR).

Commonly used Non-Immigrant Classes of Admission (COA) Codes

COA Code	Description
B-1	Temporary visitor for business (including Peace Corps)
B-2	Temporary visitor for pleasure
CP	Parole (Public Interest)
F-1	Student, academic or language program
F-2	Spouse or child of F-1
F-3	Canadian or Mexican national commuter student
J-1	Exchange visitor
J-2	Spouse or child of J-1
T-1	Individuals physically present in the United States who are or have been victims of a severe form of trafficking
T-2	Spouse of T-1
T-3	Child of T-1
T-4	Parent of T-1
T-5	Sibling of T-1
TW3	Temporary resident
U-1	Individuals who have suffered substantial physical or mental abuse as victim of criminal activity
U-2	Spouse of U-1
U-3	Child of U-1
U-4	Parent of U-1
U-5	Unmarried, under 18, sibling of U-1

Non-Immigrant Classes of Admission: A non-immigrant is a non-citizen temporarily admitted to the United States for a specific purpose other than permanent residence. For example, a temporary visitor for pleasure (B-2) or an academic student (F-1).

Non-Citizen Employment Authorization Document (EAD) Codes

EAD Code	Description
A02	A lawful temporary resident pursuant to sections 245A or 210 of the INA
A03	Refugee
A04	Paroled as refugee
A05	Asylee (granted asylum)
A06	• K-1 nonimmigrant fiancé(e) of U.S. Citizen (USC) • K-2 child of K-1
A07	• N-8 Parent of international organization employee granted permanent residence • N-9 Dependent Child of international organization employee granted permanent residence
A08	Citizen of Micronesia, the Marshall Islands or Palau admitted as a nonimmigrant
A09	• K-3 nonimmigrant spouse of USC • K-4 child of K-3
A10	Granted Withholding of Deportation or Removal
A11	Deferred Enforced Departure (DED)
A12	Temporary Protected Status (TPS) granted under 8 CFR 244.12
A13	Immigration Act (IMMACT) Family Unity beneficiary (Section 301 of the Immigration Act of 1990)
A14	LIFE Act Family Unity beneficiary (Section 1504 of the Legal Immigrant Family Equity (LIFE) Act Amendments)
A15	• V-1 Spouse of Lawful Permanent Resident • V-2 Minor unmarried child of Lawful Permanent Resident • V-3 Minor unmarried child of V-1 or V-2
A16	T-1 nonimmigrant (victims of severe form of trafficking)
A17	• Spouse of E-1/E-2 Treaty Trader/Investor • Spouse of E-3 specialty occupation professional from Australia
A18	L-2 spouse of an L-1 intracompany transfer (L-1: Individuals in the U.S. who have been transferred from a subsidiary, affiliate, or branch office overseas to the U.S. to work in an executive, managerial or specialized knowledge capacity)
A19	U-1 nonimmigrant (victims of certain criminal activity)
A20	• U-2 spouse of U-1 non-citizens • U-3 children of U-1 non-citizens • U-4 parents of minor U-1 non-citizens (16 or under) • U-5 unmarried sibling under age 18 of U-1 non-citizen under age 21
C01	Dependent of A-1 or A-2 foreign government official

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C02	Dependent of TECRO (Taipei Economic and Cultural Representative Office) E-1 nonimmigrant
C03A	Pre-completion Optional Practical Training (OPT) F-1 students
C03B	Post-completion OPT F-1 students
C03C	17-month extension for Science, Technology, Engineering, or Mathematics (STEM) OPT students
C03(ii)	F-1 student offered off-campus employment under the Sponsorship of Qualifying International Organization
C03(iii)	F-1 student seeking off-campus employment due to severe economic hardship
C04	Spouse or unmarried dependent child of G-1, G-3 or G-4 nonimmigrant (Representative of International Organization and their dependents)
C05	J-2 spouse or minor child of a J-1 exchange visitor
C06	M-1 student seeking practical training after completing studies
C07	Dependent of North Atlantic Treaty Organization: NATO-1 through NATO-7 nonimmigrant
C08	Asylum applicant (w/ pending asylum application) who filed for asylum on or after January 4, 1995
C09	Adjustment of status applicant
C10	- Nicaraguan Adjustment and Central American Relief Act (NACARA) section 203 applicants - Applicant for suspension of deportation - Applicant for cancellation of removal
C11	A non-citizen paroled into the United States in the public interest or temporarily for emergency reasons
C12	Spouse of an E-2 Commonwealth of the Northern Mariana Islands (CNMI) investor; eligible for employment in the CNMI only
C14	Non-citizen granted deferred action
C16	Registry applicant based on continuous residence since January 1, 1972
C17(i)	B-1 nonimmigrant who is the personal or domestic servant of a nonimmigrant employer
C17(ii)	B-1 nonimmigrant domestic servant of a U.S. citizen
C17(iii)	B-1 nonimmigrant employed by foreign airline
C18	Non-citizen with a final order of deportation/order of supervision;
C19	Temporary Protected Status applicant under 8 CFR 244.5
C20	Non-citizen who has filed a completed legalization application for special agricultural workers
C22	Non-citizen who has filed a completed legalization application under INA 245A
C24	LIFE legalization applicant
C25	- T-2 spouse of T-1, victim of trafficking - T-3 child of T-1 - T-4 parent of T-1 (if T-1 is under age 21)
C31	- Principal beneficiary of an approved Violence Against Women Act (VAWA) self-petition - Qualified child of a beneficiary of an approved VAWA self-petition
C33	A non-citizen who has been granted Deferred Action for Childhood Arrivals (DACA)

An Employment Authorization Document (EAD) is a way to prove authorization to work in the United States for a specific time period.

The EAD Code Description provides information regarding what categories of non-citizens or Classes of Admission (COA) fall under the particular EAD code.

SNAP STUDENT ELIGIBILITY TOOL - 2025

STEP 1: MEAL PLAN

If an individual has a meal plan that covers over 50% of his/her meals daily, he/she is an ineligible student.

Therefore, STEP 2 (SNAP definition of a student) and STEP 3 (Student Exemptions) are irrelevant and do not need to be explored.

STEP 2: SNAP DEFINITION OF A STUDENT

Q1 - How is it determined that an individual meets the SNAP definition of a student?

If the individual is at least 18 years of age and under 50 years old and is enrolled at least half-time in an institution of higher education, he/she meets the SNAP definition of a student.

➤ **NOTE:** There is no need to verify student status if the individual meets an obvious student exemption in STEP 3.

Q2 - How is it determined that an individual is enrolled in an institution of higher education?

The individual is enrolled in a business, technical, trade or vocational school **and** is in a curriculum that normally requires a high school diploma or a General Equivalency Diploma (GED) for enrollment.

OR

The individual is enrolled in a regular curriculum at a College or University that offers degrees, regardless of whether a high school diploma or equivalent is required.

➤ **NOTE:** This includes web-based and on-line courses.

If the individual does not meet the criteria of being enrolled in an institution of higher education, then STEP 3 (Student Exemptions) is irrelevant and does not need to be explored.

Q3 - How is it verified that an individual is enrolled at least half-time?

Each school has its own definition of half-time. Therefore, the school must verify whether or not the individual is enrolled at least half-time.

If the individual does not meet the criteria of being enrolled at least half-time as defined by the institution, then STEP 3 (Student Exemptions) is irrelevant and does not need to be explored.

CAUTION: If an individual meets the SNAP definition of a student and does not meet at least one of the student exemptions in STEP 3, then he/she is an ineligible student and should be excluded from the SNAP budget.

STEP 3: STUDENT EXEMPTIONS

If the individual meets the SNAP definition of student (See STEP2), then he/she must meet at least **one** of the following student exemptions in order to be an eligible student and included in the SNAP budget. These must be **explored** (by the Economic Services Worker if applicable) and **verified**.

AGE: Under age 18 or age 50 or older.

DISABILITY: Physically or mentally unfit for work

Temporary Assistance to Needy Families (TANF) BENEFITS: Receives cash benefits from the TANF program.

EMPLOYMENT:

1. Employed – and paid for working an average of 20 hours a week OR
2. Self-Employed – and paid for working at least an average of 20 hours a week. After allowable expenses, self-employment income is equal to at least the Federal minimum wage multiplied by 20 hours a week (\$7.25 X 20 hours = \$145.00 per week).

WORK STUDY: Participating in a State or Federal funded work study program and must:

1. Be approved for work study at the time of application;
2. Be approved for work study for the school term; and
3. Anticipate actually working during that time.

TRAINING: Enrolled as a result of participation in the Job Opportunities and Basic Skills program under Title IV of the Social Security Act or its successor program; placed in an institution of higher education through the Workforce Innovation and Opportunity Act (WIOA) or an E & T component through SNAP or the equivalency from another entity; Trade Adjustment Assistance (TAA), Trade Readjustment Allowances (TRA) or an on-the-job training program which includes internships (paid or unpaid) where the student is being trained by an employer.

SNAP HOUSEHOLD (HH) MEMBER UNDER AGE 6: Is responsible for the care of a dependent SNAP HH member under age 6.

☐ **NOTES:**

1. Explore the HH situation to determine if the student is the individual who primary responsibility for the care of the dependent SNAP HH member.
2. If more than one individual in a SNAP HH is a student, **only one** individual can claim eligible student status based on this exemption for a particular dependent SNAP HH member.

DEPENDENT SNAP HOUSEHOLD (HH) MEMBER: Is responsible for the care of a dependent SNAP HH member between the ages of 6-12 because of the unavailability of "adequate" child care.

➤ **NOTE:** "Adequate" child care would enable the student to go to school and work an average of 20 hours per week in a job or participate in work study.

SINGLE PARENT: Is a **full-time** student who is the only parent in the SNAP HH and is responsible for the care of a dependent child(ren) under age 12.

☐ **NOTES:**

1. The parent (natural, adoptive or step-parent) and the child must be in the same SNAP HH.
2. If there is no parent in the SNAP HH, then another full-time student in the HH with parental control may qualify.

SNAP GLOSSARY

<i>TERM</i>	<i>DEFINITION</i>
Able-bodied Adult Without Dependents (ABAWD)	Supplemental Nutrition Assistance Program (SNAP) household member(s) who is an able-bodied adult at least 18 years of age but under 65, and without dependents under 14 years of age in the household.
Access Device	Any card, plate, code, account number, or other means of access that can be used alone, or in conjunction with another access device, to obtain payments, allotments, benefits, money, goods, or other things of value, or that can be used to initiate a transfer of funds under the Food and Nutrition Act of 2008, as amended.
Active Case	A category in which a case is selected for SNAP Quality Control (QC) review. The household is or was participating in SNAP by being certified prior to, or during, the sample month and issued SNAP benefits for the sample month. The sample month means the month of the sample frame from which a case is selected. The sample frame means a list of all units from which a sample is actually selected (e.g. for all cases selected from a frame consisting of households participating in January, the sample month is January).
Active Case Error Rate	An estimate of the proportion of SNAP cases with an error in the determination of eligibility or basis of issuance. This estimate will be expressed as a percentage of the completed active quality control reviews excluding all results from SNAP cases processed by Social Security Administration (SSA) personnel or participating in a demonstration project identified by Food and Nutrition Service (FNS) as having certification rules that are significantly different from standard requirements.
Adequate Notice	A written notice that includes a statement of the action the Agency has taken or intends to take; the reason for the intended action; the SNAP household's right to request a fair hearing; the contact information; the availability of continued SNAP benefits; and the liability of the SNAP household for any over-issuances received while awaiting a fair hearing if the hearing official's decision is adverse to the SNAP household. Participants will be allowed ten days from the mailing date of the notice to contest the Agency

	action and to have SNAP benefits restored to their previous level. If the 10-day period ends on a weekend or a holiday and a request is received the day after the weekend or holiday, the Agency will consider the request to be timely.
Adoptive Parent	An individual who becomes a parent to a child through the process of adoption. The individual legally takes on all the responsibilities and rights of being a parent to a child who is not biologically related to the individual.
Advance Notice Period	The period of time between the date of adverse action notification and the date the adverse action become effective.
Adverse Action	Any action to reduce or terminate a household's SNAP benefits within the certification period.
Agency Error Claim	Any claim for an overpayment caused by an action or failure to take action by the Agency.
Allotment	The total value of SNAP benefits a SNAP household is authorized to receive during each month or other time period.
Analysis	The process of classifying data, such as by areas of program requirements or use of error-prone profiles, to provide a basis for studying the data and determining trends including significant characteristics and their relationships.
Applicant	A household member who has, directly or through an authorized representative, filed an application form for SNAP benefits and whose application has not been disposed of by a finding of eligible or ineligible by the Agency.
Application Form	A form designed or approved by FNS, which is completed by a household member or authorized representative; or for households consisting solely of public assistance or general assistance recipients, it may also mean the application form used to apply for public assistance or general assistance, including attachments approved by FNS, which is completed by a household member or authorized representative.
Approval	Case action taken to authorize SNAP benefits when all eligibility criteria are met.
Assessment	An in-depth evaluation of employability skills coupled with counseling on how and where to search for employment. If combined with work experience, employment search or training, an assessment of this nature could constitute part of an approvable employment and training component.

Authorized Representative (AR)	An individual who is authorized to act on behalf of a SNAP household in the application process, with their knowledge and consent, and who has knowledge of the household's circumstances. The representative also may be authorized in obtaining SNAP benefits and in using SNAP benefits on behalf of the household. The authorized representative for obtaining benefits may or may not be the same individual designated as an authorized representative for the application process or for meeting reporting requirements during the certification period.
Basic Utility Allowance (BUA)	A utility deduction allowed for households billed for at least two utilities but not incurring a heating or cooling cost.
Beneficiary & Earnings Data Exchange (BENDEX)	A batch data exchange that provides Social Security benefits and earnings data with state agencies.
Benefit Month	The month in which SNAP benefits are issued.
Boarder	An individual who receives regular meals or meals and lodging when staying someplace in return for payments or services.
Budget Month	The calendar month from which the Agency uses income and other circumstances of the household to calculate the household's SNAP allotment to be provided for the corresponding issuance month.
California Indian	An individual who is (1) A member of a federally recognized Indian tribe; (2) A descendant of an Indian who was residing in California on June 1, 1852, if such descendant is a member of the Indian community served by a local program of the Indian Health Service; and is regarded as an Indian by the community in which such descendant lives; (3) An Indian who holds trust interests in public domain, national forest, or reservation allotments in California; or (4) An Indian of California who is listed on the plans for distribution of the assets of rancherias and reservations located within the State of California under the Act of August 18, 1958, and any descendant of such an Indian.
Case Record	The electronic folders in the South Carolina Office Scanning Application (SCOSA) in which all pertinent verification and documentation for SNAP cases are maintained. It is also known as "Case File."

Case Record Control (CARC)	The process of assigning a case in the Client History and Information Profile (CHIP) system to a caseload. This is known as “carcing.”
Certification Period	The period of time a SNAP household is certified to receive SNAP benefits.
Claim	An amount owed by a SNAP recipient because of SNAP benefits that are overpaid or benefits that are trafficked.
Client	An applicant for or recipient of SNAP benefits.
Client History and Information Profile (CHIP)	An eligibility information system used for SNAP allotment determination.
Client Special Services Coordinator (CSSC)	A SCDSS employee who secures interpreter services and other services to assist limited English proficient (LEP) or special needs individuals.
Collateral Contact	An oral confirmation of a SNAP household's circumstances by a person outside of the household. The collateral contact may be made either in person or over the telephone.
Confidential Information	Information that the Agency must protect against unauthorized disclosure.
Continuation of Benefits	The process of continuing a SNAP household's participation in SNAP on the level authorized immediately prior to the notice of adverse action if the household requests a fair hearing within the notice of adverse action period and the certification period has not expired, unless the household specifically declines the receipt of continued benefits.
Corrective Action Plan (CAP)	A plan that addresses deficiencies requiring action by the Agency. It is an open-ended plan and will remain in effect until all deficiencies in SNAP operations have been reduced substantially or eliminated.
Corrective Action Planning	The process by which the Agency will determine appropriate actions to reduce substantially or eliminate deficiencies in SNAP operations and provide responsive service to eligible households.
Countable Months	Any month in which an ABAWD received SNAP benefits for the full benefit month while not: (1) exempt from the three-month time limit; (2) fulfilling ABAWD work requirement; (3) Covered by a waiver of the ABAWD time limit; or (4) meeting an 8% exemption.

Date of Application	The date on which an application that includes the applicant's name, address and signature of a responsible household member or the household's authorized representative is filed with the Agency.
Deficiency	Any aspect of the Agency's program operations determined to be out of compliance with the Food and Nutrition Act of 2008, FNS Regulations, or program requirements as contained in the Agency's manual, the Agency's approved Plan of Operation or other Agency plans.
Delinquent Claim	The claim has not been paid by the due date on the initial demand letter and a satisfactory repayment agreement has not been made or a repayment agreement has been made and a scheduled payment has not been made by the due date.
Denial	Case action taken to deny SNAP benefits when all eligibility criteria are not met.
Difficulty of Care Board Rate (DCBR) payment	A payment that the foster parent will receive to supplement the eligible foster child's board rate due to the additional care and supervision projected necessary for the child at this time due to physical, mental, or emotional difficulties.
Disabled Member/Person	A member of a SNAP household who: (1) receives Supplemental Security Income (SSI) benefits under title XVI of the Social Security Act or disability or blindness payments under titles I, II, X, XIV, or XVI of the Social Security Act ; (2) receives federally or State-administered supplemental benefits provided that the eligibility to receive the benefits is based upon the disability or blindness criteria used under title XVI of the Social Security Act; (3) receives federally or State-administered supplemental benefits; (4) receives disability retirement benefits from a governmental agency because of a disability considered permanent; (5) is a veteran with a service-connected or non-service-connected disability rated by the Veteran's Administration (VA) as total or paid as total by the VA; (6) is a veteran considered by the VA to be in need of regular aid and attendance or permanently housebound; (7) is a surviving spouse of a veteran and considered by the VA to be in need of regular aid and attendance or permanently housebound or a surviving child of a veteran and considered by the VA to be permanently incapable of self-support; (8) is a

	surviving spouse or surviving child of a veteran and considered by the VA to be entitled to compensation for a service-connected death or pension benefits for a nonservice-connected death and has a disability considered permanent; (9) receives an annuity payment under: section 2(a)(1)(iv) of the Railroad Retirement Act of 1974 and is determined to be eligible to receive Medicare by the Railroad Retirement Board; or section 2(a)(1)(v) of the Railroad Retirement Act of 1974 and is determined to be disabled based upon the criteria used under title XVI of the Social Security Act; <i>or</i> (10) is a recipient of interim assistance benefits pending the receipt of SSI, a recipient of disability related medical assistance under title XIX of the Social Security Act, or a recipient of disability-based State general assistance benefits provided that the eligibility to receive any of these benefits is based upon disability or blindness criteria established by the Agency which are at least as stringent as those used under title XVI of the Social Security Act.
Disqualification	The act of disqualifying an individual from participation in SNAP because an eligibility criterion has not been met.
Documentary Evidence	A written confirmation of a SNAP household's circumstances.
Documentation	Written specification that provides official information to substantiate the case action taken.
Drug Addiction or Alcoholic (DAA) Treatment and Rehabilitation Program	Any drug addiction or alcoholic treatment and rehabilitation program conducted by a private, nonprofit organization or institution, or a publicly operated community mental health center, under part B of title XIX of the Public Health Service Act.
Drug-related Felony Conviction	A conviction of any offense which is classified as a felony and which has as an element of the possession, use or distribution of a controlled substance. Ineligibility under this provision is limited to convictions based on behavior which occurred after August 22, 1996. A guilty plea is the legal equivalent of a conviction after trial.
E&T Component	A work experience, work training, supervised job search or other program designed to help SNAP participants move promptly into unsubsidized employment.
E&T Participant	A SNAP recipient who is a voluntary participant in the E&T Program.

Earned Income	All money earned by a household member(s) through receipt of wages, salary, tips or commissions as an employee.
EBT Account	A set of records containing demographic, card, benefit, transaction and balance data for an individual household within the EBT system that is maintained and managed by the State's contractor as part of the client case record.
EBT Card	A method to access EBT benefits issued to a SNAP household member or authorized representative through the EBT system by a benefit issuer. This method may include an on-line magnetic stripe card, an off-line smart card, a chip card, a contactless digital wallet with a stored card, or any other similar benefit access technology approved by FNS. It is issued to eligible SNAP households to use to access SNAP benefits at Point-of-Sale (POS) devices located at retail outlets.
EBT Vendor	An entity that is selected to perform EBT-related services for the Agency.
Economic Services Worker	Any SCDSS personnel who has access to any Economic Services system, database or web platform used in the determination of eligibility for public assistance programs.
Elderly Member/Person	A member of a SNAP household who is age 60 or older.
Elderly Simplified Application Project (ESAP)	A federally approved demonstration project designed to simplify the SNAP process for elderly households who have traditionally proven to be our most stable population, on fixed income, with few reportable changes in household composition or deductions.
Electronic Benefit Transfer (EBT)	An electronic system that enables a person to transfer their benefits from a federal account to a retailer's account to pay for eligible foods.
Eligibility Determination	The disposition of a SNAP application by a finding of eligible or ineligible.
Eligible	The ability to receive SNAP benefits due to the household meeting the eligibility requirements.

Eligible Foods	(1) Any food or food product intended for human consumption except alcoholic beverages, tobacco, and hot foods and hot food products prepared for immediate consumption and any deposit fee in excess of the amount of the State fee reimbursement (if any) required to purchase any food or food product contained in a returnable bottle, can, or other container, regardless of whether the fee is included in the shelf price posted for the food or food product; (2) Seeds and plants to grow foods for the personal consumption of eligible households; (3) Meals prepared and delivered by an authorized meal delivery service to households eligible to use SNAP benefits to purchase delivered meals; or meals served by an authorized communal dining facility for the elderly, for SSI households or both, to households eligible to use SNAP benefits for communal dining; (4) Meals prepared and served by a drug addict or alcoholic treatment and rehabilitation center to narcotic addicts or alcoholics and their children who live with them; (5) Meals prepared and served by a group living arrangement facility to residents who are blind or disabled; (6) Meals prepared by and served by a shelter for battered women and children to its eligible residents; (7) In the case of certain eligible households living in areas of Alaska where access to food stores is extremely difficult and the households rely on hunting and fishing for subsistence, equipment for the purpose of procuring food for eligible households, including nets, lines, hooks, fishing rods, harpoons, knives, and other equipment necessary for subsistence hunting and fishing but not equipment for the purpose of transportation, clothing or shelter, nor firearms, ammunition or other explosives; (8) In the case of homeless SNAP households, meals prepared for and served by an authorized public or private nonprofit establishment (e.g. soup kitchen, temporary shelter), approved by an appropriate State or local agency, that feeds homeless persons; and (9) In the case of homeless SNAP households, meals prepared by a restaurant which contracts with an appropriate State agency to serve meals to homeless persons at concessional (low or reduced) prices.
Employment & Training (E&T) Program	A program operated by the Agency consisting of case management and one or more E&T components.

Error	For active cases, an “error” results when a determination is made by a quality control reviewer that a household which received SNAP benefits during the sample month is ineligible or received an incorrect allotment. Thus, errors in active cases involve dollar loss to either the participant or the government. For negative cases, an “error” means that the reviewer determines that the decision to deny, suspend, or terminate a household was incorrect.
Evaluation	The process of determining the cause(s) of each deficiency, magnitude of the deficiency, and geographic extent of the deficiency, to provide the basis for planning and developing effective corrective action.
Excess Medical (EM) Deduction	A deduction allowed to a SNAP household which verifies out-of-pocket medical expenses that total more than \$210 per month, provided that there is at least one eligible household member who is elderly or disabled.
Expedited Service	An eligibility process in which verification is postponed when it is necessary to issue a household’s SNAP allotment by the seven-day deadline.
Expungement	The process by which a record of criminal conviction is destroyed or sealed from State or Federal record. An expungement order directs the court to treat the criminal conviction as if it had never occurred, essentially removing it from a defendant’s criminal record as well as, ideally, the public record.
Expungement of Benefits	The removal of SNAP benefits from an EBT account due to inactivity for a period of 274 days.
Fair Hearing	An orderly proceeding (also known as an appeal) before an impartial Agency employee or committee of employees in which a client (petitioner) may challenge an adverse action of the Agency (respondent) which affects the household’s participation in SNAP and in which both parties may present evidence to defend their positions. The petitioner is the party who has requested a fair hearing. The respondent is the party responding to the fair hearing request. The party is each person or agency named or admitted as a party, or properly seeking and entitled as of right to be admitted as a party.

Fair Hearing Process	A process which allows a client to contest an adverse action taken by the Agency and to have his or her objections to the adverse action heard by an impartial hearing officer or committee.
Federal Fiscal Year	A period of 12 calendar months beginning with each October 1 and ending with September 30 of the following calendar year.
Federal Poverty Level	An economic measure used to decide whether the income level of an individual or family qualifies them for certain federal benefits and programs.
Filing an Application	The action taken by a household member or their authorized representative by signing and filing an application form requesting food assistance.
Fleeing Felon	Individuals who are fleeing to avoid prosecution or custody for a crime, or an attempt to commit a crime, that would be classified as a felony (in the state of New Jersey, a high misdemeanor).
Food and Nutrition Service (FNS)	The Federal Agency under the United States Department of Agriculture (USDA) by which SNAP is administered.
Foster Care Individual	Individuals (regardless of age) placed in the home of relatives or other individuals or families by the Agency's foster care program.
Fraud	(1) False representation of facts by words or conduct; (2) False misleading allegations; or (3) Concealment of that which should have been disclosed, which deceives and is intended to deceive another in order to obtain assistance illegally.
General Assistance (GA)	Cash or another form of assistance, excluding in-kind assistance, financed by State or local funds as part of a program which provides assistance to cover living expenses or other basic needs intended to promote the health or well-being of recipients.
Gross Income	A SNAP household's total, non-excluded income, before any deductions have been made.
Group Living Arrangement (GLA)	A public or private nonprofit residential setting that serves no more than sixteen residents that is certified by the appropriate agency or agencies of the State under regulations issued under section 1616(e) of the Social Security Act or under standards determined by the Secretary to be comparable to standards implemented by appropriate State agencies under section 1616(e) of the Social Security Act. To be eligible for SNAP benefits, a resident of such a group living arrangement must be blind or disabled.

Homeless Individual	An individual who lacks a fixed and regular nighttime residence including, but not limited to, an individual who will imminently lose their nighttime residence; or an individual who has a primary nighttime residence is: (1) A supervised publicly or privately operated shelter designed to provide temporary living accommodations (such as a welfare hotel or congregate shelter); (2) A halfway house or similar institution that provides a temporary residence for individuals intended to be institutionalized; (3) A temporary accommodation for not more than 90 days in the residence of another individual; or (4) A public or private place not designed for, or ordinarily used as, a regular sleeping accommodation for human beings (such as a hallway, a bus station, a lobby or similar places).
Homeless Meal Provider	A public or private nonprofit establishment (e.g., soup kitchens, temporary shelters) that feeds homeless persons; or a restaurant which contracts with an appropriate State agency to offer meals at concessional (low or reduced) prices to homeless persons.
Household Composition	A SNAP household composed of an individual or group of individuals who customarily purchase food and prepare meals together for home consumption.
Immigrant	Every non-citizen except a non-citizen who is within one of the classes of nonimmigrant non-citizens set forth in the INA, §101(a)(15) or a non-citizen entering the United States to reside permanently.
Inadvertent Household Error Claim	Any claim for an overpayment resulting from a misunderstanding or unintended error on the part of the household.
Income	SNAP household income from any source other than income exclusions.
Income and Eligibility Verification System (IEVS)	A system of information acquisition and exchange for purposes of income and eligibility verification which meets the requirements of section 1137 of the Social Security Act.
Indian	An individual who is a member of an Indian tribe. Indian tribe is defined as any Indian tribe, band, nation, or other organized group or community, including any Alaska Native village or group or regional or village corporation as defined in or established pursuant to the Alaska Native Claims Settlement Act, which is recognized as eligible for the special programs and services provided by

	the United States to Indians because of their status as Indians.
Ineligible	The inability to receive SNAP benefits due to the household not meeting the eligibility requirements.
Intentional Program Violation (IPV)	Any violations which consist of having intentionally: (1) Made a false or misleading statement, or misrepresented, concealed or withheld facts; or (2) Committed any act that constitutes a violation of SNAP, SNAP regulations, or any State statute for the purpose of using, presenting, transferring, acquiring, receiving, possessing or trafficking of SNAP benefits or EBT cards.
Interview	An official and confidential discussion between Agency staff and the household or its authorized representative of the SNAP household's circumstances in order to determine SNAP eligibility. An interview is necessary to identify verification that may be needed and to advise the SNAP household of the deadline for returning the verification to the Agency.
IPV Claim	Any claim for an overpayment or trafficking resulting from an individual committing an IPV.
Issuance of Benefits	The distribution of SNAP benefits to certified households within a prescribed time frame.
Lawful Permanent Resident (LPR)	Non-citizens who are lawfully authorized to live permanently in the United States. This category also includes "Amerasian immigrants" as defined under §584 of the Foreign Operations, Export Financing and Related Programs Appropriations Act of 1988.
Limited English Proficient (LEP)	An individual who does not speak English as his/her primary language and who has limited ability to read, speak, write, or understand English.
Live-in Attendant	An individual who resides in a SNAP household to provide medical, housekeeping, child care, or other similar personal services.
Local County Office	An office located in any of the 46 counties in the state of South Carolina.
Low-income Household	A household whose annual income does not exceed 125 percent of the Office of Management and Budget poverty guidelines.

Management Evaluation (ME) Reviews	A review conducted by States at the project area level to determine if State agencies are administering and operating SNAP in accordance with program requirements.
Mandatory Utility Allowance (MUA)	A utility deduction allowed for households that incur and are billed for a heating and cooling cost.
Master Issuance File	A cumulative file containing the individual records and status of households, and the amount of benefits, if any, each household is authorized to receive.
Means-tested	Programs which limit eligibility to individuals or families whose incomes and or assets fall below a pre-determined threshold (means test). A determination of whether an individual or family is eligible for government assistance, based upon whether the individual or family possesses the means to do without that help. It measures an individual or family's income against the federal poverty line.
Medicaid	Medical assistance under title XIX of the Social Security Act, as amended.
Medical Deduction	The portion of out-of-pocket medical expenses in excess of \$35 per month per household, excluding special diets, incurred by at least one eligible household member who is elderly or disabled.
Minimum Benefit	The minimum monthly amount of SNAP benefits that eligible one- and two-person households receive.
National Performance Measure	The sum of the products of each State agency's payment error rate times that State agency's proportion of the total value of the national allotments issued for the fiscal year using the most recent issuance data available at the time the State agency is notified of its performance error rate.
Natural Parent	The woman who gave birth to a child or the man who is related by birth to a child. This parent is also known as the biological parent.
Negative Case	A category in which a case is selected for SNAP QC review. The household's participation in SNAP was denied, suspended, or terminated.

Negative Case Error Rate	An estimate of the proportion of denied, suspended, or terminated cases where the household was incorrectly denied, suspended, or terminated. This estimate will be expressed as a percentage of completed negative quality control reviews excluding all results from cases processed by SSA personnel or participating in a demonstration project identified by FNS as having certification rules that are significantly different from standard requirements.
Net Income	Gross income minus allowable deductions.
Non-Citizen	Any person not a citizen or national of the United States (Immigration and Nationality Act (INA), §101) or a person who is not an inhabitant or national of the United States or a particular country.
Non-Citizen National	A person born in an outlying possession of the U.S. (e.g. American Samoa or Swain's Island) on or after the date the U.S. acquired the possession, or a person whose parents are U.S. non-citizen nationals. All U.S. citizens are U.S. nationals; however, not every U.S. national is a U.S. citizen.
Non-immigrant	A non-citizen temporarily admitted to the United States for a specific purpose other than permanent residence (i.e. tourism, study, or temporary work); or foreign national entering the United States for a limited time and specific purpose, has a set duration and is limited to the activities authorized by their specific visa category.
Non Means-tested	Programs in which benefits to individuals and families do not depend on the household's income. An individual's income is used to determine only the amount of benefits received.
Non-recurring	Not occurring again or happening often or periodically.
Notice of Missed Interview (NOMI)	A notice that must be sent to a SNAP household if the household misses its scheduled interview.
Over-issuance	The amount by which SNAP benefits issued to a SNAP household exceeds the amount it was eligible to receive.
Overpayment Error Rate	The percentage of the value of all SNAP allotments issued in a fiscal year that are either: (1) Issued to SNAP households that fail to meet basic program eligibility requirements, or (2) Overissued to eligible SNAP households.

Palmetto Automated Child Support System (PACSS)	A federally mandated system with interfaces and automation to: (1) Locate non-custodial parents; (2) Establish paternity; (3) Establish, modify and enforce support orders (such as child, medical, spousal); and (4) Collect and distribute child support.
Pardon	A release from legal penalties of an offense.
Payment Error Rate	The sum of the point estimates of two component error rates: an overpayment error rate and an underpayment error rate. Each component error rate is the value of allotments either overissued or underissued expressed as a percentage of all allotments issued to completed active sample cases, excluding those cases processed by SSA personnel or participating in certain demonstration projects designated by FNS.
Personal Identification Number (PIN)	A numeric code selected by or assigned to a household and used to verify the identity of an EBT cardholder when performing an EBT transaction.
Policy	A set of rules that is used as a basis for making an eligibility determination for SNAP.
Point-of-Sale (POS) Terminal	A range of devices deployed at authorized retail food stores for redeeming benefits by initiating electronic debits and credits of household EBT accounts and retailer bank accounts.
Primary Informant (PI)	An applicant or SNAP household member who applies for SNAP benefits by filing an application form.
Probation or Parole Violator	An individual who is violating a condition of probation or parole under a Federal or State law.
Procedures	A set of instructions established to ensure compliance with SNAP policy.
Processing Standards	Case actions taken to provide eligible households that complete the initial application process an opportunity to participate in SNAP as soon as possible but no later than 30 calendar days following the date the application was filed for regular applications and no later than 6 calendar days following the date the application was filed for expedited applications.

Project Area	The county or similar political subdivision designated by the State as the administrative unit for program operations. Upon prior FNS approval, a city, Indian reservation, welfare district, or any other entity with clearly defined geographic boundaries, or any combination of such entities, may be designated as a project area, or the State as a whole may be designated as a single project area.
Prospective Eligibility	The use of anticipated and/or actual income and circumstances to determine eligibility for the benefit month.
Public Assistance (PA)	Any of the following programs authorized by the Social Security Act of 1935, as amended: Old-age assistance, Temporary Assistance for Needy Families (TANF), including TANF for children of unemployed fathers, aid to the blind, aid to the permanently and totally disabled and aid to aged, blind or disabled.
QC Review Date	The “review date” for active cases is a day within the sample month, either the first day of the calendar or fiscal month or the day a certification action was taken to authorize the allotment, whichever is later. The “review date” for negative cases, depending on the characteristics of individual State systems, could be the date on which the eligibility worker makes the decision to suspend, deny, or terminate the case, the date on which the decision is entered into the computer system, the date of the notice to the client or the date the negative action becomes effective. For no case is the “review date” the day the quality control review is conducted.
QC Review Period	The 12-month period from October 1 of each calendar year through September 30 of the following calendar year.
Qualified Non-Citizen	Legal Permanent Resident (LPR): non-citizen granted conditional entry (per law in effect prior to April 1, 1980); Cuban/Haitian entrant; non-citizens in the U.S. who have been abused, subject to battery or extreme cruelty by a spouse or other family/household member, or have been a victim of a severe form of human trafficking; non-citizens whose children have been abused and non-citizen children whose parent has been abused who fit certain criteria.

Quality Control (QC) Review	A review of a statistically valid sample of active and negative cases to determine the extent to which households are receiving the SNAP allotments to which they are entitled, and to determine the extent to which decisions to deny, suspend, or terminate cases are correct.
Quarters of Coverage History (QCHS)	A system that is available for purposes of verifying whether a lawful permanent resident has earned or can receive credit for a total of 40 qualifying quarters.
Recertification	An eligibility determination process based on circumstances anticipated for the certification period starting the month following the expiration of the current certification period.
Recipient	A SNAP household member who receives SNAP benefits.
Recurring	Occurring again periodically or repeatedly.
Regional Office	The FNS Office having oversight of a group of State DSS offices. SC Department of Social Services falls under the Southeast Regional Office.
Roomer	An individual to whom a household furnishes lodging, but not meals, for compensation.
Sanction	A reduction in SNAP benefits due to an individual's noncompliance with a SNAP work requirement.
SC Worker Input Network and Support (SCWINS) System	A system that is used to conduct and document SNAP and TANF interviews.
Screening	An evaluation by an eligibility worker of an individual for all exemptions from the general work requirements, all exceptions from the able-bodied adults without dependents time limit, and whether the individual should be referred for participation in an employment and training program. Screening for participation in employment and training programs is not considered a part of the E&T program.
Self-Employment Income	Income earned directly from one's own business, trade or profession rather than specified as salary or wages from an employer.
Shelter for Battered Women's and Children	A public or private nonprofit residential facility that serves battered women and their children. If such a facility serves other individuals, a portion of the facility must be set aside on a long-term basis to serve only battered women and children.

Simplified Reporting	Reporting requirements that allow the Agency to reduce and simplify the rules under which most SNAP participants inform the State about changes in their income and circumstances during a certification period.
SNAP Application Process	All activities from the time the SNAP application is filed until the disposition of the application.
SNAP Benefits	The value of supplemental nutrition assistance provided to a household by means of an EBT system or other means of providing assistance.
SNAP Household	A household composed of an individual or a group of individuals who customarily purchase food and prepare meals together for home consumption.
SNAP Household Member	An individual who is included in the SNAP household.
SNAP Work Requirements	(1) Register for work or be registered by the Agency at the time of application and every 12 months after initial registration. The household member required to register need not complete the registration form; (2) Provide the Agency or its designee with sufficient information regarding employment status or availability for work; (3) Report to an employer to whom referred by the Agency or its designee if the potential employment meets the suitability requirements; (4) Accept a bona fide offer of suitable employment at a site or plant not subject to a strike or lockout, at a wage equal to the higher of the Federal or State minimum wage or 80 percent of the wage that would have governed had the minimum hourly rate under section 6(a)(1) of the Fair Labor Standards Act been applicable to the offer of employment; and (5) Do not voluntarily and without good cause quit a job of 30 or more hours a week or reduce work effort to less than 30 hours a week.
Social Security Administration (SSA)	A U.S. Federal Government Agency that assigns Social Security numbers and administers Social Security retirement, survivors, and disability insurance programs.
South Carolina Combined Application Project (SCCAP)	A federally approved demonstration project in which there is a cooperative effort between SCDSS, the USDA Food and Nutrition Service (FNS) and SSA to simplify the application process for the SSI applicant who chooses to apply for SNAP benefits.

South Carolina Office Scanning Application (SCOSA)	An electronic mailbox where SNAP case records are housed and maintained.
Standard Medical (SM) Deduction	A deduction allowed to a SNAP household which verifies out-of-pocket medical expenses that total more than \$35.00 but do not exceed \$210.00 per month, provided that there is at least one eligible household member who is elderly or disabled.
State Data Exchange (SDX)	A batch data exchange that provides Title XVI data to States that administer federally funded income and/or health maintenance programs.
State Office	The central office of the South Carolina Department of Social Services.
State Verification and Exchange System (SVES)	A batch query system that provides states and some federal agencies with a standardized method of SSN verification and uniform data response for Title II and/or Title XVI data for benefit program processing. In addition, it also allows States to request information from other SSA exchange systems external to SVES (e.g. BENDEX, SDX) via the SVES request.
Step-parent	A person living in the home who is ceremonially married to the parent of the child(ren) in the SNAP household.
Strike	The refusal of employees to perform work that their employer has assigned to them in order to force the employer to grant certain demanded concessions, such as increased wages or improved employment conditions.
Striker	Anyone involved in a strike or concerted stoppage of work by employees (including a stoppage by reason of the expiration of a collective-bargaining agreement) and any concerted slowdown or other concerted interruption of operations by employees.
Supplemental Nutrition Assistance Program (SNAP)	The program operated pursuant to the Food and Nutrition Act of 2008. It is designed to promote the general welfare and to safeguard the health and well-being of the Nation's population by raising the levels of nutrition among low-income households.
Supplemental Security Income (SSI)	Monthly cash payments made under the authority of: (1) Title XVI of the Social Security Act, as amended, to the aged, blind and disabled; (2) section 1616(a) of the Social Security Act; <i>or</i> (3) section 212(a) of Pub. L. 93-66.
Systematic Alien Verification for Entitlements (SAVE)	The USCIS program whereby State agencies may verify the validity of documents provided by non-

	citizens applying for SNAP benefits by obtaining information from a central data file.
Temporary Absence	A circumstance where one or more household members are absent from a household they share with others, but the absent member remains part of the household.
Temporary Assistance for Needy Families (TANF)	A program of family assistance operated by an eligible State under its State TANF plan.
Thrifty Food Plan (TFP)	The diet required to feed a family of four persons consisting of a man and a woman 20 through 50, a child 6 through 8, and a child 9 through 11 years of age, determined in accordance with the Secretary's calculations. The cost of such diet will be the basis for uniform allotments for all households regardless of their actual composition. In order to develop maximum SNAP allotments, the Secretary will make household size and other adjustments in the TFP taking into account economies of scale and other adjustments as required by law.
Timeliness	Case actions taken within the processing standards guidelines.
Trafficking	(1) The buying, selling, stealing, or otherwise effecting an exchange of SNAP benefits issued and accessed via EBT cards, card numbers and PINs, or by manual voucher and signature, for cash or consideration other than eligible foods, either directly, indirectly, in complicity or collusion with others, or acting alone; (2) The exchange of firearms, ammunition, explosives, or controlled substances; (3) Purchasing a product with SNAP benefits that has a container requiring a return deposit with the intent of obtaining cash by discarding the product and returning the container for the deposit amount, intentionally discarding the product, and intentionally returning the container for the deposit amount; (4) Purchasing a product with SNAP benefits with the intent of obtaining cash or consideration other than eligible food by reselling the product, and subsequently intentionally reselling the product purchased with SNAP benefits in exchange for cash or consideration other than eligible food; (5) Intentionally purchasing products originally purchased with SNAP benefits in exchange for cash or consideration other than eligible food; or (6) Attempting to buy, sell, steal, or otherwise affect an exchange of SNAP benefits issued and accessed via EBT cards, card numbers

	and PINs, or by manual voucher and signatures, for cash or consideration other than eligible food, either directly, indirectly, in complicity or collusion with others, or acting alone.
Unearned Income	All income that is not earned from one's job or profession or money that an individual receives from sources other than employment.
Under-issuance	The amount by which the allotment to which the household was entitled exceeds the allotment which the household received.
Under-issuance Error Rate	The ratio of the value of allotments under-issued to recipient households to the total value of allotments issued in a fiscal year by a State agency. It is also known as Underpayment Error Rate.
United States (U.S.) Citizen	A person born in one of the 50 United States, the District of Columbia, Puerto Rico, Guam, the U.S. Virgin Islands, or the Northern Mariana Islands; a person born outside of the U.S. to at least one U.S. parent; or naturalized citizen.
United States Citizenship and Immigration Services (USCIS)	A Government Agency of the Department of Homeland Security (DHS) that is responsible for processing immigration and naturalization applications and establishing policies regarding immigration services.
United States Department of Agriculture (USDA)	The Federal Agency that oversees agriculture, food and nutrition, rural development, and disaster assistance in the United States.
Urban Indian	An individual who resides in an urban center and meet at least one of the following four criteria: (1) Regardless of if they live on or near a reservation, is a member of a tribe, band, or other organized group of Indians, including those tribes, bands, or groups terminated since 1940 and those recognized now or in the future by the State in which they reside, or who is a descendant, in the first or second degree of any such member; (2) Is an Eskimo or Aleut or other Alaska Native; (3) Is determined to be an Indian for any purpose under regulations promulgated by the Secretary of Interior; or (4) Is determined to be an Indian under regulations promulgated by the Secretary of Health and Human Services.
Vendor Payment	A payment made to a third party by a non-household member on behalf of the household.
Verification	The use of documentation or a contact with a third party to confirm the accuracy of statements or information.

Verified Upon Receipt	Information obtained through IEVS from the agencies administering the programs (e.g. SSI and SSA benefits). In addition, payment information received through CHIP and CHIP Interface is also considered verified upon receipt (e.g. TANF and PACSS).
Veteran	A person who served in the active military, naval, or air service, and who was discharged or released therefrom under conditions other than dishonorable.
Work Registrant	A SNAP recipient who is non-exempted from SNAP Work Requirements and is subject to disqualification from SNAP participation due to failure to comply without good cause with the requirements.
Work Registration (WR)	An eligibility requirement for all SNAP household members who are not exempt from the federally regulated work requirements. Registration is completed when the registration is recorded on the CHIP Employment Programs (EMPR) screen.

Appendix 1: SNAP Policy Manual

Revisions

Volume 1 March 2009

N/A

Volume 2 April 2009

These changes are effective May 1, 2009

Tab to each [blue](#) section identifier (hypertext link) and press enter to go straight to the first changed item of the revised section.

[Section 1.3 \(3\): General Terms and Conditions.](#) The second “NOTE” is deleted.

[Section 2.3 \(7\): Ineligible Household Members.](#) Clarification is added. *Ineligibility under this provision is limited to convictions based on behavior which occurred after August 22, 1996.*

[Section 2.4: Head of Household.](#) Section is deleted.

[Section 3.3 Filing an Application for SNAP \(1\) E:](#) The “NOTE” is deleted.

[Section 3.3 Filing an Application for SNAP \(4\):](#) The sentence *The Agency will post DSS Poster 2452, Food Stamps: Know Your Rights* is added.

[Section 3.4: Household Cooperation in Filing an Application for SNAP.](#) The sentence *The Agency will not consider individuals identified as non-household members in [Section 2.2: Special Household Requirements, \(2\) Elderly and Disabled Persons](#) as individuals outside the household* is deleted.

[Section 3.5: Authorized Representatives.](#) The sentence *Designation can also be accomplished by completing the Authorized Representative section on the DSS Form 3800, Application for Family Independence, Food Stamps and Other DSS assistance* is added.

[Section 3.5 Authorized Representatives \(3\):](#) In the last paragraph, the sentence *In order to prevent abuse of the program, the Agency sets a limit of five households an authorized representative may represent* is deleted.

[Table of Contents:](#) A listing of Chapter Titles was added for easier access to individual chapters.

Volume 3 July 2009

Tab to each [blue](#) section identifier (hypertext link) and press enter to go straight to the first changed item of the revised section.

These following changes are effective retroactive to 4/01/09:

Sec 4.1 Categorically Eligible Households: Criteria for expanded categorically eligibility has changed to households whose gross income falls at or below 130% of the federal poverty level (FPL) or 200% of the FPL if all adult household members are elderly or disabled.

Sec 4.2 Households Prohibited from being Categorically Eligible: Exception has been added to state that even these households will have their resources excluded even though their income will still be deemed.

Sec 4.4 Determining Categorically Eligible Households: A paragraph has been added to explain how categorical eligibility is conferred.

Sec 4.5 Applicant Family Independence (TANF) Households: The requirement that the DSS Brochure 24126 be given to applicant households has been removed.

These changes are effective 7/1/09:

Sec 2.3 Ineligible Household Members: Contact information used to confirm fleeing felon status was added.

Sec 5.1(1) Verification Prior to Certification – Identity: The term “head of household” was changed to “primary informant”.

Sec 5.1(2) Verification Prior to Certification – Residency: The last sentence was deleted as it is unnecessary.

Sec 5.1(5) Verification Prior to Certification – Disability: Use of SDX and BENDEX was added to verification chart. Also last three paragraphs were removed as they were misplaced.

Sec 5.1(6) Verification Prior to Certification – Alien Eligibility: A large section was removed as it is repeated in Chapter 7. Also a misleading paragraph was removed.

Sec 5.1(8) Verification Prior to Certification – Shelter/Utility Expenses: A list was added to explain shelter expenses.

Sec 5.2 was moved to Sec 5.1(11)

Sec 5.3: was renumbered.

Sec 5.2(1) Sources of Verification – Documentary evidence: First paragraph removed as it is repetitious. Last sentence removed as it is misleading.

Sec 5.3 Discrepancies in Verification: Last paragraph removed as it is repetitious.

Sec 5.7(1) Verification Subsequent to Initial Certification – Recertification: A paragraph in section B has been removed as it is repeated at the end of the section. Also, section C and D have been combined.

Sec 7.3 (1) Citizenship and Alien Status - Household members meeting citizenship or alien status requirements: Information was added to the list of non-citizens who meet special non-citizen criteria.

Sec 8.2 Exemptions from Work Requirements: Changed to clarify title IV of the Social Security Act includes Family Independence (FI).

Sec 10.1 Uniform Standards for SNAP Resource Eligibility Standards: The section was removed, and reference was added to see Chapter 4 as the information was redundant.

Sec 11.5(NN) Unearned Income - Social Security benefits: Separated sentence to clarify recoupment income under the Federal Payment Levy Program.

Sec 11.5(OO) Unearned Income – SSI: Exception added that pertains to representative payee.

Sec 12.2 Standard Deduction: The chart was updated to reflect current amounts.

Volume 4 September 2009

Section 7.1 Residency: Added exception that women and children in shelter for battered women can apply and be eligible in same month they are included in case with person who abused them.

Section 7.2 Social Security Numbers: Changed the wording from “will complete” to “will assist as needed in completing” the SS-5.

Section 7.4 Students: Added inclusion of on-line, web-based universities to definition of institution of higher education.

Chapter 10 Resource Eligibility Standards: Moved to the **Appendix**.

Section 11.1 Income Eligibility Standards: Updated the gross and net income eligibility standards.

Section 11.4 Self-Employment Income: Expanded the different types of businesses and required verification for each type.

Section 11.8 Federal Law Income Exclusions: Added to federally excluded income, income funded under Older Americans Act.

Section 12.1 Income Deductions/General: Change to utility standards, MU from 221 to 272, BU from 109 to 134 and TE from 27 to 33.

Section 12.2 Standard Deduction: Updated the amount of the standard deduction according to HH size.

Section 22.9 Inactive EBT Accounts: Removed this section as these alerts are no longer generated. The subsequent section has been renumbered.

Volume 5 December 2009

Section 2.3(7) Ineligible Household Members: Added definition of “drug related felony”.

Section 6.8 Certification periods for Expedited Households: Clarification of when verification is due for expedited cases in which verification has been postponed.

Section 7.4(1) Students – Applicability: Added note stating students with meal plans are not eligible for participation in the SNAP.

Section 11.8 (G) Federal Law Income Exclusions: Added Exclusion of payments to certain Filipino WWII veterans.

Section 12.7 Child Support Deduction: Clarified treatment of obligated child support payments as a deduction.

Section 13.9(1)(C) Clarification Notices to Households – Initial applications, Section 15.5 (1)(B) Actions on Reported Changes, Section 15.8(A) Unclear Information: Clarification added that if a request for information must be translated, the time frame for response must begin from the date the translated request was mailed to the household.

Section 22.8 (D) Authorizing Replacements for Household Misfortunes: Clarified definition of household misfortune.

Volume 6 February 2010

Section 11.3(Q) Earned Income – On the job training program: Renamed due to removal of entry entitled On-the-job Training programs. Subsequent entries have been re-alphabetized.

Section 11.3 (CC) Earned Income – WIA educational and training programs: Added to give more information regarding WIA educational and training programs.

Section 11.8 (B) Federal Law Income Exclusions – Allowances, earnings or payments: Added rule to exclude WIA payments unless payment is related to on-the-job training program.

Section 11.8 (S) Federal Law Income Exclusions - Weekly \$25 Supplement: Added rule to exclude UCB \$25 stimulus income. This income will no longer be included in the SNAP budget.

Section 15.3(1) Simplified Reporting Households – Annual (12 month) reporting households and Section 15.3(2) Simplified Reporting Households – Semi-annual (6 month) reporting households: Changed to read “elderly or disabled” rather than “elderly and disabled”.

Section 15.7 Action on Simplified Reporting Households: Changed to add sentence explaining what must be included when notifying household of incomplete simplified report form.

Volume 7 March 2010

Section 3.3(2) Filing An Application For SNAP – Contacting the SNAP Office: Re-worded this section to accommodate procedures using SCOSA.

Section 3.7 Interviews: Changed to clarify procedures.

Section 7.3 (1) Citizenship and Alien Status – Household member meeting citizenship or alien status requirements: Policy has changed to allow Iraqi and Afghani special immigrants to be treated the same as refugees. They are eligible for SNAP indefinitely and with no waiting period.

Section 11.3 (C) Earned Income – AmeriCorps State and National and **(D) Earned Income – AmeriCorps VISTA:** Clarified policy by adding AmeriCorps and AmeriCorps Vista as separate types of income.

Section 11.3 (I) Earned Income – Earned Income – Census Income for temporary employees connected with the 2010 Census: Policy has changed so Census income for temporary workers connected to the 2010 census was added to Earned Income Chart with note that this income is excluded.

Section 11.3 (L) Earned Income – Domestic Service Act payments (includes University Year for Action, Urban Crime Prevention Program, VISTA): Re-worded to add clarification.

Section 11.3 (T) Earned Income – Repayment – Voluntary or involuntary return of monies owed: Added to include statement that repayments from earned income source is excluded.

Section 13.1 Determining Household Eligibility and Benefit Levels – Prospective Eligibility: Policy has been changed regarding calculating prospective income. The change allows more flexibility in what verification may be used.

Section 17.2 Recertification Interview: Changed to clarify procedures. We will use the same telephone interview procedures for recertifications as we do for applications.

Section 19.1 Federal Demonstration Projects – Definition of the South Carolina Combined Application Project (SCCAP) and **19.2 Federal Demonstration Projects – Eligibility Determination for the South Carolina Combined Application Project (SCCAP):** this section was revised to give expanded and updated information regarding the SCCAP program.

Volume 8 August 2010

Section 7.3 (1) Citizenship and Alien Status-Household members meeting citizenship or alien status requirements: This section was expanded to accommodate the Farm Security and Rural Investment Act of 2002; Final Rule.

Section 7.3 (2) (D) Citizenship and Alien Status-Sponsored Aliens This section was expanded.

Section 7.3 (2) (F) Citizenship and Alien Status-Sponsored Aliens: This section was added.

Section 7.3 (2) (G) Citizenship and Alien Status-Sponsored Aliens: This section was added.

Section 12.5 (2) (C) Utility Allowances – Mandatory Utility Allowance (MUA): BG was changed to household.

Section 12.5 (2) (G) Utility Allowances – Mandatory Utility Allowance (MUA): Additional criteria was added on who may receive the MUA.

Section 12.5 (2) (H) & (I) Utility Allowances – Mandatory Utility Allowance (MUA): Sections were renumbered to reflect the addition of (G).

Section 12.5 (2) (I) Utility Allowances – Mandatory Utility Allowance (MUA): This section was removed.

Section 12.5 (3) (C) Utility Allowances –Basic Utility Allowance (BUA): This section was removed.

Section 12.5 (4) (A) & (B) Utility Allowances – Actual Utility Costs: These sections were removed.

Section 12.5 (5) Utility Allowances –Multiple households/ multiple residences: This section has been revised to remove the option of prorating the MUA and BUA.

Section 15.3 Simplified Reporting Households: This section has been expanded.

Section 15.5 (2) Actions On Reported Changes – Decrease in benefits: This section was changed to clarify that the decrease rules only apply once the determination is made that the decrease is to be acted on.

Section 17.2 Recertification Interview: This section was revised to accommodate telephone interviews at recertification.

Section 17.3(2)(A) Processing Application for Recertification – Untimely recertifications: This section defines the required actions the recipient must complete at recertification. It also explains that if an application for recertification is denied because the household failed to take a required action, the application can be reopened but benefits will be prorated from the date the last action is taken.

Section 18.5 (2) Responsibilities Regarding the Fair Hearing Process - Responsibilities of the Certification Supervisor: Removed the requirement that the supervisor sign the DSS Form 2633, Request for Fair Hearing.

SNAP Tool Kit 4: Acceptable Verification of Alien Eligibility: This section was expanded to accommodate the Farm Security and Rural Investment Act of 2002; Final Rule.

Volume 9 September 2010

Section 13.8 Certification Periods (1) Certification period length: Certification period is 6 months for all households except those households in which all members are elderly or disabled.

Section 15.3 Simplified Reporting Households: Changed semi-annual to six-month recertification.

Section 15.3 Simplified Reporting Households (1) Annual (12 month) reporting households: Removed section heading; This paragraph explains the reporting requirements for households assigned a 24-month certification period.

Section 15.3 Simplified Reporting Households (2) Semi-annual (6 month) reporting households: Removed section heading. This paragraph explains that households other than those assigned a 24-month certification period will be assigned a six month certification period.

Section 15.6 Registration of Simplified Reporting Forms: The section title was eliminated. The paragraph discusses the reporting requirement for households assigned a 24-month certification period. Subsequent sections were renumbered.

Section 15.6 Action on Simplified Reporting Households: The section title was eliminated. The paragraph states households other than those assigned a 24-month certification period will report changes at the six-month recertification and the annual recertification, unless the household's income exceeds 130% of poverty or moves out of state.

Sections 15.8 & 15.9: These sections were renumbered due to the elimination of section 15.6.

Section 17.1 Recertification Process: Phrase added to indicate only one interview needed every twelve months.

Section 17.1 Recertification Process (2) Recertification Application: This verbiage in this section was changed to specifically state that a recertification will be completed every six months. The "S" form is used to complete the six month recertification, and the "A" form will be used to complete the annual recertification.

Section 17.2 Recertification Interview: Procedure box edited to make procedure more accurate.

Volume 10 February 2011

Section 11.4 Self-Employment Income (2) Determining self-employment income: This section was clarified to include income shown on line 6 should be added to the income shown on line 3 before applying the 40% cost of doing business.

Section 12.2 (A) Standard Deduction: The standard deduction for 1 – 3 person households changed from \$141 to \$142.

Section 14.4 Residents of a Group Living Arrangement (GLA): The number of residents that can be served by a GLA has been corrected from 6 to 16.

Volume 11 March 2011

Section 1.7 Actions on Cases of Relatives: This section has been added to clarify how cases of employees' relatives should be handled.

Section 5.1 (9) Medical Expenses: The word “outstanding” was added to clarify that the amount of outstanding medical expenses will be verified prior to initial certification.

Section 5.5 Income and Eligibility Verification System (IEVS)/State Verification and Exchange System (SVES): A paragraph was added to this section to clarify that IEVS/SVES matches are mandatory at initial certification and recertification.

Section 7.4 Students (2) Student Exemptions: A correction was made to item (I) to change the word “and” to “or”.

Section 11.5 (DD) Unearned Income: This section was clarified to include reimbursements or flat allowances for work related expenses such as travel, per diem, and uniforms as excludable.

Section 11.8 (T) Federal Law Income Exclusions: This section was corrected to add the Earned income Tax Credit (EIC) as an income exclusion.

Section 12.8 Excess Medical Deduction: Clarification was added to this section to include credit card charges and loans for medical expenses as allowable deductions.

Section 12.8 Excess Medical Deduction (1) Non-recurring Medical Expenses: This section has been updated to remove reference to 10-day reporting households; to change semi-annual reporting households to households subject to 6-month recertification; and to change simplified reporting to households in which all members are elderly or disabled with no earned income.

Section 13.6 Calculating Net Income and Benefit Levels (2) Eligibility: The link to the definition of elderly or disabled has been changed to 14.10 Elderly and Disabled.

Section 14.10 Definition of Elderly or Disabled: This section was added to define elderly or disabled.

Section 15.4 (2) Interim Changes Reported by the Household That Must be Acted on: This section has been changed to include household members removed from a SNAP household by CPS or APS as a change that must be acted on when **reported** by the household or CPS/APS.

Section 15.5 Actions on Reported Changes (2) Decrease in Benefits: Sentence re-worded for clarity.

Section 17.2 Recertification Interview: Sentence re-worded for clarity and to specify that households who miss interviews and request another interview must be scheduled another interview.

Volume 12 May 2011

Section 1.3 General Terms and Conditions (2) No Sales Tax on SNAP Purchases: The word “groceries” has been replaced with the term “eligible foods”.

Section 1.4 Informational Activities (2) Rights and Responsibilities: Sentence reworded.

Section 2.2 Special household Requirements (3) Boarders: Wording was added to this paragraph to clarify that it pertained to individuals paying a reasonable amount for meals or meals and lodging who were **not** living in a commercial boarding house.

Section 2.3 Ineligible Household Members: The order of items 6, 7, and 8 was changed.

Section 5.1 Verification Prior to Certification (6) Alien Eligibility: This section has been clarified to include verification of the validity of INS documents through the SAVE database.

Section 11.3 Earned Income (Q) Foster Grandparent Programs: This section was added to indicate that these programs are exempt if the program has been approved by the Corporation for National and Community Service.

Section 11.3 Earned Income (W) Retired and Senior Volunteer Programs This section was added to indicate that these programs are exempt if the program has been approved by the Corporation for National and Community Service

Section 11.3 Earned Income (Y) Senior Companion Programs: This section was added to indicate that these programs are exempt if the program has been approved by the Corporation for National and Community Service

Section 11.5 (DDD) Unearned Income: Exception reworded for clarity.

Section 15.4 Interim Changes for Simplified Reporting Households (3) Other interim changes reported by the household: A note has been added to the section reminding EWs to consider the effect of all changes when determining whether to act on a change.

Section 15.5 Actions on Reported Changes (2) Decrease in Benefits: Item A has been corrected to clarify that appropriate notice must be given when acting on mandatory changes which decrease benefits.

Section 17.3 (1) Processing Applications for Recertifications (1) Timely Recertifications: The note in this section has been corrected to remove the sentence, “*benefits will be prorated from the date the last required action is taken.*” A link to the recertification charts in the SNAP Tool Kit has also been added.

Section 17.3(2) Processing Applications for Recertifications (2) Untimely Recertifications: This section has been reformatted and the note in this section has been corrected to remove the sentence “*benefits will be prorated from the date the last required action is taken.*” A link to the Recertification Charts in the SNAP Tool Kit has also been added.

Section 17.3(3) Processing Applications for Recertifications (3) Late Recertifications: This section has been created to define a rectification form received after the current certification period ends but within the calendar month after the end of the certification period as “late”.

SNAP Tool Kit Attachment 4: Acceptable Verification of Alien Eligibility: A sentence has been added to clarify that the validity of the documents listed must be verified through the SAVE database.

SNAP Tool Kit Attachment 5: SNAP Annual Recertification Chart: This chart has been added to the tool kit. Corrections noted at the April 2011 SNAP training have been integrated and expedited screening and processing has also been added to the late recertification section.

SNAP Tool Kit Attachment 5: SNAP Six Month Recertification Chart: This chart has been added to the tool kit. Expedited screening and processing have also been added to the late recertification section.

Volume 13 June 2011

Section 3.2 SNAP Application Form: The subheadings in this section have been changed for clarity and the title and contents of the SNAP application have been corrected to be consistent with the revised DSS Form 3800.

Section 3.3 Filing an Application for SNAP (3) Availability of the SNAP Application Form: Section reworded for clarity.

Section 3.3 Filing an application for SNAP (4) Notice of Right to File: Title of poster corrected.

Section 5.1 Verification Prior to Certification (6) Alien Eligibility: A link to the US Citizenship and Immigration website has been added to access the INS form G-845 (Document Verification Request).

Section 7.3 Citizenship & Alien Status (1) Household Members meeting Citizenship or Alien Status Requirements: A note has been added to clarify that Asylees and Refugees who attain LPR status are exempt from the LPR 5-year residency requirement.

Section 14.3 Residents of Drug and Alcohol Treatment and Rehabilitation Programs (DAA's) (1) DAA Eligibility for SNAP: Wording changed from may to must.

Section 14.4 Residents of a Group Living Arrangement (GLA) (6) GLA's Misuse of Benefits: Section has been corrected to replace DAA with GLA.

Section 19.1 Definition of the South Carolina Combined Application Project (SCCAP): Standard benefit amounts have been updated and the threshold for shelter high was updated. These changes were made effective 04/11.

SNAP Tool Kit Attachment 1: Accommodation Assessment for LEP Clients: The DSS Form 2664 Instruction and Training Guide has been replaced with the revised Guide provided by Individual and Provider Rights.

SNAP Tool Kit Attachment 2: Important Points for LEP/SI Clients: The Economic Services Basic Training Handout, dated 02/09 has been replaced with the revised handout provided by Individual and Provider Rights.

SNAP Tool Kit Attachment 4: Acceptable Verification of Alien Eligibility: Additional examples of alien verification have been added as well as other information to ease use of the tool kit.

Volume 14 August 2011

Section 2.3 Ineligible Household Members: A note has been added to item 6 to clarify that the operative date when looking at felony drug convictions is the date of the crime itself rather than the date of the conviction.

Section 5.1 Verification Prior to Certification (8) Shelter/Utility Expenses: A paragraph has been added to this section to clarify how to handle shelter/utility expenses that cannot be verified within 30 days of the date of application.

Section 5.1 Verification Prior to Certification (9) Medical Expenses: Additional clarification has been added regarding verification and treatment of recurring and nonrecurring medical expenses at initial certification.

Section 5.7 Verification subsequent to Initial Certification (1) Recertification: Medical Expenses have been removed from Item “B” and Item “F” has been created as a separate item for medical expenses. Additional instructions for verification of medical expenses at 6-month recertification and annual recertification have also been added to be consistent with the reference guide provided at the SNAP Regional Training.

Section 8.5 Disqualification Periods for Failure to Comply with SNAP Work Requirements: Wording in this section has been revised to reduce misinterpretation of policy. A note has also been added to define *compliance*.

Section 11.6 Income Exclusions: Loans and Lump Sums have been added to this section as income exclusions.

Section 12.8 Excess Medical Deduction: Age 60 has been added for clarity of definition of elderly.

Section 12.8 Excess Medical Deduction (1) Nonrecurring Medical Expenses: This section has been reworded for clarity and consistency with the reference guide provided at the SNAP Regional Training.

SNAP Tool Kit Attachment 5: SNAP Annual Recertification Chart: Corrections have been made to both the instructions and examples (for treatment of untimely and late recertifications) to reflect that clients have 30 days from the date the recertification form is received to complete the recertification process. Additional clarifications have also been added for treatment of untimely and late recertifications.

Volume 15 October 2011

Section 8.5 Disqualification Periods for Failure to Comply with SNAP Work Requirements: verbiage has been added to this section to clarify that SNAP recipients who are sanctioned for failure to comply with FI work requirements must comply with these requirements or become exempt from them in order to become eligible for SNAP.

Section 12.1 Income Deductions/General: The maximum excess shelter deduction has changed to \$459.

Section 12.2 Standard Deduction: The standard income deduction for a household of 1-3 has changed to \$147.

Section 12.4 Shelter Deduction The link has been changed from Section 2.2 (Special Household Requirements (2) Elderly and Disabled Persons) to Section 14.10, Definition of Elderly or Disabled.

Section 13.6 Calculating Net Income and Benefit Levels (2) Eligibility: This section contains changes in the gross and net income limits effective 10/1/11.

Section 19.1 Definition of the South Carolina Combined Application Project (SCCAP): This section contains changes in the shelter thresholds for “shelter high” and “shelter low” SCCAP households.

SNAP Tool Kit Attachment 5: Annual Recertification Chart: A correction was made to the instructions for treatment of untimely annual recertifications (able to reach client for interview- incomplete) to indicate that if the client provides verification within 30 days from the date the form was received or 10 days from the date the verification was requested, he/she is entitled to a full allotment.

Volume 16 December 2011

Section 11.1 Income Eligibility Standards: The net and gross income chart in this chapter has been updated to be consistent with that of chapter 13 which was updated effective 10/1/11.

Section 12.1 Income Deductions/General (D, E, and F): The Mandatory Utility Allowance, Basic Utility Allowance, and Telephone Standard have been updated. This change is effective 12/1/11.

Section 12.2 Standard Deduction: The standard deductions for a household of 4, 5, and 6 and above have been updated. This change was made effective 10/1/11.

Section 16.3 Adequate Notice When the Household’s Address is Unknown: A note has been added to this section to clarify that case closures are only appropriate when the returned mail is a SNAP approval notice.

Volume 17 February 2012

Section 8.2 Exemptions from Work Requirements: This section has been revised to clarify SNAP work registration requirements.

Section 8.3 The Agency’s Responsibilities for Work Registration: A paragraph has been added to clarify work registration for simplified reporters who lose their exemption status.

Section 8.4 E & T program Referrals: This section has been created to introduce implementation of mandatory participation in the employment and training program for ABAWDs in specified counties.

Section 8.6 Disqualification Periods for Failure to Comply with SNAP Work Requirements: This section has been re-worded for clarity.

Section 9.1 The SNAP Employment and Training Program (E&T): This section has been revised to add mandatory participation in E&T for ABAWDs residing in Richland, Lexington, Charleston, Berkeley, and Dorchester counties.

Section 9.2 Referrals to the SNAP Employment and Training Program (E&T): This section has been revised to outline the E&T referral process for Mandatory participants and for Volunteers.

Section 9.3 Failure to Comply with SNAP Employment and Training Requirements: This section defines noncompliance in E&T and outlines notification and disqualification periods for failure to comply with SNAP E&T requirements.

Section 9.5 SNAP Employment and Training Components: This section defines components for SNAP E&T.

Section 9.6 Reimbursement Funds for Employment and training Program Participants: This section provides recommendations for expenditure of transportation reimbursement funds for E&T.

Section 9.7 Record Keeping for the Employment and Training Program: Goodwill of South Carolina has been added as the entity that will record E &T component participation for mandatory ABAWDs.

Section 15.4 Interim Changes for Simplified Reporting Households (1) Interim Changes Considered Known to the Agency: This section has been changed to include DHEC Death Match as an interim change considered known to the agency that must be acted on.

Section 15.4 Interim Changes for Simplified Reporting Households (2) Interim Changes Reported by the Household That Must be Acted on: Item B has been changed from “Death of all household members” to “Death of **any** household members” as a change that must be acted on when reported by the household.

Section 19.1 Definition of the South Carolina Combined Application Project: Standard SCCAP benefit amounts have been updated to reflect changes made effective January 2012 as a result of the Cost of Living Increase (COLA).

Section 19.4 Exception to South Carolina Combined Application Project (SCCAP) Eligibility: The medical expense threshold for opting out of SCCAP has increased from \$35 to \$50. This increase was effective January 2012. This section has also been reworded for clarity.

Volume 18 April 2012

Section 3.7 Interviews: The procedure for interviewing households who have filed applications has been re-defined to be consistent with Directive Memo D11-27, New Supplemental Nutrition Assistance Program (SNAP) Policy for Scheduling Telephone Interviews.

Section 9.3 Failure to Comply with SNAP Employment and Training Requirements (2) Notice of Adverse Action: Verbiage has been added to specify that change reporting policy (re: increase/decrease) in Section 15.4 does not apply when sanctioning for failure to comply with SNAP E &T.

Section 11.3 Earned Income (Z) Sick Pay Benefits Paid by Employer: A note has been added to this section along with a link to clarify that sick pay benefits paid by a source other than the employer (such as an insurance company) should be treated as unearned income.

Section 11.3 Earned Income (M) Educational Assistance: Exempts educational assistance in accordance with SC Medicaid policy.

Section 11.5 Unearned Income (G) Deferred Payment Loans for Education: This is no longer considered unearned income.

Section 11.7 Educational Assistance: This section has been changed to exercise the state option to exclude educational assistance in accordance with SC Medicaid rules and outlines the educational assistance that is excluded.

Section 15.5 Actions on Reported Changes (2) Decrease in Benefits: the phrase “or all adult household members have died” has been added to the first paragraph in this section to point out that cases should be closed when all adults in the household have died.

Section 17.2 Recertification Interview: The procedure for interviewing households who have filed annual recertifications has been re-defined to be consistent with Directive Memo D11-27, New Supplemental Nutrition Assistance Program (SNAP) Policy for Scheduling Telephone Interviews.

Volume 19 May 2012

Section 1.3 General Terms and Conditions (6) Retention of Records: Verbiage has been added to specify that eligibility records should be kept for four (4) years from the current date.

Section 7.4 Students (2) Student Exceptions: A link has been added to item “k” which takes the user to the E&T components section (Section 9.5).

Section 8.4 E&T Program Referrals: This section has been revised to add mandatory participation in E&T for ABAWDs residing in 10 additional counties.

Section 9.1 SNAP Employment & Training Program: This section has been revised to add South Carolina Department of Employment and Workforce as a partner to assist ABAWDs in securing employment, and to add mandatory participation in E&T for ABAWDs residing in 10 additional counties.

Section 9.2 Referrals to the SNAP Employment and Training Program: Anderson, Beaufort, Cherokee, Darlington, Georgetown, Greenville, Greenwood, Lancaster, Orangeburg and Sumter counties have been added to the list of counties mandatory for E&T by ABAWDs.

Section 9.3 Failure to Comply with SNAP Employment and Training Requirements: This section has been revised to include 10 additional mandatory E&T counties for ABAWDs as well as to add DEW as a provider.

Section 11.5 Unearned Income (OO) Social Security Benefits (SSA): This section has been corrected to specify that certification workers should use the “Total Net Amount” field on BDX for social security income.

Volume 20 October 2012

Section 3.7 Interviews: This section has been amended to include telephone interviews as a method for conducting initial interview with SNAP applicants. Procedures for the new On Demand interview process have also been added.

Section 6.8 Certification Periods: Verbiage has been added to this section to clarify that certification workers must set an alert in CHIP which instructs workers to close the case if the verification is not received within 30 days from the file date.

Section 8.6 Disqualification Periods for Failure to Comply with SNAP Work Requirements:

Clarification has been added to the note in this section to specify how the client initiates work registration.

Section 8.11 Voluntary Quit and Reduction of Work Effort (4) Determining Whether a Voluntary Quit or Reduction of Work Effort Occurred: This section has been updated to clarify that voluntary quit sanctions should be imposed the month following the month the voluntary quit occurred and was verified.

Section 11.1 Income Eligibility Standards: The gross and net monthly income limits have been updated for FFY2013.

Section 12.1 Income Deductions: The maximum excess shelter deduction, the Mandatory Utility Deduction (MUA), and Basic Utility Deduction (BUA) have been updated.

Section 12.2 Standard Deduction: The standard deduction has been updated for all household sizes.

Section 12.7 Child Support Deduction: The words “court ordered” have been added to this section to specify that a deduction is allowed for arrearages that are court ordered.

Section 12.8 Excess Medical Deduction: Item “C” in the chart has been updated to specify that a medical deduction cannot be allowed for prescribed drugs if they are considered illegal under federal law.

Section 13.6 Calculating Net Income and benefit Levels (2) Eligibility: The gross and net monthly income limits have been updated for FFY 2013.

Section 14.1 Treatment of Income and Resources of Certain Non-household Members (3) Ineligible Alien: An exception has been added to this section and a link to section 12.5(5) to clarify that the MUA and BUA are not prorated among eligible household members when there is an ineligible alien in the household.

Chapter 15, Change Reporting Requirements: Change reporting requirements for simplified reporters has been clarified and corrected to indicate that simplified reporters are only required to report when their income exceeds 130% of poverty. The requirement to report when they move out of state has been removed.

Section 15.4 Interim Changes for Simplified Reporting households (3) Other Interim Changes Reported by the Household: An exception has been added to this section to clarify that voluntary quit sanctions should be acted on regardless of the effect it has on the benefits.

Section 16.3 Adequate Notice When the Household’s Address is Unknown: This section has been changed to indicate that no action will be taken on mail (including initial approval notices) directed to a household has been returned until the next mandatory rebudget of the case.

Section 17.2 Recertification Interview: This section has been amended to include procedures for the new “On Demand” interview process.

Section 18.8 Scheduling the Fair Hearing: A phrase has been added to specify that a copy of the hearing *notification* will also be sent to the certification worker, supervisor and county director in both the residence county as well as the county where the action was taken.

Section 18.9 Fair Hearing Process: This section has been revised to include fair hearing procedures for the Regional Specialized Workload (RSW) process.

Section 18.12 Fair Hearing Decision (2) Notification: A phrase has been added to specify that a copy of the hearing *decision* will also be sent to the certification worker, supervisor and county director in both the residence county as well as the county where the action was taken.

Section 19.1 Definition of the South Carolina Combined Application Project (SCCAP): SCCAP thresholds/opt out limits for shelter high and shelter low have been adjusted.

Section 23.3 Classification of Recipient Claims (2) Inadvertent Household Error: This section has been reformatted for clarity by eliminating item “C” and creating a separate paragraph for this information.

Volume 21 March 2013

Section 5.1 Verification Prior to Certification (9) Medical expenses: A sentence was added explaining how to treat non-recurring medical expenses.

Section 6.6 Processing Standards for Expedited Service: Added verbiage that clarifies that both the interview and the processing of the application must be completed within the expedited timeframe.

Section 6.8 Certification Periods for Expedited Households: The word “postponed” has been added for clarity.

Section 7.4 Students (1) Applicability: A box has been added to provide hints for determining if someone is subject to student eligibility criteria.

Section 11.5 Unearned Income (OO) Social Security benefits: This section has been corrected regarding recoupments and a link added to clarify how to treat recouped Social Security income.

Section 11.5 Unearned Income (PP) Supplemental Security Income benefits: A link has been added to clarify how to treat recouped Supplemental Security Income. An exception was added to indicate the field on SDX that should be used when making a SCCAP eligibility determination.

Section 11.5 Unearned Income (RR) Third party payments/vendor payments: An exception has been added to exclude from the SNAP budget of a military retiree, income diverted to an ex-spouse under the Uniformed Services Former Spouse Protection Act.

Section 11.6 Income Exclusions (L): Income exclusion has been added where income diverted to an ex-spouse under the Uniformed Services Former Spouse Protection Act in the budget of a military retiree is excluded.

Section 12.8 Excess Medical Deduction: The phrase “out-of-pocket” was added for clarity.

Section 12.8 Excess Medical Deduction (F): Verbiage has been added to clarify the medical deduction pertaining to service animals.

Section 14.8 Treatment of FI Sanctions in the SNAP: Added link to Section 8.5

Section 15.4 Interim Changes for Simplified Reporting Households (2) Interim changes reported by the household that must be acted on: This section has been changed to clarify that reports received by the agency from another SNAP agency, that clients have moved out of state must be acted on, regardless of whether the change causes an increase or decrease in the SNAP allotment.

Section 19.1 Definition of the South Carolina Combined Application Project (SCCAP): Reflects the new benefit amounts effective January 2013 due to SSA Cost of Living Adjustments and the changes to the SCCAP definition in which clients with excess medical over \$50 and legally obligated child support may opt out.

Section 19.2 Eligibility Determination for the South Carolina Combined Application Project: Verbiage has been added to define the field on SDX that should be used when making a SCCAP eligibility determination.

Section 22.8 Authorizing Replacements for Household Misfortunes: The word “calendar” has been added to clarify the length of time in which the agency must replace an EBT card due to a household misfortune.

Volume 22 May 2013

Section 5.5 Income and Eligibility Verification System (IEVS)/ State Verification and Exchange System (SVES): This section has been changed to clarify the interfaces and query systems that must be reviewed prior to certification.

Section 5.7 Verification Subsequent to Initial Certification: Policy has changed whereby a reported change in actual rent/ mortgage expenses at recertification will not require verification if equal to or less than \$25.

Section 6.6 Processing Standards for Expedited Service: added a note explaining the circumstances in which a client can lose entitlement to expedited services.

Section 7.4 Students: An exception has been added to the hints for determining whether a person is subject to Student Eligibility Criteria which explains that verification of student status is unnecessary if an individual meets obvious student exemption.

Section 8.4 E&T Program Referrals: This section has been amended to add mandatory participation of ABAWDs in participating counties to the SNAP 2 WORK Program.

Section 9.1 SNAP 2 WORK Program: This section has been revised to reflect that South Carolina’s E&T Program, SNAP 2 WORK, has defined an ABAWD to household members 18-35 who are able bodied and have no dependents.

Section 9.2 Referrals to the SNAP 2 WORK Program: This section has been amended to reflect the process certification staff must follow when making a referral to the SNAP 2 WORK Program.

Section 9.3 Failure to Comply with SNAP 2 WORK Program Requirements: This section has been amended to explain the repercussions of a client's non-compliance in the SNAP 2 WORK program.

Section 9.5 SNAP 2 WORK Program Components: This section defines the components offered with the SNAP 2 WORK Program.

Section 9.7 Record Keeping for the SNAP 2 WORK Program: This section explains that case managers and providers will record SNAP 2 WORK participation.

Section 11.4 Self-employment Income (2) Determining self-employment income: Explains how self-employment income is prorated if ownership in a partnership is not equal.

Section 11.5 Unearned Income (PP) Supplemental Security Income (SSI) benefits: Clarifies that unearned income and in-kind income must be counted in addition to SSI when determining SCCAP eligibility.

Section 11.5 Unearned Income (DDD) Withdrawals (regular) from resources for categorically eligible HHs: This is no longer considered unearned income.

Section 12.3 Earned Income Deduction: Clarifies the type of income disregarded.

Section 12.8 Excess Medical Deduction (G): The word "personal" has been added for clarity.

Section 13.2 Determining Household Eligibility: Formula to determine a prorated benefit amount for an initial month has been added.

Section 16.2 Exemptions from Notice: An exception was added explaining that client who receive an annual adjustment to SSA, SSI or other federal benefits (i.e. Cost of Living Adjustment) must be given an adverse action notice prior to terminating or reducing a client's benefits.

Section 19.2 Eligibility Determination for the South Carolina Combined Application Project (SCCAP): Clarifies that unearned income and in-kind income must be counted in addition to SSI when determining SCCAP eligibility.

Section 19.4 Exception to South Carolina Combined Application Project (SCCAP) Eligibility: This section has been revised to reflect that households meeting the definition of SCCAP must only verify that expenses were "incurred" by the individual.

CHAPTER 31 Federal Tax Information: This chapter has been added to define Federal Tax Information (FTI), how to treat FTI and the process and penalties if FTI is improperly disclosed.

SNAP Tool Kit 7: SNAP 2 WORK Referral Guide: This section has been added to reflect the current referral contact information for mandatory SNAP 2 WORK counties.

Volume 23 November 2013

Section 2.2 Special Household Requirements An income chart has been added to use in determining separate household eligibility for elderly or disabled persons that are unable to eat and prepare meals separately from others living in their home.

Section 2.3 Ineligible Household Members: Clarification added regarding expunged or pardoned felony drug convictions.

Section 8.2 Exemptions from Work Requirements: This section has been clarified to specify that exemptions from work requirements should be reviewed when new household members are added.

Section 8.4 E&T Program Referrals: This section has been clarified to specify the SNAP 2 WORK referral process.

Section 9.1 The SNAP E&T Program: The age of an ABAWD has been redefined as a household member at least 18 years old but under age 50.

Section 9.2 E&T Program Exemptions: The E &T specific exemptions have been added.

Section 9.3 Referrals to the SNAP Employment and Training Program (E&T): This section has been clarified to specify the SNAP 2 WORK referral process.

Section 9.4 Failure to comply with SNAP 2 WORK Program Requirements: The disqualification periods for failure to comply with SNAP 2 WORK have been clarified.

Section 11.1 Income Eligibility Standards: The table containing the gross and net monthly income limits has been updated for FFY 2014.

Section 11.4 Self-Employment Income: has been reworded and reformatted to clarify how self-employment income is prorated if ownership in a partnership is not equal.

Section 12.1 Income Deductions: The maximum excess shelter deduction, the Mandatory Utility Deduction (MUA), and Basic Utility Deduction (BUA) have been updated.

Section 12.2 Standard Deduction: The standard deduction has been updated for all household sizes.

Section 13.6 Calculating Net Income and Benefit Levels: The table containing the gross and net monthly income limits has been updated for FFY 2014.

Section 19.1 Definition of the South Carolina Combined Application Project (SCCAP): SCCAP thresholds/opt out limits for shelter high and shelter low have been adjusted.

Section 31.5 Reporting of Improper Disclosures: The specific process which must be followed when FTI has been improperly disclosed has been corrected.

SNAP Tool Kit 7: SNAP 2 WORK Referral Guide: The SNAP 2 WORK referral guide has been updated to reflect the current referral contact information for mandatory SNAP 2 WORK counties.

Volume 24 January 2015

Section 2.2(1) Required Household Combinations – Spouses: This section has been updated in accordance with the Agricultural Act of 2014 to indicate that same sex spouses living together must be considered married for SNAP purposes if their marriage is recognized in the jurisdiction where the marriage occurred.

Section 5.1(6) Verification Prior to Certification, Alien Eligibility: This section has been updated to add a link to refer to **Section 7.3, Citizenship and Alien Status**, for a description of citizens and noncitizens who may be eligible to participate in SNAP.

Section 6.6 Processing Standards for Expedited Service: This section has been updated to add clarification to the note to indicate that households who meet the criteria for expedited services do not lose their entitlement to this service when they do not call by the 6th day if the delay is a result of an agency caused delay.

Section 7.3 Citizenship and Alien Status: This section has been condensed and simplified to aid in identifying which non-citizens must meet additional special SNAP non-citizen criteria and which qualified non-citizens do not have to meet additional requirements. This section is intended to be used in conjunction with SNAP Tool Kit #4 in order to determine what specific documents are acceptable to verify immigration status.

Section 7.4(2) Student Exemptions: This section has been updated to add verbiage to clarify the “physically or mentally unfit” exemption.

Section 12.1: Income Deductions: This section has been updated to provide the maximum excess shelter, MUA, and BUA amounts to reflect increases effective 10/01/14.

Section 12.2 Standard Deduction: This section has been updated to provide the Standard Deduction amounts to reflect increases effective 10/1/14.

Section 12.4(1) Excess Shelter Deduction: This section has been updated to add verbiage to clarify that households which **do not** contain an elderly or disabled member are entitled to a limited shelter deduction. A link to the maximum excess shelter amount in Section 12.1 (C) has also been added.

Section 12.5(2) Mandatory Utility Allowance (MUA): This section has been updated to change item B to reflect new Farm Bill provisions regarding allowing the MUA based on receipt of LIHEAP.

Section 19.1 Definition of the South Carolina Combined Application Project (SCCAP): This section has updated to change the new SCCAP income limits and shelter low and high thresholds.

Section 19.6 Responsibility for South Carolina Combined application project (SCCAP) Households: This section has been changed to add the verbiage “except when address on SDX is that of a representative payee.”

SNAP Tool Kit Attachment 4: This tool kit has been replaced with new charts to match the condensed charts in 7.3, Citizenship and Alien Status.

SNAP Tool Kit Attachment 7: This tool kit, SNAP 2 Work Referral Guide, has been replaced with the updated version dated 10/30/14.

Volume 25 April 2015

Section 2.2 (1) Required Household Combinations: This section has been updated to add a sentence to clarify that an 18-year-old who is included in the FI budget of an adult relative must be included in the same SNAP household as the adult relative.

Section 8.11 (4) Determining whether a voluntary quit or reduction of work effort occurred: This section has been updated to reword a sentence by adding the verbiage “is notified” for clarity.

Section 11.1 (2) Net Income Eligibility Standards: This section has been revised to update the table containing the gross and net monthly income limits for FFY 2015.

Section 11.7 Educational Assistance: This section has been updated to show that educational assistance used for living expenses will be counted as income in accordance with SC Medicaid rules.

Section 13.2 Determining Household Eligibility (1) Month of Application: This section has been corrected to show that a benefit will not be issued if the computation results in an allotment of less than \$10.

Section 13.2 Determining Household Eligibility (3) Anticipated Changes: This section has been reworded to change the word “denied” to the word “ineligible” for clarity.

Section 13.6 (1) Net Monthly Income: This section has been updated to add verbiage to clarify the maximum excess shelter amounts. Links to the Income Deductions and Excess Shelter Deduction have been added.

Section 13.6 (2) Eligibility: This section has been revised to update the table containing the gross and net monthly income limits for FFY 2015.

Section 15.7 (C): Unclear Information: This section has been updated to change the word “by” to the word “when” in the note for clarity.

Section 16.1 Use of Notice: This section has been updated to add a note to clarify the advance notice period that must be allowed when taking an adverse action on a SNAP case.

Section 18.9 Fair Hearing Procedures: This section has been updated to add an exception to clarify that fair hearing cases should be handled by the county of residence for system generated actions.

SNAP Tool Kit 4: Acceptable Verification of Alien Eligibility: This tool kit has been updated to correct INS form number for Alien Registration Receipt Card from I-551 to I-151.

SNAP Tool Kit 7: The SNAP 2 WORK Referral Guide: This tool kit has been revised to replace the guide with an updated version dated 04/15/15.

SNAP Tool Kit 8: National Directory of Contacts: The National Directory of Contacts has been added.

Volume 26 July 2015

Section 2.3 Ineligible Household Members (8) B: This section has been updated to add a link to show the connection with section 14.3 Residents of Drug and Alcohol Treatment and Rehabilitation Programs (DAA's).

Section 2.3 Ineligible Household Members (8) C: This section has been updated to add a link to show the connection with section 14.4 Residents of a Group Living Arrangement (GLA).

Section 2.3 Ineligible Household Members (8) D: This section has been updated to add a link to show the connection with section 14.5 Shelter for Battered Women and Children.

Section 2.3 Ineligible Household Members (8) E: This section has been updated to add a link to show the connection with section 14.6 Homeless SNAP Households.

Section 3.7 Interviews: This section has been changed to clarify that households in which all adult members are elderly or disabled “with no earned income” are certified for 24 months.

Section 6.2 Aggregate Allotments: This section has been updated to include the word “COMBINED” in the title.

Section 12.6 Dependent Care Deduction: This section has been changed to clarify that a dependent “should be in the SNAP household or should reside in the home of the SNAP household member”; and to clarify that the household must pay an individual outside of the SNAP household for the service.

Section 13.8 (1) (C) Certification Periods: This section has been changed to clarify that the Agency will certify for up to 24 months households in which all adult members are elderly or disabled “with no earned income.”

Section 14.3 Residents of Drug and Alcohol Treatment and Rehabilitation Programs (DAA's): This section has been updated to add a link to show the connection with section 2.3 (8) (B) Ineligible Household Members.

Section 14.4 Residents of a Group Living Arrangement (GLA): This section has been updated to add a link to show the connection with section 2.3 (8) (C) Ineligible Household Members.

Section 14.5 Shelter for Battered Women and Children: This section has been updated to add a link to show the connection with section 2.3 (8) (D) Ineligible Household Members.

Section 14.6 Homeless SNAP Households: This section has been updated to add a link to show the connection with section 2.3 (8) (E) Ineligible Household Members.

Section 15.3 Simplified Reporting Households: This section has been changed to clarify that households in which all “adult” members are elderly or disabled with no earned income are assigned a 24-month certification period; and to clarify that these SNAP households are not subject to simplified reporting requirements within each six-month certification.

Section 17.1 (2) Recertification Application: This section has been updated to change the verbiage to reflect the correct form number of the DSS Form 3807A.

Section 17.2 Recertification Interview: This section has been changed to clarify that households receive a 24-month certification period when all “adult” members are elderly or disabled “with no earned income”; and the verbiage has been changed to reflect the correct form number of the DSS Form 3808.

Section 18.2 Time Frames: This section has been updated to add the missing word “days” for clarity.

Section 20.5 Intentional Program Violation (IPV) Disqualification Time Periods: This section has been revised to update the chart to reflect the information in the Benefit Integrity Manual.

Section 22.4 Authorizing EBT Issuance: This section has been changed to clarify that benefits must be authorized no later than the “sixth” day after the application date so that eligible households can participate by the seventh day.

SNAP Tool Kit 7: The SNAP 2 WORK Referral Guide: This tool kit has been revised to replace the guide with an updated version dated 07/01/15.

SNAP Tool Kit 9: SNAP Cheat Sheets: This tool kit has been added and will contain various cheat sheets that are used on a regular basis by Economic Services staff. The Processing Standards for Expedited Service is the first cheat sheet included in this tool kit.

Volume 27 December 2015

Section 2.1 General Household Definitions: This section has been updated to clarify that an individual or “a group of individuals” may buy and prepare meals separately from others.

Section 2.2 Special Household Requirements: This section has been updated to clarify that a person who is living with his/her spouse must be included in the same SNAP household with the spouse.

Section 5.5 Income and Eligibility Verification System (IEVS)/ State Verification and Exchange System (SVES): This section has been updated to add verbiage to clarify that IEVS and SVES must be matched when adding individuals to the household (including a previously sanctioned individual).

Section 7.4 Students: This section has been updated to clarify that halftime enrollment must be defined by the institution.

Section 9.3 Referrals To The SNAP 2 Work Program: This section has been updated to add verbiage to clarify that individuals identified as ABAWDs must be referred to SNAP 2 WORK when added back to the SNAP household after serving a sanction.

Section 11.1 (2) Net Income eligibility standards: This section has been revised to update the table containing gross and net monthly income limits for the Federal Fiscal Year 2016.

Section 11.5 Unearned Income (J) Dividends, interest income and royalties: This section has been revised to remove “Interest income and royalties” from the note.

Section 11.5 Unearned Income (K) Dividends from excludable resources: This section has been updated to add a note with the following verbiage “All resources are excluded from categorically eligible households.”

Section 11.5 Unearned Income (U) Interest income, dividends and royalties: This section has been revised to remove “Dividends and royalties.”

Section 11.5 Unearned Income (II) Royalties, dividends and interest income: This section has been updated to remove “Dividends and interest income” from the note.

Section 12.1 Income Deductions/General: This section has been updated to provide the maximum excess shelter, MUA and BUA amounts to reflect changes effective 10/01/2015.

Section 12.2 Standard Deduction: This section has been updated to provide the standard deduction amounts to reflect the increases effective 10/01/2015.

Section 13.1 Prospective Eligibility: This section has been updated to change the word “greatly” to the word “significant.”

Section 13.5 Determining Deductions: This section has been changed to clarify that allowable deductions for dependent care expenses can only be granted if service is provided by someone outside of the SNAP household and the SNAP household must be making a money payment for the service.

Section 13.6 (2) Eligibility: This section has been revised to update the table containing the gross and net income limits for the Federal Fiscal Year 2016.

Section 14.3 (1) DAA Eligibility for SNAP: This section has been updated to correct the website for South Carolina Department of Alcohol and Other Drug Abuse Services (DAODAS) for clarity.

Section 15.4 Interim Changes for Simplified Reporting Household: This section has been updated to change the subtitle to indicate the interim changes are considered verified upon receipt. Death Reports have been removed and Employment information and Fleeing Felon Alerts have been added.

Section 19.1 Definition of the South Carolina Combined Application Project (SCCAP): This section has been updated to change the shelter thresholds for “shelter high” and “shelter low” SCCAP households.

The National Directory of Contacts has been updated to list the new email address and fax number for out of state inquiries for SNAP and TANF benefits for the state of South Carolina.

Volume 28 February 2016

Section 2.3 Ineligible Household Members (6): This section has been updated to include the verification of a pardon as an exception to the felony drug conviction disqualification effective February 2016.

Section 5.1 (9) Medical Expenses: This section has been updated to clarify the amount of medical expenses that must be verified in order to qualify for the Standard Medical Deduction and the Excess Medical Deduction.

Section 5.7 Verification Subsequent to Initial Certification: This section has been updated to clarify that the verified amount of the medical expenses will determine whether or not the household qualifies for a medical deduction.

Section 12.1 Income Deductions/General (I): This section has been updated to add a link to refer to Section 12.8, Medical Deduction to obtain information concerning the Standard Medical Deduction and the Excess Medical Deduction.

Section 12.8 Medical Deduction: This section has been updated to remove the word “Excess” from the section title and to provide November 2015 as the effective date of the Standard Medical Deduction, as well as the verified amounts required to qualify for this deduction.

Section 12.8 Medical Deduction (1) Non-recurring medical expenses: This section has been updated to add the word “adult” for clarity.

Section 13.6 Calculating Net Income and Benefit Levels (1) (D) Net monthly income: This section has been updated to remove the phrase “an excess” and to remove the word “Excess” from the link.

Section 13.6 (1) (H) Net Monthly Income: This section has been updated to clarify that if the amount of the Shelter Cost deduction is computed to a negative number, a zero (0) must be entered in the SNAP Manual Benefit Calculation.

Section 19.4 Exception to South Carolina Combined Application Project (SCCAP) Eligibility: This section has been updated to replace the phrase “out-of-pocket” with the word “excess” for clarity.

Volume 29 April 2016

Section 5.1 Verification Prior to Certification: This section has been updated to define verification.

Section 5.1 (11) Able-bodied Adults Subject to the Time Limit: This section has been revised to add the subsection title to specify the verification required for participating ABAWDs. The subsequent section has been renumbered.

Section 5.7 (1) (H) Verification Subsequent to Initial Certification: This section has been updated to include verification of work hours of ABAWDs subject to ABAWD time limit.

Section 8.1 Work Requirements: This section has been updated to explain that work registration is an eligibility requirement. In addition, the words “food stamps” have been replaced with SNAP and a note has been added to explain work registration for ABAWDs.

Section 8.2 Exemptions from Work Requirements: This section has been updated to add “including a previously sanctioned individual” for clarity; to add the EMPR codes to the exemption categories; to add a note to explain what happens when a person turns 16 or 18; and to add a statement that home schooling is included as a student exemption for secondary education for a student age 18 or older. In addition, annual has been added before the word “recertification” and the word “semi-annual” has been replaced with six-month recertification for clarity.

Section 8.2 (C) Drug Addiction and Alcohol Treatment and Rehabilitation Program Participants: This section has been updated to add the word “Rehabilitation” to the subsection title.

Section 8.3 The Agency’s Responsibilities for Work Registration: This section has been updated to add the verbiage “including a previously sanctioned individual” for clarity. In addition, a note has been added to indicate who is responsible for determining work registration status.

Section 8.4 SNAP E&T Program Referrals: This section has been updated to change the section title and the section has been updated to reflect that the E&T program is no longer mandatory.

Section 8.6 Disqualification Periods for Failure to Comply with SNAP Work Requirements: This section has been updated to revise the note for clarity.

Section 8.10 Good Cause for Voluntary Quit: This section has been updated to add “For Voluntary Quit” to the title of the section for clarity.

Section 8.12 Definition of ABAWD: This section has been created to define ABAWD.

Section 8.13 ABAWD Determination: This section has been created to indicate that the Agency is responsible for identifying existing and potential ABAWDs.

Section 8.14 ABAWD Work Requirement: This section has been created to explain how ABAWDs can fulfill the ABAWD work requirement.

Section 8.15 Exemptions from ABAWD Work Requirement: This section has been created to list individuals who are exempt from the ABAWD work requirement.

Section 8.16 Countable Months: This section has been created to define what is considered a countable month.

Section 8.17 ABAWD Reporting Requirement: This section has been created to explain what ABAWDs must report under Simplified Reporting requirements.

Section 8.18 Tracking the 36-month Period: This section has been created to explain how the ABAWD's time limit will be tracked.

Section 8.19 Regaining Eligibility: This section has been created to explain how ABAWDs may be eligible for an additional 3 months.

Section 8.20 Good Cause for Not Meeting ABAWD Participation Requirement: This section has been created to define good cause as it relates to ABAWD participation and work requirement.

Sections 9.1 – 9.6 Employment and Training Program (E&T): This chapter has been rewritten since the SNAP E&T program is no longer mandatory but is now a voluntary program.

Section 14.1 (2) SSN Disqualifications and Ineligible ABAWDs: This section has been updated to include "Ineligible ABAWDs" in the section subheading.

Section 15.3 Simplified Reporting Households: This section has been updated to include the verbiage "an ABAWD's participation hours fall below 20 hours per week" as a Simplified Reporting requirement. A note was also added to clarify Simplified Reporting requirement for households containing an ABAWD.

Section 15.4 (2) Interim Changes Reported by the Household that must be acted on: This section has been updated to include the verbiage "an ABAWD's participation hours fall below 20 hours per week" as a Simplified Reporting requirement.

Section 15.4 (3) Other Interim Changes Reported by the Household: This section has been updated to include the verbiage "ABAWD's participation hours fall below 20 hours per week" as a reporting requirement.

Volume 30 June 2016

Section 2.2(1) Required Household Combinations: This section has been updated to clarify that individuals under 18 years of age who are included in the FI budget of an adult relative must also be included in the same SNAP household as the adult relative.

Section 5.1 (1) Identity: This section has been updated to include an "IEVS" hit or documentation already on file as a means to verify identity.

Section 7.3 Citizenship and Alien Status: This section has been revised to update the chart to clarify that "certain family members of trafficking victims" may be eligible for SNAP.

Section 8.2 Exemptions from Work Requirements: This section has been updated to add a link to show the connection with section 8.1 Work Requirements. Also, the "Student exemption" has been updated to include federally recognized training programs through the Office of Refugee Resettlement.

Section 8.14 ABAWD Work Requirement: This section has been updated to clarify that an ABAWD may meet the work requirement by “having average earnings equal to 20 hours weekly times minimum wage”.

Section 8.16 Countable Months: This section has been revised to update the note to clarify that a worker may accept a written or verbal confirmation from another state of the number of countable months an ABAWD has used in that state and that the worker must adhere to normal processing standards. A link has been added to show the connection with section 6.1 Normal Processing Standards.

Section 15.4 (2) Interim Changes Reported by the Household that must be acted on: This section has been updated to clarify that the Agency must take action when an ABAWD moves out of the SNAP household and when a change in household circumstances causes a household member to become an ABAWD.

SNAP Tool Kit 4 Acceptable Verification of U.S. Citizenship and Alien Eligibility: This tool kit has been revised to update the chart to add “Certain Family Members of Trafficking Victims” and the U3 Class of Admission’s code.

SNAP Tool Kit 7 SNAP Employment & Training Referral Guide: This tool kit has been renamed and replaced with the SNAP Employment & Training Referral Guide. The SNAP 2 Work Referral Guide is now obsolete.

SNAP Tool Kit 8 National Directory of Contacts: This tool kit has been updated to include the revisions of the National Directory of Contacts as of May 3, 2016.

Volume 31 December 2016

Section 2.2 Special Household Requirements (Elderly and disabled persons): This section has been updated to reflect the increase in the gross monthly income (165 percent of poverty) of the household in which the elderly or disabled person lives.

Section 5.7 (1) Verification Subsequent to Initial Certification: This section has been updated to provide additional clarification for verification of medical expenses.

Section 7.4 (2) (K) Students: This section has been changed to update the title of the link and to associate the link to the appropriate section in the manual.

Section 8.14 ABAWD Work Requirement: This section has been updated based on FNS clarification that an ABAWD may meet the work requirement by working 20 or more hours a week, averaged 80 hours monthly.

Section 11.1 (2) Net Income Eligibility Standards: This section has been updated to reflect the changes in gross and net monthly income limits, effective October 1, 2016.

Section 11.3 (J) Earned Income: This section has been updated to reflect the name change of ABC Child Care Voucher System to SC Voucher.

Section 11.3 (M) Earned Income: This section has been updated to exclude educational assistance in accordance with SC TANF Policy.

Section 11.3 (CC) Earned Income: This section has been updated to reflect the name change of Workforce Investment Act (WIA) to Workforce Innovation and Opportunity Act (WIOA).

Section 11.3 (II) Earned Income: This section has been updated to reflect the name change of Workforce Investment Act (WIA) to Workforce Innovation and Opportunity Act (WIOA).

Section 11.5 (J) Unearned Income: This section has been updated to reflect that SNAP will follow SC TANF Policy regarding dividends.

Section 11.5 (L) Unearned Income: This section has been updated to reflect that SNAP will follow SC TANF Policy regarding educational assistance.

Section 11.5 (U) Unearned Income: This section has been updated to reflect that SNAP will follow SC TANF Policy regarding interest income.

Section 11.5 (II) Unearned Income: This section has been updated to reflect that SNAP will follow SC TANF Policy regarding royalties.

Section 11.5 (JJ) Unearned Income: This section has been updated to reflect that SNAP will follow SC TANF Policy regarding scholarships.

Section 11.6 (A) Income Exclusions: This section has been updated to exclude educational assistance in accordance with SC TANF Policy.

Section 11.6 (B) Income Exclusions: This section has been updated to exclude educational assistance vendor payments in accordance with SC TANF Policy.

Section 11.7 Educational Assistance: This section has been updated to reflect that **all** educational assistance is excluded under SC TANF Policy.

Section 11.8 (B) Federal Law Income Exclusions: This section has been updated to change the acronym “WIA” to “WIOA.”

Section 11.8 (C) Federal Law Income Exclusions: This section has been updated to reflect the name change of ABC Child Care Voucher System to SC Voucher.

Section 11.8 (F) Federal Law Income Exclusions: This section has been updated to reflect the name changes for Workforce Investment Act (WIA) to Workforce Innovation and Opportunity Act (WIOA) and Employment Security Commission (ESC) to Department of Employment and Workforce (DEW).

Section 12.1 Income Deductions/General: This section has been updated to reflect changes in income deductions for maximum excessive shelter, MUA, BUA, and the telephone allowance, effective October 1, 2016.

Section 12.2 Standard Deduction: This section has been updated to reflect the increase in the standard deduction for a household size of 1-3, effective October 1, 2016.

Section 12.5 (2) (B) Utility Allowances: This section has been updated to clarify that a change in the household's residence or address would not affect the household entitlement to the MUA if the household received a LIHEAP payment over \$20 in the current or preceding 12 months.

Section 12.6 (C) Dependent Care Deduction: This section has been updated to reflect the name change of ABC Child Care Voucher System to SC Voucher.

Section 13.6 (2) Eligibility: This section has been updated to reflect the changes in the gross and net income limits, effective October 1, 2016.

The acronyms "BG" and "HH" have been replaced throughout the manual with the word "household."

Volume 32 March 2017

6.1 Normal Processing Standards: This section has been updated to add a link and associate the link to the appropriate section in the manual.

6.6 Processing Standards for Expedited Service: This section has been updated to add a link and associate the link to the appropriate section in the manual.

8.2 (C) Exemption from Work Requirements: This section has been updated to clarify and define drug addiction or alcoholic treatment and rehabilitation program.

8.2 (H) Exemption from Work Requirements: This section has been updated to remove the word "Recipients" from the heading to clarify that an individual does not have to be a recipient to qualify for this exemption.

8.14 ABAWD Work Requirement: This section has been updated to clarify the meaning of work and to define an established volunteer work site.

8.19 Regaining Eligibility: This section has been revised to clarify the meaning of 30 consecutive days.

11.4 (2) (A) (2) Determining Self-Employment Income: This section has been updated to reflect the new website address to contact if there is a question concerning whether a business is legally incorporated.

11.5 (AAA) Unearned Income: This section has been updated to replace Medicaid with TANF and to clarify that Veterans Educational Benefits used for the purpose other than tuition and mandatory fees are countable unearned income in accordance with SC TANF Policy.

13.1 Prospective Eligibility: This section has been updated to clarify the budgeting procedures for child support income/payments that are interfaced by CSSD in CHIP.

15.4 Interim Changes for Simplified Reporting: This section has been updated to specify that the Agency must take action when a household reports that an ABAWD has obtained employment.

18.2 Time Frames: This section has been revised to clarify that a household may request a fair hearing disputing its current level of benefits at any time within a certification period.

18.5 (1) (B) Responsibilities Regarding the Fair Hearing Process: This section has been revised for clarity.

18.5 (2) (E) Responsibilities Regarding the Fair Hearing Process: This section has been updated to state that certification supervisors must attend and participate in fair hearings.

18.6 (B) Denial/Dismissal of Fair Hearing Requests: This section has been updated to add the preferred methods of withdrawal from a Fair Hearing.

19.1 Definition of the South Carolina Combined Application Project (SCCAP): This section has been updated to reflect changes in income and shelter thresholds for “shelter high” and “shelter low” SCCAP households.

22.3 (C) Agency Responsibilities for SNAP Issuance: This section has been updated to reflect that new Replacement cards are authorized through XEROX as opposed to the old service provider, JP Morgan.

Chapter 31 Federal Tax Information: This chapter has been deleted to comply with safeguard audit requirements.

SNAP Tool Kit 8: National Directory of Contacts: The National Directory of Contacts has been removed from the SNAP Manual. It is now located on the Intranet and can be accessed by clicking on the Program Area heading and the County Operations tab.

Family Independence and the acronym “FI” have been replaced throughout the SNAP manual to Temporary Assistance to Needy Families and “TANF”.

Child Support Enforcement Division and the acronym “CSED” have been replaced throughout the SNAP Manual to Child Support Services Division and “CSSD”.

The acronym “FS” has been replaced throughout the SNAP Manual to “SNAP”.

Volume 33 April 2017

5.1 (1) Verification Prior To Certification (Identity): This section has been updated to remove “collateral contacts” as a method of verification for identity.

5.2 (1) Sources of Verification (Documentary evidence): This section has been updated to remove home visit as a source of verification.

5.2 (2) Sources of Verification (Collateral contacts): This section has been updated to remove home visit as a source of verification.

5.2 (3) Sources of Verification (Home Visits): This section has been deleted since home visits will no longer be utilized as a source of verification.

8.16 Countable Months: This section has been updated to include the 15 percent exemptions. In addition, this section has been updated to add several links and to associate the links to the appropriate sections in the manual.

8.19 Regaining Eligibility: This section has been updated to clarify that a SNAP household member may initiate the process to regain eligibility to participate in SNAP by requesting to be added to the SNAP budget as well as by filing a SNAP application.

8.21 ABAWD 15 Percent Exemption: The section has been revised to update the note to remove reference to the State Office Designee being responsible for authorizing 15 percent exemptions.

14.1 (2) SSN Disqualifications and Ineligible ABAWDs: This section has been updated to clarify that it applies to households containing an ineligible ABAWD as well as households containing individuals determined to be ineligible due to refusal to obtain or provide an SSN.

22.3 (2) Agency Responsibilities for SNAP Issuance (SNAP certification worker responsibilities): The section has been updated to add a note to indicate that identity must be verified prior to issuing an EBT card.

SNAP Tool Kit 4: Acceptable Verification of Alien Eligibility: This section has been updated to remove two bullet points that were duplicated in the chart.

SNAP Tool Kit 8: SNAP Cheat Sheets: This tool kit has been updated to include an Ineligible Non-Citizens chart and a Commonly Used Non-Citizen COA Codes chart.

The Division of Family Assistance (FA) has been updated to Office of Economic Services throughout the SNAP Manual.

Volume 34 September 2017

1.7 Conflicts of Interest: This section has been updated to change the title from Actions of Cases on Relatives to Conflicts of Interest, and to clarify that an Economic Services worker cannot take action on his/her own case and the cases of relatives, friends, co-workers, known associates and people in which the worker has a conflict of interest.

2.1 General Household Definition: This section has been updated to explain the concept of “living together” in order to determine who must be included in the same SNAP household.

2.2 (7) Special Household Requirements: This section has been updated to define temporary absence.

2.3 Ineligible Household Member: This section has been updated to add ABAWDs as ineligible household members due to the ABAWD time limit. In addition, FIOS contact information has been moved to Section 7.5 and the information has been linked to the appropriate section.

3.4 (2) Filing an Application/Contacting the SNAP Office: This section has been updated to clarify that a copy of the completed application form must be provided to the household upon request.

3.7 Interviews: This section has been updated to remove information indicating that an interview may be conducted at a household's residence.

5.5 Income and Eligibility Verification System (IEVS)/ State Verification and Exchange System (SVES): This section has been updated to add policy regarding New Hires (State Directory of New Hires (SDNH) and National Directory of New Hires (NDNH)).

7.4 (2) Students/Student Exemptions: This section has been revised to state that the student eligibility criteria may be met by being employed for **an average of 20 hours per week** instead of being employed a minimum of 20 hours per week.

7.5 Fleeing Felons and Probation/Parole Violators: This section has been added to define fleeing felon and probation/parole violator.

8.11 (6) Ending a Voluntary Quit or a Reduction in Work Disqualification: This section has been updated to clarify that a participating household may contact the Agency to request that a previously sanctioned individual be added to the SNAP budget following the end of a mandatory disqualification period.

8.13 ABAWD Determination: This section has been updated to indicate that ABAWDs must be notified both verbally and in writing of the ABAWD time limit.

8.14 ABAWD Work Requirement: This section has been updated to note that the ABAWD Work Requirement is also known as ABAWD Participation Requirement (APR) in South Carolina.

8.15 Exceptions from ABAWD Work Requirements: This section has been updated to change the word, "exemptions" to "exceptions" in the title of the section.

8.16 Countable Months: This section has been updated to redefine what is considered a countable month and to add the phrase "or is otherwise exempt" for clarity.

8.19 Regaining Eligibility: This section has been reworded for clarity.

11.4 (2) Determining self-employment income: This section has been updated to clarify which form should be used to determine the percentage of the business a client owns as it relates to a Partnership or a Corporation.

11.5 (W) Unearned Income (Kinship Care): This section has been updated due to the implementation of the Kinship Foster Care Program in South Carolina.

12.6 Dependent Care Deduction: This section has been updated to provide clarification on the dependent care deduction and to add allowable dependent care costs.

15.3 Simplified Reporting Households: This section has been revised to remove “An ABAWD’s work hours fall below 20 hours per week” since this does not apply to the households in which all adult members are elderly or disabled with no earned income.

15.7 Unclear Information: This section has been updated to define unclear information and when a request for contact may be made to clarify and/or verify unclear information during the certification period.

19.1 Definition of the South Carolina Combined Application Project (SCCAP): This section has been updated to reflect the current shelter threshold for “shelter high” and “shelter low” for SCCAP households.

22.4 Authorizing EBT Issuance: This section has been updated to explain the issuance cycle of SNAP benefits based on the last digit of the recipient’s SNAP case number.

23.2 Possible Recipient Claims (1) Certification Staff Responsibilities for Possible Recipient Claims: This section has been updated to mirror the current certification workers’ responsibilities as outlined in the SNAP/TANF Program Benefit Integrity Manual.

SNAP Tool Kit 1: Accommodations Assessment for LEP Clients: This section has been updated with a current version of the Accommodations Assessment for LEP Clients.

SNAP Tool Kit 2: Important Points for LEP/SI Clients: This section has been updated with a current version of the Important Points for LEP/SI Clients.

SNAP Tool Kit 4: Acceptable Verification of U. S. Citizenship & Non-Citizen Eligibility: This section has been updated to remove the I-151, Alien Registration Receipt Card from the Tool Kit as it is no longer valid. In addition, the name of the I-551 has been changed from Resident Alien Card to Permanent Resident Card and the card now contains 2-year or 10-year expiration dates. However, the older versions of the I-551, Resident Alien cards, do not have expiration dates and may still be valid.

SNAP Tool Kit 8: SNAP Cheat Sheets: This section has been updated to include an additional COA code on the Commonly Used Non-Citizen COA Codes chart.

I-151 has been removed throughout the SNAP Manual.

The word “Recertification” has been replaced throughout the SNAP manual to “Renewal.”

The word “Alien” has been replaced throughout the SNAP manual to “Non-citizen.”

Immigration and Naturalization Service and the acronym “INS” have been replaced throughout the SNAP manual to United States Citizenship and Immigration Services and “USCIS.”

Recipient Claims Worker and the acronym “RCW” have been replaced throughout the SNAP Manual

to Benefit Integrity Claims Specialist and “BICS.”

Volume 35 October 2017

2.2 (2) Special Household Requirements: This section has been updated to reflect the increase in the gross monthly income (165 percent of poverty) that is used in determining separate household eligibility for an elderly and disabled individual who is unable to buy and prepare meals separately from others with whom the individual lives.

3.7 Interviews: This section has been updated to clarify that a household’s residence is no longer a mutually acceptable location to conduct an interview, per Executive Management.

8.17 ABAWD Reporting Requirements (2) Non-Reportable Change: This section has been updated to clarify when to start tracking countable months if a household does not report a “non-reportable change” which occurred during the certification period that would have caused a household member to be subject to the ABAWD time limit.

8.21 ABAWD 15 Percent Exemptions: This section has been updated to change the ABAWD Coordinator to the State Office Designee as the point of contact for authorizing the usage of the 15 percent exemptions.

11.1 (2) Net Income Eligibility Standard: This section has been updated to reflect the changes in gross and net monthly income limits, effective October 1, 2017.

12.1 Income Deductions/General: This section has been updated to reflect changes in income deductions for maximum excessive shelter, MUA, BUA, and the telephone allowance, effective October 1, 2017.

12.2 Standard Deduction: This section has been updated to reflect the increase in the standard deduction for all household sizes, effective October 1, 2017.

13.6 (2) Eligibility: This section has been updated to reflect the changes in the gross and net income limits, effective October 1, 2017.

19.1 Definition of South Carolina Application Project (SCCAP): This section has been updated to reflect changes in shelter thresholds for “shelter high” and “shelter low” SCCAP households, effective October 1, 2017.

22.8 Authorizing Replacements for Household Misfortunes: This section has been updated to remove home visit as a source of verification for a household’s misfortune.

SNAP Tool Kit 7 SNAP Employment and Training Referral Guide September 2017: This section has been updated to reflect the current SNAP Employment & Training Referral Guide.

Volume 36 January 2018

1.3 (3) General Terms and Conditions (Disclosure): This section has been revised to update the disclosure language pertaining to the third-party rule.

7.3 (2) Citizenship and Non-Citizen Status (Sponsored Non-citizens): This section has been updated to remove links for 7.3 (4), Deeming of sponsors income and resources, since this section is no longer valid.

8.2 (G) Exemptions from Work Requirements (Students): This section has been updated to clarify that school attendance for adults includes Secondary or Adult Education.

8.2 (H) Exemptions from Work Requirements (Unemployment Compensation): This section has been updated to reflect the name change from Employment Security Commission (ESC) to Department of Employment and Workforce (DEW).

8.14 ABAWD Work Requirement: This section has been updated to clarify that an ABAWD must be working 20 hours a week or averaging 80 hours monthly.

11.4 (2) Self-Employment Income: This section has been updated to clarify which lines to use to determine income for self-employment when using the Schedule C Form 1040.

11.6 (K) Income Exclusions: This section has been updated to add a “Note” to clarify exclusions to Veteran’s educational benefits.

12.8 (2) (H) Medical Deduction: This section has been updated to reflect that attendant care costs can be treated as a medical deduction or a dependent care deduction.

18.5 (G) Responsibilities Regarding the Fair Hearing Process: This section has been revised to update the disclosure language pertaining to the third-party rule.

19.1 Definition of South Carolina Application Project (SCCAP): This section has been updated to reflect the new SCCAP income limits and shelter thresholds for “shelter high” and “shelter low”, effective January 1, 2018.

SNAP Tool Kit 7 SNAP Employment & Training Referral Guide: This section has been updated to reflect the current SNAP Employment & Training Referral Guide.

State Verification Eligibility System (SVES) has been updated throughout the SNAP Manual to State Verification and Exchange System.

Volume 37 March 2018

1.3 (4) Information available to the public: This section has been updated to replace SNAP with Economic Services (ES) Policy when referring to the Unit, and to clarify that the SNAP Policy Manual is available online for examination by the public.

3.3 (1) Household’s right to file: This section has been updated to include “other electronic transmission” and “telephonic application” to the list of ways SNAP applications may be submitted to the SNAP office.

5.5 Income and Eligibility Verification System (IEVS)/State Verification and Exchange System (SVES):

This section has been updated to remove DHEC Death Match because it has been discontinued. In addition, two hyperlinks have been added to Prisoner and Death Matches to link them to section 15.7, Unclear Information.

7.5 Fleeing Felons and Probation/Parole Violators: This section has been updated to clarify when to contact Fugitive Information Offender Surveillance (FIOS) Central Office in reference to a fleeing felon and probation/parole violator.

10.3 (ii) and (vi) Definition of Resources: This section has been updated to add Funeral Agreement and Educational Savings Account information, and the roman numerals have been updated subsequently.

10.7 (D) Exclusions from Resources: This section has been updated to add Educational Savings Accounts (with a description) as an excluded resource, and letters have been updated subsequently.

10.7 (G) Exclusion from Resources (Funeral agreement): This section of the chart has been updated to show that funeral agreements and burial contracts are the same and to remove the \$1,500 limit.

10.7 (N) Exclusions from Resources: This section has been updated to add Individual Retirement Accounts as an excluded resource.

11.5 (PP) Unearned Income (Supplemental Security Income (SSI) benefits: This section has been updated to clarify that the first “Exception” has been re-worded to clarify the income that should be used on SDX to determine SCCAP eligibility and the second “Exception” applies to non-SCCAP cases.

12.8 (2) (C) Medical Deduction: This section has been updated to clarify that Schedule 1 controlled substances are not allowable medical expenses.

12.8 (2) (F) Medical Deduction: This section has been updated to reflect that in order for the cost of maintaining any service animal to be a deductible medical expense, it must be prescribed or **approved** by a State-licensed or qualified practitioner.

14.9 Participation of Deceased Individuals: This section has been updated to clarify that a request for information on deceased individuals must be made before adding a new household member to the SNAP budget. In addition, this section has also been updated to move instructions/guidance to section 15.7, Unclear Information, and to link this section to the appropriate section in the manual.

15.4 (1) (F) Interim changes considered verified upon receipt: This section has been updated to remove Fleeing Felon Alerts* and to act on confirmation of the information as verified upon receipt by contacting FIOS* and to replace it with “when a loan enforcement officer presents a felony arrest warrant that contains a fleeing code as one of the criteria in which the Agency must take action”.

15.4 (2) (I) & (J) Interim changes reported by the household that must be acted on: This section has been updated to specify that the Agency must take action when an ESAP household reports an addition of a new household member who is under age 60 or that a household member receives earned income.

15.7 Unclear Information: This section has been updated to provide instructions/guidance on taking action on Death and Prison Matches.

19.2 Eligibility Determination for the South Carolina Combined Application Project (SCCAP): This section has been re-worded in the “note” to clarify the income that should be used on SDX to determine SCCAP eligibility.

19.11 Eligibility for the Elderly Simplified Application Project (ESAP): This section has been updated to reflect that eligible ESAP households are assigned a 36-month certification period.

19.13 Determining continued eligibility for Elderly Simplified Application Project (ESAP) households: This section has been updated to reflect that the DSS Form 3808 Interim Contact is required to be completed by ESAP households at the 12th month & 24th month of the 36-month certification period and the DSS Form 3809 is required to be completed in the 36th month.

19.14 Changes in Elderly Simplified Application Project (ESAP) Households: This section has been updated to link to section 15.4 (2).

22.8 Authorizing Replacement for Household Misfortunes: This section has been updated to remove the reference to the MR220 as a responsibility of the EBT Coordinator since this report is no longer being produced.

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3.3 (1) Filing an Application for SNAP (Household’s right to file): This section has been updated to reflect that an application must now be registered in SC Worker Input Network and Support (SCWINS) System instead of CHIP.

3.7 Interviews: This section has been updated to reflect that applications and annual renewals must be registered in SC Worker Input Network and Support (SCWINS) System instead of CHIP.

13.1 Prospective Eligibility: This section has been updated to clarify that CSSD is only contacted when the household disputes the amount of the child support income that is being counted in the SNAP budget.

19.2 Eligibility Determination for the South Carolina Combined Application Project (SCCAP): This section has been updated to remove the reference that processing of a SCCAP participant is achieved without county office involvement since SCCAP “Y” eligibility will now be determined by local county DSS office staff.

19.3 Processing Households Eligible For The South Carolina Combined Application Project (SCCAP): This section has been updated to reflect that applications are registered in SCWINS and no

interview is required for SCCAP “Y” households. In addition, this section has been updated to reflect that SCCAP “Y” households will be assigned a 48-month (4-year) certification period.

19.4 Exception to South Carolina Combined Application Project (SCCAP) Eligibility: This section has been updated to reflect that the DSS Form 1205 may be registered as a regular SNAP or ESAP application, when applicable. In addition, this section has been updated to clarify the proper coding for the SCCAP indicator field on CHIP INRD screen for SCCAP households who choose to opt out of SCCAP “Y”.

19.5 SSA Procedures for the South Carolina Combined Application Project (SCCAP): This section has been updated to reflect that the Social Security Administration (SSA) will transfer SDX information for the SCCAP project to SCDSS instead of to the SCCAP unit since this unit no longer exists.

19.6 Responsibility for South Carolina Combined Application Project (SCCAP) Households: This section has been updated to reflect that local county DSS offices assume full responsibility for SCCAP “Y” cases.

19.8 Changes in South Carolina Combined Application Project (SCCAP) Households: This section has been updated to reflect the new procedures to follow to change a regular SNAP household to SCCAP “Y” and to change a SCCAP “Y” to regular SNAP.

19.9 Recipient Claims for South Carolina Combined Application Project (SCCAP) Households: This section has been updated to reflect that possible claims for SCCAP cases should be referred to the Benefit Integrity supervisor in the county of residence.

19.10 Definition of The Elderly Simplified Application Project (ESAP): This section has been updated to reflect that local county DSS offices assume full responsibility for ESAP cases.

19.11 Eligibility for The Elderly Simplified Application Project (ESAP): This section has been updated to reflect that ESAP households must complete an interview at initial application and reapplication and notification of eligibility is sent by local county DSS offices.

19.12 Processing Households Eligible for The Elderly Simplified Application Project (ESAP): This section has been revised to update the procedures and to reflect that ESAP households must complete an interview at initial application and reapplication.

19.13 Determining Continued Eligibility for The Elderly Simplified Application Project (ESAP): This section has been updated to remove the reference that the DSS Form 3808 is returned to the centralized ESAP unit since this unit no longer exists. In addition, this section has been updated to reflect that ESAP households will not have to verify any additional information to determine eligibility, unless questionable.

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2.2 (1) Required Household Combinations: This section has been updated to reflect that same sex marriages are now legal in all 50 states, based on the U.S. Supreme Court ruling of June 2015.

3.7 Interviews: This section has been updated to remove language that references documentation of hardship for telephone interviews since it is no longer a requirement. In addition, verbiage has been added to clarify that a Notice of Missed Interview (NOMI) must be sent to households if they missed an interview (face-to-face or telephone).

4.5 (2) Temporary Assistance for Needy Families (TANF) Applicant Households: The section has been revised to reflect that a face-to-face interview is no longer required for TANF.

5.1 (11) Verification Prior to Certification: This section has been updated to reflect that prior to certification, the hours of an individual's participation in workfare must be verified.

7.4 (2) (B) Student Exemptions: This section has been revised to remove verbiage regarding the purpose of the exemption for "physically or mentally unfit".

8.14 ABAWD Work Requirement: This section has been updated in order to add workfare as a component to fulfill the ABAWD Work Requirement.

8.19 Regaining Eligibility: This section has been updated to hyperlink to section 8.14 and to state that there is no limit on how many times an ABAWD may regain eligibility and subsequently maintain eligibility by meeting the work requirement. In addition, this section has been updated to add verbiage pertaining to how an allotment should be prorated if an individual is participating in a workfare program.

12.8 (2) Medical Deduction: This section has been updated to clarify that a client's statement, verbal or written, is acceptable to verify the need for a service animal as well as the task(s) the animal has been trained to perform. However, in order to receive a medical deduction, the cost(s) associated with having a service animal must be verified by bills, receipts, etc.

15.3 Simplified Reporting Households: This section has been updated to hyperlink to sections 15.5, 15.6, and 19.13 as well as Chapter 17 and to clarify the reporting requirements for Simplified Reporting Households.

18.12 (5): Fair Hearing Decision: This section has been updated to add the Agency's responsibility for implementation of fair hearing decisions.

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2.2 (2) Special Household Requirements (Elderly and disabled persons): This section has been updated to reflect the increase in the gross monthly income (165 percent of poverty) that is used in determining separate household eligibility for an elderly and disabled individual who is unable to buy and prepare meals separately from others with whom the individual lives.

3.2 SNAP Application Form: This section has been updated to reflect the full title of the DSS Form 3800 and the note has been removed since the DSS Form 1667 is obsolete.

3.8 Household Cooperation with SNAP Quality Control (QC) Reviewer: This section has been updated to reflect a change from 95 to **125** days from the end of the annual review period that a household may reapply for SNAP benefits after being terminated for refusal to cooperate with a State QC reviewer and not be determined ineligible.

4.5 Temporary Assistance for Needy Families (TANF) Applicant Households: This section has been updated to reflect the full title of the DSS Form 3800 and the note has been removed since the DSS Form 1667 is obsolete.

6.4 Delays in Processing the Application: This section has been updated to clarify if the household is at fault for not completing the application process by the end of the second 30-day period, the household must file a new application in order for the Agency to make an eligibility determination.

8.10 Good Cause for Voluntary Quit : This section has been updated to change the title to Good Cause for Failure to Comply with SNAP Work Requirements in order to clarify that good cause must be established for failure to comply with any SNAP Work requirement.

8.19 Addition Three-Month Eligibility: This section has been updated to clarify that an ABAWD can only receive three additional months if he/she has regained eligibility by meeting the ABAWD work requirement and is no longer fulfilling the ABAWD work requirement.

8.21 ABAWD 15 Percent Exemption: The section has been revised to update the note to remove reference to the State Office Designee being responsible for authorizing 15 percent exemptions.

11.1 (2) Net Income Eligibility Standard: This section has been updated to reflect the changes in gross and net monthly income limits, effective October 1, 2018.

11.3 (L) Earned Income (Compensated Work Therapy): This section has been updated to add Compensated Work Therapy to the Earned Income Chart. Subsequent entries in the Earned Income Chart have been re-alphabetized accordingly.

12.1 Income Deductions/General: This section has been updated to reflect changes in income deductions for maximum excessive shelter and the BUA, effective October 1, 2018.

12.2 Standard Deduction: This section has been updated to reflect the increase in the standard deduction for all household sizes, effective October 1, 2018.

13.6 (2) Eligibility: This section has been updated to reflect the changes in the gross and net income limits, effective October 1, 2018.

15.3 Simplified Reporting Households: This section has been updated to clarify that a required change must be reported by the 10th day following the month the change occurred.

15.4 (2) Interim Changes for Simplified Reporting Households: This section has been updated to state that during the certification period, a household may report any changes it chooses to report.

15.4 (3) Interim Changes for Simplified Reporting Households: This section has been updated to state that during the certification period, a household may report any changes it chooses to report.

15.5 (2) Actions on Reported Changes: This section has been updated to specify the requirements of the notices to use when decreasing a household's benefits.

16.1 Use of Notice: This section has been updated to remove the use of "adequate" to clarify the type of notice to send when the household benefits will be reduced or terminated, no later than the date the household receives, or would have received its allotment.

19.1 Definition of South Carolina Application Project (SCCAP): This section has been updated to reflect changes in shelter thresholds for "shelter high" and "shelter low" SCCAP households, effective October 1, 2018.

19.4 Exception to South Carolina Combined Application Project (SCCAP) Eligibility: This section has been updated to reflect the full title of the DSS Form 3800.

22.3(1) Agency Responsibilities for SNAP Issuance: This section has been updated to reflect the full title of the DSS Form 3800.

22.3(2) Agency Responsibilities for SNAP Issuance: This section has been updated to remove the note since DSS Flyer 24118 is now obsolete.

25.4 SNAP Households' Responsibility in the Quality Control (QC) Process: This section has been updated to reflect that refusal to cooperate with a State QC reviewer will result in a closure of the case until the household cooperates or 125 days after the end of the annual review period.

Volume 41 January 2019

3.3 (2) Filing An Application for SNAP (Contacting the SNAP office): This section has been updated to reflect that an application can be registered in any county regardless of the applicant's county of residence.

3.3 (3) Filing An Application for SNAP (Applications Filed Through Outreach Partners): This section has been added since applications may be filed through Outreach Partners. Subsequent sections have been renumbered accordingly.

5.1 (12) Verification Prior to Certification (Students): This section has been added to reflect that prior to certification, verification of a student's physical or mental unfitness must be verified. Subsequent sections have been renumbered accordingly.

5.1 (13) Verification Prior to Certification (Refusal to cooperate with QC): This section has been added to reflect that prior to certification, the Agency will verify all factors of eligibility for households who have been terminated for refusal to cooperate with QC. Subsequent section has been renumbered accordingly.

8.3 The Agency's Responsibilities for Work Registration: This section has been updated to state that household members are considered registered when a **renewal form** is signed as well as when an application is filed.

8.15 Exceptions to ABAWD Work Requirement: This section has been updated to reflect that an individual who meets an exception to the ABAWD Work Requirement is not an ABAWD and is not subject to the three-month time limit.

11.4 (2) Self-Employment Income: This section has been updated to clarify that an independent contractor is considered self-employed and to indicate which forms to use when determining income from self-employment for independent contractors.

11.5 (T) Unearned Income (Indian payments for tribes): This section has been revised to add exceptions for tribal dividend money deposited into a child's trust and the treatment of casino profit payments.

15.4 Interim Changes for Simplified Reporting Households: This section has been updated to clarify that the Agency may act on a change reported by the household due to a loss income as a result of a voluntary quit or **reduction of work effort** when good cause cannot be established.

15.4 (G) Interim Changes For Simplified Reporting Households: This section has been updated to specify that the Agency must take action when a change in household circumstances reveals that a SNAP household member is an ABAWD.

17.2 Renewal Interview: This section has been updated to reflect that applications and annual renewals must be registered in SC Worker Input Network and Support (SCWINS) System instead of CHIP.

Section 19.1 Definition of the South Carolina Combined Application Project (SCCAP): This section has been updated to reflect the new SCCAP income limits and shelter thresholds for "shelter high" and "shelter low", effective January 1, 2019.

Section 19.2 Eligibility Determination for the South Carolina Combined Application Project (SCCAP): This section has been updated to remove verbiage pertaining to recipients being exempt from SNAP E&T.

SNAP Tool Kit 7 SNAP Employment & Training Referral Guide: This section has been updated to reflect the current SNAP Employment & Training Referral Guide.

The acronym "BDX" has been replaced throughout the SNAP Manual with BENDEX.

The words “certification worker” and “SNAP certification worker” have been replaced throughout the SNAP manual to “Economic Services worker”.

The words “certification supervisor”, “SNAP or TANF supervisor”, and “eligibility supervisor” have been replaced throughout the SNAP manual to “Economic Services supervisor”.

Revisions have been made throughout Chapter 9 to reflect edits made by the Employment Services Division regarding the SNAP Employment and Training (SNAP E&T) Program.

Volume 42 April 2019

2.2 (8) Special Household Requirements (Joint Physical Custody): This section has been updated to clarify household inclusion of a child(ren) in Joint Physical Custody situations.

5.1 (8) Verification Prior to Certification: This section has been updated to clarify that a shelter deduction may be allowed for both first and second mortgages.

5.7 (B) Verification Subsequent to Initial Certification: This section has been updated for clarity regarding verification requirements of income.

8.2 (B) Exemptions From Work Requirements (Caretakers): This section has been updated to clarify the qualification for the “PC” exemptions when there is more than one caretaker in the SNAP household.

8.11 Voluntary Quit and Reduction of Work Effort: This section has been updated to add a note to clarify the case action that must be taken for a one-person household and a household with multiple members when imposing a voluntary quit or reduction in work disqualification. In addition, verbiage has been added to clarify that a notice of denial must be sent when applicable.

8.18 Tracking the 36 Month Period: This section has been updated to reflect the new 36-month time period for ABAWDs effective April 1, 2019.

11.4 Self-Employment Income: This section has been updated to reflect that the specific line associated with each tax form within the chart is identifying the reported income only and not the reported income and expenses.

11.4 Self-Employment Income: This section has been updated to clarify the types of income received by an individual from a legally incorporated business that is not an “S” Corporation.

11.5 (U) Unearned Income (Interest Income): This section has been updated to provide verbiage regarding the interest income verification waiver expiring on April 30, 2019. Therefore, interest income of any amount must be verified effective May 1, 2019.

15.5(1) Actions On Reported Changes: This section has been updated to change “reporting period” to “certification period” in the Note.

19.1 Definition of the South Carolina Combined Application Project (SCCAP): This section has been updated to add verbiage to clarify that an SSI recipient may participate in regular SNAP under SCCAP “E” when the individual can opt out of SCCAP “Y”.

20.6 Disqualified Recipient Subsystem (DRS): This section has been updated to reflect the staff’s responsibilities in the current NDQ process within the DRS.

Tri-annual (4-month renewal) has been added to the appropriate sections throughout the SNAP Manual.

Volume 43 October 2019

1.3 (3) General Terms and Conditions (Disclosure): This section has been revised to update the language pertaining to the use or disclosure of information.

2.2 (1) Special Household Requirements (Required Household Combinations): This section has been updated to reflect that as of July 24, 2019, common-law marriages are not recognized in SC due to the SC Supreme Court ruling to abolish any future common-law marriages in South Carolina.

2.2 (2) Special Household Requirements (Elderly and disabled persons): This section has been updated effective October 1, 2019, to reflect the increase in the gross monthly income (165 percent of poverty) that is used in determining separate household eligibility for an elderly **and** disabled individual who is unable to buy and prepare meals separately from others with whom the individual lives.

3.9 Voter Registration Requirements: This section has been updated to reflect the Agency’s current procedures for voter registration.

5.5 Income and Eligibility Verification System (IEVS)/State Verification and Exchange System (SVES): This section has been updated to add eDRS to the list of interfaces and query systems that must be checked, and to remove the Fleeing Felons Inquiry from the list.

7.3 Citizenship and Non-Citizen Status: This section has been updated to clarify that a non-citizen who has been lawfully admitted to permanent residence may qualify for 40 qualifying work quarters based on a sum of quarters from his/her own work, work of a parent, and/or work of a spouse.

7.4 Students: This section has been updated to link the “Note” to section 2.3 Ineligible Household Members (10) Residents of an Institution.

8.6 Disqualification Periods for Failure to Comply with SNAP Work Requirements: The section has been updated to clarify that a disqualification must follow the individual if he/she moves to another SNAP household.

8.16 Countable Months: This section has been updated to reflect the change in the percentage of the ABAWD Percent Exemptions from 15 to 12, effective October 1, 2019.

8.19 Regaining Eligibility: This section has been updated to remove duplicate verbiage as well as verbiage pertaining to the one-time additional three months.

8.20 Additional Three-Month Eligibility: This section has been added to clarify the circumstances when an ABAWD can receive three additional months. Subsequent sections have been renumbered.

8.22 ABAWD 15 Percent Exemptions: This section has been updated to reflect the change in the percentage of the ABAWD Percent Exemptions from 15 to 12, effective October 1, 2019.

11.1 (2) Net Income Eligibility Standard: This section has been updated to reflect the changes in gross and net monthly income limits, effective October 1, 2019.

11.3 (I) Earned Income (Census Income for temporary employees connected with 2020 Census): This section has been updated to reflect that Census income for temporary workers connected to the 2020 Census is excluded effective September 16, 2019 through September 30, 2020.

11.5 (CCC) Unearned Income (Vocational rehabilitation subsistence allowance from Veterans Administration): This section has been updated to remove the information noted under the “Exception”.

12.1 Income Deductions/General: This section has been updated to reflect changes in income deductions for maximum excessive shelter, MUA and BUA, effective October 1, 2019. In addition, the maximum homeless shelter deduction increased to \$152.06 effective October 1, 2019. The maximum homeless shelter deduction increased from \$143.00 to \$147.55 effective July 2019.

12.2 Standard Deduction: This section has been updated to reflect the increase in the standard deduction for all household sizes, effective October 1, 2019.

12.5 (1) Utility Allowances: This section has been updated to clarify that a household’s utility allowance is assigned based on the type of utility expense(s) incurred.

13.6 Calculating Net Income and Benefit Levels: This section has been updated to reflect that the maximum homeless shelter deduction increased to \$152.06 effective October 1, 2019. The maximum homeless shelter deduction increased from \$143.00 to \$147.55 effective July 2019.

13.6 (2) Eligibility: This section has been updated to reflect the changes in the gross and net income limits, effective October 1, 2019.

14.3 Residents of Drug Addict or Alcoholic (DAA) Treatment and Rehabilitation Programs: This section has been updated to clarify that when a DAA facility is authorized as a retailer by FNS, the facility does not also have to be certified by the state agency responsible for the treatment and rehabilitation of drug addicts and/or alcoholics.

15.7 Unclear Information: This section has been updated to clarify that CHIP Notice C321, Loss of Household Member, may be sent when at least one **adult** member remains in the SNAP household after one or more members are deceased.

18.5 (1)(G) Responsibilities Regarding the Fair Hearing Process: This section has been revised to update the language pertaining to the use or disclose of information as it relates to Fair Hearings.

19.1 Definition of South Carolina Application Project (SCCAP): This section has been updated to reflect changes in shelter thresholds for “shelter high” and “shelter low” SCCAP households, effective October 1, 2019.

20.6 Electronic Disqualified Recipient Subsystem: This section has been revised to provide the purpose for the eDRS/NDQ.

SNAP Tool Kit 4: Acceptable Verification of U.S. Citizenship and Non-Citizen Eligibility: This tool kit has been revised to update the chart to clarify that a non-citizen who has been lawfully admitted to permanent residence may qualify for 40 qualifying work quarters based on a sum of quarters from his/her own work, work of a parent, and/or work of a spouse.

SNAP Tool Kit 5: SNAP Annual (12-Month) Renewal Chart: This tool kit has been revised to update the chart in order to reflect the current procedures.

SNAP Tool Kit 6: SNAP Six (6) Month & Tri-Annual (4-Month) Renewal Chart: This tool kit has been revised to update the chart to reflect the current procedures.

Volume 44 December 2019

2.3 (7) Ineligible Household Members: This section has been updated to state that a guilty plea is the legal equivalent of a conviction after trial.

3.3 (1) Filing an Application for SNAP (Household’s right to file): This section has been updated to clarify that the date of the application is the date the application is actually received, or the next business day if it is submitted after business hours.

11.5 (II) Unearned Income: This section has been updated to include and define reverse mortgage. Subsequent entries in the chart have been updated accordingly.

12.4(4) Excess Shelter Deduction: This section has been updated to add a ‘note’ in order to clarify that households will only be allowed a deduction for a reverse mortgage if the household is billed for the expense.

14.6 Homeless SNAP Household: This section has been updated to define homeless.

14.8 (1) Treatment of TANF Sanctions in the SNAP: This section has been updated to change the word “enumeration” to the acronym “SSN”.

14.11 Disqualification for Substantial Lottery or Gambling Winnings: This section has been added to provide the Lottery and Gambling Provisions.

15.3 Simplified Reporting Households: This section has been updated to add substantial lottery or gambling winnings as a simplified reporting requirement.

15.4(2) Interim Changes for Simplified Reporting Households: This section has been updated to add substantial lottery or gambling winnings as a simplified reporting requirement.

15.4(3) Interim Changes for Simplified Reporting Households: This section has been updated to add substantial lottery or gambling winnings as a simplified reporting requirement.

15.5 (2) Actions on Reported Changes: This section has been updated to add verbiage relating to closing a case due to substantial lottery or gambling winnings.

Appendix 2 (10.2 Maximum Allowable Resources): This section has been updated to reflect the current resource limits.

SNAP Tool Kit 7 SNAP Employment & Training Referral Guide: This tool kit has been removed from the SNAP Manual. The Employment Services Division will provide an updated version of the guide to the staff as changes occur.

Revisions have been made throughout Chapter 9 to reflect edits made by the Employment Services Division regarding the SNAP Employment and Training (SNAP E&T) Program.

Volume 45 January 2020

2.2 (5) Special Household Requirements (Roomers): This section has been updated to clarify that household members which are part of a required household combinations must not be considered roomers.

2.3 (9) Ineligible Household Members: This section has been updated to include individuals who are disqualified due to failure without good cause to cooperate with TANF work requirement. The subsequent entry has been renumbered accordingly.

3.2 SNAP Application Process: This section has been added to describe the application process. Subsequent sections have been renumbered accordingly.

3.3 SNAP Application Form: This section has been updated to clarify that the application may be a paper document, an on-line document or a recorded conversation.

3.4 (1) Filing an Application for SNAP (Household's right to file): This section has been updated to add information in reference to filing a telephonic application. Also, verbiage has been added regarding the Agency must provide a means for households to immediately begin the application process with the name, address and signature.

3.4 (2) Filing an Application for SNAP (Contacting the SNAP office): This section has been updated to reflect that households have the right to contact any DSS office.

3.4 (5) Filing an Application for SNAP (Paper Forms): This section has been added to state that the Agency must make paper application forms readily accessible and available even if the Agency also accepts application forms through other means. Subsequent sections have been renumbered accordingly.

6.8 Certification Periods for Expedited Households: This section has been updated to revise the “Note” to reflect the current procedure.

9.1 The SNAP Employment and Training (E&T) Program: This section has been updated to remove the word “applicants” from the introductory sentence.

13.2 (3) Determining Household Eligibility (Anticipated Changes): This section has been updated to add the word “denied” and the phrase “denial for the month of application” for clarity.

15.7 Unclear Information: This section has been updated to explain when to send the new CHIP Notice C314, Prisoner Match-Notice of Match Results.

19.1 Definition of the South Carolina Combined Application Project (SCCAP): This section has been updated to reflect the new SCCAP income limits and shelter thresholds for “shelter high” and “shelter low”, effective January 1, 2020.

Volume 46 April 2020

3.5 Household Cooperation in Filing an Application for SNAP: This section has been updated to clarify the determination of refusal to cooperate process for a household. In addition, verbiage has been added that the Agency will not consider individuals identified as non-household members under Section 2.2 (2), as individuals outside the household. Also, a link to section 3.4 (7) has been added to the note.

3.6 (1) Authorized Representative (Application processing and reporting): This section has been updated to add links to sections 15.3 and 3.7.

3.6 (2) Authorized Representatives (Obtaining SNAP benefits): This section has been added to clarify that an authorized representative may be designated to obtain benefits for the household. Subsequent sections were renumbered accordingly.

3.6 (4) Authorized Representatives (Restrictions on designations of AR): This section has been updated to clarify that the Agency must separately determine whether an individual is needed to apply on behalf of the household, or to obtain benefits on behalf of the household when the Agency has determined that no one else is available to serve as the Authorized Representative (AR) other than the individual who is disqualified for an IPV. In addition, verbiage has been added to clarify that the Agency may limit the number of households an AR may represent in order to prevent abuse of SNAP.

3.8 Interviews: This section has been updated to clarify the interview requirements for households and the Agency’s responsibilities for assisting households with completing the interview process. In addition, links have been added to Sections 15.3 and 3.7.

3.9 Household Cooperation with SNAP Quality Control (QC) Reviewer: This section has been updated to reflect the change from seven to **nine** months from the end of the annual review period that a household will be determined ineligible for refusal to cooperate with a Federal QC reviewer during the completed QC period. In addition, verbiage has been added to clarify when one or more household members no longer resides with the household terminated for refusal to cooperate with QC, the penalty will be attached to the household of the person(s) who refused to cooperate.

5.1 Verification Prior to Certification: This section has been updated to reflect that DSS must give households at least 10 days to provide verification.

5.1(2) Verification Prior to Certification (Residency): This section has been updated to reflect that if verification cannot be accomplished in conjunction with the information on file, then the Agency may use collateral contacts or other readily available documentary evidence. Also, documents used to verify other eligibility factors should suffice to verify residency.

5.1(4) Verification Prior to Certification (Household composition): This section has been updated to add verbiage that individuals who claim separate household status due to age **and** disability factors are responsible for providing proof of the separateness. In addition, a link has been added to section 2.2 (2).

5.1 (5) Verification Prior to Certification (Disability): This section has been updated to clarify how to verify disability as it relates to Section 2.2 (2) Special Household Requirements (Elderly and disabled persons).

6.3 Denying the Application: This section has been updated to clarify that if the household fails to complete the interview process, the Agency must not deny the application prior to the 30th day.

7.1 Residency: This section has been updated to remove the verbiage pertaining to the procedure for transferring a case file when a household moves within the State since it does not reflect the current procedure. In addition, verbiage has been added that the Agency will ensure that duplicate participation does not occur.

7.2 (2) Social Security Numbers (Obtaining SSNs): This section has been updated to add verbiage that the Agency will inform the household where to apply for SSNs and that proof of application from SSA will be required prior to certification.

7.2 (3) Social Security Numbers (Determining good cause): This section has been updated to add the subsection titled “Determining good cause”. Subsequent subsections have been renumbered accordingly. In addition, a link has been added to section 5.2(1).

7.2 (6) Social Security Numbers (Use of SSNs): This section has been updated to add verbiage that all SSNs obtained will be entered into the Agency’s computer system and filed into SCOSA.

7.3 (1) Citizenship and Non-Citizen Status: This section has been updated to clarify that trafficking victims and certain family members of trafficking victims who attain Lawful Permanent Resident (LPR) status are exempt from the LPR 5-year residency requirement.

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2.2 (2) Special Household Requirements (Elderly and disabled persons): This section has been updated effective October 1, 2020 to reflect the increase in the gross monthly income (165 percent of poverty) that is used in determining separate household eligibility for an elderly **and** disabled individual who is unable to buy and prepare meals separately from others with whom the individual lives.

3.10 Voter Registration Requirements: This section has been updated to reflect voter registration services that are provided by the Agency to all SNAP applicants and recipients.

5.1(5) Verification Prior to Certification (Disability): This section has been updated to add notes to identify when the SPCAT field on CHIP SSDO screen should be coded with a “Y” in order to identify that the household is considered a Special Category and additional verbiage has been added for clarity.

5.1(6) Verification Prior to Certification (Non-citizen Eligibility): This section has been updated to revise the verbiage in the note to reflect that verifying immigration status through SAVE may take up to three steps.

5.1(8) Verification Prior to Certification (Utility Expense): This section has been updated to remove the reference to shelter expenses and to remove verbiage pertaining to the Mandatory Utility Allowance (MUA).

5.1(9) Verification Prior to Certification (Shelter Expense): This section has been added in order to list shelter expenses separately from utility expenses and to add a link to section 12.4(3)(E) to obtain information regarding shelter costs for a home that is temporarily unoccupied. Subsequent sections have been renumbered accordingly.

5.1(14) Verification Prior to Certification (Refusal to cooperate with QC): This section has been updated to reflect that the Agency will verify all factors of eligibility for households who have been terminated for refusal to cooperate with a State quality control reviewer and reapply after **95** days from the end of the annual review period.

5.2 Sources of Verification: This section has been updated to state that documentary evidence will be used as the primary source of verification which may be verified through readily available source or through collateral contact.

5.2(1) Sources of Verification (Documentary evidence): This section has been updated to list examples of documentary evidence that may be considered insufficient.

5.3 Discrepancies in Verification: This section has been updated to state that if IEVS/SVES information is unverified, the Agency may obtain independent verification from a third party.

5.4 Verification for Homeless Households: This section has been added to provide the verification requirements for homeless households that wish to claim a shelter deduction. Subsequent sections have been renumbered accordingly.

5.5 Responsibility for Obtaining Verification: This section has been updated to reflect the Agency's responsibility to assist with obtaining verification and with verifying information.

5.6 Income and Eligibility Verification System (IEVS)/State Verification and Exchange System (SVES): This section has been updated to reflect that the Agency may use information from SDX and BENDEX to verify other SNAP eligibility criteria and must use information obtained through IEVS and SVES to verify the eligibility and benefit level of applicants and participating households. In addition, the Agency must independently verify information obtained through IEVS/SVES which is considered unverified upon receipt prior to taking adverse action.

7.2(6) Social Security Numbers (SSNs) (Use of SSNs): This section has been updated to link to section 15.8 which addresses mass changes which may affect SNAP.

7.3 (1) Citizenship and Non-Citizen Status: This section has been updated to list and define the different categories of Qualified Non-citizens.

7.3 (2) Citizenship and Non-Citizen Status (Reporting Illegal Non-Citizens): This section has been updated to add the subsection and to provide verbiage that the classification of ineligible non-citizen will be made by the Agency due to inability or unwillingness of a household or person to provide documentation of non-citizens status. Subsequent subsection has been renumbered accordingly.

7.3 (3) Citizenship and Non-Citizen Status (Sponsored Non-Citizens): This section has been updated to rename the sub-section as "Households Containing Sponsored Non-Citizens Members" and additional verbiage has been added to address deeming of sponsor's income and resources.

7.4 (2) (K) Student Exemptions: This section has been updated to clarify that participation in a program under section 236 of the Trade Act of 1974 (19 U.S.C. 2296); while enrolled in an institution of higher education, meets one of the student exemption criteria.

7.5 Fleeing Felons and Probation/Parole Violators: This section has been updated to define fleeing felons and probation/parole violators and to update verbiage to clarify when to contact Fugitive Information Offender Surveillance (FIOS) Central Office in reference to a fleeing felon". In addition, a link has been added to section 14.1(1) for treatment of income and resources.

8.22 ABAWD Discretionary Exemptions: This section has been updated to reflect the name change of the "12 Percent Exemptions" to "Discretionary Exemptions".

11.1 (2) Net Income Eligibility Standard: This section has been updated to reflect the changes in gross and net monthly income limits, effective October 1, 2020.

11.3 (N) Earned Income (Educational Assistance): This section has been updated to add a description explaining the type of educational assistance that is considered earned income. In addition, verbiage has been added to the “Note” for clarity.

11.5 (L) Unearned Income (Educational Assistance): This section has been updated to add a description explaining the type of educational assistance that is considered unearned income. In addition, verbiage has been added to the “Note” for clarity.

11.5 (JJ) Unearned Income (Scholarships): This section has been updated to remove scholarships from the Unearned Income Chart since scholarships are listed under educational assistance. Subsequent entries in the chart have been re-alphabetized accordingly.

11.6 (A) & (B) Income Exclusions: This section has been updated to reword the “Notes” for clarity.

11.7 Educational Assistance: This section has been updated to clarify that educational assistance that would not already be excluded under SNAP may be excluded under South Carolina TANF rules.

11.8 Federal Law Income Exclusions: This section has been updated to add Robert T. Stafford to the Disaster Relief and Emergency Assistance Act for clarity.

12.1 Income Deductions/General: This section has been updated to reflect changes in income deductions for maximum excessive shelter, MUA and BUA, effective October 1, 2020. In addition, the maximum homeless shelter deduction increased to \$156.74 effective October 1, 2020.

12.2 Standard Deduction: This section has been updated to reflect the increase in the standard deduction for household sizes of four or more, effective October 1, 2020.

13.1 Prospective Eligibility: This section has been updated to clarify the budgeting procedures for child support income by means of an automated interface between Palmetto Automated Child Support System (PACSS) and CHIP systems.

13.6 Calculating Net Income and Benefit Levels: This section has been updated to reflect that the maximum homeless shelter deduction increased to \$156.74 effective October 1, 2020.

13.6 (2) Eligibility: This section has been updated to reflect the changes in the gross and net income limits, effective October 1, 2020.

14.10 Definition of Elderly or Disabled: The section has been updated to add a note to explain the Special Category designation on CHIP SSDO screen.

19.1 Definition of South Carolina Application Project (SCCAP): This section has been updated to reflect changes in shelter thresholds for “shelter high” and “shelter low” SCCAP households, effective October 1, 2020.

SNAP Tool Kit 1: Accommodation Assessment for LEP Clients: This tool kit has been updated with the June 5, 2020 version of the Accommodation Assessment for LEP Clients, which was provided by the Office of Civil Rights

SNAP Tool Kit 2: Important Points for LEP/SI Clients: This tool kit has been updated with the April 21, 2020 version of the Important Points for LEP/SI Clients, which was provided by the Office of Civil Rights.

SNAP Tool Kit 3 Permanent Disability Established by the Social Security Act: This tool kit has been updated to reflect the most current list of disabilities considered permanent under the Social Security Act.

SNAP Tool Kit 4 Acceptable Verification of U.S. Citizenship and Non-Citizen Eligibility: This tool kit has been updated to provide additional information on acceptable verification of U.S. Citizenship and U.S. Non-Citizen Nationals.

Volume 48 January 2021

1.3 (3)(H) General Terms and Conditions: This section has been updated to add verbiage to reflect that disclosure of information about SNAP applicant or recipient households may be provided to local educational agencies administering the National School Lunch Program.

2.2 (7) Special Household Requirements (Temporary Absence): This section has been updated to add the verbiage “the absence is temporary if” to the “Exception” for clarity.

5.6 Income and Eligibility Verification System (IEVS)/State Verification and Exchange System (SVES): This section has been updated to reflect that the Agency will take action on information obtained through IEVS which is considered verified upon receipt.

6.2 Aggregate (Combined) Allotments: This section has been updated to add verbiage to reflect that the Agency will provide SNAP benefits as two separate allotments when households have been determined eligible to receive benefits for the initial month and the next subsequent month.

6.3 Denying the Application: This section has been updated to add verbiage to reflect that if the Agency provided assistance to the household in obtaining verification, but the household failed to provide the required verification, the Agency may deny the application on the 30th day.

6.4 Delays in Processing the Application: This section has been updated to add verbiage in order to assist staff with distinguishing if the delay in processing the application was caused by the household or the Agency.

6.5 Entitlement to Expedited Service: This section has been renamed “Expedited Service” and the following two subsection titles have been added: “Entitlement to Expedited Service” and “Identifying Households Needing Expedited Service”.

6.6 Processing Standards for Expedited Service: This section has been updated to change the word “client” to the word “household” and to add the verbiage “Late determinations” for clarity.

6.7 Verification Procedures for Expedited Service: This section has been updated to provide additional verbiage regarding the verification requirements in order to expedite the certification process. In addition, links have been added to sections 6.6-Processing Standard for Expedited Service **and** 5.2 (2)-Collateral contacts.

6.8 Certification Periods for Expedited Households: This section has been updated to revise the “Note” to reflect the current procedure for setting alerts for expedited cases. In addition, verbiage has been added to reflect that households whose applications are not entitled to expedited service will be processed under normal processing standards and a link has been added to section 6.1-Normal Processing Standards.

7.4 (2) Students (Student Exemptions): This section has been updated to temporarily expand the student exemptions according to the provisions of the Consolidated Appropriations Act, 2021.

11.3 (I) Earned Income (Census Income for temporary employees connected with 2020 Census): This section has been updated to reflect that Census income for temporary workers connected to the 2020 Census was extended through October 31, 2020.

11.8 (I) Federal Law Income Exclusions: This section has been updated to add “Experience Works” as an income exclusion under the Older American Act.

11.8 (U & V) Federal Law Income Exclusions: This section has been updated to add income exclusions in accordance with the Consolidated Appropriation Act, 2021.

13.6 (3) Calculating Net income and Benefit Levels (Benefits): This section has been updated to list the minimum benefit allotment as \$19.

13.6 (4) Calculating Net income and Benefit Levels (Thrifty Food Plan (TFP) and Maximum SNAP Allotments): This section has been updated to add the Gross and Net Income Limits Chart which includes the Maximum SNAP Allotments according to the household sizes.

19.1 Definition of the South Carolina Combined Application Project (SCCAP): This section has been updated to reflect the new SCCAP income limits and shelter thresholds for “shelter high” and “shelter low”, effective January 1, 2021.

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1.4 (2) Informational Activities (Rights and Responsibilities): This section has been revised to reflect that ES Workers must provide an overview of Civil Rights to clients during the interview process. In addition, DSS Brochure 2416, must be provided to clients, upon request and made available in the lobby of each local county office.

1.5 SNAP Nondiscrimination Compliance: This section has been updated to provide an example of how staff may document a civil rights complaint in writing. In addition, verbiage has been added to reflect that information pertaining to nondiscrimination statutes and policies, complaint procedures and the rights of participants must be provided to clients within 10 days of the date of a request.

1.6 Complaint Procedure: This section has been updated to add verbiage that the Agency may make information available on the complaint system and how to file a complaint through written materials, posters at certification offices or other appropriate means.

6.4 Delays in Processing the Application: This section has been updated to reflect that the household will lose its entitlement to benefits “from the date of application” when the delay in processing the application was caused by the household.

8.5 Failure to Comply with SNAP Work Requirements: This section has been updated to add an introductory paragraph to reflect that SNAP household members will be exempt or nonexempt from SNAP work requirements according to sections 8.1 and 8.2. In addition, the following two subsection titles have been added: “Ineligibility for failure to comply” and “Failure to comply with a work requirement under TANF or UCB” for clarity.

8.11 Voluntary Quit and Reduction of Work Effort: This section has been updated to add an introductory sentence to reflect that the Agency may need to establish if a voluntary quit without good cause or a reduction in work effort without good cause has occurred for an applicant or participating SNAP household.

8.15 Exceptions to ABAWD Work Requirement: This section has been updated to reflect that an individual may meet an exception to the ABAWD Work Requirement by receiving Veterans disability benefits regardless of the individual’s disability percentage rating. In addition, examples of medical professionals have been added.

8.23 Benefits Received Erroneously by ABAWD: This section has been added to clarify that SNAP benefits received by an ABAWD in error will be considered a countable month(s) towards the ABAWD’s time limit, unless or until the benefits are paid in full to the Agency.

11.4 Self-Employment Income: This section has been updated to define self-employment.

11.5 (VV) Unearned Income: This section has been updated to include Pandemic Emergency Unemployment Compensation & Pandemic Unemployment Assistance as countable income.

11.8 (U & V) Federal Law Income Exclusions: This section has been updated to add the American Rescue Plan Act of 2021.

Volume 50 July 2021

2.2 (4) Special Household Requirements (Foster care individuals): This section has been updated to reflect that individuals in foster care must be considered as boarders, regardless of the individual’s age.

6.5 (1) Expedited Service (Entitlement to Expedited Service): This section has been updated to list some types of non-recurring lump sums.

11.3 (E&O) Earned Income (Babysitting/Dependent Care Income): This section has been updated to add babysitting and dependent care to the chart.

11.3 (H) Earned Income (Capital Gains): This section has been updated to state that income from capital gains will be considered self-employment income. In addition, a link has been added to section 11.4 Self-Employment Income.

11.3 (T) Earned Income (Military Pay): This section has been updated to reflect that military pay will be shown on a Leave and Earnings Statement (LES).

11.4 (2) Self-Employment Income (Determining self-employment income): This section has been updated to remove information relating to Schedule C-EZ due to the IRS no longer using the Schedule C-EZ beginning with tax year 2019.

11.5 (F) Unearned Income (Cash Donations): This section has been updated to add cash donations to the chart. Subsequent entries in the chart have been re-alphabetized accordingly.

11.5 (Y) Unearned Income (Native American Payments for Tribes): This section has been updated to change the name from Indian Payments for Tribes to Native American Payments for Tribes. In addition, this section has been moved due to the name change and subsequent sections have been re-alphabetized as appropriate.

11.5 (Z) Unearned Income (Protective Payee Payment): This section has been updated to change the name from Protective Payee Payment to Representative Payee Payment. In addition, this section has been moved due to the name change and subsequent sections have been re-alphabetized as appropriate.

13.6 (4) Calculating Net Income and Benefit Levels: This section has been reworded to clarify that the Thrifty Food Plan (TFP) and maximum allotments are posted on the FNS website.

13.8 (1) Certification Periods: This section has been updated to reflect that households containing an ABAWD should be assigned a certification period of 6 months or certification periods consistent with their circumstances, but generally not less than 3 months.

13.8 (2) Certification Periods: This section has been updated to add verbiage pertaining to when the Agency may shorten the certification periods. In addition, links have been added to sections 15.1 Household Responsibility to Report and 15.3 Simplified Reporting Requirements.

14.1 (2) Treatment of Income and Resources of Certain Non-Household Members: This section has been updated to add an exception to indicate that when a household contains a member who has an SSN disqualification or is an ineligible ABAWD **and** the household is entitled to the MUA or BUA, the expense will not be prorated among the eligible household members.

14.1(4) Treatment of Income and Resources of Certain Non-Household Members: This section has been updated to reflect that a SNAP household is entitled to a notice of adverse action prior to any action on the case if it is determined that the household contains an individual who has been disqualified in another State and is still within the disqualification period.

14.3 (2) Residents of Drug Addict or Alcoholic (DAA) Treatment and Rehabilitation Programs: This section has been updated to reflect the current title of the DSS Brochure 1622.

14.4 (2) Residents of a Group Living Arrangement (GLA): This section has been updated to reflect the correct Brochure number and current title of the DSS Brochure 1621.

14.8 (1) (B) Treatment of TANF Sanctions in SNAP: This section has been reworded to clarify that the sanction will be imposed if the recipient fails to enroll in school **or** is enrolled in school and fails to maintain satisfactory attendance.

14.8 (2) Treatment of TANF Sanctions in SNAP: This section has been updated to add a note to explain the process of determining the TANF penalty amount. In addition, some verbiage has been rearranged for clarity.

19.3 Processing Households Eligible for the South Carolina Combined Application Project (SCCAP): This section has been updated to reflect that SCCAP “Y” households are now assigned a 36-month (3-year) certification period.

Revisions have been made throughout Chapter 9 to reflect edits made by the Employment Services Division regarding the SNAP Employment and Training (SNAP E&T) Program.

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2.2 (2) Special Household Requirements (Elderly and disabled persons): This section has been updated effective October 1, 2021 to reflect the increase in the gross monthly income (165 percent of poverty) that is used in determining separate household eligibility for an elderly **and** disabled individual who is unable to buy and prepare meals separately from others with whom the individual lives.

7.5 Fleeing Felons and Probation/Parole Violators: This section has been revised to provide updated information as well as additional guidance pertaining to fleeing felons and probation or parole violators.

11.1 (2) Net Income Eligibility Standard: This section has been updated to reflect the changes in gross and net monthly income limits, effective October 1, 2021.

11.3 (W) Earned Income (Job Corps): This section has been updated to add Job Corps to the Earned Income Chart and subsequent entries have been re-alphabetized as appropriate. In addition, a link has been added to section 2.3 Ineligible Household Members (10).

11.3 (MM) Earned Income (Work Training Allowance): This section has been updated to provide a description for Work Training Allowance (WTA).

12.1 Income Deductions/General: This section has been updated to reflect changes in income deductions for maximum excessive shelter, MUA, BUA and telephone allowance, effective October 1, 2021. In addition, the maximum homeless shelter deduction increased to \$159.73 effective October 1, 2021.

12.2 Standard Deduction: This section has been updated to reflect the increase in the standard deduction for all household sizes, effective October 1, 2021.

13.6 (1) Net Monthly Income: This section has been updated to reflect that the maximum homeless shelter deduction increased to \$159.73 effective October 1, 2021.

13.6 (2) Eligibility: This section has been updated to reflect the changes in the gross and net income limits, effective October 1, 2021.

13.6 (4) Thrifty Food Plan (TFP) and Maximum SNAP Allotments: This section has been revised to reflect the updates to the gross and net income limits, as well as maximum allotments according to the household sizes, effective October 1, 2021.

14.4 Residents of a Group Living Arrangement (GLA): This section has been updated to add a note to clarify that the certification agency is SC Department of Disability and Special Needs (DDSN).

14.9 Participation of Deceased Participants: This section has been updated to include verbiage that the Agency will notify the household when Death Match information is received.

19.11 Eligibility for the Elderly Simplified Application Project: This section has been updated to add the verbiage “information obtained” and “such as medical expenses or child support expenses” for clarity.

Welfare to Work has been removed. Subsequent entries have been re-alphabetized in the income chart.

Volume 52 January 2022

7.5 (1) Fleeing Felon: This section has been updated to specify the requirements for verbal and written responses received from clients pertaining to fleeing felons.

7.5 (2) Probation/Parole Violators: This section has been updated to specify the requirements for verbal and written responses received from clients pertaining to probation/parole violators.

10.7 (A) Exclusions from Resources (Achieving a Better Life Experience): This section has been updated to include Achieving a Better Life Experience (ABLE) accounts to the exclusions from resources chart. Subsequent entries have been re-alphabetized in the resources chart.

11.3 (A) Earned Income (Advances): This section has been updated to provide a description for advances.

11.3 (E) Earned Income (Babysitting/Dependent care): This section has been updated to provide a description for babysitting and dependent care.

11.3 (F) Earned Income (Blood or Blood Plasma sale): This section has been updated to include the sale of blood plasma.

11.3 (G) Earned Income (Boarder payments): This section has been updated to provide a description of boarder payments.

11.3 (H) Earned Income (Bonuses): This section has been updated to clarify how bonuses are counted when employment is ongoing or has been terminated.

11.3 (O) Earned Income (Dependent care/Babysitting): This section has been updated to provide a description for dependent care and babysitting.

11.5 (A) Adoption subsidy: This section has been updated to provide a description for adoption subsidy.

11.5 (I) Direct money payments: This section has been updated to add an exception that payments which are not considered as a gain or benefit to the household are excluded.

11.5 (AAA) Unearned Income (Veteran’s Benefits authorized under the Agent Orange Act of 1991): This section has been updated to provide a description of VA Benefits Agent Orange.

11.5 (QQ) Supplemental Security Income (SSI) benefits: This section has been updated to revise the “Exception” to exclude in-kind income/benefits when determining SCCAP “Y” eligibility.

12.4 (3) Allowed shelter expenses: This section has been updated to add a “Note” to clarify that a home equity loan is considered a second mortgage.

14.4 (3) Residents of a Group Living Arrangement (GLA): This section has been updated to add a link to Section 2.1 General Household Definitions.

14.4 (6) Residents of a Group Living Arrangement (GLA misuse of benefits): This section has been updated to clarify that residents applying on their own behalf will still be able to participate if otherwise eligible when FNS disqualifies a GLA as an authorized retailer.

19.1 Definition of South Carolina Combined Application Project (SCCAP): This section has been updated to reflect the new SCCAP income limits effective January 1, 2022. In addition, this section also has been updated to provide the SCCAP “Y” benefit amounts effective October 1, 2021.

19.2 Eligibility Determination for the South Carolina Combined Application Project (SCCAP): This section has been updated to revise the “Note” to exclude in-kind income/benefits when determining SCCAP “Y” eligibility.

19.12 Processing Households Eligible for the Elderly Simplified Application Project (ESAP): This section has been updated to provide the current procedures for the application process for ESAP Households.

19.15 Recipient Claims for Elderly Simplified Application Project (ESAP) Households: This section has been updated to provide the current procedures when possible recipient claims are detected for ESAP Households.

Volume 53 April 2022

4.1 Categorically Eligible Households: This section has been updated to add the verbiage “for any reason from receiving SNAP benefits” for clarity.

5.1 (8) Verification Prior to Certification (Utility Expenses): This section has been updated to include policy pertaining to households claiming an expense deduction for actual utility expenses.

8.18 Tracking the 36 Month Period: This section has been updated to reflect the new 36-month time period for ABAWDs effective April 1, 2022.

11.3 (C) Earned Income (AmeriCorps State, National and NCCC): This section has been updated to add National Civilian Community Corps (NCCC) and to provide a description for AmeriCorps State, National and NCCC.

11.3 (D) Earned Income (AmeriCorps VISTA): This section has been updated to provide a description for AmeriCorps VISTA.

11.3 (I) Earned Income (Cafeteria benefit plans): This section has been updated to provide a description for Cafeteria benefit plans.

11.3 (L) Earned Income (Child Care Development Block Grant (CCDBG) payments): This section has been updated to provide a description for Child Care Development Block Grant (CCDBG) payments.

11.5 (C) Unearned Income (Annuities): This section has been updated to provide a description and a note for Annuities.

11.5 (E) Unearned Income (Cash contributions): This section has been updated to provide a description for Cash contributions.

11.5 (F) Unearned Income (Cash donations): This section has been updated to provide a description for Cash donations.

11.5 (J) Unearned Income (Disability benefits): This section has been updated to provide a description for Disability benefits.

13.6 (3) Calculating Net income and Benefit Levels (Benefits): This section has been updated to list the minimum benefit allotment as \$20.

Volume 54 September 2022

2.1 General Household Definitions: This section has been updated to clarify the concept of “living together” to determine the members of a SNAP household.

3.8 Interviews: This section has been updated to provide the current procedures for the Interview Process.

4.2 Households Prohibited from Being Considered Categorically Eligible: This section has been updated to clarify the circumstances in which a household cannot be considered categorically eligible. In addition, links have been added to Section 2.3 (7) pertaining to drug-related felony and Section 7.5 relating to fleeing felon or a probation and parole violator.

4.5 Temporary Assistance for Needy Families (TANF) Applicant Households: This section has been updated to add a link to Section 6.1 Normal Processing Standards.

4.6 Applicant Supplemental Security Income (SSI) Households: This section has been updated to add a link to Chapter 21, Restoration of Lost Benefits.

10.7 (V) Exclusions from Resources (Retirement Accounts): This section has been updated to change Individual Retirement Account to Retirement Account in the Exclusions from Resources chart. In addition, a description has been added and subsequent entries have been re-alphabetized as appropriate.

11.3 (B) Earned Income (Agriculture payments): This section has been updated to provide a description for agriculture payments.

11.3 (M) Earned Income (Children's earnings): This section has been updated to provide a description for children's earnings.

11.3 (Q) Earned Income (Educational Assistance): This section has been revised to provide an updated description of educational assistance that falls under earned income and a link has been added to Section 11.7 Educational Assistance.

11.5 (B) Unearned Income (Alimony): This section has been revised to provide an updated description for alimony.

11.5 (M) Unearned Income (Educational Assistance): This section has been revised to provide an updated description of educational assistance that falls under unearned income and a link has been added to Section 11.6 Income Exclusions.

11.5 (DD) Unearned Income (Reimbursements): This section has been updated to provide a description for reimbursements and to clarify that no portion of any educational assistance that is provided for living expenses will be considered a reimbursement.

11.6 (B) Income Exclusions (Educational assistance vendor payments): This section has been updated to clarify that educational assistance provided to a third party on behalf of the household for living expenses will be treated the same as educational assistance payable directly to the household.

11.7 Educational Assistance: This section has been updated to clarify when educational assistance will be excluded, as well as to clarify that educational assistance used for living expenses will be counted as income and a link has been added to Section 12.6 Dependent Care Deduction.

13.1 Prospective Eligibility: This section has been updated to reflect the current budgeting parameters and to add a link to Section 13.4 Determining Income.

17.2 Recertification Interview: This section has been updated to provide the current procedures for the Interview Process.

19.1 Definition of South Carolina Combined Application Project (SCCAP): This section has been updated to clarify that SSI applicants who must be included in a required household combination cannot be granted a separate household status in order to receive SNAP benefits under SCCAP “Y”. In addition, a link has been added to Section 2.2 (1) Special Household Requirements (Required household combinations).

22.3 (2) Agency Responsibilities For SNAP Issuance (Economic Services worker responsibilities): This section has been updated to reflect that replacement EBT cards are authorized through Conduent. In addition, the time frame for expungement of SNAP benefits from a household’s EBT card due to inactivity has changed from 12 months to 274 days.

The word “Renewal” has been replaced with “Recertification” throughout the SNAP manual.

Volume 55 October 2022

1.2 Operation of SNAP: This section has been updated to add verbiage that the Agency must ensure policy is applied fairly, equitably and consistently throughout the State.

2.1 General Household Definitions: This section has been updated to clarify the concept of “living together” for determining the members of a SNAP household.

2.2 (2) Special Household Requirements (Elderly and disabled persons): This section has been updated effective October 1, 2022 to reflect the increase in the gross monthly income (165 percent of poverty) that is used in determining separate household eligibility for an elderly **and** disabled individual who is unable to buy and prepare meals separately from others with whom the individual lives.

3.7 Limited English Proficient (LEP) or Special Needs Households: This section has been updated to add codes “AR” for Arabic and “UK” for Ukrainian as identified languages in which interpretation and translated materials may be needed. In addition, the references to SNAP Tool Kit 1 (Accommodation Assessment for LEP Clients) and SNAP Tool Kit 2 (Important Points for LEP/SI Clients) have been removed from the SNAP Manual and staff are now being referred to the Individual & Provider Rights Division’s Civil Rights Tool Kit for guidance pertaining to LEP/SI Clients.

3.8 Interviews: This section has been updated to add a link to Section 5.2 Sources of Verification.

5.1 (1) Verification Prior to Certification (Identity): This section has been updated to reflect that verification of identity may be obtained through collateral contact, if documentary evidence is unavailable.

5.6 Income and Eligibility Verification System (IVES)/State Verification and Exchange System (SVES):

This section has been updated to reflect that IVES and SVES must be matched at the 24-month recertification and interim contact.

11.1 (2) Net Income Eligibility Standard: This section has been updated to reflect the changes in gross and net monthly income limits, effective October 1, 2022.

11.3 (P) Earned Income (Domestic Volunteer Service Act payments): This section has been updated to specify the programs that fall under Title I payments and Title II payments.

11.3 (S) Earned Income (Flexible credits/flexible benefit dollars): This section has been updated to provide a description for flexible credits/flexible benefits dollars.

11.3 (U) Earned Income (Foster Grandparent Programs): This section has been updated to specify that payments made from the Foster Grandparent Programs are received through the Domestic Volunteer Service Act, Title II.

11.3 (AA) Earned Income (Retired and Senior Volunteer Programs (RSVP)): This section has been updated to specify that payments made from the Retired and Senior Volunteer Programs (RSVP) are received through the Domestic Volunteer Service Act, Title II.

11.3 (CC) Earned Income (Senior Companion Programs): This section has been updated to specify that payments made from the Senior Companion Programs are received through the Domestic Volunteer Service Act, Title II.

11.5 (N) Unearned Income (Foster Care Payments): This section has been updated to provide a description for foster care payments as well as the circumstances when the payments are counted.

11.5 (V) Unearned Income (Kinship Care Payments): This section has been updated to provide a description for Kinship Care Payments.

12.1 Income Deductions/General: This section has been updated to reflect changes in income deductions for maximum excessive shelter, MUA, and BUA effective October 1, 2022. In addition, the maximum homeless shelter deduction increased to \$166.81 effective October 1, 2022.

12.2 Standard Deduction: This section has been updated to reflect the increase in the standard deduction for all household sizes, effective October 1, 2022.

13.6 (1) Net Monthly Income: This section has been updated to reflect that the maximum homeless shelter deduction increased to \$166.81 effective October 1, 2022.

13.6 (2) Eligibility: This section has been updated to reflect the changes in the gross and net income limits, effective October 1, 2022.

13.6 (4) Thrifty Food Plan (TFP) and Maximum SNAP Allotments: This section has been revised to reflect the updates to the gross and net income limits, as well as maximum allotments according to the household sizes, effective October 1, 2022.

SNAP Tool Kit 3: SNAP Annual (12-Month) Renewal Chart: This tool kit has been revised to update the chart in order to reflect the procedures that will be in place when the interview process resumes for recertification. The number for this Tool Kit has been changed from 5 to 3 due to the removal of the following Tool Kits: Accommodation Assessment for LEP Clients (previously Tool Kit 1) and Important Points for LEP/SI Clients (previously Tool Kit 2). Subsequent Tool Kits have been renumbered accordingly.

Revisions have been made throughout Chapter 9 to reflect edits made by the Employment Services Division regarding the SNAP Employment and Training (SNAP E&T) Program.

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7.3 (1) Citizenship and Non-citizenship Status: This section has been updated to add verbiage for clarity, to add additional policy pertaining to non-citizens who have been subjected to a severe form of trafficking, and to list qualified non-citizen statuses in two charts instead of three charts. In addition, the Ukrainian Humanitarian Parolees have been added as qualified non-citizens.

8.5 (2) Failure to Comply with SNAP Work Requirements: This section has been updated in order to list separately the case action taken in SNAP due to a TANF sanction and an unemployment compensation sanction.

11.3 (X) Earned Income (Military Pay): This section has been updated to provide a description for military pay.

11.5 (Z) Unearned Income (Pension): This section has been updated to provide a description for pension.

11.5 (CC) Unearned Income (Refugee Cash Assistance): This section has been updated to provide a description for refugee cash assistance.

11.5 (HH) Unearned Income (Retirement Benefits): This section has been updated to provide a description for retirement benefits.

11.5 (OO) Unearned Income (Social Security Administration benefits): This section has been updated to provide a description for Social Security Administration (SSA) benefits.

11.5 (PP) Unearned Income (Strike benefits): This section has been updated to provide a description for strike benefits and to add a link to Section 2.4 Strikers.

11.5 (QQ) Unearned Income (Supplemental Security Income): This section has been updated to provide a description for Supplemental Security Income (SSI).

11.5 (RR) Unearned Income (TANF benefits): This section has been updated to provide a description for TANF benefits.

11.5 (TT) Unearned Income (Trade readjustment allowance): This section has been updated to provide a description for trade readjustment allowance.

11.5 (WW) Unearned Income (Unemployment Compensation Benefits): This section has been updated to provide a description for Unemployment Compensation Benefits (UCB).

11.6 (G) Income Exclusions (Loans): This section has been updated to provide a description for loans.

19.1 Definition of South Carolina Combined Application Project (SCCAP): This section has been updated to reflect the new SCCAP income limits effective January 1, 2023.

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2.2 (3) Special Household Requirements (Boarders): This section has been updated to add a link to Section 2.3 Ineligible Household Members (10) Residents of an Institution.

2.2 (4) Special Household Requirements (Foster care individuals): This section has been updated to add a link to Section 11.5 Unearned Income (N) Foster care payments.

5.1 (5) Verification Prior to Certification (Disability): This section has been revised to update the verification sources pertaining to veterans in the chart.

5.1 (8) Verification Prior to Certification (Utility expenses): This section has been revised to clarify that the Agency will verify utility expenses for households that are only allowed to claim actual utility costs and the households wish to claim the expenses. In addition, a link has been added to Section 12.5 Utility Allowances (4) Actual Utility Costs.

7.3 (1) Citizenship and Non-Citizen Status: This section has been updated to include Afghan Humanitarian Parolees as qualified non-citizens who are granted parole into the U.S. between January 31, 2021 to September 30, 2023. In addition, verbiage has been added to the descriptions for non-citizens with military connection or who are blind or disabled.

11.3 (G) Earned Income (Boarder payments): This section has been updated to add a link to Section 11.5 Unearned Income (N) Foster care payments.

11.3 (H) Earned Income (Bonuses): This section has been updated to provide a description for bonuses.

11.3 (V) Earned Income (Garnished income): This section has been updated to provide a description for garnished income.

11.3 (W) Earned Income (Job Corps): This section has been updated to provide a description for Job Corps.

11.3 (X) Earned Income (Jury Duty Payments): This section has been updated to provide a description and “Exceptions” for Jury Duty Payments. In addition, this income source has been removed from the Unearned Income Chart to the Earned Income chart. Subsequent entries have been re-alphabetized in both charts as appropriate.

11.3 (AA) Earned Income (Repayment – voluntarily or involuntarily returned): This section has been updated to add Repayment – voluntarily or involuntarily returned to the Earned Income Chart. Subsequent entries have been re-alphabetized as appropriate.

11.3 (MM) Earned Income (WIOA educational and training programs): This section has been updated to provide a description for WIOA educational and training programs. In addition, verbiage has been added to the “Exception” for clarity.

11.4 (1) Self-Employment Income (Treatment of self-employment income): This section has been updated to add verbiage to clarify that self-employment income must be averaged over the period in which it is intended to cover.

11.4 (2) Self-Employment Income (Determining self-employment income): This section has been revised to provide clarity of the computation for legally incorporated businesses that are S Corporations.

11.5 (D) Unearned Income (Assistance payments from Federal or federally aided public assistance programs): This section has been updated to include general assistance programs as well as to add a “Note.”

11.5 (R) Unearned Income (Home Energy Assistance Payments): This section has been updated to provide a description for Home Energy Assistance Payments.

11.5 (T) Unearned Income (Interest Income): This section has been updated to provide a description for Interest Income.

11.5 (Z) Unearned Income (Recoupment/Repayment from means tested programs): This section has been updated to provide a description for Recoupment/Repayment from means tested programs.

11.5 (AA) Unearned Income (Recoupment/Repayment from non-means tested programs): This section has been updated to provide a description for Recoupment/Repayment from non-means tested source.

11.5 (OO) Unearned Income (Strike benefits): This section has been updated to provide a revised description for strike benefits.

11.5 (TT) Unearned Income (Training Allowances): This section has been updated to provide a description for Training allowances.

11.5 (XX) Unearned Income (Vendor payments): This section has been updated to provide a revised description for Vendor payments.

11.5 (YY) Unearned Income (Veterans Administration (VA) benefits): This section has been updated to provide a description for Veterans Administration benefits.

11.5 (EEE) Unearned Income (Worker’s Compensation Benefits): This section has been updated to provide a description for Worker’s Compensation Benefits and to add verbiage to clarify that any amounts deducted to pay claims for intentional program violation are counted.

11.6 (J) Income Exclusions (Public Assistance (PA) vendor payments): This section has been updated to add a link to Section 11.5 (R) Home Energy Assistance Payments.

12.4 (2) Shelter Deduction (Billed expenses): This section has been updated to add verbiage for clarity and to add the subtitle “Billed expenses.” Subsequent entries have been re-numbered as appropriate.

12.4 (3) Shelter Deduction (Allowed shelter costs): This section has been updated by changing the word “expenses” to “costs” to the title of the subsection for clarity.

12.5 (1) Shelter Deduction (Billed expenses): This section has been updated to revise the “Note” for clarity.

12.5 (2) Utility Allowance (Mandatory Utility Allowance [MUA]): This section has been updated to clarify that the heating or cooling costs must be separate from the rent and mortgage in order for the household to be entitled to the MUA. In addition, a “Note” has been added to clarify that the household is only entitled to one utility allowance when that household has both an occupied and an unoccupied home.

12.5 (3) Utility Allowance (Basic Utility Allowance [BUA]): This section has been updated to clarify that expenses for at least two utilities listed must be incurred in order for a household to qualify for the BUA. In addition, verbiage has been added regarding the expenses for clarity.

12.6 Dependent Care Deduction: This section has been revised by removing the word “adult” in order to clarify that a dependent care deduction may be allowed for a dependent of any age who is incapacitated.

12.7 Child Support Deduction: This section has been updated by adding verbiage for clarity.

13.5 (3) Determining Deductions (Anticipating expenses): This section has been updated to include verbiage pertaining to the BUA and actual utility costs for clarity.

19.8 (2) Changes in South Carolina Combined Application Project (SCCAP) Households (SCCAP household reports a change in circumstances which would cause the case to be excluded from SCCAP): This section has been updated to provide the current procedures for the Interview Process.

19.12 Processing Households Eligible For The Elderly Simplified Application Project (ESAP): This section has been updated to provide the current procedures for the Interview Process.

SNAP Tool Kit 2: Acceptable Verification of U.S. Citizenship and Non-Citizen Eligibility: This section has been updated to add descriptions and acceptable sources of verification as well as to add verbiage for clarity.

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5.1 (12) Verification Prior to Certification (Able-bodied adults subject to the time limit): This section has been updated to add verbiage regarding the DSS Form 1262, Benefits Inquiry, being utilized to obtain verification of an ABAWD’s countable months used in another State.

7.1 Residency: This section has been updated to add a Note regarding the DSS Form 1262 may be used to obtain verification of a household's SNAP case status in another State.

7.4 (2) Students (Student Exemptions): This section has been updated to remove two temporary student exemptions due to the expiration of the Federal Public Health Emergency (PHE) Declaration.

11.3 (JJ) Earned Income (Training allowances from vocational and rehabilitative programs): This section has been updated to provide a description and Note for Training allowances from vocational and rehabilitative programs.

11.3 (KK) Earned Income (Vacation pay): This section has been updated to provide a description and Exception for vacation pay.

11.3 (LL) Earned Income (Wages and salaries): This section has been updated to provide a description for wages and salaries.

11.5 (R) Unearned Income (Home Energy Assistance Payments): This section has been updated to add verbiage for clarity.

11.5 (FF) Unearned Income (Representative payee payments): This section has been updated to provide a description for Representative Payee Payments.

11.5 (II) Unearned Income (Royalties): This section has been updated to provide a description for royalties.

11.5 (JJ) Unearned Income (Severance pay): This section has been updated to provide a description for severance pay.

11.5 (LL) Unearned Income (Sick pay benefits paid by employer): This section has been updated to provide a description for sick pay benefits paid by an employer.

11.5 (NN) Unearned Income (Social Security Administration [SSA] benefits): This section has been updated to clarify that gross income is counted for Social Security Administration benefits even if taxes or a Medicare premium is withheld.

11.5 (VV) Unearned Income (Unemployment Compensation Benefits [UCB]): This section has been updated to add an Exception for Unemployment Compensation Benefits (UCB).

11.5 (WW) Unearned Income (USDA settlement to African-American Farmers - Pigford v. Glickman): This section has been updated to provide a description for USDA Settlement to African-American Farmers – Pigford V. Glickman.

11.5 (YY) Unearned Income (Veteran Affairs [VA] benefits): This section has been updated to provide a Note pertaining to aid and attendance benefits or housebound allowance.

11.5 (AAA) Unearned Income (Veteran's educational benefits not excluded under SC TANF Policy): This section has been updated to add a Note pertaining to GI Educational Benefits for clarity.

11.5 (BBB) Unearned Income (Victim’s compensation payments): This section has been updated to provide a description for Victim’s compensation payments and to add verbiage for clarity.

11.5 (CCC) Unearned Income (Vocational rehabilitation subsistence allowance from Veterans Administration): This section has been updated to provide a description for Vocational rehabilitation subsistence allowance from Veterans Administration.

11.6 (D) Income Exclusions (General Assistance [GA] vendor payments): This section has been updated to add General Assistance (GA) to the income exclusion chart.

11.6 (J) Income Exclusions (Public Assistance [PA] vendor payments): This section has been updated to add verbiage for clarity pertaining to emergency and special assistance.

11.6 (K) Income Exclusions (Vendor payments): This section has been updated to add verbiage and a Note for clarity.

12.8 (2) Medical Deduction (Recurring Medical Expenses): This section has been revised to include an updated chart of allowable medical expenses for clarity.

15.7 Unclear Information: This section has been updated to add verbiage that the Agency has an established system to monitor and prevent individuals who are being held in prison for more than 30 days from being included in a SNAP household. In addition, verbiage has been added that the Agency has an established system to verify and ensure that SNAP benefits are not issued to individuals who are deceased.

17.6 Expedited Service: This section has been added to clarify that the Agency is not required to apply the expedited service provisions at recertification if the household applies for recertification before the end of its current certification period. In addition, a link has been added to Section 6.5 Expedited Service.

25.3 Quality Control (QC) Findings: This section has been updated to list the correct titles of Quality Control (QC) forms, excluding references to form numbers.

SNAP Tool Kit 5: SNAP Cheat Sheets: This tool kit has been updated to include descriptions for commonly used “Immigrant” and “Non-immigrant” Classes of Admission (COA) codes as well as descriptions for Non-citizens Employment Authorization Document (EAD) codes.

SNAP Tool Kit 6: SNAP Student Eligibility Tool: This tool kit has been added in order to make the student eligibility tool accessible to staff in the SNAP manual.

Titles of DSS Forms have been updated throughout the SNAP Manual to reflect the current titles that are listed on the forms in Master Forms Index.

Child Protective Services and the acronym “CPS” have been replaced with Child Welfare Services and “CWS” throughout the SNAP Manual.

SC Voucher Program has been replaced with Child Care Scholarship Program throughout the SNAP Manual.

Volume 59 October 2023

2.2 (2) Special Household Requirements (Elderly and disabled persons): This section has been updated effective October 1, 2023 to reflect the increase in the gross monthly income (165 percent of poverty) that is used in determining separate household eligibility for an elderly **and** disabled individual who is unable to buy and prepare meals separately from others with whom the individual lives.

5.1 (5) (I) Verification Prior to Certification: This section has been updated to add verbiage to the Notes for clarity.

5.1 (5) (II) Verification Prior to Certification: This section has been updated to add the subheading “Disability Determination for Elderly and Disabled Persons” for clarity.

7.4 (1) Students (Applicability): This section has been updated to revise the Exception for clarity.

7.5 (3) Fleeing Felons and Probation/Parole Violators (Application Processing): This section has been updated to revise the Note for clarity.

8.3 The Agency’s Responsibility for Work Registration: This section has been updated to clarify that the Agency must provide a written notice and oral explanation to the household of all applicable work requirements for all members of the household. The Consolidated Work Notice is used to provide written notification of all pertinent information related to each of the applicable work requirements.

8.12 Definition of ABAWD: This section has been updated to redefine an ABAWD as SNAP household members ages 18 to 52 who are able-bodied adults without dependents.

8.15 Exceptions to ABAWD Work Requirements: This section has been updated to change the age-based exception for ABAWDs under age 18 or age 53 or older and to add the following new ABAWD time-limit exceptions: homeless individuals, veterans, and age 24 years old or younger and aged out of foster care.

8.16 Countable Months: This section has been updated to reflect the change in the percentage of the ABAWD discretionary exemptions from 12 to 8 effective October 1, 2023.

8.21 Good Cause for Not Meeting ABAWD Work Requirement: This section has been updated to clarify that good cause may be established for an ABAWD due to temporary absence from work, the work program, or the workfare program.

8.22 ABAWD Discretionary Exemptions: This section has been updated to reflect that the ABAWD discretionary exemptions have decreased from 12 to 8 percent.

11.1 (2) Net Income Eligibility Standard: This section has been updated to reflect the changes in gross and net monthly income limits, effective October 1, 2023.

11.3 (HH) Earned Income (Third party payments/vendor payments): This section has been updated to add a Note for clarity.

11.5 (NN) Unearned Income (Social Security Administration [SSA] Benefits): This section has been updated to clarify when BENDEX fields “Total Net Amount” and “Net Monthly Ben Amt (MBC)” should be used to obtain countable income.

11.5 (RR) Unearned Income (Third party payments/vendor payments): This section has been updated to add a Note and an Exception for clarity.

12.1 Income Deductions/General: This section has been updated to reflect changes in income deductions for maximum excessive shelter, MUA, BUA and telephone allowance, effective October 1, 2023. In addition, the maximum homeless shelter deduction increased to \$179.66 effective October 1, 2023.

12.2 Standard Deduction: This section has been updated to reflect the increase in the standard deduction for all household sizes, effective October 1, 2023.

12.4 (4) Shelter Deduction (Allowed Shelter Costs): This section has been updated to add verbiage to the Note for clarity.

13.6 (1) Net Monthly Income: This section has been updated to reflect that the maximum homeless shelter deduction increased to \$179.66 effective October 1, 2023.

13.6 (2) Eligibility: This section has been updated to reflect the changes in the gross and net income limits, effective October 1, 2023.

13.6 (3) Calculating Net income and Benefit Levels (Benefits): This section has been updated to list the minimum benefit allotment as \$23.

13.6 (4) Thrifty Food Plan (TFP) and Maximum SNAP Allotments: This section has been revised to reflect the updates to the gross and net income limits, as well as maximum allotments according to the household sizes, effective October 1, 2023.

15.4 Interim Changes for Simplified Reporting Households: This section has been updated to include a household member who has been identified as a fleeing felon or probation or parole violator and a household member who has won substantial lottery or gambling winnings.

19.1 Definition of South Carolina Combined Application Project (SCCAP): This section has been updated to reflect the new SCCAP benefit amounts and shelter thresholds for “shelter high” and “shelter low”, effective October 1, 2023.

Appendix 2 (10.2 Maximum Allowable Resources): This section has been updated to reflect the current resource limits.

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2.2 (7) Special Household Requirements (Temporary Absence): This section has been updated to add verbiage to clarify that the temporary absence policy applies to certified SNAP households and not to applicant households.

8.15 Exceptions to ABAWD Work Requirement: This section has been updated to specify that all veterans meet an exception to the ABAWD Work Requirement, regardless if they were honorably or dishonorably discharged. In addition, a link has been added to Section 14.6 Homeless SNAP Households.

11.3 (H) Earned Income (Bonuses): This section has been updated to add verbiage and a Note for clarity.

11.3 (Y) Earned Income (Military Pay): This section has been updated to add a Note for clarity.

11.4 (2) Self-Employment Income (Determining self-employment income): This section has been updated to clarify which lines to use to determine income for self-employment when using Form 1120.

11.5 (C) Unearned Income (Annuities): This section has been updated to add verbiage to the description for clarity.

11.5 (O) Unearned Income (Garnished income from unearned income): This section has been updated to provide a description for garnished income.

11.5 (Q) Unearned Income (Governmental rent, housing subsidies): This section has been updated to add a link to Section 11.6 (D) General Assistance (GA) vendor payments.

11.5 (V) Unearned Income (Military Allotments): This section has been updated to add a description and to remove a Note for clarity.

11.6 (M) Income Exclusions (Uniformed Services Former Spouse Protection Act): This section has been updated to add a description for the Uniformed Services Former Spouse Protection Act.

11.8 (O) Federal Law Income Exclusions: This section has been updated to add verbiage for clarity.

19.1 Definition of the South Carolina Combined Application Project (SCCAP): This section has been updated to reflect the new SCCAP income limits and shelter thresholds for “shelter high” and “shelter low”, effective January 1, 2024.

22.2 Types of Issuance: This section has been updated to add links to Sections 13.6 (3) Calculating Net Income and Benefit Levels (Benefits); 15.5 (1) Action on Reported Changes (Increase in Benefits); 21.1 Entitlement; and 22.8 Authorizing Replacements for Household Misfortunes.

SNAP Tool Kit 7: SNAP Glossary: This tool kit has been added to provide general definitions for terms used in SNAP.

Revisions have been made throughout Chapter 9 to reflect edits made by the Employment Services Division regarding the SNAP Employment and Training (SNAP E&T) Program.

Volume 61 April 2024

2.2 (2) Special Household Requirements (Elderly and disabled persons): This section has been updated to add a link to SNAP Tool Kit 1: Permanent Disability Established by the Social Security Act.

2.3 Ineligible Household Members: This section has been updated to include individuals of certain crimes and who are out of compliance with the terms of their sentence. The subsequent entry has been renumbered accordingly.

3.3 (1) SNAP Application Form (Content): This section has been updated to provide the most recent version of the Nondiscrimination Statement.

3.8 Interviews: This section has been updated to provide the current procedure for the Interview Process.

3.10 Voter Registration Requirements: This section has been updated to add verbiage to the procedure for clarity.

3.11 Attestation Requirement: This section has been added to provide the attestation requirement for certain convicted felons.

4.2 Households Prohibited from Being Considered Categorically Eligible: This section has been updated to include individuals convicted of certain crimes and who are out of compliance with the terms of their sentence. In addition, a link has been added to Section 14.12 Disqualification for Certain Convicted Felons.

5.5 Responsibility for Obtaining Verification: This section has been updated to provide the verification requirement for attestation for certain convicted felons.

5.6 Income and Eligibility Verification System (IEVS)/State Verification and Exchange System (SVES): This section has been updated to include lottery or gambling winnings to the list of interface and query systems that must be reviewed prior to certification.

12.8 (2) (J) Medical Expenses (Recurring Medical Expenses): This section has been updated to add verbiage for clarity pertaining to the mileage rate allowed when clients use a vehicle(s) owned by the SNAP household to obtain medical treatment or services.

14.1 (1) Treatment of Income and Resources for Non-Households Members: This section has been updated to specify the treatment of income and resources for certain convicted felons.

14.11 (1) Disqualification for Substantial Lottery or Gambling Winnings (1) Regaining eligibility: This section has been updated to provide the current maximum allowable financial resource limit for substantial lottery or gambling winnings.

14.12 Disqualification for Certain Convicted Felons: This section has been added to provide the provisions and procedures for Certain Convicted Felons.

15.3 Simplified Reporting Households: This section has been updated to provide the current maximum allowable financial resource limit for substantial lottery or gambling winnings.

15.4 Interim Changes for Simplified Reporting: This section has been updated to provide the current maximum allowable financial resource limit for substantial lottery or gambling winnings.

15.5 (2) Actions on Reported Changes (Decrease in benefits): This section has been updated to provide the current maximum allowable financial resource limit for substantial lottery or gambling winnings.

17.2 Recertification Interview: This section has been updated to provide the current procedure for the interview process.

SNAP Tool Kit 7: SNAP Glossary: This tool kit has been updated to add additional terms.

Revisions have been made throughout Chapter 20 (Disqualification for Intentional Program Violation [IPV]) and Chapter 23 (Claims Against Households) to reflect updates made by the Benefit Integrity Program Manager.

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5.4 Verification for Homeless Households: This section has been updated to link to the Note in Section 12.1 Income Deductions/General.

7.1 Residency: This section has been updated to link the Exception to Section 14.5 Shelter for Battered Women and Children.

7.3 (1) Citizenship and Non-Citizen Status: This section has been updated to change the expiration date from September 30, 2023 to September 30, 2024 due to an extension of the parole period under the Additional Ukraine Supplemental Appropriations Act, 2022. In addition, a link has been added to SNAP Tool Kit 2 pertaining to Lawful Permanent Resident (LPR) with qualifying work quarters.

8.11 Voluntary Quit and Reduction of Work Effort: This section has been updated to add verbiage to clarify that the voluntary quit and reduction of work effort provisions do not apply to household members who meet an exemption from SNAP Work Requirements in Section 8.2.

11.4 Self-Employment Income: This section has been updated to remove the sentence pertaining to an employer/employee relationship for clarity.

11.5 Unearned Income: This section has been updated to add verbiage to define unearned income.

12.5 (3) Utility Allowances (BUA): This section has been updated to add the words “one or” for clarity.

14.1 (1&2) Treatment of Income and Resources of Certain Non-Household Members: This section has been updated to add “Assigning a standard deduction to the household” to subsections 1 and 2.

14.1 (3) Treatment of Income and Resources of Certain Non-Household Members (Ineligible non-citizens): This section has been updated to add policy pertaining to eligibility and benefit level.

14.9 Participation of Deceased Individuals: This section has been updated to provide examples of other times it may be necessary to request information on deceased individuals in order to determine eligibility.

17.4 Agency Failure to Provide an Opportunity to Participate at Recertification: This section has been updated to add the word “new” for clarity.

17.5 Prorated Benefits at Recertification: This section has been updated to add verbiage to clarify how to handle applications that are filed for recertification.

SNAP Tool Kit 3: SNAP Annual (12-Month) Recertification Chart: This tool kit has been revised to update the chart in order to reflect the current procedures.

SNAP Tool Kit 7: SNAP Glossary: This tool kit has been updated to add the term “income.”

Revisions have been made throughout Chapter 18 (Fair Hearings) to reflect updates made by the Office of Administrative Hearings (OAH).

Volume 63 January 2025

2.2 (2) Special Household Requirements (Elderly and disabled persons): This section has been updated effective October 1, 2024, to reflect the increase in the gross monthly income (165 percent of poverty) that is used in determining separate household eligibility for an elderly **and** disabled individual who is unable to buy and prepare meals separately from others with whom the individual lives.

7.3 (1) Citizenship and Non-Citizen Status: This section has been updated to add the following groups to the qualified non-citizens chart: Certain American Indians born abroad; Compacts of Free Association (COFA) citizens of the Federated States of Micronesia, the Republic of the Marshall Islands and the Republic of Palau; and Hmong or Highland Laotian tribal members.

8.12 Definition of ABAWD: This section has been updated to redefine an ABAWD as SNAP household members ages 18 to 54 who are able-bodied adults without dependents effective October 1, 2024.

8.15 Exceptions to ABAWD Work Requirements: This section has been updated to change the age-based exception for ABAWDs under age 18 or age 55 or older effective October 1, 2024.

11.1 (2) Net Income Eligibility Standard: This section has been updated to reflect the changes in gross and net monthly income limits, effective October 1, 2024.

11.5 (CCC) Unearned Income (Withdrawals from resources for categorically eligible households): This section has been updated to add verbiage for clarity.

12.1 Income Deductions/General: This section has been updated to reflect changes in income deductions for maximum excessive shelter, MUA, BUA and telephone allowance, effective October 1, 2024. In addition, the maximum homeless shelter deduction increased to \$190.30 effective October 1, 2024.

12.2 Standard Deduction: This section has been updated to reflect the increase in the standard deduction for all household sizes, effective October 1, 2024.

12.5 (1) Utility Allowances (Utility Allowances/General): This section has been updated to change the word “application” to the words “initial certification.”

13.1 Prospective Eligibility: This section has been updated to clarify the budgeting procedures for child support income that is interfaced through SCWINS.

13.5 Determining Deductions: This section has been updated to link the Note to Section 12.6 Dependent Care Deduction.

13.5 (3) Determining Deductions (Anticipating expenses): This section has been updated to remove verbiage for clarity.

13.6 (1) Net Monthly Income: This section has been updated to reflect that the maximum homeless shelter deduction increased to \$190.30 effective October 1, 2024.

13.6 (2) Eligibility: This section has been updated to reflect the changes in the gross and net income limits, effective October 1, 2024.

13.6 (4) Thrifty Food Plan (TFP) and Maximum SNAP Allotments: This section has been revised to reflect the updates to the gross and net income limits, as well as maximum allotments according to the household sizes, effective October 1, 2024.

14.3 (4) Residents of Drug Addict or Alcoholic (DAA) Treatment and Rehabilitation Programs: This section has been updated to provide additional information that the DAA treatment center must perform.

14.11 (1) Disqualification for Substantial Lottery or Gambling Winnings (1) Regaining eligibility: This section has been updated to provide the current maximum allowable financial resource limit for substantial lottery or gambling winnings effective October 1, 2024.

15.3 Simplified Reporting Households: This section has been updated to provide the current maximum allowable financial resource limit for substantial lottery or gambling winnings effective October 1, 2024.

15.4 Interim Changes for Simplified Reporting: This section has been updated to provide the current maximum allowable financial resource limit for substantial lottery or gambling winnings effective October 1, 2024.

15.5 (2) Actions on Reported Changes (Decrease in benefits): This section has been updated to provide the current maximum allowable financial resource limit for substantial lottery or gambling winnings effective October 1, 2024.

19.1 Definition of South Carolina Combined Application Project (SCCAP): This section has been updated to reflect the new income amounts, SCCAP benefit amounts and shelter thresholds for “shelter high” and “shelter low”, effective January 1, 2025.

19.8 (2) Changes in South Carolina Combined Application Project (SCCAP) Households: This section has been updated to provide the current procedure for the Interview Process.

19.12 Processing Households Eligible for the Elderly Simplified Application Project (ESAP): This section has been updated to provide the current procedure for the Interview Process.

Appendix 2 (10.2 Maximum Allowable Financial Resources): This section has been updated to provide the current maximum allowable financial resource limits.

SNAP Tool Kit 2: Acceptable Verification of U.S. Citizenship and Non-Citizen Eligibility: This section has been updated to add the following groups to the qualified non-citizens chart: Certain American Indians born abroad; Compacts of Free Association (COFA) citizens of the Federated States of Micronesia, the Republic of the Marshall Islands and the Republic of Palau; and Hmong or Highland Laotian tribal members.

A revision has been made in Section 23.2 (1), Possible Recipient Claims, to reflect an update to the procedure made by the Benefit Integrity Program Manager.

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1.1 General Purpose: This section has been revised to provide updates to the purpose of SNAP.

7.4 (2) (K) Student Exemptions: This section has been updated to clarify that students assigned to or placed in an Institution of Higher Education through certain employment & training programs will meet the student exemption eligibility criteria.

8.2 Exemptions from Work Requirements: This section has been updated to add verbiage to reflect that determining which caretaker has primary responsibility for care when there is more than one caretaker in the household applies to caretakers who are responsible for the care of a dependent child(ren) under 6 as well as caretakers who are responsible for the care of an incapacitated person(s).

8.13 ABAWD Determination: This section has been updated to add two subsections titled "Screening" and "Verification of exceptions" in order to clarify the requirements for screening individuals for all exceptions to the ABAWD time limit and to provide the process for verifying exception status if questionable.

8.15 Exceptions to ABAWD Work Requirements: This section has been updated to add verbiage for clarity pertaining to individuals who are veterans and individuals who are age 24 years old and younger and aged out of foster care.

8.17 ABAWD Reporting Requirements: This section has been updated to link to section 8.13 ABAWD Determination.

8.18 Tracking the 36-Month Period: This section has been updated to reflect the new 36-month time period for ABAWDs effective April 1, 2025.

14.6 Homeless SNAP Households: This section has been updated to add verbiage to the existing definition for homeless individual to clarify that individuals who lack a fixed and regular nighttime residence includes those who will imminently lose their nighttime residence.

SNAP Tool Kit 7: SNAP Glossary: This tool kit has been updated to add the term “screening” to the glossary.

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11.3 (D) Earned Income (Attendant Care): This section has been updated to include and define Attendant Care Income/Payments. Subsequent entries have been re-alphabetized as appropriate.

11.6 (A) Income Exclusions (Demonstration project vendor payments): This section has been updated to add Demonstration project vendor payments to the income exclusion chart. Subsequent entries have been re-alphabetized as appropriate.

12.6 Dependent Care Deduction: This section has been updated to clarify that a dependent care deduction can be allowed for the care of an individual for whom the household provides dependent care, even if the child or dependent adult is not a SNAP household member or lives outside of the home.

13.4 (1) Determining Income (Anticipating income): This section has been updated to include verbiage that households will be advised to report changes in gross monthly income as required by simplified reporting rules. In addition, a link has been added to 15.3 Simplified Reporting Households.

13.5 (6) Determining Deductions (Disallowed expenses): This section has been updated to add the subsection titled "Disallowed expenses." In addition, links have been added to sections 11.6 Income Exclusions, 11.7 Educational Assistance, 12.4 (5) Shelter Deduction (Disallowed Shelter costs), 12.6 Dependent Care Deduction, and 12.8 Medical Deduction. Also, the note that followed the introductory sentence in Section 13.5 has been removed due to the verbiage now being included in Section 13.5 (6).

15.9 Failure To Report: This section has been added to specify that the Agency will file a claim against a SNAP household for failure to report a change as required which results in the household receiving SNAP benefits to which it was not entitled.

20.5 Intentional Program Violation (IPV) Disqualification: This section has been updated to add verbiage for clarity.

SNAP Tool Kit 6: SNAP Student Eligibility Tool: This tool kit has been updated to specify that internships may be paid or unpaid.

Volume 66 October 2025

2.2 (2) Special Household Requirements (Elderly and disabled persons): This section has been updated effective October 1, 2025 to reflect the increase in the gross monthly income (165 percent of poverty) that is used in determining separate household eligibility for an elderly **and** disabled individual who is unable to buy and prepare meals separately from others with whom the individual lives.

11.1 (2) Net Income Eligibility Standard: This section has been updated to reflect the changes in gross and net monthly income limits, effective October 1, 2025.

11.5 Unearned Income (KK) Shared living arrangements: This section has been updated to link to Section 12.5 (5) Utility Allowances (Multiple households/multiple residences).

12.1 Income Deductions/General: This section has been updated to reflect changes in income deductions for maximum excessive shelter, MUA, BUA and telephone allowance, effective October 1, 2025. In addition, the maximum homeless shelter deduction increased to \$198.99 effective October 1, 2025.

12.2 Standard Deduction: This section has been updated to reflect the increase in the standard deduction for all household sizes, effective October 1, 2025.

12.5 (5) Utility Allowances (Multiple households/multiple residences): This section has been updated to link to Section 11.5 Unearned Income (KK) Shared living arrangements.

13.6 (1) Net Monthly Income: This section has been updated to reflect that the maximum homeless shelter deduction increased to \$198.99 effective October 1, 2025.

13.6 (2) Eligibility: This section has been updated to reflect the changes in the gross and net income limits, effective October 1, 2025.

13.6 (3) Calculating Net income and Benefit Levels (Benefits): This section has been updated to list the minimum benefit allotment as \$24.

13.6 (4) Thrifty Food Plan (TFP) and Maximum SNAP Allotments: This section has been revised to reflect the updates to the gross and net income limits, as well as maximum allotments according to the household sizes, effective October 1, 2025.

15.7 Unclear information: This section has been updated to add verbiage pertaining to unclear information for clarity. In addition, verbiage has been added to clarify that Prisoner Matches must be conducted on **adult** household members only and Death Matches must be conducted on **all** household members.

14.3 (1) DAA eligibility for SNAP: This section has been updated to reflect the name change of South Carolina Department of Alcohol and Other Drug Abuse Services (DAODAS) to South Carolina Department of Behavioral Health and Developmental Disabilities (BHDD)/Office of Substance Use Services.

14.4 Residents of a Group Living Arrangement (GLA): This section has been revised to update the note to reflect the name change of South Carolina Department of Disabilities and Special Needs (DDSN) to South Carolina Department of Behavioral Health and Developmental Disabilities (BHDD)/Office of Intellectual and Developmental Disabilities.

Volume 67 November 2025

8.12 Definition of ABAWD: This section has been updated to redefine an ABAWD as SNAP household members ages 18 to 64 who are able-bodied adults without dependents under 14 years of age in the household.

8.15 Exceptions to ABAWD Work Requirements: This section has been updated to change the age-based exception for ABAWDs to under age 18 or age 65 or older. In addition, updates have been made to reflect that adults in the SNAP household with a dependent child(ren) between the ages of 14 and 17 are now subject to the ABAWD time limit, unless they meet an exception to the ABAWD work requirement. Also, new exceptions for Indians have been added. Furthermore, homeless individuals, veterans, and individuals 24 years old or younger and aged out of foster care no longer meet an exception to the ABAWD work requirement.

SNAP Tool Kit 7: SNAP Glossary: This tool kit has been updated to redefine Able-bodied Adults Without Dependents (ABAWD) and to add the terms “Indian, Urban Indian, and California Indian” to the glossary.

15.4 (2) (I) & (J) Interim changes reported by the household that must be acted on: This section has been updated to remove specific references to ESAP households. Subsequent entries have been re-alphabetized as appropriate.

19.14 Changes in Elderly Simplified Application Project (ESAP) Households: This section has been updated to provide the current procedures to follow when there is a change in the ESAP household composition, and all members are no longer elderly, or a household member now has earned income. In addition, the link to section 15.4 (2) has been removed.

Volume 68 December 2025

13.6 (2) Eligibility: This section has been updated to link to Section 11.3 Earned Income (M) Children’s earnings.

7.3 (1) Citizenship and Non-Citizen Status: This section has been updated to reflect the current SNAP eligibility policy for non-citizens.

SNAP Tool Kit 2: Acceptable Verification of U.S. Citizenship and Non-Citizen Eligibility: This section has been updated to reflect the current SNAP eligibility policy for non-citizens.

SNAP Tool Kit 7: SNAP Glossary: This tool kit has been updated to redefine “Homeless Individual” and “Qualified Non-citizens” and to add the terms “Immigrant”; “Lawful Permanent Resident (LPR)”; and “Non-Immigrant.”

Volume 69 January 2026

7.3 (1) Citizenship and Non-Citizen Status: This section has been updated to reflect the current SNAP eligibility policy for non-citizens.

11.5 (N) Unearned Income (Foster Care Payments): This section has been updated to include Difficulty of Care Board Rate (DCBR) payments as a foster care payment.

19.1 Definition of South Carolina Combined Application Project (SCCAP): This section has been updated to reflect the new SCCAP income limits and benefit amounts effective January 1, 2026.

SNAP Tool Kit 2: Acceptable Verification of U.S. Citizenship and Non-Citizen Eligibility: This section has been updated to reflect the current SNAP eligibility policy for non-citizens.

SNAP Tool Kit 7: SNAP Glossary: This tool kit has been updated to add the term “Difficulty of Care Board Rate (DCBR)” to the glossary.

Appendix 2: Chapter 10 Resource Eligibility Standards

Appendix 2: Chapter 10 Resource Eligibility Standards

10.1 Uniform Standards for SNAP Resource Eligibility Standards

The Agency will apply the uniform national resource standards of eligibility to all applicant and recipient households unless the household is categorically eligible as defined in [Chapter 4, Categorically Eligible Households](#).

10.2 Maximum Allowable Financial Resources

The maximum allowable financial resources, including both liquid and non-liquid assets, of all members of the household will not exceed \$3000 for the household, except that, for households including one or more disabled members or members age 60 or over, such resources will not exceed \$4500.

10.3 Definition of Resources

The value of nonexempt resources, except for licensed vehicles as specified in [Section 10.3 Definition of Resources \(B\) vii](#), will be its equity value.

The equity value is the fair market value of a resource minus any indebtedness. In determining the resources of a household, the following will be included and documented by the Agency in sufficient detail to permit verification:

(A) Liquid resources. The following chart describes types of liquid resources and how they are treated:

Liquid Resource	Description/ Special Treatment
(i) Bank Accounts (checking or saving)/ financial accounts	Exclude current month's income. If jointly owned, see Section 10.4 Jointly Owned Resources . Jointly owned accounts include accounts in more than one name, connected by "and" or "or".
(ii) Burial contract (prepaid)/Funeral agreement	Exclude one burial contract per household member
(iii) Cash on hand	Exclude current month's income.
(iv) Cash from sale of real property	Count as lump sum resource in the month of sale and in following months if money remains (See Section 10.5 Lump Sum Payments as Resources).
(v) Cash received from estate settlements	
(vi) Federal/state income tax refunds	This is no longer considered a Resource – Effective May 1, 2013
(vii) Educational Savings Account	Funds in a qualified tuition program or any other education savings account.

(viii) Individual Development Account (IDA)	Categorical eligibility rules apply (See Section 4.1 Temporary Assistance for Needy Families (TANF)/ Supplemental Security Income (SSI) Categorically Eligible Households)
(ix) Individual retirement accounts (IRA's)/ Keogh plans	Funds held in individual retirement accounts (IRA's), and funds held in Keogh plans which do not involve the household member in a contractual relationship with individuals who are not household members.
(x) Lump sum payments	See Section 10.5 Lump Sum Payments as Resources .
(xi) Refunds of security deposits	
(xii) Revocable trust account	
(xiii) Savings certificates	If jointly owned, see Section 10.4 Jointly Owned Resources .
(xiv) Stocks/ bonds	
(xvi) Vacation pay to laid off employees	Count as income if received monthly in less than one installment. If withdrawn in a lump sum payment or if not withdrawn, count as a resource.

(B) Non-liquid resources. The following chart describes types of non- liquid resources and how they are treated:

Non-liquid Resource	Description/ Special Treatment
(i) Building(s) not associated with the homestead	Count building(s) on the property other than the homestead residence and its outbuildings.
(ii) Land	Provided that these resources are not specifically excluded under Section 10.7 Exclusions from Resources
(iii) Lifetime rights to property	Count only if rights can be sold or leased.
(iv) Non-homestead property	Count equity value unless there is a good faith effort to sell (See Section 10.7 Exclusions from Resources (S)).
(v) Personal property	Provided that these resources are not specifically excluded under Section 10.7 Exclusions from Resources
(vi) Recreational properties (and any other property)	Provided that these resources are not specifically excluded under Section 10.7 Exclusions from Resources
(vii) Vehicles (licensed) a. One licensed vehicle b. Any other licensed vehicle that a household member under age 18 drives to work, school, training or to look for work. c. All other licensed vehicles: cars, boats, recreational vehicles motorcycles, etc.	Provided that these resources are not specifically excluded under Section 10.7 Exclusions from Resources and unless the household is categorically eligible as defined in Section 4.1 Temporary Assistance for Needy Families (TANF)/ Supplemental Security Income (SSI) Categorically Eligible Households : a. Count fair market value over \$4650. b. Count fair market value over \$4650. c. Count the higher of either fair market value over \$4650 or equity value.
(viii) Vehicles (unlicensed)	Provided that these resources are not specifically excluded under Section 10.7 Exclusions from Resources and unless the household is categorically eligible as defined in Section 4.1 Temporary Assistance for Needy Families (TANF)/Supplemental Security Income (SSI) Categorically Eligible Households : Count equity value.

For a household containing a sponsored non-citizen, the Agency must deem the resources of the sponsor and the sponsor's spouse in accordance with [Section 7.3 Citizenship and Non-Citizen Status, \(2\) Sponsored Non-citizens](#).

10.4 Jointly Owned Resources

Resources owned jointly by separate households will be considered available in their entirety to each household, unless it can be demonstrated by the applicant household that such resources are inaccessible to that household. If the household can demonstrate that it has access to only a portion of the resource, the value of that portion of the resource will be counted toward the household's resource level.

The resource will be considered totally inaccessible to the household if the resource cannot practically be subdivided and the household's access to the value of the resource is dependent on the agreement of a joint owner who refuses to comply. For the purpose of this provision, ineligible non-citizens or disqualified individuals residing with the household will be considered household members. Resources will be considered inaccessible to persons residing in shelters for battered women and children, as defined in [Section 14.5 Shelter for Battered Women and Children](#), if:

- (A) The resources are jointly owned by such persons and by members of their former household; and
- (B) The shelter resident's access to the value of the resources is dependent on the agreement of a joint owner who still resides in the former household.

10.5 Lump Sum Payments as Resources

Lump sum payments are treated as a resource in the month received. If the lump sum includes a payment for the current month, the amount of that payment must be deducted from the lump sum and shown as income.

10.6 Determining the Value of Countable Vehicle

Once ownership of a vehicle has been determined, a decision must be made to the fair market value of the vehicle. The fair market value of the vehicle will be determined by the wholesale value (Av's Trade-In) of the vehicle as listed in the National Automobile Dealers (NADA) Used Car Guide Book. The basic value of a vehicle cannot be changed by using "add" or "deduct" factors.

Any household who claims that the NADA value does not apply to their vehicle must be given the opportunity to obtain verification of the true value from a reliable source.

NOTE: The fair market value of a vehicle may also be determined through the use of Internet websites. The Agency must assign the wholesale value to the vehicle and will not increase the basic value by adding the value of low mileage or optional equipment. If condition is required, assume average condition and

average mileage (approximately 12,000 per year for the first five years and 10,000 per year thereafter, if an actual number is required). The web site information should be copied and used for case file documentation. The acceptable free web sites include:

- *AutoPricing.com*
- *CarPrices.com*
- *Edmund's*
- *Intellichoice*
- *Kelley Blue Book*
- *NADA (fee based web site). The NADA free web site must not be used for vehicle valuation.*

Unless questionable, the Agency must accept the household's statement as to fair market value of any vehicle six years old or older. The fair market value of custom made, antique and classic vehicles must be verified, regardless of age.

10.7 Exclusions from Resources

The Agency may require verification of the value of a resource to be excluded if the information provided by the household is questionable. In determining the resources of a household, only the resources included in the following will be excluded.

Excluded Resource	Description	Special Treatment
(A) Achieving a Better Life Experience (ABLE) accounts	Savings accounts provide secure funding for disability-related expenses on behalf of designated beneficiaries deemed disabled before age 26, section 529A of the Internal Revenue Code of 1986.	
(B) Burial Plot	One burial plot per household member	
(C) Cash value of resources not accessible to the household	Resources having cash value which is not accessible to the household, such as but not limited to security deposits on rental property or utilities, or property in probate.	
(D) Earned income tax credits	Earned income tax credits will be excluded as follows: (i) A Federal earned income tax credit received either as a lump sum or as payments under section 3507 of the Internal Revenue Code (IRC) for the month of receipt and the following month for the individual and that individual's spouse; (ii) Any Federal, State or local earned income tax credit received by any household member will be excluded for 12 months, provided the household was participating in the SNAP at the time of receipt of the earned income tax credit and provided the household participates continuously during that 12-month period.	<i>NOTE: Breaks in participation of one month or less due to administrative reasons, such as delayed recertification or missing or late monthly reports, will not be considered as</i>

		<i>nonparticipation in determining the 12-month exclusion</i>
(E) Educational Savings Account	Money qualified tuition programs under Internal Revenue Code, Sections 529 or 530. Count money deposited into non-tax exempt accounts.	
(F) Energy assistance	Energy assistance payments or allowances excluded as income.	
(G) Federal statute	Resources which are excluded for SNAP purposes by express provision of Federal statute.	
(H) Funeral agreement/Burial Contract Prepaid	The value of one bona fide funeral agreement per household member.	
(I) Governmental payments designated for the restoration of a home damaged in a disaster	Any governmental payments which are designated for the restoration of a home damaged in a disaster, if the household is subject to a legal sanction if the funds are not used as intended; e.g. payments made by the Department of Housing and Urban Development through the Individual and Family Grant Program or disaster loans or grants made by the Small Business Administration.	
(J) Home and surrounding property	The home and surrounding property which is not separated from the home by intervening property owned by others. The home and surrounding property will remain exempt when temporarily unoccupied for reasons of employment, training for future employment, illness, or un-inhabitability caused by casualty or natural disaster, if the household intends to return. Households that currently do not own a home, but own or are purchasing a lot on which they intend to build or are building a permanent home, will receive an exclusion for the value of the lot and, if it is partially completed, for the home.	<i>Public rights of way, such as roads which run through the surrounding property and separate it from the home, will not affect the exemption of the property,</i>
(K) Household goods and personal effects		
(L) Income Producing Property	Property which annually produces income consistent with its fair market value, even if only used on a seasonal basis. Such property will include rental homes and vacation homes	
(M) Income (resources prorated as income)	Resources, such as those of students or self-employed persons, which have been prorated as income.	<i>NOTE: The treatment of student income is explained in Section 7.4(4) and the treatment of self-employment income is explained in Section 11.4.</i>
(N) Indian lands	Indian lands held jointly with the Tribe or land that can be sold only with the approval of the Department of the Interior's Bureau of Indian Affairs.	

(O) Installment Contracts	Installment contracts for the sale of land or buildings if the contract or agreement is producing income consistent with its fair market value. The exclusion will also apply to the value of the property sold under the installment contract, or held as security in exchange for a purchase price consistent with the fair market value of that property.	
(P) Lien placed on non-liquid assets	Non-liquid asset(s) against which a lien has been placed as a result of taking out a business loan and the household is prohibited by the security or lien agreement with the lien holder (creditor) from selling the asset(s).	
(Q) Life insurance policies	Cash value	
(R) Pension plans or funds	The cash value of pension plans or funds	<i>Keogh plans which involve no contractual relationship with individuals who are not household members and individual retirement accounts (IRA's) will not be excluded under this section;</i>
(S) Property (real or personal) directly related to the maintenance or use of an excluded vehicle	Property, real or personal, to the extent that it is directly related to the maintenance or use of a vehicle excluded under Section 10.7 Exclusions from Resources . Only that portion of real property determined necessary for maintenance or use is excludable under this provision. For example, a household which owns a produce truck to earn its livelihood may be prohibited from parking the truck in a residential area. The household may own a 100-acre field and use a quarter-acre of the field to park and/or service the truck. Only the value of the quarter-acre would be excludable under this provision, not the entire 100-acre field.	
(T) Property essential to employment/self-employment	Property, such as farm land or work related equipment, such as the tools of a tradesman or the machinery of a farmer, which is essential to the employment or self-employment of a household member. Property essential to the self-employment of a household member engaged in farming will continue to be excluded for one year from the date the household member terminates his/her self-employment from farming.	

(U) Property (real) for sale	Real property which the household is making a good faith effort to sell at a reasonable price and which has not been sold.	<i>NOTE: The Agency may verify that the property is for sale and that the household has not declined a reasonable offer. Verification may be obtained through a collateral contact or documentation, such as an advertisement for public sale in a newspaper of general circulation or a listing with a real estate broker.</i>
(V) Retirement Accounts	Funds in a plan, contract, or account that meets the requirements that is described in sections of the Internal Revenue Code of 1986, such as Individual Retirement Accounts (IRA), 401(k), profit-sharing, and Simplified Employee Pension (SEP) Plan.	
(W) SSI recipients	The resources of a household member who receives SSI benefits. A household member is considered a recipient of these benefits if the benefits have been authorized but not received, if the benefits are suspended or recouped, or if the benefits are not paid because they are less than a minimum amount.	<i>NOTE: Individuals entitled to Medicaid benefits only are not considered recipients of SSI.</i>
(X) TANF Recipients	The resources of a household member who receives TANF benefits. A household member is considered a recipient of these benefits if the benefits have been authorized but not received, if the benefits are suspended or recouped, or if the benefits are not paid because they are less than a minimum amount.	<i>NOTE: Individuals entitled to Medicaid benefits only are not considered recipients of TANF.</i>

(Y) Trusts (Irrevocable)	Any funds in a trust or transferred to a trust, and the income produced by that trust to the extent it is not available to the household (irrevocable trust funds), will be considered inaccessible to the household if: (i) The trust arrangement is not likely to cease during the certification period and no household member has the power to revoke the trust arrangement or change the name of the beneficiary during the certification period; (ii) The trustee administering the funds is either: • A court, or an institution, corporation, or organization which is not under the direction or ownership of any household member; or • An individual appointed by the court who has court imposed limitations placed on his/her use of the funds which meet the requirements of this paragraph; (iii) Trust investments made on behalf of the trust do not directly involve or assist any business or corporation under the control, direction, or influence of a household member; and (iv) The funds held in irrevocable trust are either: Established from the household's own funds, if the trustee uses the funds solely to make investments on behalf of the trust or to pay the educational or medical expenses of any person named by the household creating the trust, or • Established from non-household funds by a non-household member.	
(Z) Unable to sell (for significant return)	Resources that, as a practical matter, the household is unable to sell for any significant return because the household's interest is relatively slight or the costs of selling the household's interest would be relatively great or if its sale or other disposition is unlikely to produce any significant amount of funds for the support of the household or the cost of selling the resource would be relatively great. This provision does not apply to financial instruments such as stocks, bonds, and negotiable financial instruments.	NOTE: “Significant return” means any return, after estimating costs of sale or disposition, and taking into account the ownership interest of the household, that the Agency determines are more than \$1,500. “Any significant amount of funds” means funds amounting to more than \$1,500.

(AA) Vehicles (Licensed)	Licensed vehicles that meet the following conditions: (i) One licensed, registered vehicle per licensed driver in the household. To receive this exclusion, both the license and registration must be issued in South Carolina (SC). (ii) Used for income-producing purposes; such as, but not limited to, a taxi, truck, or fishing boat, or a vehicle used for deliveries, to call on clients or customers, or required by the terms of employment; (iii) That have previously been used by a self-employed household member engaged in farming but are no longer used in farming because the household member has terminated his/her self-employment from farming must continue to be excluded as a resource for one year from the date the household member terminated his/her self-employment farming; (iv) Annually producing income consistent with its fair market value, even if used only on a seasonal basis; (v) Necessary for long-distance travel, other than daily commuting, that is essential to the employment of a household member (or ineligible non-citizen or disqualified person whose resources are being considered available to the household; e.g. the vehicle of a traveling sales person or a migrant farmworker following the work stream); (vi) Used as the household's home and, therefore, excluded under Section 10.7 Exclusions from Resources (H); (vii) Necessary to transport a physically disabled household member (or physically disabled ineligible non-citizen or physically disabled disqualified person whose resources are being considered available to the household) regardless of the purpose of such transportation (limited to one vehicle per physically disabled household member). The vehicle need not have special equipment or be used primarily by or for the transportation of the physically disabled household member; or (viii) Necessary to carry fuel for heating or water for home use when the transported fuel or water is anticipated to be the primary source of fuel or water for the household during the certification period. Households must receive this resource exclusion without having to meet any additional tests concerning the nature, capabilities, or other uses of the vehicle. Households must not be required to furnish documentation, as mandated by §273.2(f)(4), unless the exclusion of the vehicle is questionable. If the basis for	<i>NOTE: Military personnel from out of state are not required to obtain a current SC driver’s license or vehicle registration.</i> <i>NOTE: The exclusions in Section 10.7 Exclusions from Resources (X(ii) through (v)) will apply when the vehicle is not in use because of temporary unemployment, such as when a taxi driver is ill and cannot work, or when a fishing boat is frozen in and cannot be used.</i> <i>Exception: This does not apply to household members with mental disabilities only.</i>
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	exclusion of the vehicle is questionable, the Agency may require documentation from the household, in accordance with §273.2(f)(4). (ix) The value of the vehicle is inaccessible, in accordance with Section 10.7 Exclusions from Resources (S), because its sale would produce an estimated return of not more than \$1,500. (x) Leased vehicle while the title is retained by the owner.	<i>NOTE: The vehicle does not have to be licensed or operable. This exclusion may apply to all vehicles in the household.</i> <i>NOTE: At the point in time that the household actually buys the vehicle, it becomes a resource for the household. Also, any dollar value accrued in the lease is counted as a lump sum at the point in time that it is refunded to the household.</i>
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When an exclusion applies because of use of a resource by or for a household member, the exclusion will also apply when the resource is being used by or for an ineligible non-citizen or disqualified person whose resources are being counted as part of the household's resources.

For example, work related equipment essential to the employment of an ineligible non-citizen or disqualified person will be excluded (in accordance [Section 10.7 Exclusions from Resources \(R\)](#)), as will one burial plot per ineligible non-citizen or disqualified household member (in accordance with [Section 10.7 Exclusions from Resources \(A\)](#)).

10.8 Handling of Excluded Funds

Excluded funds that are kept in a separate account, and that are not commingled in an account with non-excluded funds, will retain their resource exclusion for an unlimited period of time. The resources of students and self-employment households which are excluded as provided in [Section 10.7 Exclusions from Resources \(K\)](#) and are commingled in an account with non-excluded funds will retain their exclusion for the period of time over which they have been prorated as income. All other excluded moneys which are commingled in an account with non-excluded funds will retain their exemption for six months from the date they are commingled.

After six months from the date of commingling, all funds in the commingled account will be counted as a resource.

10.9 Transfer of Resources

At the time of application, households subject to resource determination will be asked to provide information regarding any resources which any household member (or ineligible non-citizens or disqualified person whose resources are being considered available to the household) had transferred within the 3-month period immediately preceding the date of application.

Households which have transferred resources knowingly for the purpose of qualifying or attempting to qualify for SNAP benefits will be disqualified from participation in the program for up to 1 year from the date of the discovery of the transfer.

This disqualification period will be applied if the resources are transferred knowingly in the 3-month period prior to application or if they are transferred knowingly after the household is determined eligible for benefits.

An example of the latter would be assets which the household acquires after being certified and which are then transferred to prevent the household from exceeding the maximum resource limit.

Eligibility for SNAP benefits will not be affected by the following transfers:

- (A) Resources which would not otherwise affect eligibility, for example, resources consisting of excluded personal property such as furniture or of money that, when added to other nonexempt household resources, totaled less at the time of the transfer than the allowable resource limits;
- (B) Resources which are sold or traded at, or near, fair market value;
- (C) Resources which are transferred between members of the same household (including ineligible non-citizens or disqualified persons whose resources are being considered available to the household); and
- (D) Resources which are transferred for reasons other than qualifying or attempting to qualify for SNAP benefits, for example, a parent placing funds into an educational trust fund described in [Section 10.7 Exclusion from Resources \(M\)](#).

In the event the Agency establishes that an applicant household subject to resource determination knowingly transferred resources for the purpose of qualifying or attempting to qualify for SNAP benefits, the households will be sent a notice of denial explaining the reason for and length of the disqualification. The period of disqualification will begin in the month of application.

If the household is participating at the time of the discovery of the transfer, a notice of adverse action explaining the reason for and length of the disqualification will be sent.

The period of disqualification will be made effective with the first allotment to be issued after the notice of adverse action period has expired, unless the household has requested a fair hearing and continued benefits (See [Chapter 18 Fair Hearings](#)).

The length of the disqualification period will be based on the amount by which nonexempt transferred resources, when added to other countable resources, exceeds the allowable resource limits.

Amount in excess of the resource limit	Period of disqualification (months)
\$ 0 to 249.99	1
250 to 999.99	3
1,000 to 2999.99	6

S N A P M A N U A L

3,000 to 4,999.99	9
5,000 or more	12